

Chapter 505

AIR POLLUTION CONTROL

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[HISTORY: Adopted by the Board of County Commissioners (now County Council) of Allegheny County effective 2-1-1994; amended in its entirety effective 10-20-1995. Subsequent amendments noted where applicable.]

ARTICLE I

General.**§ 505-1. Short title.**

This chapter and these rules and regulations shall be known and may be cited as the "Air Pollution Control Regulations" or "Article XXI."

§ 505-2. Declaration of policy and purpose.

- A. In recognition of the constitutional right of the citizens of Pennsylvania to clean air and to the preservation of the natural, scenic, historic and aesthetic values of the environment and in recognition of the constitutional duty of the Commonwealth to conserve and maintain Pennsylvania's natural resources for the benefit of all people, it is hereby declared to be the policy of the County of Allegheny to protect the air resources of the County by pollution prevention and pollution control to the degree necessary for the:
- (1) Protection of the health, safety and welfare of all its citizens;
 - (2) Prevention of injury to plant and animal life and to property;
 - (3) Protection of the comfort and convenience of the public and the protection of the recreational resources of the County; and
 - (4) Development, attraction and expansion of industry, commerce and agriculture.
- B. Pollution prevention is recognized as the preferred strategy (over pollution control) for reducing risk to air resources. Accordingly, pollution prevention measures will be integrated into air pollution control programs wherever possible, and the adoption by sources of cost-effective compliance strategies, incorporating pollution prevention, will be encouraged.
- C. When pollution prevention measures are not feasible, it is, therefore, the purpose of this chapter to establish rules and regulations governing air pollution control in order to:
- (1) Protect the health, safety and welfare of the citizens of Allegheny County;
 - (2) Achieve and maintain the ambient air quality standards established by this chapter;
 - (3) Provide a mechanism to obtain such information as is necessary to determine the current air quality of the County, the factors contributing to that air quality and the current compliance status of any source of air contaminants as it relates to this chapter;
 - (4) Require the implementation of reasonably available control technology on all existing sources of air contaminants as expeditiously as practicable and the application of best available control technology on all new sources;
 - (5) Establish permit and license procedures for sources of air contaminants which will ensure compliance with this chapter and will maximize the potential for continued industrial and economic growth within the County in order to:
 - (a) Ensure the attainment and maintenance of the ambient air quality standards established by this chapter, the protection of the public health, safety and welfare, and the preservation of the air resources of the County;

- (b) Ensure compliance with the requirements of this chapter by preconstruction review of new and modified sources of air contaminants and periodic review of existing sources;
 - (c) Ensure that the Department has adequate current information on proposed new and modified and existing sources of air contaminants so that the air pollution control program established by this chapter can be efficiently and effectively administered; and
 - (d) Ensure that the requirements of the Clean Air Act and the Air Pollution Control Act concerning sources of air contaminants are met, so as to maximize the potential for continued industrial and economic growth within the County.
- (6) Ensure that sources of air contaminants located within Allegheny County will not unreasonably interfere with air pollution control programs of other jurisdictions;
 - (7) Maximize public and governmental understanding of, and participation in, efforts to improve and maintain the air resources of Allegheny County;
 - (8) Provide a mechanism for revising this chapter as necessary in light of changed circumstances; and
 - (9) Establish an air pollution control program which is consistent with the requirements of the Air Pollution Control Act and the Clean Air Act.

§ 505-3. Effective date and repealer.

This chapter shall become effective February 1, 1994. Upon such effective date, Sections 402, 520, 528, 530, and 602 of this chapter and Article XX, Rules and Regulations of the Allegheny County Health Department, Air Pollution Control, which first became effective January 1, 1981, and were last amended on February 3, 1993, are repealed. The first amendments and additions to this chapter (all provisions unless otherwise indicated) shall become effective October 20, 1995, and upon such effective date, Sections 1 through 1002 of this chapter, and all sections of Article XX, Rules and Regulations of the Allegheny County Health Department, Air Pollution Control, and all figures therein and appendices thereto, which first became effective January 1, 1981, and were last amended on February 3, 1993, are repealed.

§ 505-4. Existing orders.

Except as may otherwise be required by law, all orders heretofore issued shall continue in full force and effect, but in no event shall such orders relieve any person from the duty to comply with this chapter except as specifically set forth in such orders.

§ 505-5. Existing permits and licenses.

A. Except as may otherwise be required by law:

- (1) All operating permits, noncomplying source operating permits, open burning permits, waste-derived liquid fuel operating permits, abrasive blasting permits, asbestos abatement permits, and asbestos abatement contractor licenses heretofore issued shall continue in full force and effect until expired, terminated, or revoked in accordance with Article III, IV, V or IX of this chapter, but in no event shall such permits or licenses relieve any person from the duty to comply with this chapter except as specifically set forth in such permits or licenses; and
- (2) All installation permits and waste-derived liquid fuel installation permits heretofore issued shall continue in full force and effect until expired, terminated, or revoked in accordance with Article

II, IV, V or IX of this chapter, but in no event shall such permits relieve any person from the duty to comply with this chapter.

- B. For purposes of this section, operating permits heretofore issued to sources shall not expire until the permit pursuant to Article III of this chapter is issued.

§ 505-6. Construction and interpretation.

- A. Liberal construction. This chapter is adopted pursuant to the police and Health Department powers of the County of Allegheny and is intended to protect the health, safety and welfare of the citizens of Allegheny County. Therefore, the provisions of this chapter shall be liberally construed to give full effect to the purposes of this chapter.
- B. Provisions cumulative. The provisions of this chapter shall be cumulative. Therefore, except as may be otherwise explicitly provided for in this chapter, compliance with any provision of this chapter shall in no manner relieve any person of the duty to fully comply with any other provision of this chapter.
- C. Conflict. In the event that the provisions of this chapter conflict, the provision which results in the lowest permissible emission rate shall prevail, absent clear and convincing evidence that a different provision is intended to prevail.
- D. Ambiguity.
- (1) In the event that more than one interpretation is reasonably possible as to which of two or more provisions of this chapter apply, the provision which results in the lowest permissible emission rate shall prevail, absent clear and convincing evidence that a different provision is intended to prevail.
 - (2) In the event that more than one interpretation is reasonably possible as to any provision of this chapter, the interpretation which results in the lowest permissible emission rate shall prevail, absent clear and convincing evidence that a different interpretation is intended to prevail.
- E. Provisions severable. The provisions of this chapter shall be severable. If any provision of this chapter is found by a court to be unconstitutional or otherwise void, the remaining provisions of this chapter shall remain valid unless the court finds that such remaining provisions are so essentially and inseparably connected with, and so dependent upon, the void provision that it cannot be presumed that the Commissioners would have enacted such provisions without the void provision, or unless the court finds that such remaining provisions, standing alone, are incomplete and incapable of being executed in accordance with the Commissioners' intent.
- F. Burden of proof. In any proceeding arising out of the provisions of this chapter, or arising out of an order issued or action taken pursuant to this chapter, any person who claims entitlement to any exemption which may be provided for in this chapter, or in an order issued pursuant to this chapter, or who claims that a provision or interpretation other than the one resulting in the lowest permissible emission rate was intended to prevail pursuant to this section shall bear the burden of proof and the burden of going forward with respect to such claim.
- G. Separate offenses.
- (1) Violations of any requirement of this chapter, or any order or permit issued pursuant to this chapter, occurring on separate days shall be considered separate offenses.

- (2) Violations of any ambient air quality standard established by this chapter occurring on the same day but at separate locations shall be considered separate offenses.
- H. Absolute liability. Insofar as permitted by law, this chapter is intended to impose absolute liability for violations of the provisions of this chapter.

§ 505-7. Administration and organization.

- A. Administration. This chapter shall be administered and enforced by the Allegheny County Health Department Bureau of Environmental Health, by the Director of the Allegheny County Health Department, and by the County of Allegheny pursuant to authority granted in the Local Health Administration Law, 1951, Aug. 24, P.L. 1304, 16 P.S. § 12001 et seq. and the Second Class County Code, 1953, July 28, P.L. 723, 16 P.S. § 3101 et seq. **[Amended 5-5-2015 by Ord. No. 16-15]**
- B. Amendments. Amendments to this chapter shall be made in conformity with the Local Health Administration Law, 1951, Aug. 24, P.L. 1304, and the Second Class County Code, 1953, July 28, P.L. 723. A public hearing and a thirty-day public comment period shall be conducted by the Board of Health prior to its consideration of any significant amendment or additions to this chapter or any amendment or additions to this chapter which constitute a proposed amendment to the County's portion of any SIP required under the Clean Air Act.¹ **[Amended 5-5-2015 by Ord. No. 16-15]**
- C. Air Pollution Control Advisory Committee. There is hereby established an Air Pollution Control Advisory Committee which may recommend to the Board of Health additions and changes to this chapter and advise the Bureau of Environmental Health and the Board of Health on matters relative to the control of air pollution which are brought to its attention by any person. **[Amended 5-5-2015 by Ord. No. 16-15]**
- (1) The Air Pollution Control Advisory Committee shall consist of at least nine and up to 15 individuals appointed by the County Executive. Each member may identify an alternate, in writing, to vote in his/her stead. The member shall provide the name, address, and phone number of the alternate to the Chair of the Advisory Committee. The term of the alternate shall be that of the member or until the member identifies another alternate.
 - (2) All members of the Advisory Committee shall be appointed for a term of three years or until the next appointment, whichever is longer.
 - (3) The Director, Deputy Director Bureau of Environmental Health, and Air Program Manager shall be ex officio members of the Committee but shall not have the right to vote on matters before the Committee.
 - (4) Advisory Committee members may include both residents of Allegheny County and nonresidents who have been deemed by the County Executive to have pertinent expertise. The Advisory Committee shall consist of a balance of representatives of industry, environmental organizations, academia, small business, and general citizenry, who maintain credentials in, or experience in, or knowledge of the field of air pollution.
 - (5) A member or his/her alternate is expected to be in attendance at all Advisory Committee meetings. If a member or his/her alternate is not in attendance at more than three out of any six consecutive meetings, he/she will be notified by the County that his/her membership has been forfeited. A member may petition the Director for reinstatement at the next Advisory Committee

1. Editor's Note: See 42 U.S.C. § 7401 et seq.

meeting.

- (6) The Advisory Committee shall elect from its members a Chair and a Vice Chair of the Committee. The election shall be for one-year terms and held at the first meeting after September 1 of each year.
- (7) The Advisory Committee shall meet at the call of the Chair, or at the request of the Director of the Allegheny County Health Department or the Board of Health, or upon the written request of any three members of the Advisory Committee.
- (8) The Advisory Committee shall adopt such procedures as it deems necessary to conduct its business and shall adopt such provisions as are necessary in order to consider matters which are brought to its attention by any person or group.
- (9) A quorum shall be required to conduct the business of the Advisory Committee. A quorum shall consist of not less than a majority of the voting members of the Advisory Committee.

D. Right to information.

- (1) All records, reports, and other information in the possession of the Allegheny County Health Department relevant to the issuance of administrative orders, the issuance, revocation, or rejection of permits, the reporting of shutdowns or breakdowns, the determination of permissible, potential, or actual emission rates, or air quality data shall be retained by the Department for at least five years following its receipt or generation, or five years following the expiration of any related permit, whichever is longer. All such records, reports, and other information shall be open to inspection by any person except that any such record, reports, other information, or part thereof which would disclose methods or processes protected as trade secrets under the laws of the United States shall not be disclosed to any person other than:
 - (a) Officers, employees, and authorized representatives of Allegheny County, the PA DEP, or the U.S. EPA; provided that such disclosure shall be made only upon such terms and conditions which ensure that such protected information will not be disclosed to other persons; or
 - (b) Courts of the Commonwealth or of the United States in such manner as the court may direct.
- (2) The Department may establish policies and procedures regarding the time, place, and manner of inspection, and may establish reasonable fees for any material furnished by the Department upon request. All such fees shall be payable to the Allegheny County Air Pollution Control Fund.
- (3) The Department may refuse such inspections which create an undue burden or unreasonably interfere with the administration of the Department or when disclosure of the information sought may prejudice or interfere with the County's position in pending or anticipated litigation.
- (4) Confidential information. All records, reports, or information obtained by the Department or referred to at public hearings under the provisions of this chapter shall be available to the public as herein provided, except as provided for in this paragraph. Upon cause shown by any person that the records, reports, or information, or a particular portion thereof, but not emission data or any portions of any draft, proposed, or issued permits under this chapter:
 - (a) To which the Department has access under the provisions of this chapter; and

- (b) Which, if made public, would divulge production or sales figures or methods, processes, or production unique to such person or would otherwise tend to affect adversely the competitive position of such person by revealing trade secrets, including intellectual property rights, the Department shall consider such record, report, or information, or particular portion thereof confidential in the administration of this chapter. The Department shall implement this paragraph consistent with Subsections 112(d) and 114(c) of the Clean Air Act. Nothing herein shall be construed to prevent disclosure of such report, record, or information to federal, state or local government representatives as necessary for purposes of administration of any federal, state, or local laws or regulations, or when relevant in any proceeding under this chapter.
- (5) Any information obtained or used by the County in the administration of the provisions of this chapter shall be available to the U.S. EPA and PA DEP upon request and without restriction. If the information has been submitted to the County under a claim of confidentiality, upon request the source shall submit this information to the U.S. EPA and PA DEP directly.
- E. Annual report. The Department shall publish an annual air quality report detailing the progress of the County towards the attainment and maintenance of the ambient air quality standards established by this chapter.
- F. Disclosure statements.
 - (1) On or before April 15 of each year, the Director of the Allegheny County Health Department, the Deputy Director, Bureau of Environmental Quality, and the head of the Division of Air Quality Engineering Section, Bureau of Environmental Quality, shall file with the Chief Clerk of the County of Allegheny a disclosure statement covering the preceding calendar year. The Director, the Deputy Director, Bureau of Environmental Quality, and the head of the Engineering Section, Bureau of Environmental Quality Division of Air Quality shall promptly update the disclosure statement whenever necessary to reflect materially changed circumstances.
 - (2) The disclosure statement required by this Subsection shall include at a minimum an identification of all persons subject to this chapter and/or all trade or business associations of which such person is a member in which the Director, the Deputy Director, Bureau of Environmental Quality, or the head of the Engineering Section, Bureau of Environmental Quality Division of Air Quality:
 - (a) Owns a controlling interest;
 - (b) Has 5% or more of his total assets invested; or
 - (c) Serves as officer, director, attorney or consultant or has any other official or contractual relationship. The disclosure statement shall also include a listing of the amounts and sources of all income received from persons subject to this chapter.
- G. Citizen complaints.
 - (1) The Department shall receive, record and retain complaints made concerning air pollution. To the extent possible, the record made by the Department shall include the name and address of the complainant, the nature of the complaint, the source to which the complainant attributes the air pollution, and the date and time of the complaint.
 - (2) To the extent possible, the Department shall investigate all complaints and shall make and retain

a record of such investigation.

- (3) It shall be unlawful for any person to knowingly make a false complaint to the Department.

§ 505-8. Ambient air quality standards. [Amended 5-4-2010 by Ord. No. 11-10; 8-27-2013 by Ord. No. 20-13]

The values specified below shall be considered as representing minimum quality, but not necessarily desirable quality. Nothing contained in this section shall be construed to preclude the Department from enforcing or applying any provision of this article in areas where the ambient air quality is, or will be, at concentrations less than those specified in this section.

- A. All final national and state ambient air quality standards, promulgated by EPA under the Clean Air Act at 40 CFR 50, and by the state under the Air Pollution Control Act at 25 Pa. Code Chapter 131, respectively, are hereby incorporated by reference into this article. Additions, revisions, or deletions to such standards by the EPA and the commonwealth, respectively, are incorporated into this article and are effective on the effective date established by the federal or state regulations, unless otherwise established by regulation under this article.
- B. Allegheny County specific standards. In addition, the following are ambient standards as they relate to § 505-48B Abrasive blasting, within Allegheny County:

Contaminant	Concentrations Averaged Over				
	30 days	24 hours	8 hours	3 hours	1 hour
PM-10			450		
County Free Silica Portion			100		
Lead			10		25

NOTES:

All values are stated in micrograms per cubic meter (ug/m³) and represent maximum values not to be exceeded.

§ 505-9. Prohibition of air pollution.

- A. It shall be a violation of this chapter to fail to comply with, or to cause or assist in the violation of, any requirement of this chapter, or any order or permit issued pursuant to authority granted by this chapter. No person shall willfully, negligently, or through the failure to provide and operate necessary control equipment or to take necessary precautions, operate any source of air contaminants in such manner that emissions from such source:
- (1) Exceed the amounts permitted by this chapter or by any order or permit issued pursuant to this chapter:
 - (2) Cause an exceedance of the ambient air quality standards established by § 505-8 of this chapter; or
 - (3) May reasonably be anticipated to endanger the public health, safety, or welfare.

B. It shall be a violation of this chapter for any person to:

- (1) Operate, or allow to be operated, any source in such manner as to allow the release of air contaminants into the open air or to cause air pollution as defined in this chapter, except as is explicitly permitted by this chapter;
- (2) In any manner hinder, obstruct, delay, resist, prevent, or in any way interfere or attempt to interfere with the Department or its personnel in the performance of any duty hereunder, including the Department's inspection of any source;
- (3) Violate the provisions of 18 Pa.C.S. § 4903 (relating to false swearing) or § 4904 (relating to unworn falsification to authorities) in regard to any submittals to the Department under this chapter; or
- (4) Submit any application form, report, compliance certification, or any other submittal to the Department under this chapter which is, in whole or in part, false, inaccurate, or incomplete.

C. It shall be a violation of this chapter for any person to cause a public nuisance, or to cause air, soil, or water pollution resulting from any air pollution emission. No person who operates, or allows to be operated, any air contaminant source shall allow pollution of the air, water, or other natural resources of the Commonwealth and the County resulting from such source.

§ 505-10. Interstate air pollution.

A. General. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to operate, or allow to be operated, any source in such manner that emissions from such source:

- (1) Prevent the attainment or maintenance by any other state of any primary or secondary National Ambient Air Quality Standard; or
- (2) Interfere with any measure required to be included in the applicable implementation plan for any other state under Part C of the Clean Air Act relating to prevention of significant deterioration of air quality or protection of visibility.

B. Findings by EPA. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to:

- (1) Construct or operate, or allow to be constructed or operated, any major new or modified source after a finding has been made by the U.S. EPA pursuant to Subsection 126(b) of the Clean Air Act that emissions from such source will have the effect described in Subsection A above; or
- (2) Operate, or allow to be operated, any existing major source for more than three months after such a finding has been made, except if such operation has been permitted by U.S. EPA pursuant to Subsection 126(c) of the Clean Air Act.

§ 505-11. Nuisances.

Any violation of any requirement of this chapter shall constitute a nuisance.

§ 505-12. Circumvention.

For purposes of determining compliance with the provisions of this chapter, no credit shall be given

to any person for any device or technique, including but not limited to the operation of any source with unnecessary amounts of air, the combining of separate sources except as specifically permitted by this chapter, the use of stacks exceeding good engineering practice height as defined by regulations promulgated by the U.S. EPA, at 40 CFR 51.100 and 51.110 and Subpart I, and other dispersion techniques, which, without reducing the amount of air contaminants emitted, conceals or dilutes an emission of air contaminants which would otherwise violate the provisions of this chapter; except that, for purposes of determining compliance with § 505-33 of this chapter concerning odors, credit for such devices or techniques, except for the use of a masking agent, may be given.

§ 505-13. Definitions.

Whenever used in this chapter, or in any action taken pursuant to this chapter, the following words and phrases shall have the meanings stated, unless the context clearly indicates otherwise. Except as specifically provided in this chapter, terms used in this chapter retain the meaning accorded them under the applicable provisions and requirements of the Clean Air Act.

ABATEMENT — For purposes of asbestos abatement, procedures designed to reduce the potential for fiber release from asbestos-containing materials (ACM). These include removal, encasement, and encapsulation of ACM in any facility.

ABRASIVE BLASTING — The cleaning or preparing of an interior or exterior surface by forcibly propelling a stream of abrasive material against the surface.

ABRASIVE MATERIAL — Any material used as a projectile in an abrasive blasting operation including but not limited to sand, slag, steel shot, garnet, or agricultural shells.

ACCIDENTAL RELEASE — An unanticipated emission of any air contaminant into the ambient air from a stationary source.

ACM — See "asbestos-containing material."

ACTUAL EMISSIONS — The actual rate of emissions in tons per year of any regulated pollutant emitted from a source over the preceding calendar year or any other period determined by the Department to be representative of normal source operation. Actual emissions shall be calculated using the unit's actual operating hours, production rates, and in-place and operating control equipment, types of materials processed, stored, or combusted during the preceding calendar year or such other time period established by the Department pursuant to the preceding sentence. For purposes of emissions fee calculations for sources subject to § 505-26A of this chapter, the calendar year for which the fee is assessed shall be used.

ACCOUNT — The place in the NO_x allowance tracking system where allowances are recorded including allowances held by an NO_x affected source.**[Amended 3-31-1998]**

ACCOUNT NUMBER — The identification number given by the PaDEP NO_x Budget Administrator to an account in which NO_x allowances are held in the NO_x allowance tracking system.**[Amended 3-31-1998]**

ADEQUATELY WETTED — For purposes of asbestos abatement, means sufficiently mixed or penetrated with amended water to prevent the release of particulates.

ADMINISTRATOR — The Administrator of the EPA or his designee.

ADVERSE ENVIRONMENTAL EFFECT — Any significant and widespread adverse effect, which may reasonably be anticipated to impact wildlife, aquatic life, or other natural resources, including adverse impacts on populations of endangered or threatened species or significant degradation of environmental quality over broad areas.

ADVISORY COMMITTEE — The Allegheny County Air Pollution Control Advisory Committee

established by Part A of this chapter.

AFFECTED SOURCE — Any source that includes an affected unit.

AFFECTED STATES — The States of Maryland, Ohio, and West Virginia, and when specifically designated by the Department in accordance with the Clean Air Act, the States of Delaware, New Jersey, and New York, as represented by the air quality permitting agencies, departments, bureaus, divisions, services, or commissions for such states.

AFFECTED UNIT — A fossil fuel-fired combustion device that is subject to any federal Acid Rain emissions reductions requirement or acid rain emissions limitation under 40 CFR Parts 72 through 78, inclusive.

AGGRESSIVE SAMPLING — For purposes of asbestos abatement, means a method of sampling by which the person collecting the air sample creates activity during the sampling period to stir up settled dust and to simulate a degree of activity typical of that area of the facility.

AGRICULTURAL OPERATIONS — (1) the growing or harvesting of crops (including forest operations) or the raising of fowl or animals for the primary purpose of making a profit, providing a livelihood, or conducting agricultural research or instruction by an educational institution, or (2) agricultural crop preparation services such as packinghouses, nut hullers and processors, dehydrators, and feed and grain mills. Agricultural crop preparation services include only the first processing after harvest, not subsequent processing, canning, or other similar activities. A vehicle that is used for agricultural operations and for other works is considered to be a vehicle used in agricultural operations only if over half of its annual operating hours are for agricultural operations. **[Added 4-6-2010 by Ord. No. 5-10]**

AIR CONTAMINANT — Any airborne smoke, dust, dirt, noxious or obnoxious acid, fume, oxide, gas, mist, vapor waste, toxic waste, particulate, pollen, radioactive solid, liquid or gaseous matter, malodorous matter, or any other materials, including but not limited to all regulated air pollutants, in the open air, but excluding uncombined water, or any combination thereof.

AIR CURTAIN INCINERATOR — A mechanical device which forcefully projects a curtain of air across a pit in which open burning is being conducted so that combustion efficiency is increased and emissions of smoke and other particulate matter are reduced. **[Amended 5-1-2007 by Ord. No. 16-07]**

AIR DRIED COATING — Coatings which are dried by the use of air or forced warm air at temperatures up to 194° F (90° C).

AIRLOCK — For purposes of asbestos abatement, means a system for permitting entrance and exit with minimum air movement between areas consisting of three curtained doorways separated by a distance of at least three feet, such that a person passes through the first doorway into the airlock and allows the doorway sheeting to overlap and close off the opening before proceeding through the second doorway, thereby preventing the flow-through of air.

AIR POLLUTION — The presence in the ambient air of one or more air contaminants in sufficient quantity and of such characteristics and duration which may reasonably be anticipated to have an adverse effect upon the public health, safety, or welfare, human, plant, or animal life, or to property, or which interferes with the comfortable enjoyment of life and property.

AIR POLLUTION CONTROL ACT — The Pennsylvania Air Pollution Control Act, Act of January 8, 1960, P.L. (1959) 2119, No. 787, as amended from time to time, 35 P.S. § 4001 et seq.

AIR POLLUTION CONTROL EQUIPMENT — Any chemical, article, machine, device, equipment, or other contrivance, the use of which may eliminate or reduce the emission of air contaminants into the open air.

AIR POLLUTION EPISODE — A period of time during which high air contaminant concentrations are or may be brought about by meteorological parameters which are conducive to the poor dispersion of air contaminants. "High concentrations" means those concentrations which may result in significant harm to human health or welfare. An air pollution episode is defined to exist only when either a County-wide or localized Air Pollution Watch is in effect.

AIRPORT GROUND SUPPORT EQUIPMENT — GSE mobile diesel-fueled off-road compression ignition vehicles with maximum power of 25 horsepower or greater used to service and support aircraft operations. GSE vehicles perform a variety of functions, including, but not limited to: aircraft maintenance, aircraft fueling, pushing or towing aircraft, transporting cargo to and from aircraft, loading cargo, and baggage handling. GSE vehicles include equipment types such as baggage tugs, belt loaders, and cargo loaders.**[Added 4-6-2010 by Ord. No. 5-10]**

AIR QUALITY ACTION DAY — A day for which a forecast has been issued by the Pennsylvania Department of Environmental Protection, the Allegheny County Health Department or the Southwest Pennsylvania Air Quality Partnership indicating that ambient concentrations of ozone, particulate matter, carbon monoxide, sulfur dioxide, or nitrogen dioxide might reach unhealthful levels or exceed the National Ambient Air Quality Standards.**[Added 5-22-2013 by Ord. No. 15-13]**

AIR SAMPLING — For purposes of asbestos abatement, means the process of measuring the fiber content of a known volume of air collected during a specific period of time. In addition, transmission electron microscopy methods may be required when the Department determines that lower detectability or specific fiber identification are necessary.

ALERT STAGE — One of the three degrees of severity of air quality deterioration which can occur during a County-wide Air Pollution Watch, and which require specific control measures to avoid significant harm to human health or welfare. An alert is not necessarily County-wide, but can occur only during a County-wide watch.

ALLOWABLE EMISSIONS — Emissions calculated using the maximum rated capacity of the source or such operating rate and/or hours of operation as are specified in an applicable permit condition and the most stringent of:

- A. The applicable emission limitation(s) established by this chapter;
- B. Any applicable NSPS or NESHAP established by the EPA; or,
- C. Such other emission rate(s) and/or fuel or materials restrictions as are specified in an applicable federally enforceable permit condition.

AMBIENT AIR — That portion of the atmosphere outside the property boundaries of the source under consideration or to which the general public has access.

AMBIENT AIR QUALITY STANDARDS — Those standards established by § 505-8 of this chapter.

AMENDED WATER — For purposes of asbestos abatement, means water to which a chemical wetting agent has been added in accordance with the recommendations of the manufacturer in order to improve the penetration of the water into ACM.

APPLICABLE REQUIREMENT — Unless otherwise expressly excluded, all of the following applicable to a source (including requirements that have been promulgated or approved by the County or the EPA at the time of action or issuance but have future-effective compliance dates):

- A. All provisions of this chapter;
- B. All provisions of the Clean Air Act and the Air Pollution Control Act;

- C. All provisions of all regulations approved or promulgated by EPA through rulemaking under the Clean Air Act; and
- D. All terms and conditions of any permit, license, or order issued pursuant to this chapter, the Clean Air Act, the Air Pollution Control Act, or any regulations approved or promulgated by EPA through rulemaking under the Clean Air Act.

APPROVED LANDFILL — Regarding asbestos abatement, means a landfill which is licensed or permitted by the appropriate regulatory authority to accept asbestos-containing waste materials and which is operated in accordance with the requirements set forth in 40 CFR Part 61, Subpart M.

AREA SOURCE — For purposes of hazardous air pollutant sources, means any stationary source that is not a major source. The term "area source" shall not include motor vehicles or nonroad vehicles subject to regulation under Title II of the Clean Air Act.

ARTICLE — Article XXI, Rules and Regulations of the Allegheny County Health Department, Air Pollution Control, and Allegheny County Ordinance No. 16782.

ARTICLE XI — Article XI, Rules and Regulations of the Allegheny County Health Department or such other rules, regulations, or other legal procedures hereafter established by Allegheny County providing for administrative appeals from actions of the Department under this chapter.

ASBESTIFORM FIBERS — Fibers at least five micrometers in length, with a length-to-diameter ratio of at least three to one, and with a maximum diameter of three micrometers.

ASBESTOS — The asbestiform varieties of a group of naturally occurring minerals that readily separate into fibers, including serpentine (chrysotile), amosite, riebeckite (crocidolite), cummingtonite-grunerite, anthophyllite, and actinolite-tremolite.

ASBESTOS-CONTAINING MATERIAL (ACM) — Any material that contains more than 1% asbestos by weight or area.

ASBESTOS-CONTAINING WASTE MATERIAL — Any waste from sources subject to § 505-49 of this chapter, including, but not limited to, ACM and all asbestos-contaminated objects requiring disposal, including, but not limited to, such things as filters from control devices, bags and other similar packaging contaminated with asbestos, and disposable equipment and clothing.

AT THE SOURCE — The point at which emissions enter the open air.

ATTAINMENT AREA — An area of the County designated as attainment pursuant to § 107 of the Clean Air Act.

AUTHORIZED REPRESENTATIVE — Any person who has authority to act on behalf of another person in matters pertaining to this chapter. For any actions on behalf of a corporation, the authorized representative's authority must be documented in writing to the Department by a certificate of corporate authority executed by the secretary of the corporation.

AUTOMOBILE — Any passenger car capable of seating 12 or fewer passengers and all major components of such car, including, but not limited to, chassis, frames, doors, and engines.

BACT — See "best available control technology."

BEST AVAILABLE CONTROL TECHNOLOGY — An emission limitation based on the maximum degree of reduction of each air contaminant regulated by this chapter, which the Department determines on a case-by-case basis to be achievable taking into account the energy, environment, and economic impacts and other costs. In no event shall application of BACT result in emissions of any air contaminant exceeding the emissions allowed under any applicable NSPS, any NESHAP, or any RACT emission limit under this

chapter.

BOARD OF COMMISSIONERS — The Board of County Commissioners of Allegheny County, Pennsylvania.

BOARD OF HEALTH — The Allegheny County Board of Health established by the Pennsylvania Local Health Administration Law, Act of August 24, 1951, P.L. 1304, as amended, 16 P.S. § 12001 et seq.

BOTTOM FILLING — The filling of a tank truck or stationary storage tank through an opening which is flush with or directly adjacent to the tank bottom.

BREAKDOWN — Any sudden or unexpected event which has the effect of causing any air pollution control equipment, process equipment or any other potential source of air contaminants to fail, malfunction or otherwise abnormally operate in such manner that emissions into the open air are, or may be, increased.

BTU - BRITISH THERMAL UNIT — The amount of thermal energy necessary to raise the temperature of one pound of pure liquid water by 1° F. at the temperature at which water has its greatest density (39° F.).[Added 5-22-2013 by Ord. No. 15-13]

BULK GASOLINE PLANT — A gasoline storage and distribution facility with a daily throughput of less than 20,000 gallons (76,000 liters) of gasoline.

BULK GASOLINE TERMINAL — A gasoline storage and distribution facility with a daily throughput of 20,000 gallons (76,000 liters) or more of gasoline.

BUREAU — The Allegheny County Health Department Bureau of Environmental Quality.

CAN COATING — Exterior coating and interior spray coating in two-piece can lines, interior and exterior coating in sheet coating lines for three-piece cans, side seam spray coating and interior spray coating in can fabricating lines for three-piece cans, and sealing compound application and sheet coating in end coating lines.

CAPTURE EFFICIENCY — For purposes of volatile organic compounds, means the ratio of the weight of volatile organic compounds captured by air pollution control equipment for a volatile organic compound source to the weight of the total amount of volatile organic compounds used expressed as a percentage.

CARCINOGENIC EFFECT — Shall have the meaning provided by the Administrator under Guidelines for Carcinogenic Risk Assessment as of the date of enactment.

CARRIER — A distributor who transports or stores or causes the transportation or storage of gasoline without taking title to or otherwise having ownership of the gasoline, and without altering either the quality or quantity of the gasoline. The term includes a pipeline, truck or marine vessel distributor.

CARTRIDGE FILTER — Perforated canisters containing filtration paper and/or activated carbon that are used in a pressurized system to remove solid particles and fugitive dyes from soil-laden solvent.

CFR — The Code of Federal Regulations.

CHARGING EMISSIONS — Any emissions occurring during the introduction of coal into the coke oven from the time that the gate(s) on the larry car coal hopper is opened or mechanical feeders start the flow of coal into the oven until the last charging port seal is replaced. Charging emissions include any air contaminant emitted from one or more charging ports, spaces between the charging port rings and the oven refractory, drop sleeves, larry car hoppers and any associated air pollution control equipment, but shall not include emissions occurring during the temporary removal of a charging port seal for the purpose of sweeping excess coal spillage into the oven just charged, after such seal has been firmly seated over the charging port following the removal of the larry car.

CHARGING PORT — Any opening through which coal is, or may be, introduced into a coke oven,

whether or not such opening is regularly used for such purpose.

CHEMOTHERAPEUTIC WASTE — Waste material resulting from the production or use of antineoplastic agents used for the purpose of stopping or reversing the growth of malignant cells.

CLEAN AIR ACT — The federal Clean Air Act, as amended from time to time, 42 USC 7401 et seq., and the rules and regulations promulgated thereunder.

CLEAN ROOM — For purposes of asbestos abatement, means an uncontaminated area or room in the decontamination enclosure system which has provisions for the storage of workers' nonwork clothing and clean protective equipment.

CLEAN WOOD — Dry, seasoned, natural wood that contains no paint, stains or other types of coatings, and has not been treated with preservatives or chemicals, including copper, chromium arsenate, creosote and pentachlorophenol. **[Added 5-22-2013 by Ord. No. 15-13]**

CLEAR COAT — A coating which lacks opacity or which is transparent and uses the under coat as a reflectant base of undertone color, except for extreme performance coatings.

CLEARANCE AIR SAMPLING — The employment of aggressive sampling techniques during air monitoring to determine the airborne concentration of residual fibers at the conclusion of an asbestos abatement project.

CLEARING AND GRUBBING WASTES — Trees, shrubs, and other native vegetation which are cleared from land during or prior to the process of construction. The term does not include demolition wastes and dirt-laden roots.

CO — Carbon monoxide.

COATING — Any fluid, including, but not limited to, paint, varnish, ink, adhesive, solvent, and water to be applied to a solid surface to form a hard exterior surface.

CO-FIRED COMBUSTOR — A unit combusting hospital waste and/or medical/infectious waste with other fuels or wastes (e.g., coal, municipal solid waste) and subject to an enforceable requirement limiting the unit to combusting a fuel feed stream, 10% or less of the weight of which is comprised, in aggregate, of hospital waste and medical/infectious waste as measured on a calendar quarter basis. For purposes of this definition, pathological waste, chemotherapeutic waste, and low-level radioactive waste are considered "other" wastes when calculating the percentage of hospital waste and medical/infectious waste combusted.

COIL COATING — The coating of any flat metal sheet or strip.

COLD CLEANING DEGREASER — Any batch-loaded device using non-boiling organic solvent to dean or degrease metal parts.

COMMENCE CONSTRUCTION — That the owner or operator of the source affected has obtained all applicable permits required by this chapter and has either:

- A. Begun, caused to be begun, or allowed to be begun, a continuous program of physical on-site installation or modification of any fuel-burning or combustion equipment, process equipment, or air pollution control equipment, or any part thereof; or
- B. Entered into a binding agreement or contract, which cannot be canceled or modified without significant loss to the owner or operator, to undertake an expeditious program of physical on-site installation or modification of the source or air pollution control device.

COMMON CONTROL — For purposes of establishing permitting requirements for sources, includes all equipment, operations, activities, and the like either fully or partially owned, operated, managed, supervised, overseen, directed, or otherwise controlled in any way by a source permit applicant or any

partner, joint entrepreneur, employer, employee, wholly or partially owned subsidiary or related legal entity, parent company or related legal entity, any wholly or partially owned subsidiary or partner or joint entrepreneur of any parent company, or any other legal entity in a similar relationship to the applicant as those set forth above.

COMMONWEALTH — The Commonwealth of Pennsylvania.

COMPLIANT FUEL — Low RVP gasoline or RFG.

CONTAINERS AND CONVEYORS OF SOLVENT — Piping, ductwork, pumps, storage tanks, and other ancillary equipment that are associated with the installation and operation of washers, dryers, filters, stills, and settling tanks.

CONTAINMENT BARRIER — For purposes of asbestos abatement, means a temporary, airtight barrier consisting of minimum six-mil plastic sheeting used to seal off all openings into the work area, including but not limited to windows, doorways, corridors, skylights, ducts and grilles.

CONVEYORIZED DEGREASER — Any continuously loaded device, containing either boiling or non-boiling solvents, used to clean metal parts or used in the production of electronic circuit boards.

COUNTY — Allegheny County, Pennsylvania.

COUNTY COUNCIL — The Council of Allegheny County, Pennsylvania. **[Added 8-27-2013 by Ord. No. 20-13]**

COUNTY EXECUTIVE — The Chief Executive of Allegheny County, Pennsylvania, as defined in the Allegheny County Home Rule Charter.² **[Added 8-27-2013 by Ord. No. 20-13; amended 5-5-2015 by Ord. No. 16-15]**

COUNTY-WIDE AIR POLLUTION WATCH — A period of time, defined solely on meteorological criteria, during which poor dispersion of air contaminants may occur throughout Allegheny County.

CTG — A control technique guideline published by the Administrator under Section 108 of the Clean Air Act.

CUTBACK ASPHALT — Asphalt cement which has been liquefied by blending with petroleum solvents (dilutents) which upon application evaporate to the atmosphere, but not including any emulsified asphalt paving compound which contains less than 12% of solvent (diluent) by volume.

DECONTAMINATION ENCLOSURE SYSTEM — For purposes of asbestos abatement, means a series of connected chambers, separated from the work area and from each other by airlocks, which is for the decontamination of workers, materials and equipment.

DEMOLITION — For purposes of asbestos abatement, means the wrecking or taking out of any load-supporting structural member of a facility together with any related handling operations or the intentional burning of any facility.

DEP — The Pennsylvania Department of Environmental Protection or other state air quality permitting agency.

DEPARTMENT — The Allegheny County Health Department established pursuant to the Pennsylvania Local Health Administration Law, Act of August 24, 1951, P.E. 1304, as amended, 16 P.S. § 12001 et seq.

DEPUTY DIRECTOR — The Deputy Director, Allegheny County Health Department Bureau of Environmental Quality.

DESIGNATED REPRESENTATIVE — Shall have the meaning given to it in Subsection 402(26) of the

2. Editor's Note: The Charter is included at the beginning of this volume.

Clean Air Act and the regulations promulgated thereunder.

DIESEL — A type of engine with operating characteristics significantly similar to the theoretical diesel combustion cycle. The non-use of a throttle during normal operation is indicative of a diesel engine.**[Added 8-31-2004 by Ord. No. 30-04]**

DIESEL-POWERED MOTOR VEHICLE — A self-propelled vehicle designed for transporting persons or property which is propelled by a compression ignition type of internal combustion engine. The definition does not include non-road diesel vehicles, or marine vessels.**[Added 6-7-2005 by Ord. No. 31-05]**

DIRECTOR — The Director of the Allegheny County Health Department or his designated representative, except that for purposes of the filing of disclosure statements and the issuance of orders and permits, it shall mean the Director of the Allegheny County Health Department only.

DISTRIBUTOR — For purposes of the gasoline volatility program, means a person who transports, stores or causes the transportation or storage of gasoline at any point between a refinery, an oxygenate blending facility or terminal and a retail outlet or wholesale purchaser-consumer's facility. The term "distributor" includes a refinery, an oxygenate blending facility or a terminal.

DOMESTIC HEATING PLANT — Equipment used to heat a single-family residence, a multiple-dwelling unit of no more than two dwelling units, a temporary building such as those used in the railroad and construction industries, and hot water heaters serving such residences, multiple-dwelling units, and buildings.

DOMESTIC REFUSE-BURNING EQUIPMENT — Any refuse-burning equipment or incinerator serving a single-family residence or a multiple-dwelling unit of no more than two dwelling units.

DOOR AREA — The vertical face of a coke oven between the bench and the top of the battery and between two adjacent buckstays, including but not limited to, the door, chuck door, door seal, jamb, and refractory.

DRAFT PERMIT — The version of a permit for which the Department offers public participation under §§ 505-18, 505-25A, D, E, 505-26B, D, E and F of this chapter or affected state review under § 505-18, 505-26B, D, E and F of this chapter.

DRUM — Any cylindrical metal shipping container which has a capacity between 12 and 110 gallons (45.4 and 416.4 liters).

DRY-CLEANING FACILITY — A facility engaged in the cleaning of fabrics in an essentially nonaqueous solvent by means of one or more washes in solvent, extraction of excess solvent by spinning, and drying by tumbling in an airstream. The facility includes, but is not limited to, any washer, dryer, filter, and purification systems, waste disposal systems, holding tanks, pumps, and attendant piping and valves.

DUST — Particulate matter which has, or may become, airborne.

ELECTRIC UTILITY STEAM GENERATING UNIT — Any fossil fuel fired combustion unit of more than 25 megawatts that serves a generator that produces electricity for sale. A unit that cogenerates steam and electricity and supplies more than 1/3 of its potential electric output capacity and more than 25 megawatts electrical output to any utility power distribution system for sale shall be considered an electric utility steam generating unit.

EMERGENCY — Any situation arising from sudden and reasonably unforeseeable events beyond the control of the source, including acts of God, which situation requires immediate corrective action to restore normal operation, and that causes the source to exceed a technology-based emission limitation under the permit, due to unavoidable increases in emissions attributable to the emergency. An emergency shall not include noncompliance to the extent caused by improperly designed equipment, lack of preventive maintenance, careless or improper operation, or operator error.

EMISSION LIMITATION — Any requirement established by this chapter or by state or federal law which limits the quantity, rate, or concentration of emissions, including, but not limited to, any requirement or combination of requirements relating to the operation, maintenance, or design of a source or air pollution control equipment.

EMISSION TESTS — Any evaluations, inspections, observations, or tests designed to measure the quantity, rate, or concentration of emissions, including fuel analyses, analyses of raw materials, intermediate products, final products, or by-products, evaluations of air pollution control equipment, measurements of process parameters, or other factors that may affect emissions.

EMISSIONS — Air contaminants entering into the open air.

EMISSIONS ALLOWABLE UNDER THE PERMIT — A federally enforceable permit term or condition determined at issuance to be required by an applicable requirement that establishes an emissions limit (including a work practice standard) or a federally enforceable emissions cap that the source has assumed to avoid an applicable requirement to which the source would otherwise be subject.

EMISSIONS UNIT — Any part or activity of a stationary source that emits or has the potential to emit any regulated air pollutant or any pollutant listed under Subsection 112(b) of the Clean Air Act. This term is not meant to alter or affect the definition of the term "unit" for purposes of title IV of the Act.

ENCAPSULANT — A liquid material which can be applied to ACM to temporarily control the potential release of asbestos fibers from the material either by creating a membrane over the surface (bridging encapsulant) or by penetrating into the material and binding its components together (penetrating encapsulant).

ENCAPSULATION — The coating or spraying of ACM with an encapsulant in order to temporarily control the potential release of asbestos fibers from said material.

ENCASEMENT — Any process or application that involves the direct application of any liquid or solid material onto, and in direct contact with, ACM, including but not limited to the application of multi-port self-curing resin systems, in order to totally confine or seal such ACM for purposes of abatement of the potential release of asbestos fibers.

EPA — The Administrator of the United States Environmental Protection Agency or his designee.

EQUIPMENT OPERATOR — Any person who is in actual physical control of a piece of off-road equipment.**[Added 4-6-2010 by Ord. No. 5-10]**

EQUIPMENT OWNER — The registered owner, lessee, licensee, or bailee of any piece of off-road equipment who operates or directs the operation of any such equipment on either a for-hire or not-for-hire basis.**[Added 4-6-2010 by Ord. No. 5-10]**

EQUIPMENT ROOM — For purposes of asbestos abatement, means a contaminated area or room in the decontamination enclosure system which has provisions for the storage of contaminated clothing and equipment.

EXCESS REDUCTIONS IN EMISSIONS OF NOX — Emission reductions for which the Administrator determines that net air quality benefits are greater in the absence of such reductions, or for:

- A. Nonattainment areas not within an ozone transport region under Section 184 of the Clean Air Act, emission reductions that the Administrator determines would not contribute to attainment of the NAAQS for ozone in the area; or
- B. Nonattainment areas within such an ozone transport region, emission reductions that the Administrator determines would not produce net ozone air quality benefits in such region.

EXISTING SOLID WASTE INCINERATION UNIT — A solid waste unit which is not a new or modified solid waste incineration unit.

EXISTING SOURCE — Any stationary source other than a new source.

EXTERIOR PANELS — Panels made of solid wood, hardboard or waferboard. Paneling made of solid wood or hardboard is typically primed at the manufacturing facility and finished in the field, although some finishing may be performed during manufacturing. (Effective January 1, 2011)[**Added 5-4-2010 by Ord. No. 10-10**]

EXTREME ENVIRONMENTAL CONDITIONS — For purposes of surface coatings, means exposure to: weather all of the time, temperatures consistently above 203° F (95° C), detergents, abrasive and scouring agents, solvents, corrosive atmospheres, or similar environmental conditions.

EXTREME PERFORMANCE COATINGS — Coatings designed and used for harsh exposure or extreme environmental conditions.

FABRIC COATING — The coating of a textile substrate by any method, including, but not limited to, roll coating, knife coating, spray coating, or use of a rotogravure device in order to impart properties that are not initially present, such as strength, stability, water or acid repellency, or appearance.

FACILITY — For purposes of asbestos abatement, means any institutional, commercial, public, or industrial structure, installation or building, and any residential structure, installation, or building consisting of more than four dwelling units.

FACILITY COMPONENT — Any part of a facility, including, but not limited to, pipes, ducts, boilers, tank reactors, turbines, furnaces, any other equipment in a facility, or any structural member of a facility.

FEDERAL ACTION — Any activity engaged in by a department, agency, or instrumentality of the federal government, or any activity that a department, agency, or instrumentality of the federal government supports in any way, provides financial assistance for, licenses, permits, or approves, other than activities related to transportation plans, programs, and projects developed, funded, or approved under 23 USC or the Federal Transit Act (49 USC 1601 et seq.). Where the federal action is a permit, license, or other approval for some aspect of a non-federal undertaking, the relevant activity is the part, portion, or phase of the non-federal undertaking that requires the federal permit, license, or approval.

FINAL PERMIT — The version of a Part C, Subpart 2 permit issued by the Department that has completed all review procedures required by §§ 505-18, 505-25B, D, E, F, and 505-26B, D, E and F of this chapter.

FLAT WOOD PANEL COATING — Protective, decorative or functional materials applied to flat wood panel products, including interior panels, exterior panels or tileboard (Class I hardboard). (Effective January 1, 2011)[**Added 5-4-2010 by Ord. No. 10-10**]

FLEXOGRAPHIC PRINTING — The application of words, designs, and pictures to a substrate by means of a roll printing technique in which the pattern to be applied is raised above the printing roll and the image carrier is made of rubber or other elastomeric materials.

FLUE — Any duct, pipe, stack, chimney, or conduit which conducts air contaminants into the open air and which permits the performance of the test methods and procedures specified in Article VII of this chapter.

FORECAST — A prediction of weather conditions received from a Professional Meteorologist in the Health Department or who is a consultant to the Health Department, or a weather prediction from the United States National Weather Service.

FOSSIL FUEL — Natural gas, petroleum, coal or any form of solid, liquid or gaseous fuel derived from this material, but not including coke oven gas, blast furnace gas, or waste fuels.

FREEBOARD RATIO — For a cold cleaning degreaser, the distance from the liquid solvent to the top edge of the degreaser divided by the degreaser width (not length); or, for an operating vapor degreaser or a conveyORIZED degreaser, the distance from the top of the solvent vapor layer to the top edge of the degreaser divided by the degreaser width (not length).

FUEL — Any form of combustible matter, whether solid, liquid, vapor, gas, or any combination thereof, which is primarily intended for, or used as, a source of heat.

FUEL-BURNING OR COMBUSTION EQUIPMENT — Any furnace, boiler, apparatus, flue, and all appurtenances thereto, used in the burning of fuel for the primary purpose of producing heat or power by indirect heat transfer, or producing power by direct momentum transfer.

FUGITIVE DUST EMISSIONS — Airborne particulate matter from roads, parking lots, plant yards, or other exposed surfaces, construction activities, mining, blasting, truck transport, land reclamation, and the like.

FUGITIVE EMISSIONS — Any air contaminant entering into the open air by a means other than a flue, including, but not limited to, industrial process losses, reentrained dust and construction and demolition activities.

GASOLINE — Any petroleum distillate having a Reid vapor pressure of four pounds per square inch (28 kilopascals) or greater and which is a liquid at standard temperature and pressure.

GASOLINE TANK TRUCK — Tank trucks or trailers equipped with a storage tank and used for the transport of gasoline from sources of supply to small gasoline storage tanks, bulk gasoline plants, or bulk gasoline terminals.

GENERAL MULTICOMPONENT COATING — A coating requiring the addition of a separate reactive resin, commonly known as a "catalyst" or "hardener," before application to form an acceptable dry film (effective January 1, 2014).**[Added 5-22-2013 by Ord. No. 16-13]**

GENERAL ONE COMPONENT COATING — A coating that is ready for application as it comes out of its container to form an acceptable dry film. A thinner, necessary to reduce the viscosity, is not considered a component (effective January 1, 2014).**[Added 5-22-2013 by Ord. No. 16-13]**

GLOVEBAG TECHNIQUE — A method for removing ACM from heating, ventilation, and air conditioning (HVAC) ducts, short pipe runs, valves, joints, elbows, and other nonplanar surfaces in a noncontained work area. The glovebag assembly is a manufactured device consisting of a bag (constructed of six-mil transparent plastic), two inward-projecting long-sleeve rubber gloves, one inward-projecting waterwand sleeve, an internal tool pouch, and an attached labeled receptacle for asbestos waste. The glovebag is constructed and installed in such a manner that it surrounds the object or area from which ACM is to be removed and contains all asbestos fibers released during the removal process.

GROSS VEHICLE WEIGHT RATING — The value specified by the manufacturer as the maximum design loaded weight of single vehicle.**[Added 8-31-2004 by Ord. No. 30-04]**

HARD SLAG LADLE PIT — A confined excavated area into which molten slag from the tapping of a blast furnace is poured from portable ladles and in which the slag, before being removed, is cooled by radiation of heat to the open air and by application of water which may contain reactive agents.

HAZARDOUS AIR POLLUTANT —

A. Any of the following air pollutants:

Chemical Abstract Service (CAS) Number	Chemical Name
75070	Acetaldehyde
60355	Acetamide
75058	Acetonitrile
98862	Acetophenone
53963	2-Acetylaminofluorene
107028	Acrolein
79061	Acrylamide
79107	Acrylic acid
107131	Acrylonitrile
107051	Allyl chloride
92671	4-Aminobiphenyl
62533	Aniline
90040	o-Anisidine
1332214	Asbestos
71432	Benzene (including benzene from gasoline)
92875	Benzidine
98077	Benzotrichloride
100447	Benzyl chloride
92524	Biphenyl
117817	Bis (2-ethylhexyl) phthalate (DEHP)
542881	Bis (chloromethyl) ether
75252	Bromoform
106990	1,3-Butadiene
156627	Calcium cyanamide
105602	Caprolactam
133062	Captan
63252	Carbaryl
75150	Carbon disulfide
56235	Carbon tetrachloride
463581	Carbonyl sulfide
120809	Catechol
133904	Chloramben
57749	Chlordane

Chemical Abstract Service (CAS) Number	Chemical Name
7782505	Chlorine
79118	Chloroacetic acid
532274	2-Chloroacetophenone
108907	Chlorobenzene
510156	Chlorobenzilate
67663	Chloroform
107302	Chloromethyl methyl ether
126998	Chloroprene
1319773	Cresols/Cresylic acid (isomers and mixture)
95487	o-Cresol
108394	m-Cresol
106445	p-Cresol
98828	Cumene
94757	2,4-D, salts and esters
3547044	DDE
334883	Diazomethane
132649	Dibenzofurans
96128	1,2-Dibromo-3-chloropropane
84742	Dibutylphthalate
106467	1,4Dichlorobenzene(p)
91941	3,3-Dichlorobenzidine
111444	Dichloroethyl ether (Bis(2-chloroethyl)ether)
542756	1,3-Dichloropropene
62737	Dichlorvos
111422	Diethanolamine
121697	N,N-Diethyl aniline (N,N-Dimethylaniline)
64675	Diethyl sulfate
119904	3,3-Dimethoxybenzidine
60117	Dimethylaminoazobenzene
119937	3,3-Dimethyl benzidine
79447	Dimethyl carbamoyl chloride
68122	Dimethyl formamide
57147	1,1-Dimethyl hydrazine

Chemical Abstract Service (CAS) Number	Chemical Name
131113	Dimethyl phthalate
77781	Dimethyl sulfate
534521	4,6-Dinitro-o-cresol, and salts
51285	2,4-Dinitrophenol
121142	2,4-Dinitrotoluene
123911	1,4-Dioxane (1, 4 - Diethyleneoxide)
122667	1,2-Diphenylhydrazine
106898	Epichlorohydrin (1-Chloro-2,3-epoxypropane)
106887	1,2-Epoxybutane
140885	Ethyl acrylate
100414	Ethyl benzene
51796	Ethyl carbamate (Urethane)
75003	Ethyl chloride (Chloroethane)
106934	Ethylene dibromide (Dibromoethane)
107062	Ethylene dichloride (1,2-Dichloroethane)
107211	Ethylene glycol
151564	Ethylene imine (Aziridine)
75218	Ethylene oxide
96457	Ethylene thiourea
75343	Ethylidene dichloride (1,1-Dichloroethane)
50000	Formaldehyde
76448	Heptachlor
118741	Hexachlorobenzene
87683	Hexachlorobutadiene
77474	Hexachlorocyclopentadiene
67721	Hexachloroethane
822060	Hexamethylene-1,6-diisocyanate
680319	Hexamethylphosphoramide
110543	Hexane
302012	Hydrazine
7647010	Hydrochloric acid
7664393	Hydrogen fluoride (Hydrofluoric acid)
123319	Hydroquinone

Chemical Abstract Service (CAS) Number	Chemical Name
78591	Isophorone
58899	Lindane (all isomers)
108316	Maleic anhydride
67561	Methanol
72435	Methoxychlor
74839	Methyl bromide (Bromomethane)
74873	Methyl chloride (Chloromethane)
71556	Methyl chloroform (1,1,1-Trichloroethane)
78933	Methyl ethyl ketone (2-Butanone)
60344	Methyl hydrazine
74884	Methyl iodide (Iodomethane)
108101	Methyl isobutyl ketone (Hexone)
624839	Methyl isocyanate
80626	Methyl methacrylate
1634044	Methyl tert butyl ether
101144	4, 4-Methylene bis (2-chloroaniline)
75092	Methylene chloride (Dichloromethane)
101688	Methylene diphenyl diisocyanate (MDI)
101779	4,4-Methylenedianiline
91203	Naphthalene
98953	Nitrobenzene
92933	4-Nitrobiphenyl
100027	4Nitrophenol
79469	2-Nitropropane
684935	N-Nitroso-N-methylurea
62759	N-Nitrosodimethylamine
59892	N-Nitrosomorpholine
56382	Parathion
82688	Pentachloronitrobenzene (Quintobenzene)
87865	Pentachlorophenol
108952	Phenol
106503	p-Phenylenediamine
75445	Phosgene

Chemical Abstract Service (CAS) Number	Chemical Name
7803512	Phosphine
7723140	Phosphorus
85449	Phthalic anhydride
122667	1,2-Diphenylhydrazine
106898	Epichlorohydrin 1-Chloro-2,3-epoxypropane
106887	1,2-Epoxybutane
140885	Ethyl acrylate
100414	Ethyl benzene
51796	Ethyl carbamate (Urethane)
75003	Ethyl chloride (Chloroethane)
106934	Ethylene dibromide (Dibromoethane)
107062	Ethylene dichloride (1,2-Dichloroethane)
107211	Ethylene glycol
151564	Ethylene imine (Aziridine)
75218	Ethylene oxide
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75343	Ethylidene dichloride (1,1-Dichloroethane)
50000	Formaldehyde
76448	Heptachlor
118741	Hexachlorobenzene
87683	Hexachlorobutadiene
77474	Hexachlorocyclopentadiene
67721	Hexachloroethane
822060	Hexamethylene-1,6-diisocyanate
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302012	Hydrazine
7647010	Hydrochloric acid
7664393	Hydrogen fluoride (Hydrofluoric acid)
123319	Hydroquinone
78591	Isophorone
58899	Lindane (all isomers)
108316	Maleic anhydride

Chemical Abstract Service (CAS) Number	Chemical Name
67561	Methanol
72435	Methoxychlor
74839	Methyl bromide (Bromomethane)
74873	Methyl chloride (Chloromethane)
71556	Methyl chloroform (1,1,1-Trichloroethane)
78933	Methyl ethyl ketone (2-Butanone)
60344	Methyl hydrazine
74884	Methyl iodide (Iodomethane)
108101	Methyl isobutyl ketone (Hexone)
624839	Methyl isocyanate
80626	Methyl methacrylate
1634044	Methyl tert butyl ether
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101688	Methylene diphenyl diisocyanate (MDI)
101779	4,4-Methylenedianiline
91203	Naphthalene
98953	Nitrobenzene
92933	4-Nitrobiphenyl
100027	4-Nitrophenol
79469	2-Nitropropane
684935	N-Nitroso-N-methylurea
62759	N-Nitrosodimethylamine
59892	N-Nitrosomorpholine
56382	Parathion
82688	Pentachloronitrobenzene (Quintobenzene)
87865	Pentachlorophenol
108952	Phenol
106503	p-Phenylenediamine
75445	Phosgene
7803512	Phosphine
7723140	Phosphorus
85449	Phthalic anhydride

Chemical Abstract Service (CAS) Number	Chemical Name
1336363	Polychlorinated biphenyls (Aroclors)
1120714	1,3-Propane sultone
57578	beta-Propiolactone
123386	Propionaldehyde
114261	Propoxur (Baygon)
78875	Propylene dichloride (1,2-Dichloropropane)
75569	Propylene oxide
75558	1,2-Propylenimine (2-Methyl aziridine)
91225	Quinoline
106514	Quinone
100425	Styrene
1336363	Polychlorinated biphenyls (Aroclors)
1120714	1,3-Propane sultone
57578	beta-Propiolactone
123386	Propionaldehyde
114261	Propoxur (Baygon)
78875	Propylene dichloride (1,2-Dichloropropane)
75569	Propylene oxide
75558	1,2-Propylenimine (2-Methyl aziridine)
91225	Quinoline
106514	Quinone
100425	Styrene
96093	Styrene oxide
1746016	2,3,7,8-Tetrachlorodibenzo-p-dioxin
79345	1,1,2,2-Tetrachloroethane
127184	Tetrachloroethylene (Perchloroethylene)
7550450	Titanium tetrachloride
108883	Toluene
95807	2,4-Toluene diamine
584849	2,4-Toluene diisocyanate
95534	o-Toluidine
8001352	Toxaphene (chlorinated camphene)
120821	1,2,4 Trichlorobenzene

Chemical Abstract Service (CAS) Number	Chemical Name
79005	1,1,2-Trichloroethane
79016	Trichloroethylene
95954	2,4,5-Trichlorophenol
88062	2,4,6-Trichlorophenol
121448	Triethylamine
1582098	Trifluralin
540841	2,2,4-Trimethylpentane
108054	Vinyl acetate
593602	Vinyl bromide
75014	Vinyl chloride
75354	Vinylidene chloride (1,1-Dichloroethylene)
1330207	Xylenes (isomers and mixture)
95476	o-Xylenes
108383	m-Xylenes
106423	p-Xylenes
0	Antimony Compounds
0	Arsenic Compounds (inorganic, including arsine)
0	Beryllium Compounds
0	Cadmium Compounds
0	Chromium Compounds
0	Cobalt Compounds
0	Coke Oven Emissions
0	Cyanide Compounds ¹
0	Glycol ethers ²
0	Lead Compounds
0	Manganese Compounds
0	Mercury Compounds
0	Fine mineral fibers ³
0	Nickel Compounds
0	Polycyclic Organic Matter ⁴
0	Radionuclides (including radon) ⁵
0	Selenium Compounds; and

- B. The list of pollutants under Subsection A above is hereby modified to be consistent with the list of pollutants established by the EPA under Section 112(b) of the Clean Air Act, effective on the effective date of any additions, revisions, or deletions to such Section 112(b) list as established by the federal government, unless otherwise established by regulation under this chapter.

NOTE: For all listings above which contain the word "compounds" and for glycol ethers, the following applies:

Unless otherwise specified, these listings are defined as including any unique chemical substance that contains the named chemical (i.e., antimony, arsenic, etc.) as part of that chemical's infrastructure.

¹X'CN where X = H' or any other group where a formal dissociation may occur. For example KCN or Ca(CN)₂

²Includes mono- and di-ethers of ethylene glycol, diethylene glycol, and triethylene glycol R-(OCH₂CH₂)_n = OR' where:

n = 1, 2, or 3

R = alkyl or aryl groups

R' = R, H, or groups which, when removed, yield glycol ethers with the structure:

R-(OCH₂CH)_n-OH.

Polymers are excluded from the glycol category.

³Includes mineral fiber emissions from facilities manufacturing or processing glass, rock, or slag fibers (or other mineral derived fibers) of average diameter of one micrometer or less.

⁴Includes organic compounds with more than one benzene ring, and which have a boiling point greater than or equal to 100° C.

⁵A type of atom which spontaneously undergoes radioactive decay.

HEAVY DUTY — Any motor vehicle with a gross vehicle weight rating of more than 8,500 pounds, or that has a curb weight of more than 6,000 pounds or that has a passenger-carrying capacity of more than 12 persons. **[Added 8-31-2004 by Ord. No. 30-04; amended 6-7-2005 by Ord. No. 31-2005]**

HEPA FILTER — A high efficiency particulate absolute air filter capable of trapping and retaining 99.97% of fibers greater than 0.3 micrometers in mass median aerodynamic diameter equivalent.

HEPA VACUUM EQUIPMENT — Vacuuming equipment equipped with a HEPA filter system.

HIGH-SILICA ABRASIVE — An abrasive which contains equal to or greater than 5%, by weight, of free silica (silicon dioxide, SiO₂).

HMIWI or HMIWI UNIT — Hospital/medical/infectious waste incinerator.

HOPPER CAR — A rail car which is used to transport raw materials such as coal, iron ore, or grain in bulk and in an unpackaged form.

HOSPITAL — Any facility which has an organized medical staff, maintains at least six inpatient beds, and where the primary function of the institution is to provide diagnostic and therapeutic patient services and continuous nursing care primarily to human inpatients who are not related and who stay on average in excess of 24 hours per admission. This definition does not include facilities maintained for the sole purpose of providing nursing or convalescent care to human patients who generally are not acutely ill but

who require continuing medical supervision.

HOSPITAL/MEDICAL/INFECTIOUS WASTE INCINERATOR — Any device that combusts any amount of hospital waste and/or medical/infectious waste.

HOSPITAL/MEDICAL/INFECTIOUS WASTE INCINERATOR OPERATOR — Any person who operates, controls or supervises the day-to-day operation of an HMIWI.

HOSPITAL WASTE — Discards generated at a hospital, except unused items returned to the manufacturer. The definition of hospital waste does not include human corpses, remains, and anatomical parts that are intended for interment or cremation.

HYBRID ELECTRIC BUS OR VEHICLE — Any school bus equipped with at least the following two sources of motive energy on board:**[Added 8-31-2004 by Ord. No. 30-04]**

- A. An electric drive motor that must be used to partially or fully drive the bus or vehicle wheels; and
- B. One of the following:
 - (1) An internal combustion engine;
 - (2) A turbine; or
 - (3) A fuel cell.

HYDRAULIC FRACTURING — A well stimulation technique which consists of pumping water, chemicals, and a propping agent, such as sand, or other fluids and materials down the wellbore under high pressure to create and maintain induced fractures in the hydrocarbon-bearing rock of the target geologic formation.**[Added 12-17-2013 by Ord. No. 31-13]**

IDLING — The operation of an engine in the operating mode where the engine is not engaged in gear, where the engine operates at a speed at the revolutions per minute specified by the engine manufacturer, or when the accelerator is fully released and there is no load on the engine. For the purposes of off-road equipment, the engine is running while the piece of off-road equipment is not performing work.**[Added 8-31-2004 by Ord. No. 30-04; amended 6-7-2005 by Ord. No. 31-05; 4-6-2010 by Ord. No. 5-10]**

IMPORTER — A person who imports gasoline or gasoline blending stocks or components from a foreign country into the United States.

INCINERATOR — Any device, including domestic refuse-burning equipment, primarily used for the destruction of solid, liquid, or gaseous wastes, or any combination thereof, by burning, but not including devices used primarily as fuel-burning or combustion equipment or as process equipment.

INCREMENTS OF PROGRESS — Steps towards compliance with an emission limitation, including at a minimum the date of submittal of the source's compliance plan, the date of submittal of an installation permit application, the date on which contracts or purchase orders will be issued, the date of initiation of on-site construction, installation, or process change, the date of completion of such construction, installation, or change, and the date by which final compliance will be achieved.

INDEPENDENT CONSULTING COMPANY — For asbestos abatement purposes, means a company which has no financial interest in, or personal association with, the facility owner or operator, the general contractor, or the asbestos abatement contractor or subcontractor.

INDEPENDENT LABORATORY — For asbestos abatement purposes, means a laboratory which has no financial interest in, or personal association with, the facility owner or operator, the general contractor, or the asbestos abatement contractor or subcontractor.

INSTALL — To undertake the permanent on-site construction or placement of any fuel-burning or combustion equipment, process equipment, air pollution control equipment, or any part thereof, beginning with the breaking of ground and continuing until the start-up of such equipment.

INTERIOR PANELS — Interior wall paneling that is usually grooved, frequently embossed and sometimes grain printed to resemble various wood species. Interior panels are typically manufactured at the same facilities as tileboard, although in much smaller quantities. The substrate can be hardboard, plywood, medium-density fiberboard (MDF) or particleboard. (Effective January 1, 2011)[**Added 5-4-2010 by Ord. No. 10-10**]

LAER — See "lowest achievable emission rate."

LARGE APPLIANCES — Doors, cases, lids, panels, and interior support parts of washers, dryers, ranges, refrigerators, freezers, water heaters, dishwashers, trash compactors, air conditioners, and other similar products.

LARGE EQUIPMENT — Any fuel-burning or combustion equipment, process equipment, or incinerator with a rated heat input of greater than 1,000,000 BTU's per hour.

LARGE HMIWI —

A. Except as provided in Subsection B:

- (1) An HMIWI whose maximum design waste burning capacity is more than 500 pounds per hour; or
- (2) A continuous or intermittent HMIWI whose maximum charge rate is more than 500 pounds per hour; or
- (3) A batch HMIWI whose maximum charge rate is more than 4,000 pounds per day.

B. The following are not large HMIWI:

- (1) A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 500 pounds per hour; or
- (2) A batch HMIWI whose maximum charge rate is less than or equal to 4,000 pounds per day.

LEAD PAINT — Paint or other similar surface coating materials containing lead or lead compounds and in which the lead content (calculated as lead metal) is in excess of 0.5% by weight of the total nonvolatile content of the paint or the weight of the dried paint film.

LEAK-TIGHT CONTAINER — At a minimum, double six-mil polyethylene bags inside a fiber or steel drum capable of being sealed at the top with an adjustable seal ring, labeled in accordance with the requirements of 40 CFR 61.150(a)(1)(iv) and (v).

LEASE CUSTODY TRANSFER — The transfer of produced crude oil or condensate, or both, after processing or treating, or both, in the producing operations from storage tanks or automatic transfer facilities to pipelines or any other forms of transportation.

LIGHT DUTY TRUCKS — Any motor vehicles other than automobiles rated at 8,500 pounds gross vehicle weight or less which are designed primarily for purposes of transportation and all major components of such vehicles, including, but not limited to, chassis, frames, doors, and engines.

LOCALIZED AIR POLLUTION WATCH — A period of time, defined solely on meteorological criteria, during which poor dispersion of air contaminants may occur only in a limited portion of Allegheny County.

LOCALIZED INCIDENT LEVEL — One of three degrees of severity of air quality deterioration which can occur where a localized Air Pollution Watch is in effect, and which require specific control measures to avoid significant harm to human health or welfare.

LOW-LEVEL RADIOACTIVE WASTE — Waste material which contains radioactive nuclides emitting primarily beta or gamma radiation, or both, in concentrations or quantities that exceed applicable federal or state standards for unrestricted release. Low-level radioactive waste is not high-level radioactive waste, spent nuclear fuel, or by-product material as defined by the Atomic Energy Act of 1954 [42 U.S.C. § 2014(e)(2)].

LOW NO_x BURNER WITH SEPARATED OVERFIRE AIR — A burner design capable of reducing the formation of oxides of nitrogen (NO_x) emissions through substoichiometric combustion of fuel by means of a burner assembly consisting of two or more stages and the addition of secondary combustion air introduced downstream of the burner location.

LOW RVP GASOLINE — Gasoline that has an RVP of 7.8 pounds per square inch or less as determined in accordance with the appropriate sampling and testing methodologies in 40 CFR Part 80, Appendix E [relating to test for determining Reid Vapor Pressure (RVP) of gasoline and gasoline-oxygenate blends].

LOWEST ACHIEVABLE EMISSION RATE —

- A. That emission rate which is the most stringent of:
 - (1) The most stringent emission limitation contained in any state's implementation plan approved by the EPA for such class or category of source, unless the applicant demonstrates that such limitation is not achievable;
 - (2) The lowest emission rate achieved in practice by such class or category of source; or
 - (3) Any applicable NSPS established by the EPA.
- B. As applied to a modified source, "LAER" means the lowest achievable emission rate for the new or modified emissions units within the source.
- C. If control technology can feasibly be transferred from one type of source to another, both types of sources shall be considered of the same class or category for purposes of determining LAER.

MACT — See "maximum achievable control technology."

MAGNET WIRE COATING — The process of applying a coating of electrically insulating varnish or enamel to aluminum or copper wire for use in electrical machinery.

MAJOR MODIFICATION — Any physical change or change in the method of operation of a major source that, determined through the requirements of 25 Pa. Code §§ 127.203a and 127.204, would result in an increase in emissions equal to or exceeding an emission rate threshold or significance level specified in 25 Pa. Code § 127.203. A physical change or change in the method of operation does not include routine repairs and maintenance, a change in the hours of operation, or an increase in the rate of production unless prohibited by a permit condition. **[Amended 3-20-2012 by Ord. No. 5-12]**

MAJOR SOURCE — Any stationary source, or any group of stationary sources, that is located on one or more contiguous or adjacent properties, is under common control of the same person (or persons under common control), and is described as follows:

- A. For pollutants other than radionuclides, any stationary source or group of stationary sources located within a contiguous area and under common control that emits or has the potential to emit, in the aggregate, ten tons per year (10 tpy) or more of any hazardous air pollutant, 25 tpy or more of

any combination of such hazardous air pollutants, or such lesser quantity as the Administrator may establish by rule. Notwithstanding the preceding sentence, emissions from any oil or gas exploration or production well (with its associated equipment) and emissions from any pipeline compressor or pump station shall not be aggregated with emissions from other similar units, whether or not such units are in a contiguous area or under common control, to determine whether such units or stations are major sources;

- B. For radionuclides, any "major source" as shall be defined by the Administrator by rule;
- C. A stationary source of air pollutants that directly emits or has the potential to emit 100 tpy or more of any air pollutant (as defined in Section 302 of the Clean Air Act³) subject to regulation in accordance with 40 CFR Part 70 (including any major source of fugitive emissions of any such pollutant, as determined by rule by the Administrator). The fugitive emissions of such a stationary source shall not be considered in determining whether it is a major source, unless the source belongs to one of the following categories of stationary source: **[Amended 3-20-2012 by Ord. No. 5-12]**
- (1) Coal cleaning plants (with thermal dryers);
 - (2) Kraft pulp mills;
 - (3) Portland cement plants;
 - (4) Primary zinc smelters;
 - (5) Iron and steel mills;
 - (6) Primary aluminum ore reduction plants;
 - (7) Primary copper smelters;
 - (8) Municipal incinerators capable of charging more than 250 tons of refuse per day;
 - (9) Hydrofluoric, sulfuric, or nitric acid plants;
 - (10) Petroleum refineries;
 - (11) Lime plants;
 - (12) Phosphate rock processing plants;
 - (13) Coke oven batteries;
 - (14) Sulfur recovery plants;
 - (15) Carbon black plants (furnace process);
 - (16) Primary lead smelters;
 - (17) Fuel conversion plant;
 - (18) Sintering plants;
 - (19) Secondary metal production plants;

3. Editor's Note: See 42 U.S.C. § 7602.

- (20) Chemical process plants;
 - (21) Fossil-fuel boilers (or combination thereof) totaling more than 250 million BTU's/hour heat input;
 - (22) Petroleum storage and transfer units with a total storage capacity exceeding 300,000 barrels;
 - (23) Taconite ore processing plants;
 - (24) Glass fiber processing plants;
 - (25) Charcoal production plants;
 - (26) Fossil-fuel-fired steam electric plants of more than 250 million BTU's per hour heat input; or
 - (27) All other stationary source categories regulated by a standard promulgated under Section 111 or 112 of the Clean Air Act, but only with respect to those air pollutants that have been regulated for that category;
- D. For ozone nonattainment areas, sources with the potential to emit, including fugitive emissions, 100 tpy or more of volatile organic compounds or oxides of nitrogen in areas classified as "marginal" or "moderate," 50 tpy or more in areas classified as "serious," 25 tpy or more in areas classified as "severe," and 10 tpy or more in areas classified as "extreme"; except that the references in this paragraph to 100, 50, 25, and 10 tpy of nitrogen oxides shall not apply with respect to any source for which the Administrator has made a finding, under Section 182(f)(1) or (2) of the Clean Air Act, that requirements under Subsection 182(f) of the Act do not apply;
- E. For ozone transport regions established pursuant to Section 184 of the Clean Air Act, sources with the potential to emit, including fugitive emissions, 50 tpy or more of volatile organic compounds;
- F. For carbon monoxide nonattainment areas: 1) that are classified as "serious;" and 2) in which stationary sources contribute significantly to carbon monoxide levels as determined under rules issued by the Administrator, sources with the potential to emit 50 tpy or more of carbon monoxide; or
- G. For PM-10 nonattainment areas classified as "serious," sources with the potential to emit 70 tpy or more of PM-10.
- H. For the purposes of Article III, § 505-26, only those stationary source or groups of stationary sources that are part of a single industrial group shall be a major source. A single industrial grouping means that all of the pollutant emitting activities at such source or group of sources on contiguous or adjacent properties belong to the same major group (i.e., all have the same two-digit code) as described in the most recent Standard Industrial Classification Manual.

MAJOR SOURCE APPLICABLE REQUIREMENT — All of the following as they apply to emissions units at sources that require permits under Article III, Subpart 2 of this chapter (including requirements under the following that have been promulgated or approved by the County, the Commonwealth, or the U.S. EPA at the time of issuance of such permits but have future-effective compliance dates):

- A. Any standard or other requirement provided for in this chapter which has been approved or promulgated by EPA as part of the Pennsylvania state implementation plan under the Clean Air Act or through regulations adopted under the Clean Air Act through rulemaking at the time of issuance but have future effective compliance dates or a standard provided for in the Commonwealth's SIP approved by EPA under Title I of the Clean Air Act that implements the relevant requirements of the

Act, including any revisions to that plan;

- B. Any term or condition of any installation permits issued pursuant to this chapter under either § 505-18 or § 505-17H, including installation permits approved or promulgated through rulemaking under Title I, including Part C or D, of the Clean Air Act;
- C. Any new source performance standard or other requirement under § 505-42 of this chapter or under Section 111 of the Clean Air Act, including Subsection (d);
- D. Any national emission standard for hazardous air pollutants, MACT standard, or other requirement under § 505-37 of this chapter, including any requirement concerning accidental release prevention, or any other standard or requirement under Section 112 of the Clean Air Act;
- E. Any acid rain program standard or other requirement under § 505-29A of this chapter, or under Title IV of the Clean Air Act or the regulations thereunder;
- F. Any enhanced monitoring requirements established pursuant to Section 504(b) or Section 114(a)(3) of the Clean Air Act;
- G. Any standard or other requirement governing solid waste incineration, under Section 129 of the Clean Air Act;
- H. Any standard or other requirement for consumer and commercial products, under Section 183(e) of the Clean Air Act;
- I. Any standard or other requirement for tank vessels, under Section 183(f) of the Clean Air Act;
- J. Any standard or other requirement of the program to control air pollution from outer continental shelf sources, under Section 328 of the Clean Air Act;
- K. Any standard or other requirement of the regulations promulgated to protect stratospheric ozone under Title VI of the Clean Air Act, unless the Administrator has determined that such requirements need not be contained in a Title V permit;
- L. Any NAAQS or increment or visibility requirement under part C of Title I of the Clean Air Act, but only as it would apply to temporary major sources permitted under this chapter pursuant to Section 504(e) of the Clean Air Act; and
- M. Any other requirement enforceable by EPA and by citizens under this chapter or the Air Pollution Control Act that limits emissions for purposes of creating offset credits or for complying with or avoiding the applicability of any major source applicable requirement.

MALODOROUS — The property of an odor which causes annoyance or discomfort to the public and which the Department determines to be objectionable to the public.

MATERIALS HANDLING — The process of transferring any solid, liquid, or gaseous matter from one place to another, including, but not limited to, the unloading of raw materials for processing, intraprocess transfers, and the loading of products for shipment.

MAXIMUM ACHIEVABLE CONTROL TECHNOLOGY — The maximum degree of reduction in emissions of the hazardous air pollutants subject to this chapter (including a prohibition on such emissions, where achievable) that the Department or Administrator, taking into consideration the cost of achieving such emission reduction, and any non-air quality health and environmental impacts and energy requirements, determines:**[Amended 3-31-1998]**

- A. Is achievable for new or existing sources in the category or subcategory to which such emission standard applies, through application of measures, processes, methods, systems, or techniques, including, but not limited to, measures which:
- (1) Reduce the volume of, or eliminate emissions of, such pollutants through process changes, substitution of materials or other modifications;
 - (2) Enclose systems or processes to eliminate emissions;
 - (3) Collect, capture, or treat such pollutants when released from a process, stack, storage, or fugitive emissions point;
 - (4) Are design, equipment, work practice, or operational standards (including requirements for operator training or certification) as provided in Section 112(h) of the Clean Air Act; or
 - (5) Are a combination of the above; and
- B. For new sources, is not less stringent than:
- (1) The emission control that is achieved in practice by the best controlled similar sources; or
- C. For existing sources, is not less stringent than:
- (1) The average emissions limitation achieved by the best performing 12% of the existing sources (for which the Department or Administrator has emission information), excluding those sources that have, within 18 months before the emission standard is proposed or within 30 months before such standard is promulgated, whichever is later, first achieved a level of emission rate or emission reduction which complies, or would comply if the source is not subject to such standard, with the LAER (as defined by Section 171 of the Clean Air Act) applicable to the source category and prevailing at the time, in the category or subcategory for categories and subcategories with 30 or more sources; or
 - (2) The average emission limitation achieved by the best performing five sources (for which the Department or Administrator has or could reasonably obtain emissions information) in the category or subcategory for categories or subcategories with fewer than 30 sources.

MAXIMUM CHARGE RATE —

- A. For continuous and intermittent HMIWI, 110% of the lowest three-hour average charge rate measured during the most recent performance test demonstrating compliance with all applicable emission limits.
- B. For batch HMIWI, 110% of the lowest daily charge rate measured during the most recent performance test demonstrating compliance with all applicable emission limits.

MAXIMUM DESIGN WASTE BURNING CAPACITY —

- A. For intermittent and continuous HMIWI,

$$C = P_v \times 15,000 / 8,500$$

where:

$$C = \text{HMIWI capacity, lb/hr}$$

$$P_v = \text{primary chamber volume, ft}^3$$

$$15,000 = \text{primary chamber heat release rate factor, Btu/ ft}^3/\text{hr}$$

$$8,500 = \text{standard waste heating value, Btu/lb;}$$

B. For batch HMIWI,

$$C = P_v \times 4.5 / 8$$

where:

$$C = \text{HMIWI capacity, lb/hr}$$

$$P_v = \text{primary chamber volume, ft}^3$$

$$4.5 = \text{waste density, lb/ft}^3$$

$$8 = \text{typical hours of operation of a batch HMIWI, hours}$$

MAXIMUM POWER — The maximum rated horsepower output of an engine at rated speed as stated by the manufacturer in the manufacturer's sales and service literature. **[Added 4-6-2010 by Ord. No. 5-10]**

MEDICAL/INFECTIOUS WASTE —

A. Any waste generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in the production or testing of biologicals that is listed below:

- (1) Cultures and stocks of infectious agents and associated biologicals, including: cultures from medical and pathological laboratories; cultures and stocks of infectious agents from research and industrial laboratories; wastes from the production of biologicals; discarded live and attenuated vaccines; and culture dishes and devices used to transfer, inoculate, and mix cultures.
- (2) Human pathological waste, including tissues, organs, and body parts and body fluids that are removed during surgery or autopsy, or other medical procedures, and specimens of body fluids and their containers.
- (3) Human blood and blood products, including:
 - (a) Liquid waste human blood;
 - (b) Products of blood;
 - (c) Items saturated and/or dripping with human blood; or
 - (d) Items that were saturated and/or dripping with human blood that are now caked with dried human blood; including serum, plasma, and other blood components, and their containers, which were used or intended for use in either patient care, testing and laboratory analysis or the development of pharmaceuticals. Intravenous bags are also include in this category.
- (4) Sharps that have been used in animal or human patient care or treatment or in medical, research, or industrial laboratories, including hypodermic needles, syringes (with or without the attached

needle), Pasteur pipettes, scalpel blades, blood vials, needles with attached tubing, and culture dishes (regardless of presence of infectious agents). Also included are other types of broken or unbroken glassware that were in contact with infectious agents, such as used slides and cover slips.

- (5) Animal waste including contaminated animal carcasses, body parts, and bedding of animals that were known to have been exposed to infectious agents during research (including research in veterinary hospitals), production of biologicals or testing of pharmaceuticals.
 - (6) Isolation wastes including biological waste and discarded materials contaminated with blood, excretions, exudates, or secretions from humans who are isolated to protect others from certain highly communicable diseases, or isolated animals known to be infected with highly communicable diseases.
 - (7) Unused sharps, including the following unused, discarded sharps: hypodermic needles, suture needles, syringes, and scalpel blades.
- B. The definition of medical/infectious waste does not include hazardous waste identified or listed under 40 CFR Part 261; household waste, as defined in § 261.4(b) (1) ash from incineration of medical/infectious waste, once the incineration process has been completed; human corpses, remains, and anatomical parts that are intended for interment or cremation; and domestic sewage materials as identified in § 261.4(a)(1).

MEDICAL WASTE — The meaning established by the Administrator pursuant to the federal Solid Waste Disposal Act.

MEDIUM HMIWI — Except as provided in Subsection B:

- A. An HMIWI whose maximum design waste burning capacity is more than 200 pounds per hour but less than or equal to 500 pounds per hour; or
- (1) A continuous or intermittent HMIWI whose maximum charge rate is more than 200 pounds per hour but less than or equal to 500 pounds per hour; or
 - (2) A batch HMIWI whose maximum charge rate is more than 1,600 pounds per day but less than or equal to 4,000 pounds per day.
- B. The following are not medium HMIWI:
- (1) A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 200 pounds per hour or more than 500 pounds per hour; or
 - (2) A batch HMIWI whose maximum charge rate is more than 4,000 pounds per day or less than or equal to 1,600 pounds per day.

METAL FURNITURE COATING — The surface coating of any furniture made of metal or any metal part which will be assembled with other metal, wood, fabric, plastic, or glass parts to form a furniture piece.

MILITARY EQUIPMENT — Equipment that meets military specifications, is owned by the U.S. Department of Defense and/or the U.S. military services or its allies, and is used in combat, combat support, combat service support, tactical or relief operations or training for such operations. **[Added 4-6-2010 by Ord. No. 5-10]**

MINOR OPERATING PERMIT MODIFICATION — A change to incorporate de minimis conditions and other insignificant physical changes to a source or applicable requirements into an existing permit or a

change that does not require an installation permit but which contravenes an express permit term, but not:

- A. A change to permit terms or conditions that the source is violating;
- B. A change to existing monitoring, reporting, or recordkeeping requirements in the permit except:
 - (1) A change in the enforceable operating level of the method that, prior to the source's submission of a minor permit revision application, the Department has affirmatively determined the source has demonstrated to be correlated to the source's existing or proposed compliance emissions rate. The changes may not involve a switch to a new or alternative monitoring or recordkeeping operating parameter; or
 - (2) A change to a monitoring or recordkeeping method that affects the measurement sensitivity of the method and representativeness of the data (for example, precision, accuracy, measurement location, or averaging time), so that there may be a measurable effect in relation to the relevant source compliance emissions rate; a change that affects the scope and intent of the existing monitoring method (for example, modified sample conditioning system, upgraded detector, upgraded data management system); or changes that may be generally applicable to similar monitoring methods in the same or other source categories (for example, equipment modification for interference avoidance). The changes may not involve a switch to new or alternative monitoring methods. Prior to the source's submission of a minor permit revision application, the Department shall have affirmatively determined that the monitoring or recordkeeping change has been demonstrated by the source to have a known relationship and ability to determine compliance with the applicable source compliance emissions rate;
- C. A change that is a modification under Title I of the Clean Air Act;
- D. A change subject to Title IV of the Clean Air Act;
- E. A change that exceeds the emissions allowable under the permit, whether expressed as a rate of emissions or in terms of total emissions; or
- F. Any other change precluded by the Clean Air Act or the regulations adopted thereunder as being eligible for processing as a minor permit modification.

MINOR SOURCE — Any source that is not a major source or is not subject to Article III, § 505-26A(2)(c) of this chapter.

MISCELLANEOUS METAL PARTS AND PRODUCTS — All items made of ferrous or nonferrous metals, including, but not limited to, large farm machinery, small farm machinery, small appliances, commercial and industrial machinery, fabricated metal products, and items listed under the Standard Industrial Classification Code 3300 through 3900. This definition excludes cans, coils, automobiles, light-duty trucks, metal furniture, magnet wire, large appliances, fully assembled exteriors of airplanes, and automobile refinishing and customized top coating of automobiles and trucks, if production since January 1, 1987, has not exceeded 34 vehicles per day.

MOBILE OFF-ROAD EQUIPMENT ENGINE — An engine that is used to provide motive power to a self-propelled piece of equipment or vehicle. If such an engine is in a piece of equipment or vehicle that is not a motor vehicle according to 40 CFR 85.1703, it is a mobile off-road equipment engine. If such an engine is in a piece of equipment or vehicle that is a motor vehicle according to 40 CFR 85.1703, it is a mobile off-road equipment if and only if it meets any one of the following criteria:**[Added 4-6-2010 by Ord. No. 5-10]**

- A. It is subject to off-road engine standards in 40 CFR 89.112(a) or Part 1039.101; or

- B. The vehicle has a permanently mounted auger or blower for snow removal; or
- C. The vehicle is a drill rig, crane, or concrete pump truck used predominantly off of public roads.

MODIFICATION — Any physical change in a source or any change in the method of operation of a source which would increase the amount of any air contaminant emitted by the source or which would result in the emission of any air contaminant not previously emitted, except that routine maintenance, repair, and replacement shall not be considered a physical change.

MODIFIED SOLID WASTE INCINERATION UNIT — A solid waste incineration unit at which modifications have occurred after the effective date of an applicable standard and either:

- A. The cumulative cost of the modifications, over the life of the unit, exceed 50 percent of the original cost of construction and installation of the unit (not including the cost of any land purchased in connection with such construction or installation) updated to current costs; or
- B. The modification is a physical change in or change in the method of operation of the unit which increases the amount of any air pollutant emitted by the unit for which standards have been established under Section 111 or Section 129 of the Clean Air Act.

MOTOR CARRIER — The registered owner, lessee, licensee, school district superintendent, or bailee of any school bus who operates or directs the operation of any such bus on either a for-hire or not-for-hire basis.**[Added 8-31-2004 by Ord. No. 30-04]**

MOTOR VEHICLE — All vehicles propelled other than by muscular power except such vehicles as run only on rails or tracks.**[Added 6-7-2005 by Ord. No. 31-05]**

NAAQS — See "National Ambient Air Quality Standard."

NATIONAL AMBIENT AIR QUALITY STANDARD — Any ambient air quality standard promulgated by the EPA pursuant to Section 109 of the Clean Air Act.

NATIONAL EMISSION STANDARDS FOR HAZARDOUS AIR POLLUTANTS (40 CFR Parts 61 and 63) — Any emission limitation now or hereafter established by the EPA pursuant to Section 112 of the Clean Air Act.

NEGATIVE AIR PRESSURE EQUIPMENT — For purposes of asbestos abatement, means a portable exhaust system equipped with HEPA filters. The system shall be capable of maintaining a constant, low velocity, clean air flow out of contaminated areas, creating a negative pressure differential between the outside and inside of the contaminated work area.

NESHAPS — See "National Emission Standards for Hazardous Air Pollutants."

NET AIR QUALITY BENEFIT — In the context of a source constructed or modified pursuant to Article II of this chapter, that emission reductions obtained and new emissions from the new or modified source impact air quality in the same general area and manner, and result in an overall improvement in air quality.

NET LOAD RATING — Rated heat input.

NEW PHASE 2 OUTDOOR WOOD-FIRED BOILER — A Phase 2 outdoor wood-fired boiler that is installed on or after October 2, 2010.**[Added 5-22-2013 by Ord. No. 15-13]**

NEW SOLID WASTE INCINERATION UNIT — A solid waste incineration unit the construction of which is commenced after the Administrator proposes requirements under Section 129 of the Clean Air Act establishing emissions standards or other requirements which would be applicable to such unit or a modified solid waste incineration unit.

NEW SOURCE — Any source which:

- A. Was constructed and commenced operation on or after July 1, 1972; or
- B. Was modified, irrespective of a change in the amount or kind of air contaminants emitted, so that the fixed capital cost of new components exceeds 50% of the fixed capital cost that would be required to construct a comparable entirely new source, fixed capital costs being the capital needed to provide the depreciable components.

NEW SOURCE PERFORMANCE STANDARD — Any emission limitation promulgated by the EPA pursuant to Section 111 of the Clean Air Act.

NIOSH — The National Institute for Occupational Safety and Health CDC - NIOSH, Building J. N.E., Room 3007, Atlanta, GA 30333.

NONATTAINMENT AREA — For any pollutant, an area of the County designated as nonattainment pursuant to Section 107 of the Clean Air Act. With respect to areas outside the County, "nonattainment area" means an area designated as nonattainment pursuant to Section 107 of the Clean Air Act as of the date of issuance of the installation permit for the source affected.

NON-PHASE 2 OUTDOOR WOOD-FIRED BOILER — An outdoor wood-fired boiler that has not been qualified by the EPA as meeting a particulate matter emission level of 0.32 pound per million Btu output or lower and is not labeled accordingly as a Phase 2 outdoor wood-fired boiler. **[Added 5-22-2013 by Ord. No. 15-13]**

NONTRADITIONAL SOURCE — A source of air contaminants other than emissions from process equipment, fuel-burning or combustion equipment, air pollution control equipment, incinerators, materials handling, or mobile source exhausts including, but not limited to, exposed earth, roadways, parking lots, construction activities, demolition, and mining.

NO_x — Oxides of nitrogen.

NO_x AFFECTED SOURCES — A fossil fuel fired indirect heat exchange combustion unit with a maximum rated heat input capacity of 250 MMBTU/hour or more and all fossil fuel fired electric generating facilities rated at 15 megawatts or greater and any other source that voluntarily opts to become a NO_x affected source.

NO_x ALLOWANCE — The limited authorization to emit one ton of NO_x during a specified NO_x allowance control period.

NO_x ALLOWANCE CONTROL PERIOD — The period beginning May 1 of each year and ending on September 30 of the same year, inclusive.

NO_x ALLOWANCE TRACKING SYSTEM (NATS) — The computerized system used to track the number of NO_x allowances held and used by any person.

NO_x ALLOWANCE TRANSFER — The conveyance to another Pennsylvania NATS account of one or more NO_x allowances from one person to another by whatever means, including, but not limited to, purchase, trade, auction, or gift.

NSPS — See "new source performance standards."

OCCUPIED FACILITY — Any facility which has not been evacuated for the duration of the asbestos abatement activity of all persons other than those directly involved with said abatement activity.

OFFICIAL TRAFFIC CONTROL DEVICE — Any sign, signal, marking or device, consistent with the Vehicle Code, placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic. **[Added 8-31-2004 by Ord. No. 30-04]**

OFFICIAL TRAFFIC CONTROL SIGNAL — Any device, whether manually, electrically, or

mechanically operated, by which traffic is alternately directed to stop and proceed.[**Added 8-31-2004 by Ord. No. 30-04**]

OFFTAKE PIPING — The pipes or ducts by which gaseous by-products of coking are transported from one end of an oven to a coke oven gas collector main, including the standpipe, standpipe cap and slipjoint, and also including jumper pipes.

OPACITY — The degree, by percentage, to which emissions of air contaminants reduce the transmission of light or obscure the view of an object in the background.

OPEN AIR — Any space outside of buildings or flues or any point at which air contaminants pass beyond the effective control of the person responsible for the source of the air contaminants.

OPEN BURNING — Any fire or combustion from which air contaminants pass directly into the open air without passing through a flue. The term includes any fire or combustion which occurs in a chiminea, fire pit, outdoor fireplace or grill.[**Amended 11-5-2014 by Ord. No. 19-14**]

OPEN TOP VAPOR DEGREASER — Any batch-loaded device used to clean metal parts through the condensation of organic solvent on colder metal parts.

OPERATING & MAINTENANCE PLAN — For purposes of asbestos abatement, means a plan for conducting, in accordance with 40 CFR § 61.145(c), a number of renovation/maintenance operations in which the amount of ACM that will be removed or encapsulated within a one-year period can reasonably be predicted to exceed at least 160 square feet on facility components.

OPERATOR — Any person who operates, controls, or supervises a stationary source.

OUTDOOR WOOD-FIRED BOILER — [**Added 5-22-2013 by Ord. No. 15-13**]

A. A fuel-burning device that:

- (1) Is designed to burn, or is capable of burning, clean wood or other fuels listed under § 505-37.1F (relating to outdoor wood-fired boilers).
- (2) Has a rated thermal output of less than 350,000 Btu per hour.
- (3) The manufacturer designs or specifies for outdoor installation or installation in structures not normally intended for habitation by humans or domestic animals, including structures like garages and sheds.
- (4) Heats building space or fluid, or both, through the distribution, typically through pipes, of a fluid heated in the device, typically water or a mixture of water and antifreeze.

B. The fuel-burning device may also be known as an:

- (1) Outdoor wood-fired furnace.
- (2) Outdoor wood-burning appliance.
- (3) Outdoor hydronic heater.

OUTSIDE AIR — For purposes of asbestos abatement, means the air outside the work area.

OWNER OR OPERATOR — Any person who owns, leases, operates, controls, or supervises a stationary source.

OXYGENATE — A substance which, when added to gasoline, increases the amount of oxygen in that gasoline blend. Lawful use of a combination of these substances requires that they be "substantially

similar" under Section 211(f)(1) of the Clean Air Act, or be permitted under a waiver granted by the Administrator of the EPA under the authority of Section 211(f)(1) of the Clean Air Act.

OZONE-DEPLETION POTENTIAL — A factor established by the Administrator to reflect the ozone-depletion potential of a substance, on a mass per kilogram basis, as compared to chlorofluorocarbon-11 (CFC-11). Such factor shall be based upon the substance's atmospheric lifetime, the molecular weight of bromine and chlorine, and the substance's ability to be photolytically disassociated, and upon other factors determined to be an accurate measure of relative ozone-depletion potential.

PAIL — Any nominally cylindrical metal shipping container which has a capacity between one and 12 gallons (3.8 and 45.4 liters) and which is constructed of twenty-nine-gauge and heavier material.

PAPER COATING — A coating applied in a uniform layer to paper and pressure sensitive tapes regardless of substrate, including related web coating processes on plastic films and decorative coatings on metal foil. Coatings applied in whole or in part as nonuniform layers such as patterns, designs, or print are not included.

SECTION 505-26A PERMIT — Any operating permit or group of operating permits covering a source subject to § 505-26A of this chapter that is issued, renewed, amended, or revised pursuant to this chapter.

SECTION 505-26A SOURCE — Any source subject to § 505-26A of this chapter.

PART PER MILLION — A unit of concentration defined as one volume of gaseous air contaminant per million volumes of gas.

PARTICULATE MATTER — Any material, except uncombined water, that is, or has been, air or gasborne and exists as a solid or liquid at 70° F and 14.7 pounds per square inch absolute pressure.

PATHOLOGICAL WASTE — Waste material consisting of only human or animal remains, anatomical parts, and/or tissue, the bags/containers used to collect and transport the waste material, and animal bedding (if applicable).

PAVING OPERATION — The process of covering an area with stone, concrete, asphalt, or other material in order to make a firm, level surface for travel. Materials used exclusively as residential driveway sealing compounds are excluded.

PERCEPTIBLE LEAKS — Any petroleum solvent vapor or liquid leaks that are conspicuous from visual observation; such as pools or droplets of liquid, or buckets or barrels of solvent or solvent-laden waste standing open to the atmosphere.

PERMIT MODIFICATION — A revision to a § 505-26 permit that cannot be accomplished under the program's provisions for minor modifications or administrative permit amendments. A permit modification for purposes of the acid rain portion of the permit shall be governed by regulations promulgated under Title IV of the Clean Air Act.

PERMIT REVISION — Any permit modification or administrative permit amendment.

PERMITTING AUTHORITY — The Department or its designated representative.

PERSON — Any individual, natural person, syndicate, association, partnership, firm, corporation, institution, agency, authority, department, bureau, or other instrumentality of federal, state, local, or regional government, or other entity recognized by law as the subject of rights and duties.

PERSON SUBJECT TO THE CLEAN AIR ACT OR THIS PART 1 — Any individual, natural person, syndicate, association, partnership, firm, corporation, institution or other entity recognized by law as the subject of rights and duties who owns, operates, or allows to be operated, a source which is subject to the permit requirements of the Clean Air Act or to the permit requirements of this chapter or which is, or may

become, subject to any enforcement order under the Clean Air Act or this chapter, except that it shall not mean:

- A. An individual who is, or may become, subject to a compliance order solely by reason of his ownership or operation of a motor vehicle;
- B. Any agency, authority, department, bureau, or instrumentality of federal, state, local or regional government;
- C. A person who is subject to the permit requirements of this chapter or who is, or may become, subject to a compliance order solely by reason of his ownership or operation of a domestic heating plant;
- D. A university or other educational institution, so long as the relationship of the proposed appointee or hearing board member to the university or other educational institution is confined to teaching and other educational duties and does not include providing services relating to the physical operation of the university or other educational institution; or
- E. A bank, savings and loan association or other such institution, so long as the relationship of the proposed appointee or hearing board member to the institution is solely that of depositor in one or more savings, checking or other interest-bearing accounts.

PETROLEUM SOLVENTS — Organic material solvents produced by petroleum distillation, comprising a hydrocarbon range of mainly eight to 12 carbon atoms per organic molecule, that are used as cleaning agents in the petroleum solvent dry-cleaning industry.

PETROLEUM SOLVENT DRY CLEANING — A process for the cleaning of fabrics with a petroleum solvent by means of one or more washings in solvent, extraction of excess solvent, and drying by exposure to a heated air stream. A petroleum solvent dry-cleaning facility includes, but is not limited to, washers, dryers, solvent filters and purification systems, waste disposal systems, holding tanks, pumps, and attendant piping and valves.

PHARMACEUTICAL TABLET COATING — A process for the application of an essentially nonmedicinal, protective coating to a pharmaceutical product.

PHASE 2 OUTDOOR WOOD-FIRED BOILER — An outdoor wood-fired boiler that has been qualified by the EPA as meeting a particulate matter emission level of 0.32 pound per million Btu output or lower and is labeled accordingly. **[Added 5-22-2013 by Ord. No. 15-13]**

PM-2.5 — Particulate matter with an aerodynamic diameter less than or equal to a nominal 2.5 micrometers as measured by an applicable reference method, or equivalent or alternative method, specified by the EPA or by method specified in this chapter. **[Added 5-4-2010 by Ord. No. 11-10]**

PM-10 — Particulate matter with an aerodynamic diameter less than or equal to a nominal ten micrometers as measured by an applicable reference method, or equivalent or alternative method, specified by the EPA or by a method specified in this chapter.

PORTABLE — Designed and capable of being carried or moved from one location to another. Indicia of portability include, but are not limited to, wheels, skids, carrying handles, dolly, trailer, or platform. For the purposes of this regulation, dredge engines on a boat or barge are considered portable. The engine is not portable if: **[Added 4-6-2010 by Ord. No. 5-10]**

- A. The engine or its replacement is attached to a foundation or, if not so attached, will reside at the same location for more than 12 consecutive months. The period during which the engine is maintained at a storage facility shall be excluded from the residency time determination. Any engine, such as a back-up or stand-by engine, that replaces an engine(s) at a location, and is intended to perform the same

or similar function as the engine(s) being replaced, will be included in calculating the consecutive time period. In that case, the cumulative time of all engines, including the time between the removal of the original engine(s) and installation of the replacement engine(s), will be counted toward the consecutive time period; or

- B. The engine remains or will reside at a location for fewer than 12 consecutive months if the engine is located at a seasonal source and operates during the full annual operating period of the seasonal source, where a seasonal source is a stationary source that remains in a single location on a permanent basis (at least two years) and that operates at that single location at least three months each year; or
- C. The engine is moved from one location to another in an attempt to circumvent the portable residency time requirements.

POTENTIAL EMISSIONS — The maximum capacity of a source to emit air contaminants, including fugitive emissions, under the physical and operational design of the source. Any physical or operational limitation on the capacity to emit air contaminants, including air pollution control equipment and techniques and permit conditions limiting the operating rate, hours of operation, or fuels or raw materials used, shall be treated as part of the design of the source to the extent such limitation, or its effect on emissions, is federally enforceable under the provisions of the Clean Air Act.

POTENTIAL TO EMIT — The maximum capacity of a stationary source to emit any air pollutant under its physical and operational design. Any physical or operational limitation on the capacity of a source to emit an air pollutant, including air pollution control equipment and restrictions on hours of operation or on the type or amount of material combusted, stored, or processed, shall be treated as part of its design if the limitation is enforceable by the Administrator and citizens under the Clean Air Act. This term does not alter or affect the use of this term for any other purposes under the Act, or the term "capacity factor" as used in title IV of the Clean Air Act or the regulations promulgated thereunder.

POTENTIAL UNCONTROLLED EMISSION RATE — The total weight of a particular air contaminant, in the absence of any air pollution control equipment, that could be emitted per unit of time from an air contaminant source when such source is operated at its rated capacity and maximum hours of operation.

POWER TOOL CLEANING — The removal of paint, rust, mill scale, or any other surface coating, containing lead or lead compounds and in which the lead content (calculated as lead metal) is in excess of 0.5% by weight of the total nonvolatile content of the surface coating or the weight of the dry surface coating, with any power operated tool including but not limited to wire brushes, sanders, scrapers, grinders, or descalers.

PPM — Parts per million.

PREVENTION OF SIGNIFICANT DETERIORATION REQUIREMENTS — The requirements promulgated in 40 CFR Part 52 by the Administrator of the EPA pursuant to Section 161 of the Clean Air Act.

PRIME COAT — The first of two or more films of coating applied to a metal surface.

PROCESS — Any operation or series of operations, including all equipment, devices, or other contrivances and all flues and appurtenances thereto, for making any physical or chemical change for the purpose of transforming materials into any product of manufacture, and which may result in the emission of air contaminants, but not including equipment defined as fuel-burning or combustion equipment or incinerators. A process includes any operation by which materials are charged or otherwise placed into the first piece of equipment which makes a physical or chemical change in the materials and all intervening steps up to and including any operation by which the product is discharged or otherwise removed from the final piece of equipment which makes a physical or chemical change. Similar or parallel operations within

a process shall be considered as a single operation except where such aggregation would result in greater allowable emissions or a lesser permit fee.

PROCESS EQUIPMENT — Any machine, device, system, or other contrivance used in any process, the use of which may cause emissions of any air contaminants, including flues and all appurtenances thereto, but not including equipment defined as fuel-burning or combustion equipment or incinerators.

PROCESS FUGITIVE EMISSIONS — Any air contaminant entering into open air from a process by means other than a flue.

PROPOSED PERMIT — The version of an operating permit that the Bureau proposes to issue and forwards to the Administrator for review in compliance with 40 CFR 70.8.

PSD — See "prevention of significant deterioration requirements."

PUBLICATION ROTOGRAVURE PRINTING — Rotogravure printing upon paper which is subsequently formed into books, magazines, catalogues, brochures, directories, newspaper supplements, and other types of printed material.

PYROLYSIS — The endothermic gasification of hospital waste and/or medical/infectious waste using external energy.

PUSHING — The operation by which coke is removed from a coke oven and transported to a quench station, beginning, for the coke oven batteries designated 13, 14, 15, 20, and B at the USX Corporation Clairton Works, at the time the coke mass starts to move and ending at the time the coke transfer car enters the coke quenching system, and for all other coke oven batteries, beginning when the coke side door is first removed from a coke oven and continuing until the quenching operation is commenced.

RACT — See "reasonably available control technology."

RATED CAPACITY — The operating limit of a source as stated by the manufacturer or as determined by good engineering judgement, or such other operating limit as is specified in an applicable permit condition.

REASONABLE FURTHER PROGRESS — Either:

- A. Progress toward the NAAQS' according to the schedule set forth in the applicable portion of the SIP;
or
- B. Such annual incremental reductions in emissions of the relevant air pollutant as are required for the purpose of ensuring attainment of the applicable NAAQS by the applicable date.

REASONABLY AVAILABLE CONTROL TECHNOLOGY — Any air pollution control equipment, process modifications, operating and maintenance standards, or other apparatus or techniques which may reduce emissions and which the Department determines is available for use by the source affected in consideration of the necessity for obtaining the emission reductions, the social and economic impact of such reductions, and the availability of alternative means of providing for the attainment and maintenance of the NAAQS'.

REFINER — A person who owns, leases, operates, controls or supervises a refinery.

REFINERY — A plant which produces petroleum products, including gasoline.

RESELLER — A person who purchases gasoline identified by the corporate, trade or brand name of a refiner or a distributor and resells or transfers the gasoline to retailers or wholesale purchaser-consumers displaying the refiner's or distributor's brand, and whose assets or facilities are not owned, leased or controlled by the refiner or distributor.

RETAIL OUTLET — An establishment at which gasoline is sold or offered for sale to the ultimate

consumer for use in motor vehicles.

RETAILER — A person who owns, leases, operates, controls or supervises a retail outlet.

REFUSE — Garbage, rubbish, trade waste, or other waste.

REGULATED AIR POLLUTANT — The following:

- A. Nitrogen oxides or any volatile organic compounds;
- B. Any pollutant for which a NAAQS has been promulgated;
- C. Any pollutant that is subject to any standard promulgated under Section 111 of the Clean Air Act;
- D. Any EPA Class I or II substance subject to a standard promulgated under or established by title VI of the Clean Air Act; or
- E. Any pollutant subject to a standard promulgated under Section 112 of the Clean Air Act or other requirements established under Section 112 of the Act, including Sections 112(g), (j), and (r) of the Act, including the following:
 - (1) Any pollutant subject to requirements under Subsection 112(j) of the Clean Air Act. If the Administrator fails to promulgate a standard by the date established pursuant to Subsection 112(e) of the Act, any pollutant for which a subject source would be major shall be considered to be regulated on the date 18 months after the applicable date established pursuant to Subsection 112(e) of the Act; and
 - (2) Any pollutant for which the requirements of Section 112(g)(2) of the Clean Air Act have been met, but only with respect to the individual source subject to the requirement of Section 112(g)(2) of the Act.

REMOVAL — For asbestos abatement purposes, means the stripping or taking off of any ACM from surfaces or facility components.

RENDERING — A heated process, such as reduction, cooking, drying, dehydrating, digesting, evaporating, and protein processing.

RENEWAL — The process by which a permit is reissued at the end of its term.

REPLACEMENT SOURCE — A new source which has the following relationship to an existing source, emission unit, or group of emission units:

- A. The new source produces products of similar physical and chemical properties;
- B. The new source is located in the same general area;
- C. The ambient impact area of emissions from the new source substantially overlaps that of the emissions from the existing source, emission unit, or group of emission units; and
- D. Upon operation of the new source, the existing source, emission unit, or group of emission units will be permanently shut down.

REPRESENT THE PUBLIC INTEREST — Not own a controlling interest in, have 5% or more of total assets invested in, serve as attorney, consultant, officer or director for, or hold any other official or contractual relationship with persons subject to this chapter, or any trade or business association of which such person is a member.

RESEARCH AND DEVELOPMENT FACILITY — Emissions units, either in a laboratory or as part of a

pilot project, that are not engaged in either the manufacture or products for commercial sale except in de minimis amounts on an infrequent basis or internal manufacturing use except in de minimis amounts on an infrequent basis, and are used exclusively for either:

- A. Research and development into new products or processes, the improvement of existing products or processes or new uses for existing products or processes; or
- B. Basic research to provide for education or the general advancement of technology or knowledge, where the source is also operated under the close supervision of technically trained personnel.

RESELLER — A person who purchases gasoline identified by the corporate, trade or brand name of a refiner.

RESPONSIBLE OFFICIAL — One of the following:

- A. For a corporation, where the authority to act on behalf of the corporation is documented in writing to the Department by a certificate of corporate authority executed by the secretary of the corporation:
 - (1) A president, secretary, treasurer, or vice-president of the corporation in charge of the subject principal business function;
 - (2) Any other person who performs similar policy or decision-making functions for the corporation; or
 - (3) A duly authorized representative of a person under Subsection A(1) or (2) above if the representative is responsible for the overall operation of one or more of the subject manufacturing, production, or operating sources applying for, or subject to, a permit and either:
 - (a) The source employs more than 250 persons or has gross annual sales or expenditures exceeding \$25 million (in second-quarter 1980 dollars); or
 - (b) The delegation of authority to the representative is approved in advance in writing by the Department.
- B. For a partnership or sole proprietorship: a general partner or the proprietor, respectively;
- C. For a municipality, state, federal, or other public agency, either: 1) a ranking elected official; 2) a principal executive officer (e.g., the chief executive officer having responsibility for the overall operations of a principal geographic unit of the agency); or 3) a duly authorized representative of a person under Item 1 or 2 above if the representative is responsible for the overall operation of one or more departments of the agency applying for or subject to a permit, whose authority to act on behalf of the governmental body or agency is documented in writing to the Department by a certified resolution or executive order of the controlling elected board, commission, council, or official; and
- D. Notwithstanding any of the above, for affected sources, for purposes of complying with Title IV of the Clean Air Act and the regulations promulgated thereunder: the designated representative.

RFG — Federal reformulated gasoline; gasoline that meets the requirements for RFG as specified in 40 CFR Part 80, Subpart D (relating to reformulated gasoline).

ROLL PRINTING — The application of words, designs, and pictures to a substrate usually by means of a series of hard rubber or steel rolls, each with only partial coverage.

ROTOGRAVURE PRINTING — The application of words, designs, and pictures to a substrate by means of a roll printing technique which involves an intaglio or recessed image area in the form of cells.

RVP (REID VAPOR PRESSURE) — The measure of pressure exerted on the interior of a special container as determined by the appropriate methodologies in 40 CFR Part 80, Appendix 3.

SCHOOL — An institution for the education or training of children, including but not limited to kindergartens, rehabilitation centers, day-care centers, Head Start centers, group day-care homes, family day-care homes and summer camps; also, any public or private school used for the purposes of education and instruction of more than 12 school pupils at or below the 12th grade level, but does not include any private school in which education and instruction is primarily conducted in private homes. The term includes any building or structure, playground, athletic field, or other area of school property. The term excludes unimproved school property.**[Added 8-31-2004 by Ord. No. 30-04]**

SCHOOL BUS — A motor vehicle designed to carry 11 passengers or more, including the driver, and used for the transportation of preprimary, primary or secondary school students to or from public, private or parochial schools or events related to these schools or school-related activities, and as further defined in the Vehicle Code, 67 Pa. Code § 171.2.**[Added 8-31-2004 by Ord. No. 30-04]**

SCHOOL BUS DRIVER — A person who drives a school bus as defined in 75 Pa.C.S. § 102 (relating to definitions) or 67 Pa. Code § 171 (relating to school buses and school vehicles), except an owner or employee of an official inspection station driving the vehicle for the purpose of inspection.**[Added 8-31-2004 by Ord. No. 30-04]**

SECONDARY EMISSIONS — Specific, quantifiable emissions from any related new or existing source(s), which emissions occur as a result of the operation of a new or modified major (primary) source but which are not emitted from the primary source itself.

SHOWER ROOM — For purposes of asbestos abatement, means a room between the clean room and the equipment room in the worker decontamination enclosure system with hot and cold running water controllable at the tap and suitably arranged for complete showering during decontamination.

SIGNIFICANT AIR QUALITY IMPACT —

A. An increase in pollutant concentrations exceeding the following:

Pollutant	Average Time				
	Annual	24-Hour	8-Hour	3-Hour	1-Hour
PM-10	1.0 ug/m ³	5 ug/m ³	—	—	—
Particulate	1 ug/m ³	5 ug/m ³	—	—	—
SO ₂	1 ug/m ³	5 ug/m ³	—	25 ug/m ³	—
NO _x	1 ug/m ³	—	—	—	—
CO	—	—	0.5 mg/m ³	—	2.0 mg/m ³
Lead	—	0.1 ug/m ³	—	—	—

B. All major new or modified sources of volatile organic compounds shall be considered to have a significant air quality impact.

SIGNIFICANT PERMIT MODIFICATION — Any modification of a permit under Article III of this chapter that does not qualify as a minor permit modification or an administrative amendment under this chapter, including every significant change in existing monitoring permit terms or conditions and every relaxation of reporting or recordkeeping permit terms or conditions.

SIGNIFICANT PORTION OF INCOME — Ten percent or more of gross personal income for a calendar year, including retirement benefits, consultant fees and stock dividends, except that it shall mean 50% or more of gross personal income for a calendar year if the recipient is over 60 years of age and is receiving such portion pursuant to retirement, pension or similar arrangement. Income received from mutual-fund payments, or from other diversified investments as to which the recipient does not know the identity of the primary source of income, shall be considered part of the recipient's gross personal income but shall not be treated as income derived from persons subject to the Clean Air Act or this chapter.

SIP — See "state implementation plan."

SINGLE COAT — One film of coating applied to a metal surface.

SMALL HMIWI —

A. Except as provided in Subsection B:

- (1) An HMIWI whose maximum design waste-burning capacity is less than or equal to 200 pounds per hour; or
- (2) A continuous or intermittent HMIWI whose maximum charge rate is less than or equal to 200 pounds per hour; or
- (3) A batch HMIWI whose maximum charge rate is less than or equal to 1,600 pounds per day.

B. The following are not small HMIWI:

- (1) A continuous or intermittent HMIWI whose maximum charge rate is more than 200 pounds per hour;
- (2) A batch HMIWI whose maximum charge rate is more than 1,600 pounds per day.

SMALL SOURCE — A source that has total potential emissions of less than 100 tons of all regulated air pollutants per year, or any class of persons that the Administrator determines, through regulation, generally lack technical ability or knowledge regarding control of air pollution.

SMALL EQUIPMENT — Any fuel-burning or combustion equipment, process equipment, or incinerator with a rated heat input of 1,000,000 BTU's per hour or less.

SMALL GASOLINE STORAGE TANK — Any tank from which gasoline is dispensed to motor vehicle gasoline tanks.

SOAKING EMISSIONS FROM A STANDPIPE CAP — Uncombusted emissions from an open standpipe which has been dampered off in preparation of pushing the coke mass out of the oven and shall end when pushing begins, i.e., when the coke side door is removed. **[Added 8-27-2013 by Ord. No. 21-13]**

SOLIDS TURNOVER RATIO (RI) — The ratio of the total volume of coating solids that is added to the electrodeposited primer system in a calendar month divided by the total volume design capacity of the electrodeposited primer system (effective January 1, 2014). **[Added 5-22-2013 by Ord. No. 16-13]**

SOLID WASTE — The meaning established by the Administrator pursuant to the Solid Waste Disposal Act (42 USC § 6901 et seq.).

SOLID WASTE INCINERATION UNIT — A distinct operating unit of any source which combusts any solid waste material from commercial or industrial establishments or the general public (including single and multiple residences, hotels, and motels). Such term does not include:

A. Incinerators or other units required to have a permit under Section 3005 of the Solid Waste Disposal

Act (42 USC § 6925);

- B. Materials recovery sources (including primary or secondary smelters) which combust waste for the primary purpose of recovering metals;
- C. Qualifying small power production sources, as defined in Paragraph 3(17)(C) of the Federal Power Act [16 USC 769(17)(C)], or qualifying cogeneration sources, as defined in Paragraph 3(18)(B) of the Federal Power Act [16 USC 796(18)(B)], which burn homogeneous waste (such as units which burn tires or used oil, but not including refuse-derived fuel) for the production of electric energy or in the case of qualifying cogeneration sources which burn homogeneous waste for the production of electric energy and steam or forms of useful energy (such as heat) which are used for industrial, commercial, heating or cooling purposes; or
- D. Air curtain incinerators provided that such incinerators only burn wood wastes, yard wastes and clean lumber and that such air curtain incinerators comply with opacity limitations to be established by the Administrator by rule.

SOLVENT — Organic compounds which are liquid at standard conditions and which are used as dissolvers, viscosity reducers, or cleaning agents.

SOLVENT RECOVERY DRYER — A class of dry cleaning dryers that employs a condenser to liquefy and recover solvent vapors evaporated in a closed-loop, recirculating stream of heated air.

SOURCE —

- A. Any place, structure, building, facility, equipment, installation, operation, activity, or other thing or any combination thereof:
 - (1) At, from, or by reason of which there may be emitted into the outdoor atmosphere any air contaminant;
 - (2) Which is located on one or more contiguous or adjacent properties; and
 - (3) Which is owned, operated, or allowed to be operated by the same person or by persons under common control or which is jointly owned, operated, or allowed to be operated by two or more persons,
- B. This does not include motor vehicles or those emissions resulting directly from an internal combustion engine for transportation purposes or from a nonroad engine or nonroad vehicle as defined in Section 216 of the Clean Air Act.

SPECIFICATION FUEL — Any waste-derived liquid fuel that meets the specifications in Article V of this chapter.

STANDARD CONDITIONS — A temperature of 70° F and a pressure of 14.7 pounds per square inch absolute.

STATE IMPLEMENTATION PLAN — The implementation plans submitted by the Commonwealth and approved by the EPA pursuant to Section 110 of the Clean Air Act.

STATIONARY ENGINE — A compression ignition engine that is designed to stay in one location, or remains in one location. A compression ignition engine is stationary if any of the following are true:**[Added 4-6-2010 by Ord. No. 5-10]**

- A. The engine or its replacement is attached to a foundation or, if not so attached, resides at the same location for more than 12 consecutive months. Any engine, such as backup or standby engines,

that replaces an engine at a location and is intended to perform the same or similar function as the engine(s) being replaced shall be included in calculating the consecutive time period. The cumulative time of all engines, including the time between the removal of the original engine(s) and installation of the replacement engine(s), will be counted toward the consecutive time period; or

- B. The engine remains or will reside at a location for fewer than 12 consecutive months if the engine is located at a seasonal source and operates during the full annual operating period of the seasonal source, where a seasonal source is a stationary source that remains in a single location on a permanent basis (at least two years) and that operates at that single location at least three months each year; or
- C. The engine is moved from one location to another in an attempt to circumvent the twelve-month residency time requirement. The period during which the engine is maintained at a storage facility shall be excluded from the residency time determination.

STEEL PRODUCTION — The production of liquid steel.

STRUCTURAL MEMBER — For purposes of asbestos abatement, means any load-supporting or non-load-supporting member of a facility, such as beams, walls, and ceilings.

SURFACE COATING PROCESS — The application and solidification of a coating.

TANK CAR — A rail car which is used for transporting liquids in bulk and in an unpackaged form.

TEMPORARY SOURCE — A new or modified source whose operating life is limited by a permit condition to no more than two years.

TERMINAL — A facility at which gasoline is sold, or dispensed into trucks for transportation to retail outlets or wholesale purchaser-consumer facilities.

TILEBOARD — A premium interior wall paneling product made of hardboard that is used in high-moisture areas of the home, including kitchens and bathrooms. Tileboard meets the specifications for Class I hardboard approved by the American National Standards Institute. (Effective January 1, 2011)[**Added 5-4-2010 by Ord. No. 10-10**]

TOPCOAT — The final film or series of films of coating applied in a two-coat or more operation.

TOXIC EQUIVALENT (TEQ) — A rating of toxicity from the 1989 international toxic equivalency factors that relates the toxicity of a chemical to the toxicity of 2,3,7,8-tetrachlorinated dibenzo-p-dioxin. The ratings of TEQ are those found in Table 2 of 40 CFR 60, Subpart Ec.

TRADE WASTE — Any solid, liquid, or gaseous waste resulting from the operation of any business, trade, or industry.

TRANSFER EFFICIENCY — The ratio of the weight of coating solids deposited onto the surface of a coated part to the weight of the total amount of coating solids used expressed as a percentage.

TYPE "O" WASTE — Waste consisting of highly combustible materials such as paper, cardboard, cartons, wood boxes, and combustible floor sweepings, containing no more than 10% by weight of plastic bags, coated paper, laminated paper, treated corrugated cardboard, oily rags, and plastic and rubber scraps, containing approximately ten-percent moisture and five-percent incombustible solids and having a heating value of approximately 8,500 BTU's per pound as fired.

UNCLASSIFIABLE AREA — An area of the County designated as unclassifiable pursuant to Section 107 of the Clean Air Act.

UNCONVENTIONAL FORMATION — A geological shale formation existing below the base of the Elk Sandstone or its geologic equivalent stratigraphic interval where natural gas generally cannot be produced at economic flow rates or in economic volumes except by vertical or horizontal well bores stimulated by

hydraulic fracture treatments or by using multilateral well bores or other techniques to expose more of the formation to the well bore.[Added 12-17-2013 by Ord. No. 31-13]

UNCONVENTIONAL GAS WELL — A bore hole drilled or being drilled for the purpose of or to be used for the production of natural gas from an unconventional formation.[Added 12-17-2013 by Ord. No. 31-13]

VAPOR BALANCE SYSTEM — A vapor transport system which directs the vapors from the vessel being loaded into either a vessel being unloaded or a vapor control system or vapor holding tank.

VAPOR DISPOSAL SYSTEM — A system that is designed to control the release of volatile organic compounds displaced from a vessel during transfer.

VINYL COATING — The application of a decorative or protective topcoat or printing on vinyl sheets.

VISIBLE EMISSIONS — Emissions of air contaminants which can be seen by the naked eye in contrast with any background.

VOC — See "volatile organic compound."

VOLATILE ORGANIC COMPOUND — An organic compound which participates in atmospheric photochemical reactions other than those compounds which the Administrator of the EPA designates in the Federal Register as having negligible photochemical reactivity and those compounds excluded from the definition of volatile organic compounds by 40 CFR Part 51 (relating to permit requirements). VOC shall be measured by the test procedures and conditions specified in Article VII of this chapter.

WASTE-DERIVED LIQUID FUEL — Any liquid fuel consisting of, containing, or derived from a waste substance or substances, including, but not limited to, waste defined as hazardous wastes, chemicals, solvents, paints, varnishes, animal fats, contaminated waters, synthetically produced oils, oils derived from coal or animal or vegetable oils, automotive crankcase oil, other automotive liquids, gasoline and oil truck and barge residues, oil spill clean-up residues, oils recovered from wastewater, metal-working oils, lubricating oils, turbine lubricating oils, diesel engine lubrication oils, hydraulic fluids, quenching oils, dielectric fluids, tars, and by-products or off-specification products from manufacturing processes, except:

- A. Petroleum refinery by-products generated from the refining of virgin crude oil and returned to the same refinery process upstream from distillation shall not cause liquid fuels produced by such refinery process to be classified as waste-derived liquid fuels.

WASTEWATER SEPARATOR — A holding area for waste liquids in which materials are separated from water by gravity.

WAXY HEAVY-POUR CRUDE OIL — A crude oil with a pour point of 50° F (10° C) or higher as determined by the American Society of Testing and Materials Standard D97-66, Test for Pour Point of Petroleum Oils.

WET CLEANING — The process of eliminating asbestos contamination from building surfaces and objects by using cloths, mops, or other cleaning tools which have been dampened with water.

WHOLESALE PURCHASER-CONSUMER — An entity or individual that is an ultimate consumer of gasoline which purchases or obtains gasoline from a supplier for use in motor vehicles and receives delivery of that product into a storage tank of at least five-hundred-fifty-gallon capacity substantially under the control of that entity or individual.

WORK AREA — Designated rooms, spaces, or areas in which asbestos abatement actions are to be undertaken or which may become contaminated as a result of such abatement actions.

WORKER DECONTAMINATION ENCLOSURE SYSTEM — For purposes of asbestos abatement,

means that portion of a decontamination enclosure system designed for controlled passage of workers, and other authorized persons, consisting of a cleanroom, a shower room, and an equipment room separated from each other and from the work area by airlocks.

WORKING DAYS — For purposes of asbestos abatement, means each day before, but not including, the proposed day on which a demolition or asbestos abatement project is proposed to begin except for Saturdays, Sundays, and official County of Allegheny holidays (excluding Flag Day).

ARTICLE II
Permits generally.

§ 505-14. Certification.

Any application form, report, or compliance certification submitted under this chapter shall contain written certification by a responsible official as to truth, accuracy, and completeness. This certification and any other certification required under this chapter shall be signed by a responsible official of the source, and shall state that, based on information and belief formed after reasonable inquiry, the statements and information in the document are true, accurate, and complete.

§ 505-15. Applicability.

Unless otherwise specifically indicated, this Part shall apply to all sources and air pollution control equipment located within the County that are subject to Article III of this chapter as set forth under §§ 505-25A and 505-26A of this chapter.

§ 505-16. Permits generally.

A. Applications.

- (1) All permit applications, and documents, and other information which are submitted in support of a permit application, under this article or Article III of this chapter shall be in written form signed by a responsible official of the applicant, shall be submitted in duplicate, shall include payment of all applicable fees, and shall provide all information sufficient for the Department to commence, evaluation of the subject source, including all activities which are exempted because of size or production rate, and to determine all applicable requirements, including fee amounts, on standard application forms provided by the Department.
- (2) In addition, the applicant shall promptly submit to the Department such additional information as is requested to evaluate the application under this article. If the applicant fails to promptly provide such information, the Department may reject the application. No application shall be considered complete until the applicant has furnished to the Department all information needed to evaluate the application under this article and the fee required by this article.

B. Issuance. Unless otherwise specifically provided under Article III, all permits issued pursuant to this article or Article III of this chapter shall be in written form, signed and issued by the Director, the Deputy Director, Bureau of Environmental Quality, the head of the Division of Air Quality, or the head of the Engineering Section, Bureau of Environmental Quality Division of Air Quality.

C. Conditions. It shall be a violation of this chapter giving rise to the remedies provided by Article IX of this chapter for any person to fail to comply with any terms or conditions set forth in any permit issued pursuant to this article.

D. Rejection or revocation.

- (1) If the Department rejects any permit application under this article or Article III of this chapter or revokes any permit previously issued under this article or Article III of this chapter, it shall so advise the applicant in writing, summarizing the reasons for the rejection or revocation.
- (2) The Department shall reject any permit or license application under this chapter and may suspend, terminate, or revoke any permit or license previously issued under this chapter if it

finds that the permittee or a general partner, or parent or subsidiary corporation of the permittee is in violation of the Air Pollution Control Act, the rules and regulations promulgated under the Air Pollution Control Act, this chapter, any City of Philadelphia air pollution control rule or regulation, or any air pollution control plan approval, permit, or order of the DEP, the Department, or the City of Philadelphia, as indicated by past or present violations or the DEP's compliance docket, unless the violation is being corrected to the satisfaction of the primary air pollution control enforcement agency(s) for the source(s) in violation.

- E. Transfers. Permits issued pursuant to this article or Article III of this chapter shall not be transferable from one person to another, except in accordance with the requirements of this article or Article III in cases of change-in-ownership which are documented to the satisfaction of the Department, and shall be valid only for the specific sources and equipment for which they were issued. The transfer of permits in the case of change-in-ownership shall also require the submission to the Bureau of a Permit Transfer application fee in the amount of 25% of the total of all applicable annual permit application/administration fees required for said permits by this article or Article III of this chapter, but not less than \$50 per permit, and in the case of an operating permit a compliance certification in accordance with § 505-25B(2)(i) of this chapter, and in the case of a major source a compliance certification in accordance with § 505-19B(2) of this chapter. The required documentation and fee must be received by the Bureau at least 30 days before the intended transfer date.
- F. Modification of permits. Upon written request or upon its own motion, the Department may modify a permit previously issued to correct clerical errors.
- G. Effect. Except as specifically otherwise provided under Article III, issuance of a permit pursuant to this article or Article III of this chapter shall not in any manner relieve any person of the duty to fully comply with the requirements of this chapter or any other provision of law, nor shall it in any manner preclude or affect the right of the Department to initiate any enforcement action whatsoever for violations of this chapter, whether occurring before or after the issuance of such permit. Further, except as specifically otherwise provided under Article III of this chapter, the issuance of a permit shall not be a defense to any nuisance action, nor shall such permit be construed as a certificate of compliance with the requirements of this chapter.
- H. Appeals.
 - (1) Any person who is aggrieved by the denial or rejection of a permit application or revocation of a permit required by this chapter, or the issuance or reissuance of such permit with conditions, or any person who participated in the public comment process for a permit, shall have the right to file an appeal pursuant to the provisions of Article XI, Rules and Regulations of the Allegheny County Health Department, or in accordance with such other procedures as may hereafter be established by the Board of County Commissioners.
 - (2) In all such cases involving the provisions of this article, a hearing granted pursuant to this subsection:
 - (a) Shall not be held before employees of the Department who are assigned to the Bureau of Environmental Quality Division of Air Quality; and
 - (b) Shall be held before a Hearing Officer who represents the public interest and does not derive any significant portion of his income from persons subject to this chapter within the meaning in Article I of this chapter; except that, if a panel of three or more persons is appointed to hear the case, a majority of the panel shall represent the public interest and shall not derive any significant portion of his income from persons subject to this chapter.

Prior to being appointed as a Hearing Officer, each proposed appointee shall file with the Chief Clerk of the County of Allegheny a disclosure statement as required by Article IX of this chapter. Said disclosure statement shall be subject to the public inspection provisions of Article IX.

- (3) In any such administrative hearing, the person filing the appeal shall bear the burden of proof and the burden of going forward with respect to all issues.

I. Compliance history.

- (1) The Department may refuse to issue any permit or license under this chapter if it finds that the applicant or permittee or a partner, or parent or subsidiary corporation of the applicant or permittee has shown a lack of intention or ability to comply with the Air Pollution Control Act, the regulations promulgated under the PA Act, this chapter, the City of Philadelphia air pollution control rules and regulations, or any plan approval, permit, or order issued by the DEP, the City of Philadelphia, or the Department, as indicated by past or present violations, unless the lack of intention or ability to comply is being or has been corrected to the satisfaction of the primary air pollution control enforcement agency(s) for the violating source(s).
- (2) Except as otherwise provided under this subsection, the Compliance Review and Compliance Review Form requirements promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.12a and 127.412 are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (3) For purposes of this chapter, 25 Pa. Code §§ 127.12a(c)(5) and 127.412(c)(5) shall only require the submission of information regarding permits in effect during the previous 12 months for the first permit application due after the effective date of this section.
- (4) Under the regulations incorporated by reference under this subsection:
 - (a) "Plan approval" shall mean installation permit;
 - (b) "Department" shall mean Department as defined under this chapter;
 - (c) "Responsible official" shall mean responsible official as defined under this chapter;
 - (d) "Facility" shall mean source;
 - (e) "Deviation" shall mean "deviation" as defined under 25 Pa. Code § 121.1;
 - (f) "EHB" shall mean the "Department under Article XI";
 - (g) "Title V Permit" shall mean an operating permit issued under this article;
 - (h) "Documented conduct" shall mean "documented conduct" as defined under 25 Pa. Code § 121.1; and
 - (i) "Compliance review form" shall mean "compliance review form" as defined under 25 Pa. Code § 121.1

J. General permits.

- (1) Except as otherwise provided under this Subsection, the General Plan Approvals and operating permits requirements promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.611 through 127.622 are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (2) For purposes of this chapter:
 - (a) 25 Pa. Code § 127.612(a) shall only require the publication of the required notice in the Pennsylvania Bulletin and one newspaper of general circulation in the County;
 - (b) 25 Pa. Code § 127.612(c) shall only require that comments be retained for a period of five (5) years following final action on a proposed permit; and
 - (c) 25 Pa. Code § 127.621(b) shall also allow delivery or transmittal of applications by regular U.S. mail or any other generally accepted manner of delivery or transmittal.
- (3) Under the regulations incorporated by reference under this Subsection:
 - (a) "Plan approval" shall mean "installation permit";
 - (b) "Department" shall mean Department as defined under this chapter;
 - (c) "Pennsylvania Bulletin" shall mean Pennsylvania Bulletin or a newspaper of general circulation in the County; and
 - (d) "Facility" shall mean "source."

K. Emissions trading at sources with federally enforceable emissions cap.

- (1) Except as otherwise provided under this subsection, the Emissions Trading at Sources with Federally Enforceable Emissions Cap requirements promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code § 127.448 are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (2) Under the regulations incorporated by reference under this subsection:
 - (a) "Facility" shall mean "source" as defined under this chapter;
 - (b) "Source" shall mean "emissions unit";
 - (c) "Department" shall mean "Department" as defined under this chapter;
 - (d) "Article" shall mean "article" as defined under this chapter;
 - (e) "Section 127.516" shall mean § 505-26C(5) of this chapter; and
 - (f) "Permit" shall mean "installation or operating permit."

L. Temporary sources at multiple locations.

- (1) Except as otherwise provided under this subsection, the requirements for Plan Approvals and Operating Permits for Sources Operating at Multiple Temporary Locations promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.631 through 127.642 are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (2) For purposes of this chapter:
 - (a) 25 Pa. Code § 127.632(a) shall only require the publication of the required notice in the Pennsylvania Bulletin and one newspaper of general circulation in the County;
 - (b) 25 Pa. Code § 127.632(c) shall only require that comments be retained for a period of five (5) years following final action on a proposed permit; and
 - (c) 25 Pa. Code § 127.641(c) shall also allow delivery or transmittal of applications by regular U.S. mail or any other generally accepted manner of delivery or transmittal.
- (3) Under the regulations incorporated by reference under this subsection:
 - (a) "Plan approval" shall mean "installation permit";
 - (b) "Department" shall mean "Department" as defined under this chapter;
 - (c) "Pennsylvania Bulletin" shall mean "Pennsylvania Bulletin" or a newspaper of general circulation in the County; and
 - (d) "Facility" shall mean "source."

§ 505-17. Installation permits.

A. General requirements.

- (1) It shall be a violation of this chapter giving rise to the remedies set forth in Article IX of this chapter for any person to install, modify, replace, reconstruct, or reactivate any source or air pollution control equipment to which this article applies unless either:
 - (a) The Department has first issued an installation permit for such source or equipment; or
 - (b) Such action is solely a reactivation of a source with a current operating permit which is approved under § 505-25D of this chapter.
- (2) A physical change in, or change in the method of operation of, a major source which results in a greater than de minimis increase in actual emissions of a hazardous air pollutant shall not be considered a modification, if such increase in the quantity of actual emissions of any hazardous air pollutant from such source will be offset by an equal or greater decrease in the quantity of emissions of another hazardous air pollutant (or pollutants) from such source which is deemed more hazardous, pursuant to guidance issued by the Administrator under Section 112 of the Clean Air Act. The owner or operator of such source shall submit a showing to the Bureau, at least 30 days prior to such change, that such increase has been offset under the preceding sentence.

- (3) Notwithstanding the requirements of Subsection B below, a new source which is issued an installation permit and commences construction or reconstruction, in accordance with a permit issued under this chapter, after a standard, limitation, or regulation applicable to such source is proposed and before such standard, limitation, or regulation is promulgated shall not be required to comply with such promulgated standard until the date three years after the date of promulgation, or for such other period if specified in the regulation, if:
 - (a) The promulgated standard, limitation, or regulation is more stringent than the standard, limitation or regulation proposed; and
 - (b) The source complies with the standard, limitation, or regulation as proposed during such period immediately after promulgation.
 - (4) A source for which construction or reconstruction is commenced after the date a MACT emission standard applicable to such source is proposed by EPA, but before the date a health risk based emission standard applicable to such source is proposed by EPA, shall not be required to comply with the health risk based emission standard until the date 10 years after the date construction or reconstruction is commenced.
- B. Standards for issuance. The Department shall not issue any installation permit unless it has complied with all applicable requirements under this chapter for public notice and received a complete application meeting the requirements of this article, which application includes, or demonstrates that:
- (1) An identification of all other installation permits issued by the Department for the sources affected after November 15, 1990;
 - (2) The nature and amounts of emissions from the sources affected and from associated mobile sources;
 - (3) The location, design, construction and operation of the sources affected as they relate to emission characteristics;
 - (4) Emissions from the proposed source will not prevent the attainment and maintenance of the ambient air quality standards established by Article I of this chapter at any location within the Commonwealth, nor will such emissions interfere with reasonable further progress toward the attainment of the NAAQS's; provided, however, that nothing herein contained shall preclude the applicant from agreeing to a more stringent emission limitation than established by this chapter or securing enforceable emission reductions from existing sources so that such prevention or interference will not occur;
 - (5) The proposed source will comply with all applicable emission limitations established by this chapter, or where no such limitations have been established by this chapter, RACT has been applied to existing sources with respect to those pollutants regulated by this chapter;
 - (6) For new sources, BACT has been applied;
 - (7) Emissions from the proposed source will not endanger the public health, safety or welfare;
 - (8) The proposed source or modification will comply with all applicable NSPS requirements, existing and new source MACT standards, Generally Achievable Control Technology (GACT) standards, and NESHAP requirements established by the EPA, and where no applicable MACT emission limitations have been established by EPA after the federal deadline set for such establishment, such determinations of MACT as shall be made on a case-by-case basis by the

Department;

- (9) All existing air pollution sources within the Commonwealth which are required to have operating permits and which are owned, operated, or allowed to be operated, by the applicant or permittee or by any person controlling, controlled by, or under common control with the applicant or permittee are in compliance with all applicable requirements of the Air Pollution Control Act, the rules and regulations promulgated under the Air Pollution Control Act, this chapter, any City of Philadelphia air pollution control rule or regulation, and any air pollution control plan approval, permit, or order of the DEP, the Department, or the City of Philadelphia, as indicated by the DEP's compliance docket, or such noncompliance is being corrected to the satisfaction of the primary air pollution control enforcement agency(s) for the source(s) in violation;
 - (10) All terms and conditions for reasonably anticipated operating scenarios identified by the source in its application as approved by the Department. Such terms and conditions:
 - (a) Shall require the source, contemporaneously with making a change from one operating scenario to another, to record in a log at the permitted source a record of the new scenario under which it is operating; and
 - (b) Must ensure that the terms and conditions of each such alternative scenario meet all applicable requirements under this chapter; and
 - (11) For new or reconstructed major sources of hazardous air pollutants or modifications of such sources, the proposed source or modification will comply with all applicable MACT standards, and where no applicable MACT emission limitation has been established by EPA, such determination of MACT as shall be made on either a case-by-case or source category basis by the Department under federal regulations promulgated pursuant to Section 112(g) of the Clean Air Act. A person appealing the establishment of a performance or emission standard by the Department under this Paragraph shall have the burden to demonstrate that the performance or emission standard does not meet the requirements of Section 112 of the Clean Air Act.
- C. Major sources. The Department shall not issue any installation permit for a major source unless, in addition to meeting the requirements of Subsection B above, the application demonstrates compliance with all applicable requirements of this article.
- D. Construction activities. If construction activities associated with the installation, modification, replacement, reconstruction, or reactivation of any source of air pollution control equipment to which this chapter applies involves the grading, excavating, or deposition of earth on 0.5 acre of land or more, the application required by this section shall include a plan for the implementation of all reasonable actions to prevent fugitive dust from becoming airborne. Such plan shall include at a minimum, a description of the nature and scope of the activities involved, fugitive dust control measures to be implemented, and a time schedule on which these measures will be implemented. Such plan shall be reviewed by the Department as part of the permit application review provided for by this article and, once approved, shall be considered part of the permit issued by the Department.
- E. Conditions. The Department may issue permits subject to such terms and conditions as are appropriate to ensure continued compliance with the requirements of this chapter, the Air Pollution Control Act and the Clean Air Act. Such terms and conditions may include, but are not limited to, requiring periodic progress reports, ambient or source monitoring, and operating or maintenance requirements. The initiation of installation, modification, replacement, reconstruction, or reactivation without having first been issued an installation permit as required by this section, and any reactivation

plan required by Article III of this chapter, shall be deemed acceptance by the source of all terms and conditions later specified by the Department. Further, the initiation of installation, modification, replacement, reconstruction, or reactivation under an installation permit and any reactivation plan shall be deemed acceptance by the source of all terms and conditions specified by the Department in the permit and plan.

F. Revocation. The Department may, at any time, revoke an installation permit if it finds that:

- (1) Any statement made in the permit application is not true, or that material information has not been disclosed in the application;
- (2) The source is not being installed, modified, replaced, reconstructed, or reactivated in the manner indicated by the permit or applicable reactivation plan;
- (3) Air contaminants will not be controlled to the degree indicated by the permit;
- (4) Any term or condition of the permit has not been complied with;
- (5) The Department has been denied lawful access to the premises or records, charts, instruments and the like as authorized by Article IX of this chapter; or
- (6) In the case of a major source, the EPA has found, pursuant to Section 126(b) of the Clean Air Act, that emissions from such source would prevent the attainment or maintenance by any other state of any primary or secondary NAAQS's or that such emissions would interfere with any measure required to be included in the applicable SIP for any other state under Part C of the Clean Air Act relating to prevention of significant deterioration of air quality or protection of visibility; provided, however, that nothing herein contained shall prevent the reissuance of such permit upon a demonstration that the conditions leading to such finding by the EPA have been corrected. In addition, the Department may, prior to the date on which construction of the proposed source has commenced, revoke an installation permit if a significantly better air pollution control technology has become available for such source, a more stringent regulation applicable to such source has been adopted, or any other change has occurred which requires a more stringent degree of control of air contaminants.

G. Term. **[Amended 3-20-2012 by Ord. No. 5-12]**

- (1) An installation permit shall expire in 18 months if construction has not commenced within such period or shall expire 18 months after such construction has been suspended, if construction is not resumed within such period. Installation permits shall authorize temporary operation to facilitate shakedown of sources and air cleaning devices, to permit operations pending issuance of a related subsequent operating permit, or to permit the evaluation of the air contamination aspects of the source. Such temporary operation period shall be valid for a limited time, not to exceed 180 days, but may be extended for additional limited periods, each not to exceed 120 days, except that no temporary operation shall be authorized or extended which may circumvent the requirements of this chapter.
- (2) For major sources, if the construction, modification or installation is not commenced within 18 months of the issuance of any installation permit or if there is more than an eighteen-month lapse in construction, modification or installation, a new installation permit application shall be submitted. The Department may extend the eighteen-month period upon a satisfactory showing that an extension is justified.

H. Synthetic minors - administrative operating permit amendments.

- (1) Any permit applicant for a source, emission unit, or a pollutant at such source or emission unit, not otherwise subject to § 505-18 below, upon written notice to the Department as part of its application under this Part, may choose to, and thereafter become, subject to § 505-18C below for the purposes of subjecting the application to public and federal review in order to establish federal enforceability of such permit upon issuance.
 - (2) Any permit applicant for a source, emission unit, or a pollutant at such source or emission unit, not otherwise subject to § 505-18 below, but for which a subsequent related operating permit or operating permit amendment is required under Article III of this chapter, shall be subject to § 505-18C below for the purposes of subjecting the application to public and federal review in order to establish federal enforceability of such permit upon issuance, except that where only a minor operating permit modification is required, only such minor modification procedures regarding notice shall be required.
 - (3) Until the first amendments to this chapter, including this subsection, are approved by the EPA, all applications under this subsection, upon approval by the Department, will be submitted to the EPA as proposed revisions to the County's portion of the SIP. Except as required for a SIP amendment, the public hearing provided for under § 505-18, for purposes of this subsection shall only be held if deemed necessary by the Department.
- I. Advance notice. In addition to all other notice requirements under this article, the Department shall cause to be published a public notice of all permit applications received as soon as is practicable after such applications have been deemed to be complete. At the time of publication of such notice, the applicant shall cause a copy of such notice to be sent to all municipalities in which the source for which the application has been submitted is located as required by Section 1905-A of the Pa. Administrative Code of 1929 (71 P.S. § 510-5).
- J. Miscellaneous notice requirements. Except as specifically otherwise provided under this chapter, the requirements promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.44, 127.45, and 127.51, and the related definitions at 25 Pa. Code § 121.1, are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- K. Restrictions on sources with violations. **[Added 4-20-2004 by Ord. No. 10-04]**
- (1) Applicability. This subsection applies to all sources in Allegheny County submitting an installation permit application after the effective date of this regulation. This subsection does not apply to sources installing air pollution control equipment, or projects that do not increase total potential air emissions of any regulated pollutant at those sources.
 - (2) General provisions.
 - (a) The Department shall not issue an installation permit if the source or any other source in Allegheny County owned or operated by the applicant has been in violation of any applicable requirement as defined in this chapter at any time in the prior 18 months, except as provided under Subsection K(3) of this subsection. For the purpose of this subsection only, an applicant shall be deemed to own a source if the applicant or its parent corporation has a fifty-percent or greater interest in the source, directly or through a partnership or subsidiary.

- (b) The applicant shall include in the permit application a written history of compliance with all applicable requirements in the prior 12 months based on information and belief formed after reasonable inquiry. The history of compliance must be certified by a responsible official of the source.
 - (c) The Department shall not issue an installation permit unless the applicant has satisfied the provisions of Subsection K(2)(b) of this subsection, and is not in violation of any applicable requirements up until the time of permit issuance, except as provided in Subsection K(3) below.
- (3) For the purpose of this subsection only, the permit issuance will not be prohibited for:
- (a) Violations that are the result of events beyond the reasonable control of the applicant as determined by the Department;
 - (b) Violations that the Department determines are due to infrequent exceedances that have not caused a significant increase in emissions, are not indicative of a systemic failure to meet applicable requirements, and the violations have been corrected to the satisfaction of the Department;
 - (c) Violations based solely on recordkeeping or reporting requirements, and the violations have been corrected to the satisfaction of the Department; or
 - (d) Violations for which the source or the Department has identified a compliance problem and the violations are being corrected pursuant to a compliance plan approved by the Department that meets the provisions of § 505-25B(2)[h] and the source has operated in compliance with that plan for six months or more, or has completed such a plan to the satisfaction of the Department.
- (4) Except for violations as described in Subsection B(3)(c) above, if a source is subsequently found to be in violation of the terms and conditions of a compliance plan which satisfies the requirements of Subsection B(3)(d) above, the Department shall revoke the installation permit, and the source shall cease all work allowed by the installation permit, other than work necessary for the protection of worker or public safety.

§ 505-18. Installation permits for new and modified major sources.

- A. General. In addition to satisfying the requirements of § 505-17B of this article above, the installation permit application for any new or modified major source shall demonstrate compliance with all provisions of this section.
- B. Interstate notification.
 - (1) The installation permit application for a proposed new or modified major source shall include proof that the applicant has provided written notice to the air quality permitting agencies or departments of all affected states. Such notice shall include at a minimum an identification of the type of source to be constructed or modified, its location and projected start-up date, an identification of the types and amounts of air contaminants which will be emitted and the effective height of all significant emissions points, the name and address of a person who will provide such additional information as may be requested, and the address of the Bureau of Environmental Quality for the receipt of comments.
 - (2) No installation permit shall be issued pursuant to this chapter sooner than 60 days after issuance

of any notice to all affected states as required under Subsection B(1) above.

- C. Public notice and hearing. Upon a determination that an installation permit application for a new or modified major source meets the requirements of this chapter, the Department shall prepare a notice of its proposed approval of the application and of a public hearing on such proposed approval to be held no sooner than 30 days following publication of such notice in accordance with this subsection. Such notice shall include at a minimum the name of the owner or operator, the type and size of the source, the proposed location, a concise summary of the manner in which the requirements of this article have been met, an identification of at least one location within the County where all information submitted in support of the application may be examined by the public, an employee of the Department to whom public comments may be sent no later than 10 days following the public hearing and to whom requests to testify at the public hearing may be sent within 30 days of the publication of the notice, and the date, time, and location of the public hearing. The Department shall then:
- (1) Cause such notice to be published by prominent advertisement in either, at the discretion of the Department, at least two newspapers of general circulation in the County, or at least one newspaper of general circulation in the County and at least one local newspaper of general circulation in the municipality of the proposed location, for at least one day in each newspaper. The applicant shall pay for the cost of all publications and certifications under this subsection;
 - (2) Cause copies of the notice to be mailed to the Regional Administrator of the EPA, the Chairman of the Allegheny County Air Pollution Control Advisory Committee, the Chairman of the Allegheny County Board of Health, the appropriate agencies or departments of affected states, such other regional and local government units as specified by the Department, and to persons on a mailing list developed by the Department, including residents of the County who specifically request in writing to be on the list;
 - (3) Retain all information submitted in support of the permit application in at least one location in the County and make all such information available for public inspection;
 - (4) Provide copies of the Department's notice to any person who requests it; and
 - (5) Obtain facilities for a public hearing to be held by the Department, at a place, date, and time determined in advance by the Department, and cause such hearing to be stenographically transcribed and a copy thereof to be furnished to the Department. The applicant shall pay for the cost of all public hearings and transcripts under this subsection.

§ 505-19. Major sources locating in or impacting nonattainment area. [Amended 6-7-2005 by Ord. No. 33-05; 3-20-2012 by Ord. No. 5-12]

- A. Applicability. This section shall apply to any new major facility, as defined by 25 Pa. Code § 121.1, and to any major modification of an existing source which is located in a nonattainment area or transport region of the County or which will have a significant air quality impact on any nonattainment area or transport region. Procedures in 25 Pa. Code § 127.203a shall be followed in determining whether any modification at a major source is determined to be a major modification.
- (1) Except as otherwise specifically provided under this section, this section shall be applied consistent with the provisions of the state regulation for new source review applicability determination promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 127.203 [except § 127.203(b)], 127.203a, and 127.204, which are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code §§ 127.203 [except § 127.203(b)], § 127.203a,

and 127.204 and defined in 25 Pa. Code 121.1 are incorporated by reference, except as explicitly set forth herein. Additions, revisions, or deletions to such regulation by the commonwealth are incorporated into this subsection and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.

(2) For purposes of this subsection:

(a) "Department" shall mean "Department" as defined under this chapter; and

(b) "Plan approval" shall mean "installation permit."

(3) Circumvention. Regardless of the exemptions provided in this section, an owner or other person may not circumvent this section by causing or allowing a pattern of ownership or development, including the phasing, staging, delaying or engaging in incremental construction, over a geographic area of a source which, except for the pattern of ownership or development, would otherwise require a permit or submission of an installation permit application. In determining the LAER standard for such increments, the Department shall consider the stage of construction of each increment and the feasibility of installing additional air pollution controls on each.

B. Conditions for approval. The Department shall not issue an installation permit, or issue, amend, modify, or reissue a related operating permit, for any source to which this section applies unless the applicant demonstrates that all of the following conditions are met:

(1) Except as otherwise specifically provided under this subsection, conditions for approval of an installation permit shall be applied consistent with the provisions of the state regulation for new source review promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 127.201 through 127.205 [except § 127.201(f)], which are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code §§ 127.201 through 127.205 [except § 127.201(f)], and defined in 25 Pa. Code § 121.1, are incorporated by reference, except as explicitly set forth herein. Additions, revisions or deletions to such regulations by the commonwealth are incorporated into this subsection and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.

(2) For purposes of this subsection: "Department" shall mean "Department" as defined under this chapter; "Plan approval" shall mean installation permit; "Title V Permit" shall mean an operating permit issued under Article III; "Responsible official" shall mean "responsible official" as defined under this chapter; Public notification procedures shall follow the requirements of §§ 505-16, 505-17, 505-18 and 505-19; and "EHB" shall mean the "Department under Article XI."

(3) Emission offsets. The applicant shall demonstrate that it has secured emission reduction credits from the state ERC registry system to offset allowable emissions and fugitive dust emissions from the proposed new source or the proposed modification by at least the ratios set forth below.

(a) Incorporation by reference. Except as otherwise specifically provided under this subsection, the state regulations for the use of emission reduction credits and offset ratios promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 127.206 through 127.210, inclusive, are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code 127.206 through 127.210, inclusive, and defined in 25 Pa. Code § 121.1, are incorporated by reference except as explicitly set forth herein. Additions, revisions or deletions to such regulations by the commonwealth are incorporated into this subsection and are effective on the date established by the state regulations, unless

otherwise established by regulation under this chapter.

(b) For purposes of this subsection:

[1] "Plan approval" shall mean "installation permit"; and

[2] For 25 Pa. Code §§ 127.206 through 127.210 [except §§ 127.206(d)(2), 127.207(3)(vii), 127.208(5), 127.209(a) and 127.209 (c)], "Department" shall mean "Department" as defined under this chapter.

- C. Temporary sources. Temporary sources shall not be required to comply with net air quality benefit and offsets requirements.
- D. Fuel switches. The Department may issue an installation permit for the modification of an existing source which is required to switch fuels pursuant to a federal order or fuel curtailment plan if:
- (1) The applicant demonstrates that it has used all best efforts to secure all available offsets; and
 - (2) The applicant is made subject to a permit condition requiring it to use all best efforts to secure additional offsets until the requirements of Subsection B(3) are met.
- E. Portable facilities; incorporation by reference. The state regulations for portable facilities under the Air Pollution Control Act at 25 Pa. Code § 127.212 are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code § 127.212 and defined in 25 Pa. Code § 121.1 are incorporated by reference. Additions, revisions or deletions to such regulations by the commonwealth are incorporated into this subsection and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- F. Requirements for modeling. Where air quality models are used to meet the provisions of this section, modeling shall be based on the applicable models and other requirements specified in 40 CFR Part 51 Appendix W (Guideline on Air Quality Models). Where an air quality model specified in the Guideline on Air Quality Models is inappropriate, the model may be modified or another model may be substituted only on a case-by-case basis at the Department's discretion upon written approval by the Administrator of the EPA. In addition, use of a modified or substituted model must be subject to notice and opportunity for public comment under procedures set forth in 40 CFR 51.102. **[Amended 11-5-2014 by Ord. No. 17-14]**
- G. Plantwide applicability limits (PALs).
- (1) The plantwide applicability limits (PALs) regulations in 25 Pa. Code § 127.218 are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code § 127.218 and defined in 25 Pa. Code § 121.1 are incorporated by reference, except as explicitly set forth herein. Additions, revisions or deletions to such regulations by the commonwealth are incorporated into this subsection and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
 - (2) For purposes of this subsection:
 - (a) Public notification procedures shall follow the requirements of §§ 505-16, 505-17, 505-18 and 505-19;
 - (b) "Plan approval" shall mean installation permit; and
 - (c) "Department" shall mean the Allegheny County Health Department.

§ 505-20. Prevention of significant deterioration.

- A. General provisions. The Prevention of Significant Deterioration (PSD) requirements as promulgated in 40 CFR 52.21 by the Administrator of the EPA pursuant to Section 161 of the Clean Air Act are hereby adopted in their entirety and incorporated herein by reference. For the purposes of this section, all of the definitions adopted by the federal regulations in this subsection are hereby incorporated by reference, including those of source and major source. Additions, revisions, or deletions to the PSD requirements adopted by EPA are incorporated into this chapter and are effective on the date established by the federal regulations, unless otherwise established by regulation of the Department.
- B. Permits. Notwithstanding the issuance of any installation permit pursuant to this chapter, no person shall commence the construction of, and no operating permit shall be issued pursuant to this chapter for, any new or modified major source in an attainment or unclassified area of the County until such person has obtained a PSD permit from the Department or has obtained a written determination from the Department that a PSD permit is not required for such source under the applicable statutes, regulations, or other laws.
- C. Exemption. The PSD provisions of this chapter shall not apply to sources of hazardous air pollutants as defined in Article I of this chapter.
- D. Violation. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to commence construction of or to allow construction to commence on, or to own, operate, or allow to be operated, any new or modified major source in an attainment or unclassified area of the County in a manner that does not comply with all PSD requirements as promulgated by the EPA and incorporated herein. **[Amended 8-27-2013 by Ord. No. 23-13]**

§ 505-21. Emission offset registration. [Amended 3-20-2012 by Ord. No. 5-12]

- A. Incorporation by reference. Except as otherwise specifically provided under this subsection, the state regulations for registration of emission reduction credits promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 127.206 through 127.209 inclusive are hereby incorporated by reference into this subsection. All terms used in 25 Pa. Code §§ 127.206 through 127.209 and defined in 25 Pa. Code § 121.1 are incorporated by reference, except as explicitly set forth herein. Additions, revisions, or deletions to such regulations by the commonwealth are incorporated into this Subsection and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- B. For purposes of this section:
 - (1) "Plan approval" shall mean installation permit; and
 - (2) For 25 Pa. Code §§ 127.206 through 127.209 [except §§ 127.206(d)(2), 127.207(3)(vii), 127.208(5), 127.209(a) and (e)], "Department" shall mean Department as defined under this chapter.
- C. Reports. All applications, notices and reports required to be submitted to the commonwealth under the applicable state emission reduction credit regulations shall be submitted to the Allegheny County Health Department by the same deadline set forth in such regulations.
- D. Applications for registration of emission reduction credits shall be accompanied by the payment of a nonrefundable verification fee payable to the Allegheny County Air Pollution Control Fund. The amount of the fee shall be set by the Board of Health and approved by Allegheny County Council.

The Department may prepare a form required to be used in providing the notice required by this section.

- E. Within 180 days of receipt of a properly completed notice, with the appropriate fee, the Department shall verify the amount of offsets available, if any, setting forth the amount, location, pollutant characteristics, and the creation date of such offsets, and provide notice to the owner or operator of such verification. The owner or operator of the source affected shall provide the Department with all information and shall bear the cost of such tests, studies, and the like, as are necessary for such verification.
- F. The Department shall then forward such notice and verification to the air quality permitting agency for the Commonwealth of Pennsylvania for registration in the state emission reduction credit registry system.
- G. Emission offset credits under this section shall not be available for use until registered in the state registry system, at which time the existence and availability of such credits becomes subject to the state regulations for registered emission reduction credits promulgated under the Air Pollution Control Act.
- H. Transfers. Registered offsets shall only be transferable as provided for under the applicable state regulations, except that offsets created in Allegheny County or to be used in Allegheny County shall be transferable to and from 501(c)(3) nonprofit corporations and governmental bodies and authorities for the purpose of facilitating the use of such credits.

§ 505-22. Waste-derived liquid fuel.

The applications for and issuance of installation permits that expressly permit the burning of waste-derived liquid fuel as provided by this chapter shall also be governed by the applicable requirements and standards of this article except as otherwise specified by this section. In addition to the other requirements of this article, an application for an installation permit under this section shall include:

- A. A report of the results of the analysis of a representative sample of the fuel to be used in accordance with § 505-69A of this chapter; and
- B. For equipment in which the owner or operator is requesting to burn waste-derived liquid fuel pursuant to § 505-46B(1)(d) of this chapter, a report of the results of a diffusion modeling analysis as required by § 505-46B(2)(f)(3)[b] of this chapter.

§ 505-23. Installation permit application and administration fees.

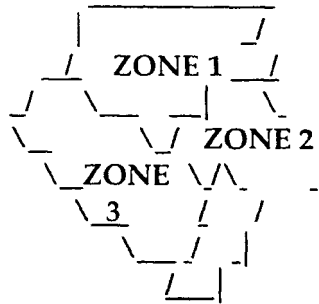
- A. Installation permit application fee. On the date that an application for an installation permit is submitted under this article the owner or operator of such source shall submit to the Department, in addition to all other applicable emission and administration fees, an installation permit application fee in an amount determined under, and in accordance with, the requirements of this section.
- B. Amount of application fees. A schedule of the amounts of the application fees required by this article for installation permit application fees shall be set by the Board of Health. Consideration shall be given to the degree of technical and regulatory difficulty in establishing fees for the following categories of installation permits: **[Amended 7-7-2009 by Ord. No. 30-09]**
 - (1) For any source requiring a prevention of significant deterioration (PSD) permit under this article.

- (2) For any source requiring an installation permit under this section which requires the Department to establish a MACT standard for such source, but not subject to Subsection B(1) above.
 - (3) For any source requiring an installation permit under this section and subject to § 505-19 or 505-20 above involving new major sources and major modifications locating in or impacting a nonattainment area, but not subject to Subsection B(1) or (2) above.
 - (4) For any source requiring an installation permit under this section and subject to an existing NSPS, NESHAP, or MACT standard.
 - (5) For any source requiring an installation permit under this section but not subject to either Subsection B(1), (2), (3) or (4) above, and for all applications to use general installation permits.
- C. Annual installation permit administration fee. No later than 30 days after the date that an application for an installation permit is approved under this Part, and on or before the last day of the month in which such permit application was approved in each year thereafter, during the term of such permit until a subsequent corresponding operating permit or amended operating permit is properly applied for, the owner or operator of such source shall pay to the Department, in addition to all other applicable emission and administration fees, an annual installation permit administration fee in an amount set by the Board of Health. **[Amended 7-7-2009 by Ord. No. 30-09]**
- D. Minor installation permit modifications. **[Amended 7-7-2009 by Ord. No. 30-09]**
 - (1) Modifications to installation permits may be applied for but only upon submission of an application with a fee paid and where:
 - (a) No reassessment of any control technology determination is required; and
 - (b) No reassessment of any ambient air quality impact is required.
 - (2) The fee amount shall be set by the Board of Health.
- E. Payment of fees. Payment of the required fees under this article shall be made by check or money order payable to the "Allegheny County Air Pollution Control Fund."
- F. Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by the Allegheny County Council. **[Added 7-7-2009 by Ord. No. 30-09]**

ARTICLE III
Operating Permits

§ 505-24. Transition.

- A. The owners or operators of all sources either subject to § 505-26A or applying as a synthetic minor under § 505-26A(2)(d) of this article, as of the applicable dates set forth in this Subsection A, shall submit to the Department in accordance with all applicable requirements of this chapter, complete permit applications, including all applicable fees, for the initial operating permits following the effective date of this article:
- (1) For all such sources primarily situated in Air Pollution Control Zone 1 of the County, bounded by the Allegheny County-Butler County line, the main channels of the Allegheny and Ohio Rivers, and the Allegheny County-Beaver County line, by no later than November 27, 1995;
 - (2) For all such sources primarily situated in Air Pollution Control Zone 2 of the County, bounded by the Allegheny County-Westmoreland County line and the main channels of the Monongahela and Allegheny Rivers, by no later than November 27, 1995; and
 - (3) For all such sources primarily situated in Air Pollution Control Zone 3 of the County, bounded by the Allegheny County-Washington County line, the Allegheny County-Beaver County line, and the main channels of the Ohio and Monongahela Rivers, by no later than November 27, 1995.
- B. The owners or operators of all sources subject to § 505-25A, but not subject to § 505-26A nor applying as a synthetic minor under § 505-26A(2)(d), of this article, as of the applicable dates set forth in this Subsection B shall submit to the Department in accordance with all applicable requirements of this chapter, complete permit applications, including all applicable fees, for the initial operating permits following the effective date of this article:
- (1) For all such sources primarily situated in Air Pollution Control Zone 1 of the County, bounded by the Allegheny County-Butler County line, the main channels of the Allegheny and Ohio Rivers, and the Allegheny County-Beaver County line, by no later than February 1, 1996;
 - (2) For all such sources primarily situated in Air Pollution Control Zone 2 of the County, bounded by the Allegheny County-Westmoreland County line and the main channels of the Monongahela and Allegheny Rivers, by no later than April 1, 1996; and
 - (3) For all such sources primarily situated in Air Pollution Control Zone 3 of the County, bounded by the Allegheny County-Washington County line, the Allegheny County-Beaver County line, and the main channels of the Ohio and Monongahela Rivers, by no later than June 3, 1996.



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- C. Final action shall be taken by the Department on all complete permit applications for the initial operating permits following the effective date of this article, submitted in accordance with Subsections A and B of this section:
- (1) For all such sources requiring a major operating permit or applying as a synthetic minor under § 505-26A(2)(d), and primarily situated in Air Pollution Control Zone 1 of the County, including approximately one-third of the major sources in the County, by no later than September 15, 1997, or for major sources by no later than 12 months following publication of EPA's approval of the County's major source operating permit program under 40 CFR Part 70, whichever is sooner;
 - (2) For all such sources requiring a major operating permit or applying as a synthetic minor under § 505-26A(2)(d), and primarily situated in Air Pollution Control Zone 2 of the County, including approximately one-third of the major sources in the County, by no later than April 15, 1998, or for major sources by no later than 24 months following publication of EPA's approval of the County's major source operating permit program under 40 CFR Part 70, whichever is sooner;
 - (3) For all such sources requiring a major operating permit or applying as a synthetic minor under § 505-26A(2)(d), and primarily situated in Air Pollution Control Zone 3 of the County, including approximately one-third of the major sources in the County, by no later than November 16, 1998, or for major sources by no later than 36 months following publication of EPA's approval of the County's major source operating permit program under 40 CFR Part 70, whichever is sooner;
 - (4) For all other such sources primarily situated in Air Pollution Control Zone 1 of the County, by no later than February 2, 1998;
 - (5) For all other such sources primarily situated in Air Pollution Control Zone 2 of the County, by no later than August 3, 1998; and
 - (6) For all other such sources primarily situated in Air Pollution Control Zone 3 of the County, by no later than February 1, 1999.

§ 505-25. Operating permits (all major and minor permits).

A. Applicability, prohibitions, records. **[Amended 3-31-1998]**

- (1) Applicability. This section shall apply to all sources and air pollution control equipment,

including those subject to § 505-26A of this article, located within the County, except those exempted under Subsection A(2) of this section.

- (2) Exemptions. Sources consisting solely of the following, and modifications consisting solely of the following and complying with § 505-25E(5)(e), are exempted from the obligation to obtain operating permits, or to modify operating permits, under this section or § 505-26 of this article and to obtain installation permits under Article II of this chapter, except if specifically required to be permitted under § 505-26A(1) or modified under § 505-25E or § 505-26F of this chapter:
- (a) All sources and source categories that would be required to obtain a permit solely because they are subject to 40 CFR Part 61, Subpart M - National Emission Standard for Hazardous Air Pollutants for Asbestos, Section 61.145, Standard for Demolition and Renovation;
 - (b) Abrasive blasting of any surface, structure, or part thereof subject to, or expressly exempt from, § 505-48B of this chapter, except for blasting which is part of a process not otherwise exempt from this section;
 - (c) Open burning;
 - (d) Fuel-burning or combustion equipment having a net load rating of 500,000 BTU's per hour or less, if such equipment is fully or partially fired with coal;
 - (e) Fuel-burning or combustion equipment having a net load rating of 2,500,000 BTU's per hour or less, if such equipment is fired only with fuels other than coal, but fully or partially with fuels other than those set forth under Subsection A(2)(f) below;
 - (f) Fuel-burning or combustion equipment having a net load rating of 10,000,000 BTU's per hour or less, if such equipment is fired only with natural gas supplied by a public utility, liquefied petroleum gas, or by commercial virgin fuel oils which are No. 2 or lighter, have a viscosity less than or equal to 5.82 c St, meet all sulfur content requirements for permitted sources, meet all sulfur dioxide emission limit requirements of § 505-33 of this chapter, and contain no reprocessed, recycled, or waste material;
 - (g) Space heaters which heat by direct heat transfer;
 - (h) Domestic heating plants and domestic refuse-burning equipment;
 - (i) All sources that would be required to obtain a permit solely because they are subject to 40 CFR Part 60, Subpart AAA § 60.530 et seq. - Standards of Performance for New Residential Wood Heaters;
 - (j) Laboratory equipment used exclusively for chemical or physical analyses;
 - (k) Motor vehicles and other mobile sources;
 - (l) Other sources and classes of sources, and physical changes to sources, determined to be of minor significance by the DEP pursuant to 25 Pa. Code § 127.14(a)(8) and (9) and (d), which are incorporated by reference, or by the Department in accordance with criteria and guidance published by the DEP. Additions, revisions, or deletions to the list of sources and classes of sources, and physical changes, so determined pursuant to 25 Pa. Code § 127.14(a)(8) and (9) and (d) are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter;

- (m) Any fuel-burning equipment, gas turbine, or internal combustion engine with an annual capacity factor of less than 5%, that operates less than 500 hours in any consecutive twelve-month period, and which is used solely for emergency power generation;
 - (n) Air conditioning or ventilation systems not designed to remove pollutants generated by or released from other sources.
- (3) Prohibitions.
- (a) Prohibition of operating without a permit. Except as otherwise expressly provided under this section, no source subject to this section may be operated, or allowed to operate, after the time a complete operating permit application for such source is required to be submitted under this article, except in compliance with an operating permit issued under this section.
 - (b) Exception. If a timely and complete application for an operating permit or renewal or modification of an operating permit is submitted for a source under this section, and through no fault of the applicant such permit has not yet been issued, the failure of such source to have a permit under this section is not a violation of this chapter until the Department takes final action on the permit application, but only if during the period in which the Department is reviewing the application for such permit:
 - [1] Any and all required installation permits have been issued for such source or equipment pursuant to this chapter, and in the case of a source subject to § 505-45 of this article such installation permits have been subject to public review under § 505-17H or § 505-18 of this chapter and are federally enforceable;
 - [2] The source or equipment is being operated in compliance with § 505-17G above and all terms and conditions contained in any required installation permits;
 - [3] The source or equipment is being operated in compliance with all terms and conditions contained in the operating permits last issued to the source and the fees have been paid as required by § 505-28A of this chapter.
 - [4] The source or equipment is being operated in compliance with all applicable requirements under this chapter;
 - [5] To the extent not inconsistent with Subsection A(3)(b)[2], [3] and [4] above, the source or equipment is being operated in compliance with all terms and conditions contained in the pending operating permit application;
 - [6] The Department has determined that operation of the source or equipment during such period is not likely to prevent the attainment and maintenance of any ambient air quality standard established by this chapter, endanger the public health, safety, or welfare, or otherwise interfere with the purposes of this chapter; and
 - [7] The applicant has not failed to submit by the deadlines specified in writing by the Department any additional information identified as being needed to process the application.
 - (c) Prohibition of operation in violation of conditions. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to fail to comply with any terms or conditions set forth in any permit issued pursuant to this section.

B. Applications.**(1) Generally.**

- (a) The submittal of a complete application under this section shall not affect any other requirements that any source has under this chapter.
- (b) Except for major sources, where a source only requires one permit, multiple permits, each for a portion of the source, may be applied for, but only where the issuance of such multiple permits is determined by the Department to be in the best interest of administratively efficient and effective permitting and regulatory enforcement of the source. Such separate permits can not, however, act to change any of the applicable requirements for the source or any of the applicable emission fees. In addition, all of the separate permits will each require the same administrative fees as the one permit would have required.
- (2) Content requirements. All applications under this section shall provide all of the following information sufficient for the Department to evaluate the subject source, including all activities which are exempted because of size or production rate, and to determine all applicable requirements, including fee amounts, on standard application forms provided by the Department:
 - (a) Identifying information, including operator company name and address, plant name and address if different from the company name, owner's name and agent, and telephone numbers, names, and titles of plant site manager and contact person.
 - (b) A description of the source's processes and products (by Standard Industrial Classification Code) including any associated with each alternative operating scenario identified by the source pursuant to this section.
 - (c) The following emissions-related information for all emissions of regulated air pollutants:
 - [1] The nature and amounts of all emissions of regulated air pollutants emitted from any emissions unit and from all associated mobile sources, including all fugitive emissions in the same manner as stack emissions;
 - [2] Identification and description of all points of emissions in sufficient detail to establish the basis for fees and applicability of requirements of this chapter;
 - [3] Potential and actual emissions rates in tons per year (tpy) and in such units as are necessary to establish compliance consistent with the applicable standard reference test methods;
 - [4] Types and amounts of fuels used, types and amounts of raw materials used, production rates, and operating schedules to the extent it is needed to determine or regulate emissions;
 - [5] Identification and description of air pollution control equipment and compliance monitoring devices or activities;
 - [6] Limitations on source operation affecting emissions or any work practice standards, where applicable, for all regulated air pollutants at the source;
 - [7] Other information required by any applicable requirement, including information

related to any applicable stack height limitations, and all other emission characteristics including all stack or emission point parameters; and

- [8] Calculations on which the information in Subsection B(2)(c)[1] A through [7] of this subsection is based.
- (d) The following air pollution control requirements information:
 - [1] Citation and description of all applicable emissions limitations and operating, monitoring, recordkeeping, reporting, and permitting requirements; and
 - [2] Description of or reference to any applicable test method for determining compliance with each applicable requirement.
- (e) Other specific information that may be necessary to implement and enforce other applicable requirements of this chapter, to determine the applicability of such requirements, or to establish a federally enforceable emissions cap.
- (f) An explanation of any proposed exemptions from otherwise applicable requirements.
- (g) Additional information as determined to be necessary by the Department to define alternative operating scenarios identified by the source pursuant to this section or to define any permit terms and conditions.
- (h) A compliance plan, and schedule if necessary, for all sources that contains all of the following:
 - [1] A description of the compliance status of the source with respect to all applicable requirements;
 - [2] For applicable requirements with which the source is in compliance, a statement that the source will continue to comply with such requirements;
 - [3] For applicable requirements that will become effective during the permit term, a statement that the source will meet such requirements on a timely basis, including a detailed schedule if expressly required by the applicable requirement;
 - [4] For requirements for which the source is not in compliance at the time of permit issuance, a narrative description of how the source will achieve compliance with such requirements;
 - [5] A schedule of compliance for sources that are not in compliance with all applicable requirements at the time of permit issuance:
 - [a] Including a schedule of remedial measures, including an enforceable sequence of actions with milestones, leading to compliance with all applicable requirements for which the source will be in noncompliance at the time of permit issuance; and
 - [b] That is at least as stringent as that contained in any judicial consent decree or administrative order to which the source is subject. Any such schedule of compliance shall be supplemental to, and shall not sanction noncompliance with, the applicable requirements on which it is based; and

- [6] A schedule for submission of certified progress reports no less frequently than every six months for sources required to have a schedule of compliance to remedy a violation.
- (i) Requirements for compliance certification, including the following:
 - [1] A certification of compliance with all applicable requirements by a responsible official consistent with the requirements for such certification under § 505-14 of this chapter;
 - [2] A statement of methods used for determining compliance, including a description of monitoring, recordkeeping, and reporting requirements and test methods; and
 - [3] A schedule for submission of compliance certifications during the permit term, to be submitted at least annually, or more frequently if specified by the underlying applicable requirement or by the Department.
- (3) Annual operating permit application/administration fee and additional annual fees. On the date that an application for an operating permit is submitted under this section, and on or before the last day of the month in which such application was submitted in each year thereafter, while such application is being reviewed and then during the term of any permit subsequently issued, the owner or operator of such source shall submit to the Department, in addition to all applicable emission fees, all applicable administration fees in amounts determined under, and in accordance with, the requirements of § 505-47 of this Part.
- (4) Initial review.
 - (a) Completeness. Unless the Department notifies the applicant of its determination that an application under this section is not complete, or requests additional information from the applicant, within 60 days of receipt of the application, including all applicable fees, such application shall be deemed to be complete.
 - [1] The Department will determine if an application is complete within 60 days from receipt of the application. An application is complete if it contains sufficient information to determine all applicable requirements and begin processing the application, has the applicable sections completed, and has been signed by a responsible official.
 - [2] Except as provided in § 505-24 of this chapter, the Department will approve or disapprove a complete application within 18 months after the date of receipt of a complete application.
 - [3] The submission of a complete application does not affect the requirement to obtain an installation permit as required by this chapter.
 - (b) Supplemental information.
 - [1] The applicant shall provide additional information as necessary to address requirements that become applicable to the source after the date it files a complete application but prior to the Department taking action on the permit application.
 - [2] The applicant shall provide supplementary facts or corrected information upon becoming aware that it has submitted incorrect information or failed to submit

relevant facts.

- [3] Except as otherwise required by this chapter, the Clean Air Act, or the regulations thereunder, the permittee shall submit additional information as necessary to address changes occurring at the source after the date it files a complete application but prior to the Department taking action on the permit application.
 - [4] The applicant shall submit information requested by the Department which is reasonably necessary to evaluate the permit application.
- (5) Public notice of preliminary approval. All permit proceedings under this section, including initial permit issuance, modifications, and renewals, shall include the following procedures for public notice including offering an opportunity for public comment and an opportunity for a hearing on the draft permit:
- (a) Notice shall be given: by publication in a newspaper of general circulation in the area where the source is located or in a state publication designed to give general public notice; and by other means if deemed necessary by the Department to assure adequate notice to the affected public;
 - (b) The notice shall identify the source and its location; the name and address of the permittee; the name and address of the County Health Department Bureau of Environmental Quality; the activity or activities involved in the permit action; the emissions changes involved in any permit modification; the name, address, and telephone number of a Department representative from whom interested persons may obtain additional information, including copies of the draft permit, the application, the compliance plan, monitoring and compliance certifications, all relevant supporting materials, and all other materials available to the Department that are relevant to the permit decision; a brief description of the comment procedures under this Subsection; and a statement of procedures to request a hearing;
 - (c) The Department shall provide at least 30 days for public comment and shall give notice of any public hearing at least 30 days in advance of the hearing, except for minor modification applications which shall only require a twenty-one-day public comment period; and
 - (d) For at least two years following final action on an application, the Department shall keep a record of the commenters and also of the issues raised during the public participation process, and such records shall be available to the public.
- (6) Final action. Unless otherwise specifically provided under this Part, within 18 months of the date of a submittal of a complete application, including all applicable fees, for an operating permit under this section, including applications for permit modifications and renewals, the Department shall take final action on such application, except that for initial permit applications submitted under § 505-24 of this article, the Department shall take final action on such application within 18 months of a complete submittal of an application or within the specific applicable deadline set forth under § 505-24, whichever is later. A failure by the Department to take action in accordance with this subsection constitutes a final action by the Department for the sole purpose of being appealable. The Court of Common Pleas may require that the Department take action on an application without further delay.
- (7) Advance notice. In addition to all other notice requirements under this article, the Department

shall cause to be published a public notice of all permit applications received as soon as is practicable after such applications have been deemed to be complete. At the time of publication of such notice, the applicant shall cause a copy of such notice to be sent to all municipalities in which the source for which the application has been submitted is located as required by Section 1905-A of the Pa. Administrative Code of 1929 (71 P.S. § 510-5).

- (8) Miscellaneous notice requirements. Except as specifically otherwise provided under this chapter, the requirements promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.424, 127.425, and 127.431, and the related definitions at 25 Pa. Code § 121.1, are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.

C. Issuance, standard conditions. **[Amended 3-22-1998]**

- (1) Standards for issuance. The Department shall not issue or reissue any operating permit, or any amended, revised, or modified operating permit, under this section, unless it has:
- (a) Conducted, or has caused to be conducted, such tests, observations, inspections, and the like necessary to evaluate compliance with this section;
 - (b) Received a complete application, including all applicable fees, meeting all applicable requirements of this chapter, and which demonstrates that:
 - [1] The source or air pollution control equipment was constructed or modified in compliance with all terms and conditions contained in all applicable installation permits;
 - [2] The source complies with all applicable emission limitations established by this chapter, or where no such limitations have been established by this chapter, RACT has been applied to existing sources with respect to those pollutants regulated by this chapter;
 - [3] The conditions of the permit provide for and require compliance with all applicable requirements, including but not limited to all applicable requirements of this chapter and all applicable NSPS's, existing and new source MACT standards, Generally Achievable Control Technology (GACT) standards, all regulations promulgated by EPA under § 112(r) of the Clean Air Act, and NESHAP's established by the EPA, and where no applicable MACT emission limitations have been established by EPA after the federal deadline set for such establishment, such determinations of MACT as shall be made on a case-by-case basis by the Department;
 - [4] For new sources, BACT has been applied;
 - [5] Emissions from the source will not endanger the public health, safety, or welfare;
 - [6] Emissions from the source will not prevent the attainment and maintenance of any ambient air quality standard established by § 505-8 of this chapter at any location within the Commonwealth, nor will such emissions interfere with reasonable further progress toward the attainment of the NAAQS's; provided, however, that nothing herein contained shall preclude the applicant from agreeing to a more stringent

emission limitation than established by this chapter or securing enforceable emission reductions from existing sources so that such prevention or interference will not occur;

- [7] For new or reconstructed major sources of hazardous air pollutants or modifications of such sources, the proposed source or modification will comply with all applicable MACT standards, and where no applicable MACT emission limitation has been established by EPA, such determination of MACT as shall be made on either a case-by-case or source category basis by the Department under federal regulations promulgated pursuant to Section 112(g) of the Clean Air Act. A person appealing the establishment of a performance or emission standard by the Department under this Subparagraph shall have the burden to demonstrate that the performance or emission standard does not meet the requirements of Section 112 of the Clean Air Act;
 - [8] The standards established under this section shall be incorporated into the installation permit of each source within the category or subcategory for which a MACT requirement has been established. The Department has the authority to require, in the installation permit, reasonable monitoring, recordkeeping, and reporting requirements for sources which emit hazardous air pollutants;
 - [9] In addition to the requirements of this section, the Department is authorized to require that new sources demonstrate in the installation permit application that the source will reduce or control emissions of air pollutants, including hazardous air pollutants, by using BACT; and
 - [10] For purposes of the regulation of hazardous air pollutants under Section 112 of the Clean Air Act, the term performance standard includes design, equipment, work practice, and operational standards or a combination thereof; and
- (c) Complied with all applicable public notice and participation requirements under this section.
- (2) Prohibition of default issuance. No operating permit under this article, including a permit renewal or modification, shall be issued after a certain time because the Department has failed to take action on the application, nor shall any such permit be issued by default.
 - (3) (Reserved)
 - (4) Noncomplying sources. An operating permit may be issued under this section for an existing source which cannot demonstrate compliance with the applicable emission limitations established by this chapter if such permit, in addition to meeting all other applicable requirements under this article, also expressly includes conditions constituting an enforceable compliance schedule for achieving, demonstrating, and maintaining compliance with such emissions limitations.
 - (5) Term.
 - (a) An operating permit shall remain valid for five years from the date of issuance, or such other shorter period if required by the Clean Air Act, unless revoked pursuant to this chapter, and operating permits issued prior to the effective date of this chapter shall remain valid for the term set forth in § 505-5 of this chapter, provided that the existence of such permit shall not prevent the revocation of such permit pursuant to this chapter, nor shall

such permit operate to relieve in any manner any person from the duty to fully comply with the requirements of this chapter.

- (b) An operating permit for a noncomplying source issued under Subsection C(4) of this section shall be deemed revoked and not valid after the date for compliance established by the compliance schedule required by this section if compliance has not been demonstrated by such date. Noncomplying source operating permits issued prior to the effective date of this chapter shall remain valid for a term as set forth by § 505-5 of this chapter and the provisions of this article, or until such compliance date, whichever is earlier, provided that the existence of such permit shall not prevent revocation of such permit pursuant to this section, nor shall such permit operate to relieve in any manner any person from the duty to fully comply with the requirements of this chapter, except as set forth in the compliance schedule under this section.
- (c) The terms and conditions of an expired permit are automatically continued pending the issuance of a new permit when the permittee has submitted a timely and complete application and paid the fees required by § 505-28A of this chapter and the Department is unable, through no fault of the permittee, to issue or deny a new permit before the expiration of the previous permit.
- (6) Standard general requirements. All permits issued under this section shall include the following provisions:
 - (a) The permittee shall comply with all permit conditions and all other applicable requirements at all times. Any permit noncompliance constitutes a violation of this chapter, the Pa. Air Pollution Control Act, and the federal Clean Air Act, and is grounds for any and all enforcement action, including, but not limited to, permit termination, revocation and reissuance, or modification, and denial of a permit renewal application;
 - (b) It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit;
 - (c) The permit may be modified; revoked, reopened, and reissued; or terminated for cause. The filing of a request by the permittee for a permit modification, revocation and reissuance, or termination, or of a notification of planned changes or anticipated noncompliance does not stay any permit condition. No permit revision shall be required, under any approved economic incentives, marketable permits, emissions trading, and other similar programs or processes, for changes that are provided for in the permit;
 - (d) The permit does not convey any property rights of any sort, or any exclusive privilege;
 - (e) The permittee shall furnish to the Department in writing, within a reasonable time, any information that the Department may request to determine whether cause exists for modifying, revoking and reissuing, or terminating the permit or to determine compliance with the permit. Upon request, the permittee shall also furnish to the Department copies of any records required to be kept by the permit; and
 - (f) Terms and conditions, if the permit applicant requests them, for the establishment of a source-wide emissions cap and the trading of emissions increases and decreases within the permitted source, to the extent that the applicable requirements do not prohibit trading such increases and decreases without a case-by-case approval of each emissions trade.

- (g) Except where precluded under the Clean Air Act or federal regulations promulgated under the Clean Air Act, terms and conditions, if the permit limits the emissions of VOC's or PM-10 but does not limit the emissions of any hazardous air pollutants, that provide that the mixture of hazardous air pollutants which are VOC's or PM-10 can be modified so long as no permit emission limitations are violated. A log of all mixtures and changes shall be kept and reported with the next report required to the Department after each change.
- (7) Standard emission limit requirements. All permits issued under this section shall include the following elements with respect to emission limitations and standards, including those operational requirements and limitations that assure compliance with all applicable requirements at the time of permit issuance:
 - (a) Specification and reference to the origin of and authority for each term or condition and identification of any differences in form between permit terms and conditions and the applicable requirements on which the terms or conditions are based; and
 - (b) For permits containing a determination that an alternative emission limit at a source is equivalent to or more stringent than the applicable regulatory limit, provisions to ensure that such alternative emission limit has been, and can be, demonstrated to be quantifiable, enforceable, and based on replicable procedures.
- (8) Standard compliance requirements. All permits issued under this section shall include the following elements with respect to compliance:
 - (a) Consistent with the other requirements of this chapter, compliance certification, testing, monitoring, reporting, and recordkeeping requirements sufficient to assure compliance with the terms and conditions of the permit. Any document, including reports, required by a permit under this section shall contain a certification by a responsible official that meets the requirements of § 94-14 of this chapter.
 - (b) Requirements that, upon presentation of credentials and other documents as may be required by law, the permittee shall allow authorized Department and other federal, state, County, and local government representatives to:
 - [1] Enter upon the permittee's premises where a permitted source is located or emissions-related activity is conducted, or where records are or should be kept under the conditions of the permit;
 - [2] Have access to and copy and remove, at reasonable times, any records that must be kept under the conditions of the permit;
 - [3] Inspect at reasonable times any facilities, equipment (including monitoring and air pollution control equipment), practices, or operations regulated or required under the permit; and
 - [4] As authorized by either this chapter or the Clean Air Act, sample or monitor at reasonable times substances or parameters for the purpose of assuring compliance with the permit or other applicable requirements.
 - (c) A schedule of compliance consistent with the requirements of this chapter.
 - (d) Progress reports consistent with an applicable schedule of compliance and the requirements of this chapter to be submitted at least semiannually, or at a more frequent

period if specified in the permit by the Department or in other applicable requirements. Such progress reports shall contain the following:

- [1] Dates for achieving the activities, milestones, or compliance required in the schedule of compliance, and dates when such activities, milestones or compliance were achieved; and
 - [2] An explanation of why any dates in the schedule of compliance were not or will not be met, and any preventive or corrective measures adopted.
- (e) Requirements for compliance certification with terms and conditions contained in the permit, including emission limitations, standards, or work practices. Permits shall include each of the following:
- [1] The frequency (annually or such more frequent periods as specified in the permit by the Department or in other applicable requirements) of submissions of compliance certifications;
 - [2] In accordance with the requirements of this chapter, a means for monitoring the compliance of the source with its emissions limitations, standards, and work practices;
 - [3] A requirement that the compliance certification include the following:
 - [a] The identification of each term or condition of the permit that is the basis of the certification;
 - [b] The compliance status;
 - [c] Whether any noncompliance was continuous or intermittent;
 - [d] The method(s) used for determining the compliance status of the source, currently and over the reporting period consistent with the provisions of this chapter; and
 - [e] Such other facts as the Department may require to determine the compliance status of the source; and
 - [4] Such additional requirements as may be determined to be necessary by the Department.
- (f) Such other provisions as the Department may deem necessary to ensure continued compliance with the requirements of this chapter, including, but not limited to, terms and conditions regarding periodic reports, ambient or source monitoring, and operating and maintenance requirements.
- (9) Standard monitoring requirements. All permits issued under this section shall include the following elements with respect to monitoring:
- (a) Identification and citation of all emissions monitoring and analysis procedures or test methods required under all applicable requirements;
 - (b) Where an applicable requirement does not require periodic testing or instrumental or noninstrumental monitoring, including recordkeeping designed to serve as monitoring,

periodic monitoring sufficient to yield reliable data from the relevant time period that are representative of the source's compliance with the permit, as required to be reported under this Part. Such monitoring requirements shall assure use of terms, test methods, units, averaging periods, and other statistical conventions consistent with the applicable requirement. Recordkeeping provisions may be sufficient to meet the requirements of this subparagraph; and

- (c) As necessary, requirements concerning the use, maintenance, and, where appropriate, installation of monitoring equipment or methods.
- (10) Standard recordkeeping requirements. All permits issued under this section shall include all applicable recordkeeping requirements and require, where applicable, the following:
- (a) Records of required monitoring information that include the following:
 - [1] The date, place as defined in the permit, and time of sampling or measurements;
 - [2] The date(s) analyses were performed;
 - [3] The company or entity that performed the analyses;
 - [4] The analytical techniques or methods used;
 - [5] The results of such analyses; and
 - [6] The operating parameters existing at the time of sampling or measurement; and
 - (b) Retention of records of all required monitoring data and support information for a period of at least five years from the date of the monitoring sample, measurement, report, or application. Support information includes all calibration and maintenance records and all original strip-chart recordings for continuous monitoring instrumentation, and copies of all reports required by the permit.
- (11) Standard reporting requirements. All permits issued under this section shall include all applicable reporting requirements and require the following:
- (a) Submittal of reports of any required monitoring at least every 6 months. All instances of deviations from permit requirements must be clearly identified in such reports. All required reports must be certified by a responsible official as required by § 505-14 of this chapter; and
 - (b) Prompt reporting of deviations from permit requirements, including those attributable to upset conditions as defined in the permit and § 505-74C of this chapter, the probable cause of such deviations, and any corrective actions or preventive measures taken. The Department shall define "prompt" on a case-by-case basis in relation to the degree and type of deviation likely to occur and the applicable requirements.
- (12) Standard severability requirement. All permits issued under this section shall include a severability clause to ensure the continued validity of the various permit requirements in the event of a successful challenge to any portions of the permit.
- (13) Standard fee requirement. All permits issued under this section shall include a provision to ensure that all applicable fees under this chapter are paid to the Department in accordance with the requirements of this chapter.

- (14) Standard alternative operating scenarios requirements. All permits issued under this section shall include terms and conditions for reasonably anticipated operating scenarios identified by the source in its application as approved by the Department. Such terms and conditions:
- (a) Shall require the source, contemporaneously with making a change from one operating scenario to another, to record in a log at the permitted source a record of the new scenario under which it is operating, and may require the source to notify the Department at the time it implements the change; and
 - (b) Must ensure that the terms and conditions of each such alternative scenario meet all applicable requirements under this chapter.

D. Expiration, renewals, reactivations.

- (1) Expiration. Permit expiration terminates the source's right to operate unless a timely and complete renewal application has been submitted consistent with the requirements of this section.
- (2) Renewals.
 - (a) The owner or operator of a source permitted under this article shall submit to the Department an application for permit renewal at least six months prior to the date of permit expiration, but no earlier than 18 months prior to the date of permit expiration.
 - (b) Permits being renewed are subject to the same fees, standards, and requirements that apply to an initial permit issuance.
- (3) Delay in department action. If a timely and complete application for an operating permit renewal is submitted, consistent with this section, but the County has failed to issue or deny the renewal permit before the end of the term of the previous permit, then:
 - (a) The permit shall not expire until the renewal permit has been issued or denied; and
 - (b) All the terms and conditions of the permit shall remain in effect until the renewal permit has been issued or denied.
- (4) Existing source reactivations. During the term of a permit under this article, a permittee shall not reactivate any source under the permit that has been out of operation or production for a period of one year or more unless the permittee has submitted a reactivation plan request to, and received a written reactivation plan approval from, the Department.
 - (a) A reactivation plan request may only be submitted during the term of the applicable operating permit and must be either:
 - [1] If the source is reactivated within five years after deactivation, accompanied by the submission to the Department of a Reactivation Plan Request fee in the amount of 25% of the annual application/permit administration fees required for said permit by this article, but not less than \$50 per permit; or
 - [2] If the source is reactivated more than five years after deactivation, accompanied by the submission to the Department of the applicable installation permit application fee required by § 505-23B of this chapter; or
 - [3] Submitted as part of another application for the same source under Article II or

Article III of this chapter.

- (b) A reactivation plan may only be approved during the term of the applicable operating permit and shall describe the measures that will be taken to ensure the source will be reactivated in compliance with all applicable permit requirements.
 - (c) Unless submitted under Subsection D(4)(a)[2] above, the Department shall take action on any reactivation plan request within 30 days of receipt of a complete written request, with the applicable fees, unless the Department determines that additional time is necessary based on the size or complexity of the reactivated source.
 - (d) A reactivation plan approval shall automatically expire upon the expiration of the operating permit during the term of which such approval was issued, or 10 years after actual deactivation, whichever comes first.
 - (e) The reactivation of a source that has been deactivated for more than 10 years shall constitute a new source under this chapter requiring the issuance of a new source installation permit under Article II of this chapter prior to reactivation.
 - (f) Upon proper application, operating permits may be renewed for a source that is deactivated, so long as such source is in compliance with all applicable provisions of this section. Such renewal shall not constitute authorization to reactivate.
 - (g) All sources deactivated for more than one year shall constitute new sources upon reactivation unless such source:
 - [1] By no later than one year following actual deactivation, submits a maintenance plan for the source to be implemented during the period of deactivation and continues to fully comply with all requirements of such plan during deactivation;
 - [2] Is in compliance with all other applicable provisions of this subsection.
 - (h) Any reactivation plan issued for a source which has been deactivated for more than five years shall require the implementation of BACT at such source prior to actual reactivation.
 - (i) Deactivated sources as of the effective date of this section shall comply with Subsection D(4)(g)[1] of this subsection by no later than one year after such effective date.
- E. Revisions, amendments, modifications.
- (1) Revisions generally.
 - (a) Operational flexibility. The owner or operator of a source permitted under this article shall not make any changes at such source, including trades of increases and decreases in emissions within the permitted source, without first obtaining a permit revision for such changes under this section, or § 505-45 of this article, unless:
 - [1] The changes do not require an installation permit under § 505-17 of this chapter or violate the terms of an operating permit or an installation permit;
 - [2] The permit specifically allows for changes that do not cause specific emissions increases greater than a de minimis emission increase, and the changes do not exceed such emissions increase allowed under the permit, in accordance with Subsection E(5) below;

- [3] The changes do not violate major source applicable requirements or contravene federally enforceable permit terms and conditions that are monitoring (including test methods), recordkeeping, reporting, or compliance certification requirements; and
- [4] By no later than seven days prior to the date on which the implementation of the proposed change is commenced, a written notification is submitted to the Department, for attachment to the Department's copy of the relevant permit, which includes:
 - [a] A brief description of the change within the permitted source;
 - [b] The date on which the change will occur;
 - [c] The pollutants emitted; and
 - [d] Any change in emissions.
- (b) Applications for permit revisions need only supply the information required under § 505-25B of this chapter, and § 505-26B if applicable, that is related to the proposed change.
- (c) Applications for permit revisions must be accompanied by the submission to the Department of the appropriate application fees.
- (d) Upon written request or upon its own motion, in accordance with the requirements of this article, the Department may revise a permit previously issued to correct clerical errors.
- (2) Administrative permit amendment procedures. An administrative permit amendment may be made by the Department consistent with the following:
 - (a) An administrative permit amendment is a permit revision that only:
 - [1] Corrects typographical errors;
 - [2] Identifies a change in the name, address, or phone number of any person identified in the permit, or provides a similar minor administrative change at the source;
 - [3] Requires more frequent monitoring or reporting by the permittee;
 - [4] Allows for a change in ownership or operational control of a source where the Department determines that no other change in the permit is necessary, provided that a written agreement containing a specific date for transfer of permit responsibility, coverage, and liability between the current and new permittee and a compliance review form has been submitted to, and the permit transfer has been approved by, the Department; or
 - [5] Except where precluded by the Clean Air Act or the regulations under the Clean Air Act, incorporates into a Part C permit the requirements from installation permits, provided that such installation permit has complied with the requirements of § 505-17 and either Subsection E(8) thereof or § 505-18 of this chapter.
 - (b) An administrative permit amendment may be made by the Department consistent with the following:
 - [1] The Department will take no more than 60 days from receipt of a request from the

owner or operator of a source for an administrative permit amendment to the Department with a copy to the EPA to take final action on the request, and may incorporate the changes without providing notice to the public or affected states except for permit revisions made under Subsection E(2)(a)[5] above.

[2] The Department will submit a copy of the revised permit to the Administrator of the EPA.

- (c) Applications for administrative permit amendments must be accompanied by the submission to the Department of administrative permit amendment application fees in the amount of 25% of the annual application/permit administration fees required for said permits by this article, but not less than \$50 per permit.
 - (d) Unless precluded by the Clean Air Act or the regulations thereunder, the Department will, upon taking final action granting a request for an administrative permit amendment, allow coverage by any existing permit shield for administrative permit amendments which meet the relevant requirements of this chapter.
 - (e) Notwithstanding the above provisions, administrative permit amendments for purposes of the acid rain portion of a permit shall be governed by regulations promulgated under title IV of the Clean Air Act.
 - (f) The Department will take final action on the administrative amendment and publish public notice of the final action.
 - (g) Administrative amendments are not authorized for any amendment precluded by the Clean Air Act or the regulations thereunder from being processed as an administrative amendment.
- (3) Minor permit modification procedures.
- (a) Sources may make minor permit modifications on an expedited basis under this subsection.
 - (b) The owner or operator of the source shall submit to the Department, on a form provided by or approved by the Department, a brief description of the change, including the emissions resulting from the change, the date on which the change is to occur, the proposed language for revising the operating permit conditions proposed to be changed, and certification by a responsible official that the proposed modifications meet the criteria for use of minor permit modification procedures.
 - (c) At the time of submission of the application for a minor permit modification, the owner or operator shall notify the municipality where the source is located under Section 1905-A of the Pa. Administrative Code of 1929 (71 PS § 510-5), all affected states, and the EPA, and shall also publish a notice in a local newspaper of general circulation briefly describing the change including a change in actual emissions, of any air contaminant that would occur as a result of the change.
 - (d) The notice required by Subsection E(3)(c) above shall clearly indicate that a person may comment to the Department and the source concerning the proposed change within 21 days from the date of submission of the proposed minor permit modification to the Department and the EPA.

- (e) The Department will have 21 days in the absence of receipt of public comments and 28 days if public comments are received from receipt of the application for a minor permit modification to seek additional information or to disapprove the change.
- (f) The source may make the change subject to subsequent review and final action by the Department and the EPA, prior to such final action, but only:
 - [1] After the 21st day following submission under Subsection E(3)(b) above if the Department has received no public objection and does not otherwise object to the change; or
 - [2] After the 28th day following submission under Subsection E(3)(b) above if the Department has received a public objection within 21 days of the submission which the Department determines is not bona fide and the Department does not disapprove the proposed change or require it to be processed as an installation permit or significant modification.
- (g) Unless precluded by the Clean Air Act or the regulations thereunder, any existing permit shield shall extend to a change authorized by this subsection.
- (h) The Department will take final action on the proposed change within 60 days of receipt of the complete application for the minor permit modification and, after taking final action, will publish public notice of the action.
- (i) Approval of a minor permit modification for a physical change of minor significance authorized under 25 Pa. Code § 127.14(c)(1) (relating to exemptions) is also approval of the request for minor significance determination for the physical change.
- (j) For purposes of this subsection, a bona fide public objection is one that provides factual or other relevant information that the change does not meet the requirements for a minor modification or that objects to the change because of its impact on air quality.
- (4) Significant modification procedures - requirements. Significant permit modifications shall meet all requirements of the applicable sections of this article, including those for applications, fees, public participation, review by affected states, and review by EPA, as they apply to permit issuance and permit renewal. The approval of a significant permit modification, if the entire permit has been reopened for review, shall commence a new full five-year permit term. The Department shall take final action on all such permits within nine months following receipt of a complete application.
- (5) De minimis emission increases.
 - (a) The Department may allow, as a condition of an operating permit, de minimis emission increases from a new or existing source up to the amounts authorized in this subsection.
 - (b) A de minimis increase may not occur at a source if it either:
 - [1] Increases the emissions of a pollutant regulated under Section 112 of the Clean Air Act (42 USCA. § 7412) except as authorized in Subsection E(5)(d)[4] and [5] below;
 - [2] Subjects the source to the permit requirements of §§ 505-18, 505-19 or 505-20 of this chapter (relating to prevention of significant deterioration of air quality and major new source and major modification review); or

- [3] Violates an applicable requirement of this chapter, the state Air Pollution Control Act, the Clean Air Act, or the regulations promulgated under the Air Pollution Control Act or the Clean Air Act.
- (c) The permittee shall provide the Department with seven days' prior written notice of any de minimis emission increase. The notice shall identify and describe the pollutants that will be emitted as a result of the de minimis emissions increase and provide emission rates in tons/year and in terms necessary to establish compliance consistent with any applicable requirement. The Department may disapprove or condition the de minimis emission increase at any time.
- (d) Except as provided in Subsection E(5)(e) below, the maximum de minimis emission rate increases, as measured in tons/year, that may be authorized in the permit during the term of the permit are:
 - [1] Four tons of carbon monoxide from an emissions unit during the term of the permit and 20 tons of carbon monoxide at the source during the term of the permit;
 - [2] One ton of NOX from an emissions unit during the term of the permit and five tons of NOX at the source during the term of the permit;
 - [3] One and six-tenths tons of oxides of sulfur from an emissions unit during the term of the permit and 8.0 tons of oxides of sulfur at the source during the term of the permit;
 - [4] Six-tenths of a ton of PM10 from an emissions unit during the term of the permit and 3.0 tons of PM10 at the source during the term of the permit. This shall include emissions of a pollutant regulated under Section 112 of the Clean Air Act unless precluded by the Clean Air Act, the regulations thereunder, or this chapter; and
 - [5] One ton of VOC's from an emissions unit during the term of the permit and five tons of VOC's at the source during the term of the permit. This shall include emissions of a pollutant regulated under Section 112 of the Clean Air Act unless precluded by the Clean Air Act, the regulations thereunder, or this chapter.
- (e) The Department may allow, as a condition of an operating permit, installation of the minor sources set forth under § 505-25A(2) of this chapter.
- (f) Unless precluded by the Clean Air Act or the regulations thereunder, any existing permit shield shall extend to changes made under this subsection.
- (g) Emissions authorized under this subsection shall be included in the monitoring, recordkeeping, and reporting requirements of the source.
- (h) De minimis emission threshold levels cannot be met by offsetting emission increases with emission decreases at the same emissions unit.
- (i) The Department will maintain a list of de minimis increases authorized by this Subsection in the permit file for the source and shall publish a public list of the de minimis increases within 60 days of the receipt of notice for the source.

F. Reopenings, revocations.

- (1) Reopenings for cause.

- (a) Each issued permit shall include the provisions under this paragraph specifying the conditions under which the permit will be reopened prior to the expiration of the permit. A permit shall be reopened and reissued under any of the following circumstances:
 - [1] Requirements under the Clean Air Act become applicable to the source. Such a reopening shall be completed not later than 18 months after promulgation of the applicable requirement. No such reopening is required if the effective date of the requirement is later than the date on which the permit is due to expire, unless the original permit or any of its terms and conditions has been extended solely due to the failure of the Department to act on a permit renewal application in a timely fashion.
 - [2] The Department determines that the permit contains a material mistake or that inaccurate statements were made in establishing the emissions standards or other terms or conditions of the permit.
 - [3] The Department determines that the permit must be reissued or revoked to assure compliance with the applicable requirements.
- (b) Proceedings to reopen and reissue a permit shall follow the same procedures as would apply if the source had applied to make the necessary permit revisions, but shall affect only those parts of the permit for which cause to reopen exists. Such reopening shall be made as expeditiously as practicable.
- (c) Reopenings under this subsection shall not be initiated before a notice of such intent is provided to the source by the Department at least 30 days in advance of the date that the permit is to be reopened.
- (2) Revocation notice. If the Department revokes any permit previously issued under this section, it shall so advise the applicant in writing, summarizing the reasons for the revocation.
- (3) Revocation criteria. The Department may, at any time, revoke an operating permit if it finds that:
 - (a) Any statement made in the permit application is not true, or that material information has not been disclosed in the application;
 - (b) The source is not being operated in the manner indicated by the permit;
 - (c) Air pollution control equipment installed at the source has not been maintained in good working condition;
 - (d) Any term or condition of the permit has not been complied with;
 - (e) Any applicable requirement of this chapter has not been complied with;
 - (f) It has been denied lawful access to the premises or records, charts, instruments, and the like as authorized by Article IX of this chapter;
 - (g) Emissions from the source are endangering the public health, safety or welfare;
 - (h) Emissions from the source are preventing the attainment and maintenance of the ambient air quality standards established by this chapter at any location within the Commonwealth, or such emissions are interfering with reasonable further progress toward the attainment of the NAAQS's;

- (i) Three months after the EPA has determined that a source is a major source and found that, pursuant to Subsection 126(b) of the Clean Air Act, that emissions from the source are preventing the attainment or maintenance by any other state of any primary or secondary NAAQS or that such emissions are interfering with any measure required to be included in the applicable implementation plan for any other state under Part C of the Clean Air Act relating to prevention of significant deterioration of air quality or protection of visibility, except if continued operation of the source has been permitted by the EPA pursuant to Subsection 126(c) of the Clean Air Act. Nothing herein shall prevent the reissuance of an operating permit upon a demonstration that the conditions leading to such finding by EPA have been corrected; or
- (j) Any requirement of an enforceable compliance schedule required under a permit for a noncomplying source issued pursuant to this section has been violated.

§ 505-26. Additional requirements for major permits.

A. Applicability, prohibitions, records.

- (1) Applicability. Except as provided under Subsection A(2) of this section and § 505-25A(2)(a) and (i) of this article, this section applies to all of the following in the County:
 - (a) Any major source, as defined under Article I of this chapter;
 - (b) Any source, including an area source (as defined under Article I of this chapter), subject to a standard, limitation, or other requirement promulgated under Section 111 of the Clean Air Act;
 - (c) Any source, including an area source, subject to a standard or other requirement promulgated under Section 112 of the Clean Air Act, except that a source is not required to obtain an operating permit under this section solely because it is subject to regulations or requirements promulgated under Section 112(r) of the Clean Air Act;
 - (d) Any affected source, as defined under Article I of this chapter;
 - (e) Any source in a source category so designated by the Administrator pursuant to the Clean Air Act as a Part 70 Source under 40 CFR Part 70; and
 - (f) Any source listed in this subsection that is exempt under Subsection A(2)(a) or (b) of this section from the requirement to obtain a permit but nevertheless applies for a permit under this section.
- (2) Exemptions.
 - (a) All sources listed in Subsection A(1) of this section that consist solely of sources that are not major sources, affected sources, or solid waste incineration units required to obtain a permit pursuant to Subsection 129(e) of the Clean Air Act, unless otherwise provided under applicable requirements, are exempted from the obligation to obtain an operating permit under this section until such time as the Administrator completes a rulemaking to determine how the program should be structured for non-major sources and the appropriateness of any permanent exemptions in addition to those provided for in § 505-25A(2)(a) and (i) of this article.
 - (b) In the case of sources which consist solely of non-major sources subject to a standard or

other requirement promulgated by the Administrator after July 21, 1992, under either Section 111 or Section 112 of the Clean Air Act, unless otherwise provided under such standard or requirement, all such applicable sources shall be exempt from any requirement to obtain an operating permit under this section at the time that the new standard is promulgated until such time as the Administrator completes a rulemaking to determine how the program should be structured for non-major sources and the appropriateness of any permanent exemptions in addition to those provided for in § 505-25A(2)(a) and (i) of this article.

- (c) Research and development. If demonstrated to constitute insignificant activities, emissions units at a research and development facility that are located at a source subject to this section shall not be required to be included as part of such source for permitting purposes under this section. The emissions from such research and development emissions units shall be included as emissions from the source for purposes of determining the applicability of this section.
- (d) Synthetic minors. A source, other than an affected source, or an emission unit or pollutant at such source, otherwise subject to this section under Subsection A(1) above shall not be subject to this section if:

- [1] A permit application for such source has been properly submitted under Subsection A(2)(a) above;
- [2] A permit is subsequently issued for such source under Subsection A(2)(a) above;
- [3] Because of enforceable conditions included in the permit application and permit above, the source is not subject to this section under Subsection A(1) above;
- [4] At all times during the review of the application and the term of the permit the source is in compliance with the enforceable conditions above; and
- [5] Until January 25, 1997, the source expressly certifies that it will comply with the enforceable conditions as a restriction on its potential to emit and that the enforceable conditions are enforceable by the EPA and citizens under the Clean Air Act.

B. Applications.

(1) Generally.

- (a) If required by federal regulation or a federally approved provision under this chapter, within 30 days after receipt of a complete application, with the appropriate fee, for an operating permit under this section, including any permit modification, the Department shall provide a copy of such submission to the Administrator.
- (b) Applications shall use the nationally-standardized forms for acid rain portions of permit applications and compliance plans, as required by regulations promulgated under Title IV of the Clean Air Act.
- (c) Notwithstanding the requirements of Article II of this chapter, all applications submitted under this section shall include an original and four copies of the application and all attachments.

(2) Required content. All applications under this section shall provide all of the following

information sufficient for the Department to evaluate the subject source, including all activities which are exempted because of size or production rate, and to determine all major source applicable requirements, including fee amounts, on standard application forms provided by the Department:

- (a) All specific information that may be necessary to implement and enforce other major source applicable requirements of the Clean Air Act, federal regulations promulgated under the Clean Air Act, or this chapter, or to determine the applicability of such requirements.
 - (b) The compliance plan content requirements specified in this section and § 505-25 of this article which shall apply to, and be included in, the acid rain portion of a compliance plan for an affected source, except as specifically superseded by regulations promulgated under Title IV of the Clean Air Act or this chapter with regard to the schedule and method(s) the source will use to achieve compliance with the acid rain emissions limitations.
 - (c) Requirements for compliance certification under § 505-25B(2)(i), including a statement indicating the source's compliance status with any applicable enhanced monitoring and compliance certification requirements of the Clean Air Act.
- (3) Public notice of preliminary approval. Except for administrative permit amendments, all permit proceedings under this section, including initial permit issuance, modifications, and renewals, shall include the following procedures for public notice including offering an opportunity for public comment and an opportunity for a hearing on the draft permit:
- (a) Notice shall be given by the Department: by publication in a newspaper of general circulation in the area where the source is located or in a state publication designed to give general public notice; to persons on a mailing list developed by the Department, including residents of the County who specifically request in writing to be on the list; to all affected states; to the Administrator; and by other means if deemed necessary by the Department to assure adequate notice to the affected public. Such public notice shall indicate that such notice is also being made to the Administrator. Notices to the Administrator and affected states shall be issued on or before the date of publication of the required public notice;
 - (b) Unless exempted by federal regulation or a federally approved provision under this chapter, or resubmittal requirements of Subsection B(5), the Department shall also provide to the Administrator a copy of the draft permit, and such draft permit shall constitute a proposed permit for purposes of commencing the Administrator's forty-five-day review period; **[Amended 8-27-2013 by Ord. No. 22-13]**
 - (c) The Department shall provide a statement that sets forth the legal and factual basis for the draft permit conditions, including references to the applicable statutory or regulatory provisions. The Department shall send a copy of this statement to EPA and to any other person who submits to the Department in writing an express request for a copy of such statement for a specific permit;
 - (d) The Department shall keep a record of the commenters and also of the issues raised during the public participation process, to determine whether a citizen petition may be granted, and such records shall be available to the public.
- (4) Proposed final action.

- (a) Except as provided under § 505-24 of this article, notwithstanding the other provisions of this Subsection, any complete permit application containing an early reduction demonstration under Paragraph 112(i)(5) of the Clean Air Act shall be acted on within nine months of receipt of the complete application.
- (b) Unless exempted by federal regulation or a federally approved provision under this chapter, the Department shall provide to the Administrator a copy of each proposed operating permit under this section. As part of the submittal of the proposed permit to the Administrator, or as soon as possible after the submittal for minor permit modification procedures allowed under this article, the Department shall notify the Administrator and any affected state in writing of any refusal by the Department to accept all recommendations for the proposed permit that the affected state submitted during the public review period. The notice shall include the Department's reasons for not accepting any such recommendation.
- (5) Resubmittal to EPA. The Department shall resubmit to the Administrator any proposed permit to which substantive comments or material substantive changes have been made as a result of comments received by the Department. This resubmittal shall commence the Administrator's forty-five-day review period. **[Amended 8-27-2013 by Ord. No. 22-13]**

C. Issuance, standard conditions.

- (1) Action on application. A permit, permit modification, or renewal shall be issued only if all of the following conditions have been met:
 - (a) Section 505-25C of this chapter has been complied with;
 - (b) All public and state and federal agency notice and participation requirements under this article have been complied with; and
 - (c) The Administrator has not objected in writing to issuance of the permit within 45 days of receipt of the proposed permit and all necessary supporting information.
- (2) EPA objection. If the Administrator objects in writing to issuance of the permit within 45 days of receipt of the proposed permit and all necessary supporting information, in accordance with 40 CFR 70.8(c), the Department shall, within 90 days after the date of such an objection, propose a revised permit in response to the objection in accordance with the requirements for proposal of such a permit under this article.
- (3) Public petitions to the administrator.
 - (a) If the Administrator does not object to the issuance of a permit in writing under Subsection C(2) of this section, any person may petition the Administrator within 60 days after the expiration of the Administrator's forty-five-day review period to make such objection, except that any such petition shall be based only on objections to the permit that were raised by the petitioner with reasonable specificity during the public comment period provided for under this article, unless the petitioner demonstrates that it was impracticable to raise such objections within such period, or unless the grounds for such objection arose after such period.
 - (b) If the Administrator objects to a permit as a result of a petition filed under this subsection, the Department shall not issue the permit until EPA's objection has been resolved, except that a petition for review does not stay the effectiveness of a permit or its requirements if

the permit was issued after the end of the forty-five-day review period and prior to an EPA objection. If the Department has issued a permit prior to receipt of an EPA objection under this subsection, the Department shall thereafter issue only a revised permit that satisfies EPA's objection, but the source shall not be in violation of the requirement to have submitted a timely and complete application.

- (4) County requirements. The Department shall specifically designate as not being federally enforceable under the Clean Air Act any terms and conditions included in each permit issued under this section that are not required under either the Clean Air Act or other major source applicable requirements.
- (5) Permit shield.
 - (a) Except as otherwise provided in this chapter, the Department shall expressly include in a permit, upon specific written request in an application, a provision stating that compliance with the conditions of the permit shall be deemed compliance with all major source applicable requirements as of the date of permit issuance, provided that:
 - [1] Such major source applicable requirements are included and are specifically identified in the permit; or
 - [2] The Department, in acting on the permit application or revision, determines in writing that other requirements specifically identified are not applicable to the source, and the permit includes the determination or a concise summary thereof.
 - (b) A permit that does not expressly state that a permit shield exists shall not provide such a shield.
 - (c) Nothing in this subsection or in any permit shall alter or affect the following:
 - [1] The provisions of Section 303 of the Clean Air Act and the provisions of this chapter regarding emergency orders, including the authority of the Administrator and the Department under such provisions;
 - [2] The liability of any person who owns, operates, or allows to be operated, a source in violation of any major source applicable requirements prior to or at the time of permit issuance;
 - [3] The applicable requirements of the acid rain program, consistent with Subsection 408(a) of the Clean Air Act; or
 - [4] The ability of EPA or the County to obtain information from a source pursuant to Section 114 of the Clean Air Act, the provisions of this chapter, and state law.
- (6) Coverage. The Department shall include in any operating permit issued under this section all major source applicable requirements for all relevant emissions units in the major source.
- (7) Standard general requirements. All permits issued under this section shall include the following provision: The permittee shall comply with all permit conditions at all times. Any permit noncompliance constitutes a violation of the Clean Air Act, the Air Pollution Control Act, and this chapter and is grounds for any and all enforcement action, including, but not limited to, permit termination, revocation and reissuance, or modification, and denial of a permit renewal application.

- (8) Standard emission limit requirements. All permits issued under this section for an affected source shall include the following provision with respect to emission limitations and standards, including those operational requirements and limitations that assure compliance with all major source applicable requirements at the time of permit issuance: Where a major source applicable requirement of the Clean Air Act is more stringent than an applicable requirement of regulations promulgated under title IV of the Act, both provisions are incorporated into the permit and are enforceable by the Administrator.
- (9) Standard compliance requirements. All permits issued under this section shall include all requirements for compliance certification with all terms and conditions contained in the permit, including emission limitations, standards, or work practices. Permits shall include each of the following:
- (a) A requirement that all compliance certifications be submitted to the Administrator as well as to the Department; and
 - (b) Such additional requirements as may be determined to be necessary by the Department, including any specified pursuant to Sections 114(a)(3) and 504(b) of the Clean Air Act regarding monitoring.
- (10) Standard acid deposition control requirements.
- (a) This subsection describes the permit program for acid deposition control in accordance with Titles IV and V of the Clean Air Act (42 USCA. §§ 7641 and 7642 and 7661-7661f). The provisions of this subsection shall be interpreted in a manner consistent with the Clean Air Act and the regulations thereunder.
 - (b) The owner or operator or the designated representative of each affected source under Section 405 of the Clean Air Act (42 USCA. § 7651d) shall submit a permit application and compliance plan for the affected source to the Department within 120 days from notice by the Department to submit an application but no later than December 29, 1995, for sulfur dioxide, and no later than December 31, 1997, for NO_x, that meets the requirements of this chapter, the Clean Air Act and the regulations thereunder.
 - (c) In the case of affected sources for which an application and plan are timely received, the permit application and the compliance plan, including amendments thereto, shall be binding on the owner, operator, and the designated representative of the owner or operator and shall be enforceable as a permit for purposes of this subsection until a permit is issued by the Department.
 - (d) A permit issued under this subsection shall require the source to achieve compliance as soon as possible but no later than the date required by the Clean Air Act or the regulations thereunder for the source.
 - (e) At any time after the submission of a permit application and compliance plan, the applicant may submit a revised application and compliance plan. In considering a permit application and compliance plan under this section, the Department will coordinate with the Pennsylvania Public Utility Commission consistent with the requirements established by the EPA.
 - (f) In addition to the other requirements of this chapter, permits issued under this subsection shall prohibit the following:

- [1] Annual emissions of sulfur dioxide in excess of the number of allowances to emit sulfur dioxide that the owner or operator or designated representative holds for the unit.
 - [2] Exceeding applicable emission rates or standards, including ambient air quality standards.
 - [3] The use of an allowance prior to the year for which it is allocated.
 - [4] Contravention of other provisions of the permit.
- (g) Each permit issued to a source under Title IV of the Clean Air Act shall contain a condition prohibiting emissions exceeding any allowances that the source lawfully holds under Title IV of the Clean Air Act or the regulations thereunder.
- [1] A permit revision will not be required for increases in emissions that are authorized by allowances acquired pursuant to the acid rain program, if the increases do not require a permit revision under another applicable requirement.
 - [2] A limit will not be placed on the number of allowances held by the source. The source may not, however, use allowances as a defense to noncompliance with another applicable requirement.
 - [3] An allowance shall be accounted for according to the procedures established in regulations promulgated under Title IV of the Clean Air Act.
- (11) General permits and temporary sources at multiple locations.
- (a) Except as otherwise provided under this subsection, the requirements for general permits and operating permits for sources operating at multiple temporary locations promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act at 25 Pa. Code §§ 127.514 and 127.515 are hereby incorporated, by reference, into this chapter. Additions, revisions, and deletions to such requirements adopted by the EQB and the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (b) Under the regulations incorporated by reference under this subsection:
- [1] "Plan approval" shall mean "installation permit";
 - [2] "Department" shall mean "Department" as defined under this chapter;
 - [3] "Title V permit" shall mean an operating permit issued under this section;
 - [4] "Title V facility" shall mean "major source";
 - [5] "Section 127.516" shall mean Subsection C(5) above;
 - [6] "Subchapter H" shall mean § 505-16J and L of this chapter; and
 - [7] "Facility" shall mean "source."
- (12) Standard NO_x control requirements. All permits issued under this Part for an NO_x affected source shall include a condition requiring compliance with § 505-52A. The NATS compliance

account number and the authorized account representative shall be listed on the permit application.

D. Expiration, renewals.

- (1) Renewals. Permits being renewed are subject to the same fees and procedural requirements, including those for public participation and affected state and EPA review, that apply to initial permit issuance.
- (2) Delay in department action. If a timely and complete application for an operating permit renewal is submitted, consistent with this section, but the Department, through no fault of the applicant, has failed to issue or deny the renewal permit before the end of the term of the previous permit, then the permit shall not expire until the renewal permit has been issued or denied and any applicable permit shield shall extend beyond the original permit term until final action on the renewal application. Failure of the Department to issue or deny a permit by the renewal date shall be an appealable action. The Court of Common Pleas may require that the Department take action on an application without further delay.

E. Revisions, amendments, modifications.

(1) Revisions generally.

- (a) A copy of the notice required under § 505-25E(1) shall also be submitted by the owner or operator to the EPA and all affected states by the deadline set forth under Section ____.
- (b) No permit shield provided for under this chapter shall apply to any change made pursuant to this section unless specifically provided for under this section.

(2) Administrative permit amendment procedures.

- (a) An administrative permit amendment may be made by the Department consistent with the following:

[1] The Department shall take no more than 60 days from receipt of a complete application for an administrative permit amendment, with the appropriate fee, to take final action on such application, and may incorporate such changes without providing notice to the public or affected states provided that it designates any such permit revisions as having been made pursuant to this Subsection E(2)(a)[1].

[2] The Department shall submit a copy of the revised permit to the Administrator.

- (b) The Department may, upon taking final action granting a request for an administrative permit amendment qualifying under § 505-25E(2)(a)[5] of this chapter, expressly include coverage by the applicable permit shield for such administrative permit amendment.

F. Reopenings, revocations.

- (1) Reopenings for cause. Each issued permit shall include the provisions under this paragraph specifying the conditions under which the permit will be reopened prior to the expiration of the permit. A permit shall be reopened and reissued under any of the following circumstances:
 - (a) Additional requirements under the Clean Air Act become applicable to a major source with a remaining permit term of three or more years. Such a reopening shall be completed not later than 18 months after promulgation of the major source applicable requirement. No

such reopening is required if the effective date of the requirement is later than the date on which the permit is due to expire, unless the original permit or any of its terms and conditions has been extended solely due to the failure of the Department to act on a permit renewal application in a timely fashion.

- (b) Additional requirements, including excess emissions requirements, become applicable to an affected source under the acid rain program. Upon approval by the Administrator, excess emissions offset plans shall be deemed to be incorporated into the permit.
 - (c) The Department or EPA determines that the permit contains a material mistake or that inaccurate statements were made in establishing the emissions standards or other terms or conditions of the permit.
 - (d) The Administrator or the Department determines that the permit must be reissued or revoked to assure compliance with the major source applicable requirements.
- (2) Reopenings for cause by EPA.
- (a) Within 90 days after receipt of a written notification from the Administrator, also issued to the source, that the Administrator finds that cause exists to terminate, modify, or revoke and reissue a permit pursuant to this section, the Department shall forward to EPA a proposed determination of termination, modification, or revocation and reissuance, as appropriate. The Department may request that the Administrator extend this ninety-day period for an additional 90 days if a new or revised permit application is necessary or the Department must require the permittee to submit additional information.
 - (b) Following EPA review of the Department's determination pursuant to Subsection F(2)(a) of this subsection, and within 90 days of receipt of any EPA objection to such determination, the Department shall resolve any objection that EPA makes and proceed to terminate, modify, or revoke and reissue the permit in accordance with the Administrators objection.

§ 505-27. Additional requirements generally.

A. Waste-derived liquid fuel.

- (1) Operating permits. The applications for and issuance of operating permits that expressly permit the burning of waste-derived liquid fuel as provided by this chapter shall also be governed by the applicable requirements and standards of this article except as otherwise specified by this section.
- (2) In addition to the other requirements of this article, an application for an operating permit under this section shall include:
 - (a) A report of the results of the analysis of a representative sample of the fuel collected and analyzed in accordance with § 505-69A of this chapter; and
 - (b) A report of the results of the direct emission reduction test in accordance with § 505-69B of this chapter.
- (3) Annual operating permit application/administration fee and additional annual fees. On the date that an application for an operating permit is submitted under this section, and on or before the last day of the month in which such application was submitted in each year thereafter, while

such application is being reviewed and then during the term of any permit subsequently issued, the owner or operator of such source shall submit to the Department, in addition to all applicable emission fees, all applicable administration fees in amounts determined under, and in accordance with, the requirements of § 505-47 of this article.

B. Alternative emission reduction plans.

- (1) Purpose. The emission standards and source standards established by this chapter set forth a County-wide emission reduction plan to achieve the purposes of this chapter. As applied to any particular source or group of sources, more cost-effective means may be available to achieve such purposes.
- (2) The County desires to maximize cost-effectiveness and innovation in its air pollution control program. It is therefore the purpose of this section to establish a mechanism whereby source owners and operators can develop alternative emission reduction plans which best suit their particular circumstances. If such alternative meets the requirements of this section, that alternative may be substituted for the emission standards and source standards otherwise required by this chapter.
- (3) Procedures. In accordance with the applicable procedures under this Part, the owner or operator of any source subject to this chapter may apply to the Department for approval of an alternative emission reduction plan for existing sources. The Department shall review such application and may issue or reissue the applicable permit to reflect the alternative emission reduction plan. In its review, the Department shall consider, among other relevant factors, the EPA's Emissions Trading Policy Statement published at 51 Federal Register 43814 (December 4, 1986), and those policies and purposes set forth in this chapter.
- (4) Application for approval. Upon the proposed approval by the Department of any alternative emission reduction plan pursuant to this section, the Department shall submit such proposal as a proposed revision to the SIP. Such proposed approval shall not become final until approved by the EPA.
- (5) Persons seeking approval of an alternative emission reduction plan are urged to contact the Department early in the development stage, so that appropriate methodologies for any necessary air quality or other demonstrations are identified.
- (6) An application for approval shall be in writing and shall set forth all information needed by the Department to review the alternative emission reduction plan. In addition, the applicant shall submit such additional information as is requested by the Department to evaluate the plan. The Department may prepare forms required to be used for these purposes.
- (7) The application shall be accompanied by the payment of the application fee calculated pursuant to Subsection h of this section. In addition, the application shall bear the cost of such tests, studies, out-of-County travel by Department staff and the like as are necessary for evaluation of the plan, together with the cost of providing public notice and stenographic transcripts of any public hearings held with respect to the plan and, upon request by the Department, shall obtain facilities for such public hearings. Any significant additional costs shall be discussed with the applicant before obligating any funds and shall be paid prior to the final consideration by this Department of any proposed permit pursuant to this section.
- (8) The application fee shall be in the amount of 150% of the sum of all the annual operating permit application/permit administration fees for each source affected by the proposed alternative

emission reduction plan pursuant to § 505-47 of this article. Such fee shall be payable to the Allegheny County Air Pollution Control Fund.

- (9) Effect. Upon final issuance of an operating permit pursuant to this section, the sources affected shall thereafter comply with such permit pursuant to the compliance schedule contained therein and shall be relieved of the duty to comply with those provisions of this chapter which are specifically superseded by such permit.
- (10) Violations. The failure to comply with any provision of any alternative emission reduction plan approved pursuant to this section shall be a violation of this chapter giving rise to the remedies set forth in § 505-79 of this chapter.

§ 505-28. Operating permit fees.

A. Administration fees.

- (1) Annual operating permit application/permit administration fee. On the date that an application for an operating permit is submitted under this article, including applications for revisions, transfers, amendments, and modifications, and on or before the last day of the month in which such submission is made in each year thereafter, while such application is being reviewed and then during the term of any permit subsequently issued, the owner or operator of such source shall submit to the Department, in addition to any other applicable administration and emissions fees, an annual operating permit application/permit administration fee.
- (2) Amount of fees. A schedule of the amounts of the annual operating permit application/permit administration fees required by this section shall be set by the Board of Health. Consideration shall be given to the degree of technical and regulatory difficulty in establishing fees for minor, synthetic minor and major sources. **[Amended 7-7-2009 by Ord. No. 30-09]**
- (3) Annual major source hazardous air pollutant permit application/permit administration fee. On the date that an application for an operating permit for a major source with the potential to emit any hazardous air pollutant is submitted under this article, including applications for revisions, transfers, amendments, and modifications, and on or before the last day of the month in which such submission is made in each year thereafter, while such application is being reviewed and then during the term of any permit subsequently issued, the owner or operator of such source shall submit to the Department, in addition to all other applicable administration and emission fees, an annual hazardous air pollutant permit application/permit administration fee in the amount of 50% of the amount of the annual operating permit application/permit administration fee required for said permit by this article.
- (4) Annual acid rain deposition control permit application/permit administration fee. On the date that an application, or portion of an application, for the acid rain deposition control portion of an operating permit for affected sources is submitted under this article, including applications for revisions, transfers, amendments, and modifications, and on or before the last day of the month in which such submission is made in each year thereafter, while such application is being reviewed and then during the term of any permit subsequently issued, the owner or operator of such source shall submit to the Department, in addition to all other applicable administration and emission fees, an annual acid deposition control permit application/permit administration fee in the amount of 50% of the amount of the annual operating permit application/permit administration fee required for said permit by this article.
- (5) Annual operating permit application/permit noncompliance administration fee. On the date that

an application for an operating permit is submitted under this article, including applications for revisions, transfers, amendments, and modifications, involving a source of which any part is not in full compliance with this chapter, and on or before the last day of the month in which such submission is made in each year thereafter, while such application is being reviewed and then during the term of any permit subsequently issued until such source has achieved and demonstrated full compliance with the requirements of this chapter, the owner or operator of such source shall submit to the Department, in addition to all other applicable administration and emission fees, an annual operating permit application/permit noncompliance administration fee in the amount of 50% of the total amount of the annual application/permit administration fee and any annual acid rain deposition control and hazardous air pollutant permit application/administration fees required for said permit by this article. No portion of this fee is refundable upon achieving compliance.

- (6) Payment of fees. The payment of the required fees under this section shall be made by check or money order payable to the Allegheny County Air Pollution Control Fund.
- (7) Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by the Allegheny County Council. **[Added 7-7-2009 by Ord. No. 30-09]**

B. Emissions fees. [Amended 11-5-2014 by Ord. No. 17-14]

- (1) Annual major source emissions fee requirements.
 - (a) The owner or operator of a source that requires a major operating permit pursuant to § 505-26A of this chapter shall pay an annual major source emission fee in the amount per ton set by the Department of Environmental Protection (DEP) under the regulations implementing the Air Pollution Control Act at 25 Pa. Code § 127.705(a) for each ton of a regulated pollutant actually emitted from the source; provided, however, that the owner or operator shall not be required to pay an emission fee for emissions of more than 4,000 tons of each regulated pollutant from the source.
 - (b) As used in this section, the term "regulated pollutant" means a VOC; each pollutant regulated under Sections 111 and 112 of the Clean Air Act (42 U.S.C.A. §§ 7411 and 7412); and each pollutant for which a National Ambient Air Quality Standard has been promulgated, except that carbon monoxide shall be excluded from this reference.
- (2) Annual emissions fee deadline. In addition to any other administration fees required under this chapter, the owners or operators of all sources subject to § 505-26 of this article shall pay annual emissions fees as set forth under Subsection B(1) above for the previous calendar year actual emissions. All such fees shall be paid into the "Allegheny County Air Quality Fund" for the major operating permit program as set forth under this chapter. All such fees shall be paid by no later than September 1 of each year.

§ 505-29. Acid deposition control.

- A. Applicability. This section applies to any and all affected units and sources, as defined under § 505-13 of this chapter, in the County.
- B. Incorporation by reference. The federal acid deposition control regulations promulgated by the EPA under Title IV of the Clean Air Act at 40 CFR Parts 72 through 78, inclusive, are hereby incorporated by reference into this chapter. Additions, revisions, or deletions to such regulations by the EPA are

incorporated into this chapter and are effective on the date established by the federal regulations, unless otherwise established by regulation under this chapter.

ARTICLE IV

Pollutant emission standards.**§ 505-30. Visible emissions.**

- A. General. No person shall operate, or allow to be operated, any source except those specifically excluded by Subsection B below in such manner that the opacity of visible emissions from a flue or process fugitive emissions from such source, excluding uncombined water:
- (1) Equal or exceed an opacity of 20% for a period or periods aggregating more than three minutes in any sixty-minute period; or
 - (2) Equal or exceed an opacity of 60% at any time.
- B. Exclusions. Subsection A above shall not apply to:
- (1) Coke ovens or a battery of coke ovens;
 - (2) Incinerators; or
 - (3) Visible emissions resulting solely from the cold start of fuel-burning or combustion equipment, if such a cold start has been reported as required by § 505-74D of this chapter.
- C. Alternative standards for fugitive emissions.
- (1) With respect to fugitive emissions only, the Department may establish an alternative standard(s) to those standards set forth in Subsection A above for a particular source if:
 - (a) Fugitive emission control equipment has been installed and placed into operation on such source and/or other enforceable fugitive emission control techniques have been implemented on such source;
 - (b) The Department determines that the control equipment and/or other techniques installed or implemented on such source represent RACT as applied to the particular source involved; and,
 - (c) The person responsible for such source demonstrates that the fugitive emissions remaining after the application of such control equipment or other techniques are of only minor significance with respect to causing air pollution and do not prevent or interfere with the attainment or maintenance of any ambient air quality standard.
 - (2) The person responsible for such source shall make written application to the Department and shall, at its own expense, provide all data and other information which is needed by the Department to make the determinations set forth above and to establish an alternative opacity standard(s).
 - (3) Any alternative standard(s) established pursuant to this subsection shall require the continued operation and/or implementation of that control equipment or other techniques on which the above determinations are based and shall require compliance with an opacity standard which represents the optimum performance of such control equipment and/or other techniques. Any such alternative standard(s) shall apply only to the particular source for which the above determinations were made.
 - (4) Any alternative standard(s) established pursuant to this subsection shall be proposed as an

amendment to this chapter. Upon the adoption of any such amendment, the affected source shall thereafter comply with the alternative standard(s) so established and shall be relieved of the duty to comply with the provisions of Subsection A above with respect to fugitive emissions. The Department shall submit any such amendment as a proposed revision to Allegheny County's portion of the SIP.

- (5) The failure to comply with any provision of an amendment adopted pursuant to this subsection shall be a violation of this chapter giving rise to the remedies set forth in § 505-79 of this chapter.
- D. **Measurements.** Measurements of visible emissions shall be performed according to the procedures established by § 505-68 of this chapter.
- E. **Enforcement.** Notwithstanding any other provision of this chapter the prohibitions of Subsection A of this section may be enforced against the owner or operator of any source at a single-family residence or multiple-dwelling unit of no more than two dwelling units by any municipal or local government unit having jurisdiction over the place where the visible emissions occur. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this section.

§ 505-31. Particulate mass emissions. [Amended 8-15-1997]

A. Fuel-burning or combustion equipment.

- (1) No person shall operate, or allow to be operated, any fuel-burning or combustion equipment, where the actual heat input to such equipment is greater than 0.50 million BTU's per hour, in such manner that emissions of particulate matter exceed the following rates at any time:
- (a) Where natural gas, grade number 2 fuel oil, coke oven gas, or blast furnace gas is used:

Maximum Allowable Pounds Per Million BTU's of Actual Heat Input

Type of Fuel Being Burned or Combusted	Type of Fuel-Burning or Combustion Equipment		
	Combustion Turbines	Reciprocating Combustion Engines	All Other Equipment
Natural Gas	0.015	0.012	0.008
Grade Number 2 Fuel Oil	0.04	0.28	0.015
Coke Oven Gas	*	*	0.02
Blast Furnace Gas	*	*	0.05

Notes:

* See Subsection A(1)(c) below.

- (b) Where a single fuel is used other than as provided for in Subsection A(1)(a) above:

- [1] Where the actual heat input to such equipment is greater than 0.50 million BTU's per hour but less than 50 million BTU's per hour, the rate of 0.40 pounds per million BTU's of actual heat input;
- [2] Where the actual heat input to such equipment is equal to or greater than 50 million BTU's per hour, but less than 850 million BTU's per hour, the rate determined by the formula:

$$A = 3.5E^{-0.56}$$

where A = allowable emissions in pounds per million BTU of
 E = actual heat input, and
 actual heat input to such equipment in millions of
 BTU's per hour; or

- [3] Where the actual heat input to such equipment is equal to or greater than 850 million BTU's per hour, the rate of 0.080 pounds per million BTU's of actual heat input;
- (c) Where the equipment is fired with two or more types of fuel, the rate determined by the formula:

$$A = \sum x_i a_i$$

where A = allowable emissions in pounds per million BTU's of
 actual heat input
 i = fuel type (i.e., natural gas, Grade Number 2 fuel oil,
 Grade Number 6 fuel oil, coke oven gas, blast furnace
 gas, or other)
 x_i = fraction of total actual heat input in BTU's provided by
 fuel type i
 a_i = allowable emissions in pounds per million BTU's of
 actual heat input for fuel type i from Subsection A(1)(a)
 or (b) above; or

- (d) Notwithstanding the provisions of Subsection A(1)(a), (b) and (c) of this section, and except as provided for in Subsection A(1)(e) of this section, and except for fuel emergencies of limited duration with prior Department approval, no person shall operate, or allow to be operated, any of the following specific fuel-burning or combustion equipment in such manner that emissions of particulate matter exceed the following rates at any time, regardless of the type of fuel used:

Specific Fuel-Burning or Combustion Equipment		Maximum Allowable Pounds Per Million BTU's of Actual Heat Input
Source Name	Location	
Coke Works Boiler #1	USX Corp. Clairton, PA	0.02
#13 Benzene Boiler	USX Corp. Clairton, PA	0.02
# 14 Benzene Boiler	USX Corp. Clairton, PA	0.02

Specific Fuel-Burning or Combustion Equipment		Maximum Allowable Pounds Per Million BTU's of Actual Heat Input
Source Name	Location	
R-1 (Benzene) Steam Boiler	USX Corp. Clairton, PA	0.02
R-2 (Benzene) Steam Boiler	USX Corp. Clairton, PA	0.02
T1 (Benzene) Boiler	USX Corp. Clairton PA,	0.02
T2 (Benzene) Boiler	USX Corp. Clairton, PA	0.02
Riley Boilers (each)	LTV Steel Co., Pgh, PA	0.02
Keeler Boilers (each)	LTV Steel Co., Pgh, PA	0.02

- (e) Notwithstanding the provisions of Subsection A(1)(a), (b) and (c), and as an alternative to Subsection A(1)(d) of this section and except for fuel emergencies of limited duration with prior Department approval, no person shall operate, or allow to be operated, any of the following specific fuel-burning or combustion equipment in such manner, or at any time, that emissions from such equipment, or any other of the following equipment, exceed the following rates at any time for the pollutant indicated, regardless of the type of fuel used:

Specific Fuel-Burning or Combustion Equipment		Maximum Allowable Pounds Per Million BTU's of Actual Heat Input
Source Name	Location	
# 13 Benzene Boiler matter	USX Corp. Clairton, PA	0.00 * particulate
# 14 Benzene Boiler matter	USX Corp. Clairton, PA	0.00 * particulate
T1 (Benzene) Boiler	USX Corp. Clairton, PA	0.120 PM-10
T2 (Benzene) Boiler	USX Corp. Clairton, PA	0.120 PM-10
Coke Works Boiler # 2	USX Corp. Clairton, PA	0.02 particulate matter
Coke Works Boiler #1	USX Corp. Clairton, PA	0.02 particulate matter

Notes:

* 0.00 maximum indicates that these boilers shall not be operating.

(2) Aggregation.

- (a) For purpose of this Subsection A only, if one or more fuel-burning or combustion emissions units are vented into a common flue, such emissions units shall be considered one emissions unit and allowable emissions shall be determined on the basis of total heat input to all emissions units vented to such common flue.
- (b) For any emissions unit that burns or combusts coal, that is subject to Paragraph A(1)(c) of this section, that is not located in a nonattainment area of the County for PM-10, that has a rated heat input greater than 50 million BTU's per hour, and that would comply with the emission standards under Subsection A(1)(b) of this section notwithstanding the firing of the emissions unit with other fuel in addition to the coal, the Department may, upon written application from the person responsible for such emissions unit, determine compliance with this subsection on the basis of the emission standards under Subsection A(1)(b) of this section, notwithstanding the firing of the emissions unit with other fuel in addition to the coal, provided that the applicant demonstrates to the Department's satisfaction that such allowed emissions will not cause a significant air quality impact on any nonattainment area of the County for PM-10. Such determination of the Department shall not be effective until it is either approved by the EPA or included in a federally enforceable permit or order, whichever is first.

B. Processes in general.

- (1) No person shall operate, or allow to be operated, any process except those processes listed in Subsections C, D, E, F, G, or H below and those processes for which a source standard is established under Article V of this chapter in such manner that emissions of particulate matter from such process exceed seven pounds in any sixty-minute period or 100 pounds in any twenty-four-hour period, except that no person subject to the requirements of this Subsection B shall be required to reduce emissions to a greater degree than 99%.
- (2) This subsection shall apply to the sum of all stack emissions from such process, including all emissions from any air pollution control device outlet(s) associated with such process. All fugitive emissions from such process shall be included in the sum of all stack emissions for purposes of this subsection unless the stack emissions can be accurately measured and all fugitive emissions do not exceed the standards established by § 505-30 of this chapter or any alternative standard(s) established for such source pursuant to § 505-30 of this chapter.

C. Specific processes.

- (1) No person shall operate, or allow to be operated, any process listed below, other than those subject to Subsection D, E, F, G, or H of this section, in such manner that emissions of particulate matter from such process exceed at any time the rate determined by the formula set forth below.
- (2) This subsection shall apply to the sum of all stack emissions from such process, including all emissions from any air pollution control device outlet(s) associated with such process. All fugitive emissions from such process shall be included in the sum of all stack emissions for purposes of this subsection unless the stack emissions can be accurately measured and all fugitive emissions do not exceed the standards established by § 505-30 of this chapter or any alternative standard(s) established for such source pursuant to § 505-30 of this chapter.

$$A = 0.76E^{+0.42}$$

where A = allowable emissions in pounds per hour, and

E = emission index of (F) x (W) pounds per hour,

where F = process factor in pounds per unit as listed below, and

W = production or charging rate in units per hour, and

The units for F and W shall be compatible.

- (a) Carbon black manufacturing: F = 500 pounds per ton of product.
- (b) Charcoal manufacturing: F = 400 pounds per ton of product.
- (c) Crushing, grinding or screening: F = 20 pounds per ton of feed.
- (d) Paint manufacturing: F = 0.050 pound per ton of pigment handled.
- (e) Phosphoric acid manufacturing: F = 6 pounds per ton of phosphorous burned.
- (f) Detergent drying: F = 30 pounds per ton of product.
- (g) Ammonium nitrate manufacturing prilling tower or other granulator: F = 0.10 pound per ton of product.
- (h) Ferroalloy production furnace: F = 0.30 pound per ton of product.
- (i) Primary iron and/or steel making.
 - [1] Iron production: F = 100 pounds per ton of product.
 - [2] Steel production: F = 40 pounds per ton of product.
 - [3] Scarfing: F = 20 pounds per ton of product.
- (j) Primary lead production.
 - [1] Roasting: F = 0.0040 pound per ton of ore feed.
 - [2] Lead reduction: F = 0.50 pound per ton of product.
- (k) Primary zinc production.
 - [1] Roasting: F = 3 pounds per ton of ore feed.
 - [2] Zinc reduction: F = 10 pounds per ton of product.
- (l) Secondary aluminum production.
 - [1] Sweating: F = 50 pounds per ton of aluminum product.
 - [2] Melting and refining: F = 10 pounds per ton of aluminum feed.
- (m) Brass and bronze production melting and refining: F = 20 pounds per ton of product.
- (n) Iron foundry.
 - [1] Melting.

- [a] Cupola: $F = 50$ pounds per ton of iron.
- [b] Reverberatory furnace: $F = 2$ pounds per ton of iron.
- [c] Electric induction furnace: $F = 1.50$ pounds per ton of iron.
- [2] Shake-out: $F = 20$ pounds per ton of sand.
- [3] Sand handling: $F = 20$ pounds per ton of sand.
- (o) Secondary lead melting: $F = 0.50$ pound per ton of product.
- (p) Secondary magnesium melting: $F = 0.20$ pound per ton of product.
- (q) Secondary zinc melting.
 - [1] Sweating: $F = 0.010$ pound per ton of product.
 - [2] Refining: $F = 0.30$ pound per ton of product.
- (r) Asphaltic concrete production: $F = 6$ pounds per ton of aggregate feed.
- (s) Asphalt roofing manufacturing felt saturation: $F = 0.60$ pound per ton of asphalt used.
- (t) Portland cement manufacturing.
 - [1] Clinker production: $F = 150$ pounds per ton of dry solids feed.
 - [2] Clinker cooling: $F = 50$ pounds per ton of product.
- (u) Coal drying: $F = 2$ pounds per ton of product.
- (v) Coal dry leaning: $F = 2$ pounds per ton of product.
- (w) Lime calcining: $F = 200$ pounds per ton of product.
- (x) Glass production furnace: $F = 50$ pounds per ton of fill.

D. Specific process sources.

- (1) No person shall operate, or allow to be operated, any process listed below in such manner that emissions of PM-10 from such process exceed at any time the applicable rate set forth below.
- (2) This subsection shall apply to the sum of all stack emissions from such process including all emissions from any air pollution control device outlet(s) associated with such process. All fugitive emissions from such process shall be included in the sum of all stack emissions for purposes of this Subsection unless the stack emissions can be accurately measured and all fugitive emissions do not exceed the standards established by § 505-30 of this chapter or any alternative standard(s) established for such source pursuant to § 505-30 of this chapter.

Source Name	Specific Process Source		Maximum Allowable Emission Rate
	Location	Permit Number	
Anneal. Fce Bases 801-856 each	USX Co. W. Mifflin PA	(to be assigned)	0.011 lbs/ton of steel
Primary Flash Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.07 lbs/hour
Secondary Flash Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.07 lbs/hour
2T3 Heater Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.04 lbs/hour
2T4 Heater Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.03 lbs/hour
1T2 Heater Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.05 lbs/hour
1T4 Heater	Aristech, Clairton, PA	7035775-001-25703	0.01 lbs/hour
Hot Oil Heater	Aristech, Clairton, PA	7035775-001-25703	0.02 lbs/hour
2T1 Heater Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.02 lbs/hour
# 1 Primary Reboiler	Aristech, Clairton, PA	7035775-001-25703	0.07 lbs/hour
Naphthalene Hot Oil Heater	Aristech, Clairton, PA	7035775-001-25703	0.27 lbs/hour
Naphthalene Reactor Heater	Aristech, Clairton, PA	7035775-001-25703	0.05 lbs/hour

E. Specific controlled process sources. **[Amended 8-15-1997]**

- (1) On and after December, 1, 1994, no person shall operate, or allow to be operated, any process listed below unless there is installed on such process an emission control device, nor shall any person operate, or allow to be operated, any process listed below in such manner that emissions of PM-10 from such process exceed at any time the applicable rate set forth below for a volume source for ambient air quality impact dispersion modeling purposes, or if the required emission control device results in the process becoming a point source for ambient air quality impact dispersion modeling purposes, a rate which results in no more adverse ambient air quality impact than the applicable rate set forth below for a volume source.
- (2) This subsection shall apply to the sum of all stack emissions from such process including all emissions from any air pollution control device outlet(s) associated with such process. All fugitive emissions from such process shall be included in the sum of all stack emissions for purposes of this subsection unless the stack emissions can be accurately measured and all fugitive emissions do not exceed the standards established by § 505-30 of this chapter or any alternative standard(s) established for such source pursuant to § 505-30 of this chapter.

Specific Process Source		Volume Source Maximum Allowable Emission Rate (grains/ton of coal)
Source Name	Location	
#1 Primary Coal Pulverizer	USX Corp. Clairton, PA	5.17
#1 Second. Coal Pulverizer	USX Corp. Clairton, PA	11.86
#2 Primary Coal Pulverizer	USX Corp. Clairton, PA	8.26
#2 Second. Coal Pulverizer	USX Corp. Clairton, PA	11.02

- (3) No later than December 31, 1996, USX shall install a direct feed chute and distribution plough at the #2 secondary pulverizer, enclose all coal feed chutes, and install on 1A to 1 B belts deflector plates, hoppers, and chutes. On and after December 31, 1996, USX shall use dust suppressant (e.g., chemical, oil, or water suppressant to minimize emissions) on coal prior to entry into any pulverizer.
- F. No person shall operate, or allow to be operated, the Coke Screening #3 process at the USX Corporation facility in Clairton, PA, {permit number to be assigned}, unless there is installed on such process an emission control device, nor shall any person operate, or allow to be operated, such process in such manner that emissions of PM-10 from such process exceed 1.26 pounds per hour at any time. This subsection shall apply to the sum of all stack emissions from such process, including all emissions from any air pollution control device outlet(s) associated with such process. All fugitive emissions from such process shall be included in the sum of all stack emissions for purposes of this subsection unless the stack emissions can be accurately measured and all fugitive emissions do not exceed the standards established by § 505-30 of this chapter or any alternative standard(s) established for such source pursuant to § 505-30 of this chapter. **[Amended 3-4-2008 by Ord. No. 9-08]**
- G. No person shall operate, or allow to be operated, either the Coke Screening # 1 or Coke Screening #2 process at the USX Corporation facility in Clairton, PA, unless such process, at a minimum, is located and maintained within the enclosure in existence as of February 1, 1994. **[Amended 8-15-1997]**
- H. No person shall operate, or allow to be operated, any of the Water Cooling Tower processes at the USX Corporation facility in Clairton, PA, unless the water used for such cooling is equivalent to, or better than, the water quality standards established for the Monongahela River by regulations promulgated by the DEP under the Pennsylvania Clean Streams Law, Act of June 22, 1937, P.L. 1987, as amended, 35 P.S. 691.1 et seq., except that water from the Monongahela River may be used for such cooling. No person shall operate, or allow to be operated, the Keystone cooling tower at the USX Corporation facility at Clairton, PA unless there is installed a mist eliminator. **[Amended 8-15-1997]**
- I. Measurements. Measurements of particulate mass emissions shall be performed according to the applicable procedures established by § 505-59 of this chapter.

§ 505-32. Sulfur oxide emissions.

A. Fuel-burning or combustion equipment. No person shall operate, or allow to be operated, any fuel-burning or combustion equipment in such manner that emissions of sulfur oxides, expressed as sulfur dioxide, exceed the following rates at any time:

- (1) Where the actual heat input to such equipment is greater than 0.50 million BTU's per hour but less than 50 million BTU's per hour, the rate of 1.0 pound per million BTU's of actual heat input;
- (2) Where the actual heat input to such equipment is equal to or greater than 50 million BTU's per hour, but less than 2000 million BTU's per hour, the rate determined by the formula:

$$A = 1.7E^{-0.14} \quad \text{where } A = \text{allowable emissions in pounds per million BTU's of actual heat input, and}$$

$$E = \text{actual heat input in millions of BTU's per hour;}$$

- (3) Where the actual heat input to such equipment is equal to or greater than 2000 million BTU's per hour, but less than 5000 million BTU's per hour, the rate of 0.60 pounds per million BTU or actual heat input; or
- (4) Where the rated heat input to existing fuel-burning or combustion equipment is equal to or greater than 5000 million BTU's per hour, the rate of 2.80 pounds per million BTU of actual heat input.

B. Aggregation.

- (1) For purpose of Subsection A above only, if one or more fuel-burning or combustion emissions units are vented into a common flue, such emissions units shall be considered one emissions unit and allowable emissions shall be determined on the basis of total heat input to all emissions units vented to such common flue.
- (2) For any single boiler house having two or more boilers with a combined rated heat input no greater than 50 million BTU's per hour, whose combined emissions would comply with the emission standards of this section if they were vented into a common flue, the Department may, upon written application from the person responsible for such boiler house, determine compliance with this section on the basis of the total emissions from and total heat input to all such boilers, provided that the applicant demonstrates that such actions will not prevent the attainment or maintenance of any ambient air quality standard established by § 505-8 of this chapter or interfere with reasonable further progress toward the attainment of the NAAQS's.

C. Processes. No person shall operate, or allow to be operated, any process, except for miscellaneous sulfur-emitting processes for which there is an emissions standard under Article V of this chapter, in such manner that the concentration of sulfur oxides, expressed as sulfur dioxide, in the effluent gas exceeds 500 ppm (dry basis) at any time.

D. Incinerators. No person shall operate, or allow to be operated, any incinerator in such manner that the concentration of sulfur oxides, expressed as sulfur dioxide, in the effluent gas exceeds 500 ppm (dry basis) at any time.

E. Measurements. Measurements of sulfur oxide emissions shall be performed according to the applicable procedures established by § 505-60 of this chapter.

§ 505-33. Odor emissions.

- A. General. No person shall operate, or allow to be operated, any source in such manner that emissions of malodorous matter from such source are perceptible beyond the property line of such source.
- B. Specific sources. No person shall operate, or allow to be operated, any source listed below unless there is installed and in operation on such source an incinerator with a residence time of at least 0.50 second at a temperature of at least 1,400° F for putrescible and non-chemical materials or a temperature of at least 250° F above the auto-ignition temperature of any chemical refuse, or such other emissions control system as is approved in writing by the Department as equivalent to an incinerator in terms of odor control.
- (1) Rendering cookers.
 - (2) Animal blood dryers.
 - (3) Asphalt oxidation.
 - (4) Asphalt roofing manufacturing.
 - (5) Brake shoe debonding.
 - (6) Core ovens.
 - (7) Varnish cookers.
 - (8) Paint drying or baking ovens.
 - (9) Meat smokehouses other than those in single-family houses.
 - (10) Coffee roasting.
 - (11) Fabric-backing and fabric-coating baking ovens.
 - (12) Ovens for curing of binders in mineral wool production.
 - (13) Tear gas manufacture.
 - (14) Sources of hydrogen sulfide or mercaptans, except coke batteries.
- C. Measurements. Measurements of odor emissions shall be performed according to the procedures established by § 505-70 of this chapter. Measurements of incinerator temperature shall be performed according to the procedures established by § 505-63 of this chapter. Measurements pertaining to an equivalent emissions control system installed pursuant to Subsection B above shall be performed according to the applicable procedures established by Article VII of this chapter, or if no such procedures are applicable, pursuant to other procedures specified by the Department.
- D. Enforcement. Notwithstanding any other provision of this chapter the prohibitions of Subsection A of this section may be enforced against the owner or operator of any source at a single-family residence or multiple-dwelling unit of no more than two dwelling units by any municipal or local government unit having jurisdiction over the place where the emissions of malodorous matter occur. For purposes of this subsection, malodorous means the property of an odor which causes annoyance or discomfort to the public and which a designated representative of such municipal or local government unit determines to be objectionable to the public. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this section.

§ 505-34. Materials handling.

In addition to meeting the other requirements of this chapter, no person shall conduct, or allow to be conducted, any materials handling operation in such manner that emissions from such operation are visible at or beyond the property line of the affected source.

§ 505-35. Violations.

The violation of any emission standard established by this article shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter.

§ 505-36. Stack heights.

The degree of emission limitation required of any source for purposes of demonstrating compliance with a NAAQS shall not be affected by that portion of any stack height that exceeds Good Engineering Practice (GEP) or any other dispersion techniques as defined by federal regulations at 40 C.F.R 51.100, 51.110, and Subpart I.

§ 505-37. National emission standards for hazardous air pollutants.

- A. Incorporation by reference. All NESHAP's; MACT emission limitations for hazardous air pollutants; generally achievable control technology (GACT) emission limitations; general provisions for hazardous air pollutants; and regulations for the determination of emission limitations by the Department under Subsection H(1) below, established at 40 CFR Parts 61 and 63 by the EPA in accordance with Section 112 of the Clean Air Act, all other federal regulations promulgated under Section 112, including accidental release prevention regulations under Section 112(r), and any state hazardous air pollutant emission or performance standards regulations promulgated under Section 6.6. of the Air Pollution Control Act are hereby incorporated by reference into this chapter. For the purposes of this section all of the definitions adopted by the federal regulations in this subsection are hereby incorporated by reference, including those of source and major source. Additions, revisions, or deletions to these federal and state regulations promulgated by the EPA and the commonwealth, respectively, are incorporated into this chapter and are effective on the date established by the applicable federal or state regulations, unless otherwise established by regulation under this chapter.
[Amended 3-31-1998]
- B. Violations. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to operate, or allow to be operated, any source in a manner that does not comply with this chapter; all requirements of any applicable NESHAP's, MACT emission limitation for hazardous air pollutants, generally achievable control technology (GACT) emission limitation for hazardous air pollutants, or accidental release prevention regulations incorporated by reference under Subsection a above, except if such person is lawfully temporarily relieved of the duty to comply with such requirements; and all applicable state hazardous air pollutant emission and performance standards regulations incorporated by reference under Subsection A above.
- C. Reporting requirements. Any person who operates, or allows to be operated, any source subject to any standard or limitation incorporated by reference under Subsection A above shall conduct, or cause to be conducted, such tests, measurements, monitoring and the like as is required by such standard or limitation. All notices, reports, test results and the like as are required by such standard or limitation shall be submitted to the Department in the manner and time specified by such standard or limitation. All information, data and the like which is required to be maintained by such standard or limitation shall be made available to the Department upon request for inspection and copying.

- D. New and reconstructed sources. No person shall operate, or allow to be operated, a major source of hazardous air pollutants that has been constructed or reconstructed since the effective date of this chapter unless such source complies with the applicable MACT emission limitation under this section for new sources. Where no applicable emissions limitations have been established by the Administrator, the Commonwealth, or the Department by the date established pursuant to the Clean Air Act, such a limitation shall be established by the Department on a case-by-case basis prior to the issuance of the installation permit for any such construction or reconstruction.
- E. Existing sources.
- (1) No person shall operate, or allow to be operated, a source of hazardous air pollutants subject to any MACT emissions standard, limitation, or regulation under this section in violation of such standard, limitation, or regulation except, in the case of an existing source, compliance shall be achieved by no later than the compliance date or dates for the category or subcategory of such existing source established by the Administrator, or three years after the effective date of such standard, whichever is sooner, except as provided in Subsection E(2) and Subsections F and G of this section.
 - (2) If approved by the Department pursuant to an operating permit issued under this chapter:
 - (a) An existing source shall have an extension to the compliance deadline under Subsection E(1) of this section permitting such existing source up to one additional year to comply with the applicable standards under this section but only if such additional period is necessary for the installation of controls; and
 - (b) An existing mining waste operation shall have an additional extension to the compliance deadline under Subsection E(1) of this section of no more than three years to comply with the applicable standards under this section but only if the otherwise applicable compliance time is insufficient to dry and cover mining waste in order to reduce emissions of any hazardous air pollutant.
- F. Early reduction.
- (1) If expressly set forth in an operating permit issued under this chapter, any person who operates, or allows to be operated, an existing source of hazardous air pollutants who has demonstrated that the source has achieved a reduction of 90% or more in emissions of hazardous air pollutants, and 95% in the case of hazardous air pollutants which are particulates, from the source, shall comply with an alternative emission limitation at such source. Such alternative emission limitation shall reflect such reduction in lieu of an applicable emission limitation under this section for a period of six years from the compliance date under this section for the otherwise applicable standard, provided that such reduction was achieved before the otherwise applicable standard under this section is first proposed.
 - (2) The reduction under this subsection shall be determined with respect to verifiable and actual emissions in a base year not earlier than calendar year 1987, provided that there is no evidence that emissions in the base year are artificially or substantially greater than emissions in other years prior to implementation of emissions reduction measures.
 - (3) An alternative emission limitation under this subsection shall not be available with respect to health risk based standards or requirements promulgated by the Administrator.
 - (4) The use of offsetting reductions in emissions of other hazardous air pollutants from a source as

counting toward the ninety-percent reduction in certain high-risk hazardous air pollutants, as defined by the Administrator, qualifying for an alternative emissions limitation under this subsection shall be limited by any applicable federal regulations promulgated for such purpose.

G. Other reductions. Notwithstanding the requirements of this section, no existing source that has installed:

- (1) BACT; or
- (2) Technology required to meet LAER, prior to the promulgation of a standard under this section applicable to such source and the same pollutant (or stream of pollutants) shall be required to comply with such standard under this section until the date five years after the date on which such installation or reduction has been achieved as determined by the Department, EPA, or DEP.

H. Absence of EPA-promulgated MACT standard.

- (1) In the event that the Administrator fails to promulgate a standard for a category or subcategory of major sources of hazardous air pollutants by the date established pursuant to the Clean Air Act, by no later than 18 months after such date, any person who operates, or allows to be operated, any major source in such category or subcategory shall apply for the issuance or amendment of an operating permit reflecting appropriate applicable operating permit emission limitations and thereafter comply with the applicable operating permit emission limitations. Such operating permit emission limitations shall be for the hazardous air pollutants subject to regulation under this section and emitted by the source that the Department determines, on a case-by-case basis, to be equivalent to the limitation that would apply to such source if an emission standard had been promulgated in a timely manner by the Administrator.
- (2) In lieu of compliance with Subsection H(1) of this section, if the applicable criteria are met, any person who operates, or allows to be operated, the major source in such category or subcategory shall comply with the applicable operating permit emissions limitation established according to the provisions of Subsection F of this section. For purposes of the preceding sentence, the emission reduction required by this section shall be achieved by the date on which the relevant standard should have been promulgated by the Administrator. No such pollutant may be emitted in amounts exceeding an emission limitation contained in a permit immediately for new sources and, as expeditiously as practicable, but not later than the date three years after the permit is issued for existing sources or such other compliance date as would apply under this section.
- (3) If the Administrator promulgates an emission standard that is applicable to a major source prior to the date on which a permit is issued, any person who operates, or allows to be operated, such major source shall comply with the emission limitation in the permit which shall reflect the promulgated standard rather than the emission limitation otherwise determined pursuant to this section, provided that the source shall have the compliance period provided under this section. If the Administrator promulgates a standard that would be applicable to a source in lieu of the emission limitation established by permit under this section after the date on which the permit has been issued, any person who operates, or allows to be operated, such major source, upon the next renewal of the permit, shall comply with the emission limitation revised by the Department to reflect the standard promulgated by the Administrator providing such source a reasonable time to comply, but no longer than eight years after such standard is promulgated or eight years after the date on which the source is first required to comply with the emissions limitation established by permit, whichever is earlier.

§ 505-37.1. Outdoor wood-fired boilers. [Added 5-22-2013 by Ord. No. 15-13]

- A. Applicability. Beginning on May 22, 2013, this section applies to the following:
- (1) A person, manufacturer, supplier or distributor who sells, offers for sale, leases or distributes an outdoor wood-fired boiler for use in Allegheny County.
 - (2) A person who installs an outdoor wood-fired boiler in Allegheny County.
 - (3) A person who purchases, receives, leases, owns, or uses an outdoor wood-fired boiler in Allegheny County.
- B. Exemptions.
- (1) This section does not apply to a person, manufacturer, supplier or distributor who sells, offers for sale, leases or distributes in this County a non-Phase 2 outdoor wood-fired boiler if the person, manufacturer, supplier or distributor demonstrates the non-Phase 2 outdoor wood-fired boiler is intended for shipment and use outside of the Commonwealth of Pennsylvania.
 - (2) Subsections C, D and E do not apply to a permanently installed outdoor wood-fired boiler that was installed prior to October 2, 2010, and is transferred to a new owner as a result of a real estate transaction.
- C. Phase 2 outdoor wood-fired boilers. Except as provided under Subsection B:
- (1) A person may not sell, offer for sale, distribute or install an outdoor wood-fired boiler for use in this County unless it is a Phase 2 outdoor wood-fired boiler.
 - (2) A person may not purchase, lease or receive an outdoor wood-fired boiler for use in this County unless it is a Phase 2 outdoor wood-fired boiler.
- D. Setback requirements for new Phase 2 outdoor wood-fired boilers. A person may not install a new Phase 2 outdoor wood-fired boiler in this County unless the boiler is installed a minimum of 150 feet from the nearest property line, except that where a new Phase 2 outdoor wood-fired boiler replaces an existing non-Phase 2 unit, the minimum setback required shall be 50 feet.
- E. Stack height requirements for new Phase 2 outdoor wood-fired boilers. A person may not install, use or operate a new Phase 2 outdoor wood-fired boiler in this County unless the boiler has a permanently attached stack. The stack must meet all of the following requirements:
- (1) Extend a minimum of 10 feet above the ground.
 - (2) Extend at least two feet above the peak of the highest residence located within 150 feet of the outdoor wood-fired boiler.
 - (3) Be installed according to the manufacturer's specifications.
- F. Allowed fuels. A person that owns, leases, uses or operates an outdoor wood-fired boiler in this County shall use only one or more of the following fuels:
- (1) Clean wood.
 - (2) Wood pellets made from clean wood.
 - (3) Home heating oil, natural gas or propane that:

- (a) Complies with all applicable sulfur limits.
 - (b) Is used as a starter or supplemental fuel for dual-fired outdoor wood-fired boilers.
 - (4) Other types of fuel approved, in writing, by the Department upon receipt of a written request.
- G. Prohibited fuels. A person who owns, leases, uses or operates an outdoor wood-fired boiler in this County may not burn a fuel or material in that outdoor wood-fired boiler other than those fuels listed under Subsection F.
- H. Use restrictions on Air Quality Action Days. No person shall operate, or allow to be operated, any new or existing outdoor wood-fired boiler on an Air Quality Action Day in this County, unless the OWB is the primary residential heating source.
- I. Applicable laws and regulatory requirements. A person may not use or operate an outdoor wood-fired boiler in this County unless it complies with applicable PA commonwealth, County and local laws and regulations adopted thereunder, including the following sections:
 - (1) Section 505-9, Prohibition of air pollution;
 - (2) Section 505-11, Nuisances;
 - (3) Section 505-30A, Visible emissions, general; and
 - (4) Section 505-70, Odor emissions.
- J. Written notice and recordkeeping. At the execution of the commercial sale or lease in this County of a new or used Phase 2 outdoor wood-fired boiler, the distributor, seller or lessor shall:
 - (1) Provide the buyer or lessee with a copy of this section; and
 - (2) Record the make, model name/number, and date of manufacture of the outdoor wood-fired boiler sold or leased, the name and address of the buyer or lessee, as well as the address of the location where the unit will be installed, if different from that of the buyer or lessee, and submit this information to the Department no later than 30 days after the end of the calendar year in which the sale or lease occurred.

ARTICLE V

Source Emission and Operating Standards**§ 505-38. Equivalent compliance techniques.**

Compliance with the requirements of this article relating to sources of volatile organic compounds may be achieved by alternative methods provided:

- A. The alternative method is approved by the Department in an applicable operating permit;
- B. The resulting emissions are equal to or less than the emissions that would have been discharged by complying with the applicable emission limitation;
- C. Compliance by a method other than the use of a coating or ink which complies with the requirements for surface coating processes and graphic arts systems under § 505-44A and B, respectively, of this chapter shall be determined on the basis of equal volumes of solids;
- D. Adequate records are maintained to ensure enforceability;
- E. The alternative compliance method is approved by the EPA as a revision to the SIP; and
- F. The test methods and procedures used to monitor compliance with the requirements of this section are either those specified in Article VII of this chapter or approved by the EPA.

§ 505-39. Other requirements not affected.

Compliance with the requirements of this article shall not in any manner relieve any person from the duty to fully comply with any other applicable federal, state, or county statute, rule, regulation, or the like, including, but not limited to the odor emission standards under § 505-33 of this chapter, any applicable NSPS's, NESHAP's, MACT's, or generally achievable control technology standards now or hereafter established by the EPA, and any applicable requirement of BACT or LAER as provided by this chapter, any condition contained in any applicable installation or operating permit and/or any additional or more stringent requirements contained in an order issued to such person pursuant to Article IX of this chapter.

§ 505-40. Operation and maintenance.

All air pollution control equipment required by this chapter or any permit or order under this chapter, and all equivalent compliance techniques which have been approved by the Department pursuant to this chapter, shall be properly installed, maintained, and operated consistent with good air pollution control practice.

§ 505-41. Temporary shutdown of incineration equipment.

Upon a written request from the owner or operator of a source which has installed incineration equipment using natural gas in order to comply with any VOC emission control standard under this chapter, the Department may authorize the temporary shutdown of such equipment during the months of December, January, and February for purposes of fuel conservation, provided that such equipment is not required for purposes of occupational health or safety, control of toxic or hazardous substances or other regulated pollutants, or for compliance with any malodor emission limitation under this chapter. Such authorization shall be in writing and may be conditioned or revoked as the Department deems appropriate to further the purposes of this chapter.

§ 505-42. New source performance standards.

- A. All New Source Performance Standards (NSPS) now or hereafter established by the EPA at 40 CFR Part 60 in accordance with Section 111 of the Clean Air Act are hereby incorporated by reference into this chapter. For the purposes of this section all of the definitions adopted by the federal regulations in this subsection are hereby incorporated by reference, including those of source and major source. Additions, revisions, or deletions to these federal regulations promulgated by the EPA are incorporated into this chapter and are effective on the date established by the federal regulations, unless otherwise established by regulation under this chapter. **[Amended 3-31-1998]**
- B. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to operate, or allow to be operated, any source in a manner that does not comply with all requirements of any applicable NSPS now or hereafter established by the EPA, except if such person has obtained from EPA a waiver pursuant to Section 111 or Section 129 of the Clean Air Act or is otherwise lawfully temporarily relieved of the duty to comply with such requirements.
- C. Any person who operates, or allows to be operated, any source subject to any standard under this section shall conduct, or cause to be conducted, such tests, measurements, monitoring and the like as is required by such standard. All notices, reports, test results and the like as are required by such standard shall be submitted to the Department in the manner and time specified by such standard. All information, data and the like which is required to be maintained by such standard shall be made available to the Department upon request for inspection and copying.

§ 505-43. Major sources of nitrogen oxides and volatile organic compounds.

- A. Applicability. This section applies to all major sources of nitrogen oxides or VOC's in existence as of November 1, 1992, for which no applicable emission limitations have been established by regulations under this chapter.
- B. General.
 - (1) The owner or operator of each source subject to this section shall have, by on or before April 30, 1993, submitted in writing to the Department, for each such source:
 - (a) A description of the source;
 - (b) The annual potential uncontrolled emissions of nitrogen oxides and VOC's;
 - (c) The annual potential emissions of nitrogen oxides and VOC's;
 - (d) The actual emissions of nitrogen oxides and VOC's for the calendar year 1992; and
 - (e) A detailed description of the methods used to determine these emissions.
 - (2) The owner or operator of each source subject to this section shall have, by on or before September 1, 1993, submitted in writing to the Department, for each such source, a proposal for what constitutes reasonably available control technology (RACT) for each such source. Each RACT proposal shall include, at a minimum:
 - (a) The technical and economic support documentation for such proposal; and
 - (b) The schedule for implementing such proposal as expeditiously as practicable but by not later than the deadline set forth under Subsection B(3) below.

- (3) On and after the deadline set forth in a schedule approved by the Department, but not later than either May 31, 1995, or such other deadline established by the Administrator, whichever is later, no person shall operate, or allow to be operated, any source subject to this section unless there is implemented and operating at such source RACT either as set forth in Subsections d and f of this section or as expressly approved in writing by the Department pursuant to this section.
- (4) Following the implementation of the RACT requirements under this section, the owner or operator of a combustion unit with a rated heat input of:
 - (a) Two hundred fifty million BTU's per hour or greater and subject to § 505-76B of this chapter shall, through the use of a Department-approved continuous emission monitoring system, determine the maximum possible rate of emissions of NO_x from the combustion unit, in pounds per hour, and report such monitoring and determination to the Department, in writing, in a format acceptable to the Department.
 - (b) Greater than 100 million BTU's per hour and not subject to § 505-76B of this chapter shall, through the use of a Department approved periodic source testing or predictive modeling program or continuous emission monitoring system, determine the maximum possible rate of emissions of NO_x from the combustion unit, in pounds per hour, and report such monitoring and determination to the Department, in writing, in a format acceptable to the Department.
- (5) The maximum possible rate of emissions from the monitoring and reporting required under Subsection B(4) above shall consist of the potential emissions after full implementation of all RACT technology and conditions, but not less than actual emissions, and shall constitute the RACT emission limitation for the source which shall immediately be proposed as a federally enforceable permit condition for such source.

C. Federal approval.

- (1) For all proposals under this section, the Department shall submit to the EPA for approval each approved RACT proposal as a proposed revision to Allegheny County's portion of the SIP.
- (2) The owner or operator of each source subject to this section shall bear the costs of providing public notice and stenographic transcripts of any public hearings held with respect to the proposal and, upon the request of the Department, shall obtain facilities for such public hearings.

D. Presumptive RACT requirements for certain NO_x sources. For each source of NO_x emissions subject to this section and specified in this subsection, compliance with the following requirements shall constitute RACT for such source:

- (1) For a coal-fired combustion unit with a rated heat input equal to or greater than 100 million BTU's/hour, presumptive RACT shall be the installation and operation of low NO_x burners with separated overfire air.
- (2) For a combustion unit with a rated heat input equal to or greater than 20 million BTU's/hour and less than 50 million BTU's/hour presumptive RACT shall be the performance of an annual adjustment or tuneup on the combustion process, to include, at a minimum:
 - (a) Inspection, adjustment, cleaning, or replacement of fuel-burning equipment, including the burners and moving parts necessary for proper operation as specified by the manufacturer;
 - (b) Inspection of the flame pattern or characteristics and adjustments necessary to minimize

total emissions of NO_x, and to the extent practicable minimize emissions of CO; and

- (c) Inspection of the air-to-fuel ratio control system and adjustments necessary to ensure proper calibration and operation as specified by the manufacturer.
- (3) For combustion units subject to Subsection D(2) of this section, any person who operates, or allows to be operated, such adjusted equipment shall record each adjustment conducted under the procedures in Subsection D(2) in a permanently bound log book, or other method approved by the Department, which contains, at a minimum:
 - (a) The date of the adjustment procedure;
 - (b) The name of the service company and technicians;
 - (c) The operating rate or load after adjustment;
 - (d) The CO and NO_x emission rates after adjustment;
 - (e) The excess oxygen rate after adjustment; and
 - (f) Other information required by the applicable operating permit.
- (4) For oil, gas, or combination oil/gas units, any person who operates, or allows to be operated, such units shall maintain records including a certification from the fuel supplier of the type of fuel and for each shipment of distillate oils number 1 or 2, a certification that the fuel complies with ASTM D396-78, Standard Specifications for Fuel Oils. For residual oils, minimum recordkeeping includes a certification from the fuel supplier of the nitrogen content of the fuel, and identification of the sampling method and sampling protocol.
- (5) For oil and gas and combination oil/gas fired units subject to Subsection D(2) of this section, any person who operates, or allows to be operated, such units shall make the annual adjustment in accordance with the EPA document, Combustion Efficiency Optimization Manual for Operators of Oil and Gas-fired Boilers, September 1983, (EPA-340/1-83-023) or equivalent procedures approved in writing by the Department.
- (6) For the following source types, presumptive RACT emission limitations are the installation, maintenance, and operation of the source in accordance with manufacturer's specifications:
 - (a) Boilers and other combustion sources with individual rated gross heat inputs less than 20 million BTU's/hour of operation;
 - (b) Combustion turbines with individual heat input rates less than 25 million BTU's/hour which are used for natural gas distribution;
 - (c) Internal combustion engines rated at less than 500 bhp (gross) which are set and maintaining four degrees retarded relative to standard timing;
 - (d) Incinerators or thermal/catalytic oxidizers used primarily for air pollution control;
 - (e) Any fuel-burning equipment, gas turbine, or internal combustion engine with an annual capacity factor of less than 5%, or an emergency standby engine operating less than 500 hours in a consecutive twelve-month period;
 - (f) Sources which have been approved as meeting LAER for NO_x emissions since November 15, 1990, with federally enforceable emission limitations; and

- (g) Sources which have been approved as meeting BACT for NO_x emissions since November 15, 1990, with federally enforceable emission limitations, although these sources shall still meet any more stringent category-wide RACT emission limitations promulgated by the EPA or under this chapter.

E. NO_x RACT emission averaging general requirements.

- (1) The owners and operators of NO_x emitting sources subject to this section may submit a written proposal to the Department as part of an application for operating permits to average emissions to meet RACT requirements of this section. Emission averaging which complies with applicable EPA requirements and is approved as a SIP revision, and which meets the criteria in Subsection E(2) of this section and is approved by the Department shall satisfy the requirements of this section. The Department shall approve, deny, or modify each averaging proposal.
- (2) The Department shall not approve an emission averaging proposal unless the proposal demonstrates compliance with the following requirements to the Department's satisfaction:
 - (a) The proposal shall demonstrate that the aggregate emissions achieved through the RACT averaging proposal are less than the sum of emissions that would be achieved by complying with the RACT requirement on a source specific basis.
 - (b) The averaging proposal shall include a tons per year emission cap and an emission rate such as pounds/million BTU's for each source in the averaging proposal that provide for verification and enforcement of the averaging proposal.
 - (c) Emission reductions attributed to the shutdown or curtailment of operation of a source may not be included in an averaging proposal.
 - (d) The proposal shall demonstrate that the ambient air quality impact resulting from implementation of the averaging proposal is less than or equivalent to the impact from each source complying with the RACT requirements in this section individually. The demonstration shall consider the area of emissions impact and the periods of time of emissions impact except as follows:
 - [1] For emission averaging involving sources located within the same nonattainment area, the demonstration shall only consider the periods of time of emissions impact.
 - [2] For emission averaging involving sources not located within the same nonattainment area which are located less than 125 miles from another source involved in the averaging proposal, the demonstration shall only consider the periods of time of emissions impact.
 - (e) The proposal shall provide that each source involved in the averaging proposal shall be required to use continuous emission monitors and record emissions following the requirements of Articles VII and VIII of this chapter. The participating sources are required to establish telemetry links between the sources and to provide real time emission data to all sources affected by the averaging proposal. For an averaging proposal involving sources on contiguous property, the Department may approve alternate requirements provided the proposal demonstrates that the alternate methodologies are credible, workable, replicable, and fully enforceable and accurately quantify emissions from all sources participating in the averaging program.
- (3) An averaging proposal shall not be implemented until approved by the EPA as a SIP revision.

- (4) Every source involved in the approved averaging proposal is in violation of this chapter when a source subject to the averaging proposal exceeds an emission limitation or averaging requirement established under this section.
 - (5) Additional emission reductions required under this chapter, the Clean Air Act, the Air Pollution Control Act, or any regulations promulgated under the Clean Air Act or Air Pollution Control Act shall be in addition to and not a substitute for the emission reductions required by the averaging proposal.
- F. Presumptive RACT requirements for certain VOC sources. For each source of VOC emissions subject to this section and specified in this subsection, the installation, maintenance, and operation of the source in accordance with manufacturer's specifications shall constitute RACT for such source:
 - (1) Sources which have been approved as meeting LAER for VOC emissions since November 15, 1990, with federally enforceable emission limitations; and
 - (2) Sources which have been approved as meeting BACT for VOC emissions since November 15, 1990, with federally enforceable emission limitations, although these sources shall still meet any more stringent category-wide RACT emission limitations promulgated by the EPA or under this chapter.
- G. Recordkeeping. Any person who operates, or allows to be operated, any source of nitrogen oxides or VOC's subject to this section shall keep records to demonstrate compliance with the requirements of this section.
 - (1) Such records shall provide sufficient data and calculations to clearly demonstrate that the requirements of this section are met.
 - (2) Data or information required to determine compliance shall be recorded and maintained in a time frame consistent with the averaging period of the requirement.
 - (3) The records shall be retained for at least two years and shall be made available to the Department on request.
 - (4) An owner or operator claiming that a source is exempt from the RACT requirements of this section, based on the source's potential to emit, shall maintain records that clearly demonstrate to the Department that the source is not subject to the requirements of this section.

§ 505-44. VOC sources.

- A. Surface coating processes. This subsection applies to a surface coating process category, regardless of the size of the facility, which emits or has emitted VOCs into the outdoor atmosphere in quantities greater than three pounds (1.4 kilograms) per hour, 15 pounds (7 kilograms) per day or 2.7 tons (2,455 kilograms) per year during any calendar year since January 1, 1987. (1) The limits from Subsection A and Table 2105.10, Number 7, for metal furniture coating, and Number 9, for large appliance coating; no longer apply to the large appliance and metal furniture surface coating process as of January 1, 2011. (2) The limits from Subsection A and Table 2105.10, Number 5, for paper coating no longer apply to the paper, film, and foil surface coating process as of January 1, 2011. (3) The limits from Subsection A and Table § 2105.10, Number 10 for miscellaneous metal parts and products, no longer apply to miscellaneous metal and/or plastic parts surface coating processes as of January 1, 2014. (4) The limits from Subsection A and Table § 2105.10, Number 6 for automobile and light-duty truck coating, no longer apply to automobile and light-duty truck assembly coatings as

of January 1, 2014. [Amended 5-4-2010 by Ord. No. 10-10; 5-22-2013 by Ord. No. 16-13]

- (1) No person shall operate, or allow to be operated, any source, for which the EPA has published volatile organic compound emissions Control Techniques Guidelines (CTG's) and for which there is a standard set forth in Table 2105.10 under this section, which has a potential uncontrolled emission rate, or has had a potential uncontrolled emission rate at any time since January 1, 1987, from its surface coating processes of more than three pounds per hour, or 15 pounds per day, or 2.7 tons per year of volatile organic compounds, including emissions from solvents used for clean-up and purging, unless:
- (a) For each coating used in such processes:
- [1] With an average solvent density of equal to or greater than 7.36 pounds per gallon, the weight of volatile organic compounds per volume of coating (minus water) used is no greater than the weight per volume specified in Table 2105.10 under this section; and
 - [2] With an average solvent density of less than 7.36 pounds per gallon, the result of the equation in Subsection A(1)(b) below is less than or equal to zero; or
- (b) The weight of volatile organic compounds emitted into the open air from such processes is reduced through the use of a vapor recovery system, incineration, or an equivalent compliance technique approved by the Department pursuant to this chapter by the percentage determined by the following equation:

$$\text{Percent reduction required} = 100 \left[1 - \frac{Y \left[1 - \frac{X}{Z1} \right]}{X \left[1 - \frac{Y}{Z2} \right]} \right]$$

where X = pounds of VOC per gallon of coating (minus water) for present coating

Y = pounds of VOC per gallon of coating (minus water) found in Table 2105.10

Z1 = density of VOC (in pounds of VOC per gallon of VOC) for present coating

Z2 = standard solvent density (7.36 pounds per gallon)

- (2) Any person who operates, or allows to be operated, any surface coating process for which the EPA has published volatile organic compound emissions control technique guidelines, regardless of the annual emission rate, shall:
- (a) Install and operate monitoring devices to continuously measure and record those operating parameters of such process and any control devices determined by the Department to be necessary to determine compliance with this section; and

- (b) Keep daily records of the quantity, composition, and density of coating(s) and solvents, including solvents used for clean-up and purging, used in each such process, and of those operating parameters of such processes and control devices determined by the Department to be necessary to determine compliance with this section. Such records shall be retained for two years and shall be made available to the Department upon request for inspection and copying.
- (3) Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No surface coating process which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- (4) Wood cabinet and furniture coating. No person shall operate, or allow to be operated, any source subject to this section that emits VOC's into the outdoor atmosphere from the application of wood cabinet and furniture coatings unless the coatings are applied using electrostatic, airless, curtain coating, roll coating, hand roller, hand brush, flow coating, dip coating, or high volume-low pressure application equipment. Air atomized sprays may be used to apply other coatings if the volume of the other coatings is less than 5% by volume of the total coating used at the source or to apply final repair coatings.
- (5) Miscellaneous metal parts and products. If more than one emission limitation for miscellaneous metal parts and products applies to a specific coating, then the least stringent emission limitation shall apply.

Table 2105.10

Allowable Content of Volatile Organic Compounds in Surface Coatings by Process

Surface Coating Processes	Allowable VOC Content Weight of VOC Per Volume of Coating (Minus Water) (pounds per gallon)
Can coating	
(a) Sheet basecoat	2.84
(b) Two-piece can exterior	2.84
(c) Two- and three-piece can interior body spray	4.25
(d) Two-piece can end exterior	4.25
(e) Side-seam spray	5.51
(f) End sealing compound	3.67
Coil coating	2.60
Fabric coating	2.92
Vinyl coating	3.76
Paper coating	1.92

Table 2105.10**Allowable Content of Volatile Organic Compounds in Surface Coatings by Process**

Surface Coating Processes	Allowable VOC Content Weight of VOC Per Volume of Coating (Minus Water) (pounds per gallon)
Automobile and light duty truck coating	
(a) Prime coat	1.92
(b) Top coat	2.84
(c) Repair	4.84
Metal furniture coating	3.00
Magnet wire coating	1.67
Large appliance coating	2.84
Miscellaneous metal parts and products	
(a) Topcoats for locomotives and heavy-duty trucks	3.50
(b) Hopper car and tank car interiors	3.50
(c) Pail and drum interiors	4.30
(d) Clear coatings	4.30
(e) Air-dried coatings	3.50
(f) Extreme performance coatings	3.50
(g) All other coatings	3.00
Wood cabinet and furniture finishing	
(a) Clear topcoat	5.9
(b) Wash coat	6.5
(c) Final repair coat	6.0
(d) Opaque ground coats and enamels	5.5
(d) All other coatings	7.0
(f) Clear sealers	6.2

B. Graphic arts systems.

- (1) This section applies to sources whose rotogravure and flexographic printing presses in themselves, or in combination with any surface coating operations subject to the provisions of § 505-44A of this chapter (relating to surface coating processes), have a potential uncontrolled emission rate of 1,000 pounds or more per day or 100 tons or more per year of volatile organic

compounds, including emissions from solvents used for clean-up and purging. No person shall operate, or allow to be operated, any source to which this section applies, unless one of the following emission limitations is met:

- (a) The volatile fraction of the ink, as applied to the substrate, contains 25.0 percent by volume or less of VOC and 75.0 percent by volume or more of water;
 - (b) The ink, as applied to the substrate, contains 60.0 percent by volume or more of solid material; or
 - (c) There is in operation a carbon adsorption system, an incinerator system, or an alternative volatile organic compound emission control system which recovers or destroys at least 90% by weight of the volatile organic compounds entering the system.
- (2) Any person who seeks to comply with the requirements of this section through the installation and operation of an emission control system as provided by Subsection B(1)(c) above shall operate such emission control system in conjunction with an emission capture system which is designed and operated consistent with good engineering practice and which achieves a contemporaneous, overall reduction in volatile organic compound emissions from each ink/press of at least:
- (a) 75.0 percent from publication rotogravure processes;
 - (b) 65.0 percent from other rotogravure processes; and,
 - (c) 60.0 percent from flexographic printing processes.
- (3) Presses which are used only to check the quality of the image formation of newly etched or engraved printing cylinders are exempted from this section provided the aggregate emissions from the presses do not exceed 400 pounds in any thirty-day running period.
- (4) Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No graphic arts process which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- (5) Measurements. Measurements of the volatile fraction of inks and of volatile organic compound emissions shall be performed according to the applicable procedures established in § 505-61 of this chapter.
- (6) Exempt other. The owner or operator of a flexible package printing press subject to § 505-52.2, Control of VOC emissions from flexible package printing, is no longer subject to all of Subsection B, Graphic arts systems, and shall be subject to all of § 505-52.2, Control of VOC emissions from flexible package printing as of January 1, 2012. **[Added 5-22-2013 by Ord. No. 14-13]**

C. Volatile organic compound storage tanks.

- (1) Capacity greater than or equal to 2,000 gallons but less than or equal to 40,000 gallons. No person shall place or store, or allow to be placed or stored, a volatile organic compound having a vapor pressure of 1.5 psia under actual storage conditions in any aboveground stationary storage tank having a capacity equal to or greater than 2,000 gallons but less than or equal to 40,000 gallons, unless there is in operation on such tank pressure relief valves which are set to

release at the higher of 0.7 psig of pressure or 0.3 psig of vacuum or at the highest possible pressure and vacuum in accordance with state or local fire codes, National Fire Prevention Association guidelines, or other national consensus standard approved in writing by the Department. Petroleum liquid storage vessels which are used to store produced crude oil and condensate prior to lease custody transfer are exempt from the requirement of this subsection.

(2) Capacity greater than 40,000 gallons.

- (a) No person shall place or store, or allow to be placed or stored, a volatile organic compound having a vapor pressure greater than 1.5 psia under actual storage conditions in any stationary tank, reservoir, or other container with a capacity greater than 40,000 gallons, unless such tank, reservoir, or other container is a pressure tank capable of maintaining working pressure sufficient to at all times prevent vapor or gas loss to the atmosphere or is equipped with:

- [1] An external or internal floating roof, except that this control equipment shall not be permitted if the volatile organic compounds have a vapor pressure of 11.0 psia or greater under actual storage conditions; or
- [2] A vapor recovery and disposal system reducing uncontrolled emissions of volatile organic compounds by at least 90% by weight. Compliance testing shall be done in accordance with the provisions of § 505-61 of this chapter.

- (b) This subsection does not apply to petroleum liquid storage tanks used to store waxy, heavy-pour crude oil or to tanks having a capacity less than 420,000 gallons used to store produced crude oil and condensate prior to lease custody transfer.

(3) Requirements for floating roofs. Floating roofs required by Subsection C(2) above shall comply with the following requirements:

- (a) External floating roofs shall be fitted with a primary seal and a continuous secondary seal extending from the floating roof to the tank wall (rim-mounted secondary seal). In addition, external floating roofs shall meet all of the following equipment requirements:

- [1] All seal closure devices must meet the following requirements:

- [a] There shall be no visible holes, tears, or other openings in the seals or seal fabric;
- [b] The seals shall be intact and uniformly in place around the circumference of the floating roof between the floating roof and the tank wall; and
- [c] For tanks with vapor-mounted primary seals, the accumulated area of gaps exceeding 1/8 inch in width between the secondary seal and the tank wall shall not exceed 1.0 square inches per foot of tank diameter. Compliance with this requirement shall be determined by physically measuring the length and width of all gaps around the entire circumference of the secondary seal in each place where a 1/8-inch uniform diameter probe passes freely (without forcing or binding against the seal) between the seal and tank wall and by summing the area of the individual gaps.

- [2] All openings in the external floating roof, except for automatic bleeder vents, rim space vents, and leg sleeves shall be:

- [a] Equipped with covers, seals, or lids which are kept in the closed position except when the openings are in actual use; and
 - [b] Equipped with projections into the tank which remain below the liquid surface at all times.
- [3] Automatic bleeder vents shall be closed at all times except when the roof is floated off or landed on the roof leg supports.
- [4] Rim vents shall be set to open when the roof is being floated off the leg supports or at the manufacturer's recommended setting.
- [5] Emergency roof drains shall be provided with slotted membrane fabric covers or equivalent covers which cover at least 90% of the area of the opening.
- (b) Internal floating roofs shall be fitted with a primary seal and shall comply with all of the following equipment requirements:
 - [1] A closure seal, or seals, to close the space between the roof edge and tank wall shall be used.
 - [2] There shall be no holes, tears, or other openings in the seal or any seal fabric or materials.
 - [3] All openings except stub drains shall be equipped with covers, lids, or seals such that:
 - [a] The cover, lid, or seal is in the closed position at all times except when in actual use;
 - [b] Automatic bleeder vents are closed at all times except when the roof is floated off or landed on the roof leg supports; and
 - [c] Rim vents, if provided, are set to open when the roof is being floated off the roof leg supports or at the manufacturer's recommended setting.
- (4) For volatile organic compounds whose storage temperature is governed by ambient weather conditions, the vapor pressure under actual storage conditions shall be determined using a temperature which is representative of the average storage temperature for the hottest month of the year in which such storage takes place.
- (5) For purposes of this section, existing petroleum liquid storage tanks of the following types are deemed to comply with the equipment requirements of this section. Such tanks shall comply with the inspection and recordkeeping requirements of Subsection C(6) of this section.
 - (a) Tanks which contain a petroleum liquid with a true vapor pressure less than 4.0 psia and which are of welded construction and which presently possess a metallic-type shoe seal, a liquid-mounted foam seal, a liquid-mounted liquid filled type seal, or other closure device of demonstrated equivalence approved in writing by the Department; and
 - (b) Tanks which are welded construction, equipped with a metallic-type shoe primary seal and which have a secondary seal from the top of the shoe seal to the tank wall (shoe-mounted secondary seal).
- (6) Inspection and recordkeeping. Any person who operates, or allows to be operated, a petroleum

liquid storage tank with a floating roof subject to this chapter shall:

- (a) Perform routine inspections annually in order to ensure compliance with this chapter, including a visual inspection of the secondary seal gap when inspecting external floating roof tanks;
- (b) For external floating roof tanks, measure the secondary seal gap annually in accordance with this chapter when the floating roof is equipped with a vapor-mounted primary seal; and
- (c) Maintain records of the types of volatile petroleum liquids stored, the maximum true vapor pressure of the liquid as stored, and the results of the inspections performed pursuant to this section. Copies of such records shall be retained for at least two years and shall be made available to the Department upon request for inspection or copying.

D. Gasoline loading facilities.

- (1) Handling. No person shall handle, or allow to be handled, gasoline in any bulk gasoline terminal, bulk gasoline plant, or other source subject to this section in such manner that it is spilled, discarded in sewers, stored in open containers, or otherwise handled so as to result in uncontrolled evaporation into the open air.
- (2) Transfers. No person shall transfer, or allow the transfer of, gasoline between any tank truck or trailer and any stationary storage tank located in a bulk gasoline terminal or bulk gasoline plant, or any small gasoline storage tank to which Subsection D(5) below applies, unless:
 - (a) A vapor balance system is in good working order and is designed and operated during the transfer in such manner that.
 - [1] Gauge pressure does not exceed 18 inches of water and vacuum does not exceed six inches of water in the gasoline tank truck;
 - [2] Readings do not equal or exceed 100% of the lower explosive limit (LEL, measured as propane) at one inch from all points on the perimeter of a potential leak source when measured by the method referenced in § 505-61 of this chapter during transfer operations; and
 - [3] There are no avoidable visible liquid leaks during trans operations;
 - (b) Any truck, vapor balance system, or vapor disposal system, where applicable, that exceeds the limits in Subsection D(2)(a) above is repaired and retested according to the method referenced in § 505-61 of this chapter within 15 days;
 - (c) There are no visually or audibly detectable leaks in the pressure/vacuum relief valves and hatch covers of the tank truck or the pressure/relief valves and hatch covers of the trailer, the truck tanks or storage tanks, or associated vapor and liquid lines during transfer; and
 - (d) The pressure and vacuum relief valves on stationary and vehicular tanks are set to release at no less than 0.7 psig of pressure or 0.3 psig of vacuum or the highest allowable pressure and vacuum as specified in state or local fire codes, or the National Fire Prevention Association guidelines or other national consensus standard approved in writing by the Department. Upon demonstration to the Department's written satisfaction by the owner or operator of an underground small gasoline storage tank that the vapor balance system

required by subsection e below will achieve a ninety-percent vapor recovery efficiency without a pressure and vacuum relief valve and that an interlock system sufficient to ensure connection of the vapor recovery line prior to transfer of gasoline will be used, no pressure and vacuum relief valve shall be required. The vacuum setting on the pressure and vacuum relief valve on an underground storage tank may be set at the lowest vacuum setting which is sufficient to keep the vent closed at zero pressure and vacuum.

(3) Bulk gasoline terminals.

(a) No person shall load, or allow to be loaded, gasoline from a bulk gasoline terminal into a vehicular tank unless:

- [1] There is in operation on the gasoline loading racks a vapor collection and disposal system reducing uncontrolled emissions by at least 90% by weight or emitting no more than 0.0668 pounds of gasoline for every 100 gallons of gasoline loaded;
- [2] There is in operation on the gasoline loading racks a loading arm with a vapor collection adaptor and pneumatic, hydraulic or other mechanical means to force a vapor-tight seal between the adaptor and the hatch of the vehicular tank. A means shall also be provided to prevent gasoline drainage from the loading device when it is not connected to the hatch, and to accomplish complete drainage before disconnection. When loading is done by means other than hatches, all loading and vapor lines shall be equipped with fittings which make vapor-tight connections and which are dosed when disconnected; and
- [3] Any person who operates, or allows to be operated, a bulk gasoline terminal shall maintain records of daily throughput. Such records shall be retained for not less than two years and shall be made available for inspection and copying by the Department upon request.

(b) Compliance testing shall be done according to the provisions of § 505-61 of this chapter.

(4) Bulk gasoline plants.

(a) No person shall load, or allow to be loaded, gasoline from a bulk gasoline plant stationary tank into a vehicular tank unless such loading is done by means of bottom filling with the inlet flush with the vehicular tank bottom or by means of top-submerged filling with the fill pipe extending to within six inches of the bottom of the vehicular tank throughout the loading operation.

(b) In addition, no person shall load, or allow to be loaded, gasoline into any stationary tank of a bulk gasoline plant, or from any such stationary tank into a vehicular tank, unless:

- [1] There is in operation on such stationary tank:
 - [a] A vapor balance system which emits no more than the amount of emissions permitted by Subsection D(3)(a) of this section; or
 - [b] A floating roof complying with Subsection C(2)(a) and Subsection C(3) of this section and a vapor recovery and disposal system which emits no more than the amount of emissions permitted by Subsection D(3)(a)[1] of this section; and
- [2] Any person who operates, or allows to be operated, a bulk gasoline plant shall

maintain records of daily throughput. Such records shall be retained for not less than two years and shall be made available for inspection and copying by the Department upon request.

(5) Small gasoline storage tanks.

- (a) No person shall load, or allow to be loaded, gasoline from any vehicular tank into any stationary storage tank having a capacity of 250 gallons or more if installed on or after January 1, 1979, or 2,000 gallons or more if installed before January 1, 1979, which is located in any gasoline handling facility unless there is in operation on such storage tank a vapor balance system which emits no more than the amount of emissions permitted by Subsection D(3)(a) of this section and unless the stationary tank is equipped with a submerged fill pipe extending to within six inches of the bottom of the tank throughout the loading operation.
- (b) The dispensing delivery tank shall remain vapor tight at all times except after all vapors have been disposed of in accord with the provisions of this section.
- (c) Stationary storage tanks with a capacity less than 550 gallons that are used for agricultural purposes and that are equipped with a submerged fill pipe shall be exempted from the provisions of this subsection.

(6) Gasoline tank trucks. No person shall transfer, or allow the transfer of, gasoline into or from a gasoline tank truck subject to Subsection D(3), (4) or (5) above unless such tank truck:

- (a) Has been tested within the prior twelve-month period in accordance with the procedure referenced in § 505-61 of this chapter;
- (b) Sustains a pressure change no more than three inches of water in five minutes when pressurized to a gauge pressure of 18 inches of water or evacuated to a gauge pressure of six inches of water during such testing;
- (c) Is repaired and retested within 15 days of a test which does not meet the requirements of Subsection D(6)(b) of this subsection; and
- (d) Displays a clear marking near the federal Department of Transportation certification plate which shows the most recent date upon which the gasoline tank truck passed the test required by this subsection.

(7) Recordkeeping. Any person who operates, or allows to be operated, a gasoline tank truck subject to the requirements of Subsection f above shall comply with the following recordkeeping requirements:

- (a) Records of all tests and repairs shall be maintained in a legible, readily available condition for two years after the date the testing or repair was completed. Such records shall include at a minimum:
 - [1] The gasoline tank truck serial number and identification of the vapor collection system involved;
 - [2] The date of testing;
 - [3] If applicable, the type of repair and the dates of repair and retesting;

- [4] For each test or retest, the initial test pressure and the time of the reading, the final test pressure and the time of the reading, the initial test vacuum and the time of the reading, and the final test vacuum and the time of the reading;
 - [5] At the top of each page, the company name, and the date and location of the tests on the page; and
 - [6] The name and title of the person conducting the test; and
- (b) Copies of all records and reports made pursuant to this Subsection shall be made available to the Department upon request for inspection and copying. A copy of the test results for each gasoline tank truck shall be kept with the truck.
- E. Gasoline dispensing facilities: Stage II control. **[Amended 6-7-2005 by Ord. No. 32-05]**
- (1) Applicability. This subsection applies to gasoline dispensing facilities with throughputs greater than 10,000 gallons per month. In the case of independent small business marketers of gasoline, as defined in Section 324 of the Clean Air Act [42 U.S.C.A. § 7625(c)], this subsection does not apply if the throughput is less than 50,000 gallons per month.
 - (2) Requirement for Stage II control. After the date specified in Subsection E(3), an owner or operator of a gasoline dispensing facility subject to this subsection may not transfer or allow the transfer of gasoline into a motor vehicle fuel tank unless the dispensing facility is equipped with a Department-approved and properly operating Stage II vapor recovery or vapor collection system. Unless a higher-percent reduction is required by the EPA under Section 182 of the Clean Air Act (42 U.S.C.A. § 7511a), approval by the Department of a Stage II vapor collection system will be based on a determination that the system will collect at least 95% by weight of the gasoline vapors that are displaced or drawn from a vehicle fuel tank during refueling and the captured vapors are returned to a vapor-tight holding system or vapor control system.
 - (3) Compliance schedule.
 - (a) Facilities for which construction was commenced after April 1, 1997, shall achieve compliance at the time of opening of the gasoline dispensing facility.
 - (b) Facilities which dispense greater than or equal to 120,000 gallons of gasoline per month, based on average monthly sales during calendar years 1995 and 1996, shall have achieved compliance by July 1, 1999.
 - (c) Facilities which dispense greater than 90,000 gallons per month but less than 120,000 gallons per month, based on average monthly sales during calendar years 1995 and 1996, shall have achieved compliance by December 31, 2000.
 - (4) Definition. For the purposes of this subsection, the term "construction" includes, but is not limited to, the addition or replacement of one or more underground gasoline storage tanks.
 - (5) General requirements. Owners or operators, or both, of gasoline dispensing facilities subject to this subsection shall:
 - (a) Install necessary Stage II vapor collection and control systems, provide necessary maintenance and make modifications necessary to comply with the requirements.
 - (b) Provide adequate training and written instructions to the operator of the affected gasoline dispensing facility to assure proper operation of the system.

- (c) Immediately remove from service and tag any defective nozzle or dispensing system until the defective component is replaced or repaired. A component removed from service may not be returned to service until the defect is corrected. If the Department finds that a defective nozzle or dispensing system is not properly tagged during an inspection, the component may not be returned to service until the defect is corrected and the Department approves its return to service in writing.
 - (d) Conspicuously post operating instructions for the system in the gasoline dispensing area which, at a minimum, include the following:
 - [1] A clear description of how to correctly dispense gasoline with the vapor recovery nozzles utilized at the site;
 - [2] A warning that continued attempts to dispense gasoline after the system indicates that the vehicle fuel tank is full may result in spillage or recirculation of the gasoline into the vapor collection system; and
 - [3] A telephone number established by the Department for the public to report problems experienced with the system.
 - (e) Comply with the functional testing and certification requirements specified in EPA's Stage II Enforcement and Technical Guidance Documents developed under Section 182 of the Clean Air Act to meet the Clean Air Act requirements, conduct Department-approved efficiency tests upon installation, addition, or replacement of one or more underground storage tanks, and conduct compliance tests at intervals thereafter according to the following schedule:
 - [1] For vapor balance systems, a pressure decay or leak test once every five years, a dynamic back-pressure test once every five years, and a blockage test once every five years; or
 - [2] For vacuum-assist systems, including Healy systems, a pressure decay or leak test once every 12 months, and an air to liquid volume ratio test once every 12 months; or
 - [3] For all other systems, tests and a testing schedule as approved by the Department.
 - (f) Maintain written and electronic records on the premises of the affected gasoline dispensing facility, available for inspection and copying by the Department upon request, of system test results, monthly throughput, type and duration of any failures of the system, maintenance and repair activities, training, and compliance records. The records shall be kept for at least two years, except for efficiency test reports which shall be kept since the most recently required testing date.
- (6) Exception. The requirements of this subsection shall not be effective unless such requirements are specifically mandated by controlling federal or state laws or regulations. Any rescission of the controlling federal and state laws and regulations mandating these requirements, or the suspension of enforcement of the same, shall result in the immediate suspension of the requirements of this section by the Department.

F. Degreasing operations.

- (1) Cold cleaning degreaser. No person shall operate, or allow to be operated, any cold cleaning

degreaser with a degreaser opening exceeding 10 square feet, unless:

- (a) There is in operation on such degreaser:
 - [1] A cover to prevent evaporation of solvent during periods of non-use;
 - [2] Equipment for draining cleaned parts; and
 - [3] A permanent conspicuous label summarizing the operating requirements set forth in Subsection F(1)(b) below; and
 - (b) Such degreaser is operated at all times in such manner that:
 - [1] Waste solvents are transferred to another party or disposed of by means insuring that no more than 20% by weight of the solvents evaporate into the open air;
 - [2] Waste solvents are stored in covered containers;
 - [3] The degreaser cover is closed when parts are not being processed through the degreaser; and
 - [4] Cleaned parts are drained for at least 15 seconds or until dripping ceases.
- (2) Open top vapor degreaser. No person shall operate, or allow to be operated, any open top vapor degreaser with a degreaser opening exceeding 10 square feet, unless:
- (a) Such degreaser has:
 - [1] A freeboard ratio greater than or equal to 0.75 and, if the degreaser opening is greater than 10 square feet, the degreaser cover is powered;
 - [2] A refrigerated chiller in operation;
 - [3] An enclosed design in which the cover or door opens only when the dry part is actually entering or exiting the degreaser; or
 - [4] A carbon adsorption system in operation:
 - [a] With ventilation greater than 50 cfm/ft² of air/vapor area when the cover is open; and
 - [b] Which emits less than 25 ppm of solvent by volume averaged over one complete adsorption cycle; and
 - (b) There is in operation on such degreaser:
 - [1] A cover that can be opened and closed easily without disturbing the vapor zone;
 - [2] A safety switch which shuts off the sump heat if condenser coolant is either not circulating or too warm (condenser flow switch and thermostat);
 - [3] A safety switch shuts off the spray pump if the vapor level drops more than four inches; and
 - [4] A permanent conspicuous label summarizing the operating requirements set forth in Subsection F(2)(c) below; and

- (c) Such degreaser is operated at all times in such manner that:
- [1] The degreaser cover is closed when parts are not being processed through the degreaser;
 - [2] All parts being degreased are racked to allow full drainage;
 - [3] Parts being degreased are moved in and out of the degreaser at less than 11 feet per minute;
 - [4] All pools of solvent on degreased parts are drained before the parts are removed from the degreaser;
 - [5] All degreased parts are drained within the degreaser for at least 15 seconds or until visually dry;
 - [6] Porous or absorbent materials, such as cloth, leather, wood or rope, are not degreased;
 - [7] Parts being degreased do not occupy more than half of the degreaser's open top area;
 - [8] Spraying is not done above the vapor level;
 - [9] Solvent leaks are immediately repaired or the degreaser immediately shut down;
 - [10] Waste solvents are transferred to another party or disposed of by a means insuring that no more than 20% by weight of the solvents evaporate into the open air;
 - [11] Waste solvents are stored in covered containers;
 - [12] Exhaust ventilation does not exceed 65 cfm/ft² of degreaser opening, unless necessary to meet federal Occupational Safety and Health Administration (OSHA) requirements;
 - [13] Ventilation fans are not operated near the degreaser opening; and
 - [14] Water is not visually detectable in solvent exiting the water separator.
- (3) Conveyorized degreasers. No person shall operate, or allow to be operated, any conveyorized degreaser with a degreaser opening exceeding 10 square feet, unless:
- (a) There is in operation on such degreaser:
- [1] A refrigerator chiller or a carbon adsorption system, with ventilation greater than 50 cfm/ft² of air/vapor area when downtime covers are open and which emits less than 25 parts per million of solvent by volume averaged over one complete adsorption cycle;
 - [2] A drying tunnel or another means such as a rotating (tumbling) basket sufficient to prevent degreased parts from carrying solvent liquid or vapor out of the degreaser;
 - [3] A safety switch which shuts off the sump heat if condenser coolant is either not circulating or too warm (condenser flow switch and thermostat);
 - [4] A safety switch which shuts off the spray pump if the vapor level drops more than

four inches;

- [5] A safety switch which shuts off the sump heat when the vapor level rises too high (vapor level control thermostat);
 - [6] Entrances and exits which silhouette the parts to be degreased so that the average clearance between parts and the edge of the degreaser is either less than four inches or less than 10% of the width of the opening;
 - [7] Covers for dosing off the entrances and exits during shutdown hours; and
 - [8] A permanent conspicuous label summarizing the operating requirements set forth in Subsection F(3)(b) below; and
- (b) Such degreaser is operated at all times in such manner that:
- [1] Exhaust ventilation does not exceed 65 cfm/ft² of degreaser opening, unless necessary to meet federal Occupational Safety and Health Administration (OSHA) requirements and work place fans are not used near the degreaser opening;
 - [2] Carry-out emissions are minimized by racking parts for best drainage and by maintaining vertical conveyor speed at less than 11 feet per minute;
 - [3] Waste solvents are transferred to another party or disposed of by a means insuring that no more than 20% by weight of the solvents evaporate into the open air;
 - [4] Waste solvents are stored in covered containers;
 - [5] Solvent leaks are immediately repaired or the degreaser shut down;
 - [6] Water is not visually detectable in solvent exiting the water separator; and
 - [7] Downtime covers are placed over conveyor entrances and exits immediately after the conveyor and exhaust are shut down and immediately before they are started up.

G. Cutback asphalt paving.

- (1) No person may cause, allow, or permit the use or application of cutback asphalt for paving operations except when:
 - (a) Long-life stockpile is necessary;
 - (b) Use or application between October 31 and April 30 is necessary;
 - (c) The cutback asphalt is used solely as a penetrating prime coat, a dust palliative, a tack coat, or a precoating of aggregate; or
 - (d) Skin patching is necessary during October. Skin patching shall be less than 500 feet continuous length, 1,300 linear feet per mile, and 1,750 square yards per lane mile.
- (2) No person shall use or apply emulsion asphalts that contain more than the maximum percentage of solvent shown in Table 2105.16.

Table 2105.16

Emulsion Grade	Type	Maximum Percentage of Solvent
E-1	Rapid Setting	0
E-2	Rapid Setting (Anionic)	0
E-3	Rapid Setting (Cationic)	3%
E-4	Medium Setting	12%
E-5	Medium Setting	12%
E-6	Slow Setting (Soft Residue)	0
E-8	Slow Setting (Hard Residue)	0
E-10	Medium Setting (High Float)	7%
E-11	High Float	7%
E-12	Medium Setting (Cationic)	8%

H. Ethylene production processes. No person shall operate, or allow the operation of, any ethylene production process, unless all waste gas streams are properly incinerated at no less than 1,300° F (700° C) for at least 0.3 second and the gases from all vapor blowdown systems are burned by smokeless flares.

I. Dry-cleaning facilities.

(1) Perchloroethylene dry-cleaning facilities.

(a) Emissions of perchloroethylene from any dry-cleaning facility shall be vented through a properly functioning condenser or carbon adsorption system.

(b) In addition, such dry-cleaning facilities shall comply with the following:

[1] Diatomaceous earth filters shall be cooked or otherwise treated so that the residue contains no more than 25% by weight of volatile organic compounds;

[2] Wet waste material from all solvents stills shall be reduced to no more than 60% by weight of volatile organic compounds;

[3] All filtration cartridges shall be drained in the filter housing for a minimum of 24 hours before being discarded; and

[4] Any component, including hose connections, valves, machine door gaskets, pumps, storage containers, water separators, filter sludge recovery units, distillation units, cartridge filters, and lint depositories found to be leaking volatile organic compounds shall be replaced or repaired within 24 hours of discovery of the leak.

(c) Measurements. Measurements relating to this section shall be performed according to the applicable procedures established by § 505-61 of this chapter.

(2) Petroleum solvent dry-cleaning facilities. This Subsection applies to all petroleum solvent dry-cleaning facilities, as defined in § 505-13 of this chapter, that consume 100 gallons or more of petroleum solvent on a daily basis.

- (a) Any person who operates, or allows to be operated, any petroleum solvent dry cleaning dryer subject to this section shall at all times limit daily VOC emissions to the atmosphere to an average of 3.5 pounds of VOC's per 100 pounds' dry weight of articles dry cleaned; or shall install, maintain, and operate a solvent recovery dryer in a manner such that the dryer remains dosed and the recovery phase continues until a final recovered solvent flow rate of no more than 50 milliliters per minute is attained and maintained.
- (b) Any person who operates, or allows to be operated, any petroleum solvent filtration system subject to this section shall at all times reduce the VOC content in all filtration wastes to one pound or less per 100 pounds dry weight of Part 1 dry cleaned, before disposal and possible exposure to the atmosphere; or shall install, maintain, and operate a cartridge filtration system, and drain the filter cartridges in their sealed housings for eight hours or more before their removal.
- (c) Any person who operates, or allows to be operated, any petroleum solvent dry-cleaning facility subject to this section shall repair all petroleum solvent vapor and liquid leaks within three working days after identifying the sources of the leaks. If necessary repair parts are not in hand, such parts shall be ordered within three working days, and repair the leaks no later than three working days following the arrival of the necessary parts.
- (d) Any person who operates, or allows to be operated, any petroleum solvent dry-cleaning facility subject to this section shall install, maintain, and operate equipment consistent with manufacturer's specifications and recommendations in order to minimize VOC emissions. In addition, all fugitive VOC emissions from the storage, handling, and transfer of petroleum solvent and petroleum solvent containing materials shall be minimized through employment of appropriate operating practice or procedures to reduce solvent loss and evaporation to the atmosphere.
- (e) Any person who operates, or allows to be operated, any affected petroleum solvent dry-cleaning facility shall demonstrate compliance as follows:

[1] For any dryer:

- [a] Calculate, record, and report to the Department the weight of VOC's vented from the dryer emission control device calculated by using the appropriate method under § 505-61 of this chapter;
- [b] Calculate, record, and report to the Department the dry weight of articles dry cleaned; and
- [c] Repeat Subsection I(2)(e)[1][a] and [b] above for normal operating conditions that encompass at least 30 dryer loads, which total not less than 4,000 pounds' dry weight, and represent a normal range of variations in fabric, solvents, load weights, temperatures, flow rates, and process deviations;

- [2] When a solvent recovery dryer is used, verify that the flow rate of recovered solvent from the solvent recovery dryer at the termination of the recovery phase is no greater than 50 milliliters per minute. This one-time procedure shall be conducted for a duration of no less than two weeks during which no less than 50% of the dryer loads shall be monitored for their final recovered solvent rate. The flow rate of recovered solvent shall be measured from the solvent-water separator unless otherwise approved in writing by the Department. Near the end of the recovery cycle, the flow

of recovered solvent shall be diverted to a graduated cylinder. The cycle shall continue until the maximum flow of solvent is no more than 50 milliliters per minute. The dry weight and type of Part 1 cleaned and the total length of the cycle shall be recorded and reported to the Department; and

- [3] Where employing a petroleum solvent filtration system, but not employing cartridge filters:
 - [a] Calculate, record, and report to the Department the weight of VOC's contained in each of at least five three-pound samples of filtration waste material taken at intervals of at least one week by employing the appropriate method under § 505-61 of this chapter;
 - [b] Calculate, record, and report to the Department the total dry weight of articles dry cleaned during the intervals between removal of filtration waste samples, as well as the total mass of filtration waste produced in the same period; and
 - [c] Calculate, record, and report to the Department the weight of VOC's contained in filtration waste material per 100 pounds' dry weight of articles dry cleaned.
- (f) Inspection and maintenance.
 - [1] Any person who operates, or allows to be operated, any affected petroleum solvent dry cleaning facility shall submit for approval to the Department an inspection and maintenance protocol including daily inspections of washers, dryers, solvent filters, settling tanks, vacuum stills, and all containers and conveyors of petroleum solvent to identify perceptible vapor or liquid leaks. A daily log shall be maintained to record the inspection and maintenance activities conducted under the approved protocol. The log shall be prepared and maintained in a format to be approved by the Department as part of the approved protocol.
 - [2] Dry cleaning system components found leaking liquid solvent shall be repaired immediately. Pipes, hoses, and fittings shall be examined for active dripping or dampness. Pumps and filters shall be closely inspected for leaks around seals and access covers. There shall be no visible signs of liquid solvent.
 - [3] Solvent vapor leaks shall be controlled by reducing the number of sources where solvent is exposed to the atmosphere. Under no circumstances shall there be any open containers (cans, buckets, barrels) of solvent or solvent-containing material. Equipment containing solvent (washers, dryers, extractors, and filters) shall remain closed at all times other than during maintenance or load transfer. Lint filter and button trap covers shall remain closed except when solvent-laden lint and debris are removed. Gaskets and seals should be inspected and replaced when found weak and defective. Solvent-laden clothes shall never be allowed to set exposed to the atmosphere for longer periods than are necessary for load transfers. Vents on solvent-containing waste and new solvent storage tanks shall be constructed and maintained in a manner that minimizes solvent vapor emissions.
- (g) Any person who operates, or allows to be operated, any affected petroleum solvent dry-cleaning facility shall install, operate, and maintain equipment consistent with manufacturer's specifications and recommendations.

- (h) Any person who operates, or allows to be operated, any affected petroleum solvent dry-cleaning facility shall maintain copies of all manufacturer's specifications and recommendations for dry cleaning equipment operated at the facility and records of operations, inspections, and maintenance such that the Department can determine compliance. These records shall be retained at the facility for a period of at least two years, shall be made available to the Department for inspection and copying upon request, and shall, at a minimum, include:
 - [1] Information on purchases, inventory, and daily consumption of petroleum solvents;
 - [2] Operational information on washers, dryers, and solvent filtration systems, including daily hours of operation, cycle times, and dry weight of articles cleaned; and
 - [3] Information on leak inspections and repairs for all equipment and components handling petroleum solvents.
 - (i) Any person who operates, or allows to be operated, any affected petroleum solvent dry-cleaning facility shall submit reports to the Department summarizing information on daily operations, inspections, and maintenance activities, and such other information as is required by the Department to determine compliance, on a schedule and in a form and manner as is prescribed by the Department.
- J. Synthetic organic chemical and polymer manufacturing - fugitive sources.
- (1) This section applies to sources with synthetic organic chemical and polymer manufacturing sources, other than equipment exempt under Subsection I(2) below, having a design capacity to manufacture a total of 4,000 tons per year or more of any one or a combination of the following:
 - (a) Synthetic organic chemicals listed in 40 CFR 60.489, as amended;
 - (b) Methyl tert-butyl ether (MTBE);
 - (c) Polyethylene;
 - (d) Polypropylene; and
 - (e) Polystyrene.
 - (2) This subsection shall not apply to:
 - (a) Equipment operated entirely under a vacuum;
 - (b) Equipment processing only fluids containing less than 10% by weight of volatile organic compounds; nor
 - (c) Equipment processing only fluids having a vapor pressure of less than 0.044 pound per square inch absolute under standard conditions.
 - (3) Any person who operates, or allows to be operated, a source subject to this section shall, as a condition to any installation permit for such source:
 - (a) Install a second valve, blind flange, plug, cap, or other equivalent sealing system on all open ended lines, except those equipped with safety pressure relief valves; and
 - (b) Develop and initiate a leak detection and repair program for all pumps, valves,

compressors, and safety pressure relief valves collectively referred to as components. The leak detection and repair program shall include, at a minimum, the following:

- [1] Attachment of an identification tag to or placement of any other permanent identification marking on each component. The identification shall be waterproof, be readily visible, and bear an identification number;
- [2] A leak check every three months of all components and at any time of any component with a leak that is detected by sight, sound, or smell, by methods referenced in § 505-61 of this chapter;
- [3] Attachment of a leak detection tag to each leaking component having a volatile organic compound leak equal to or greater than 10,000 ppm. The leak detection tag shall be waterproof, be readily visible, be a color that contrasts with the permanent identification, bear a leak detection number and the date on which the leak was detected, and indicate if the component cannot be repaired until a process shutdown and a shutdown is not scheduled to occur within 15 days from the date of detection. The leak detection tag shall not be removed from the component until the component has been repaired and retested, and the test indicates that the component does not have a volatile organic compound leak equal to or greater than 10,000 ppm;
- [4] Repair and retest of each leaking component within 15 days of detection or as soon as possible if a shutdown is required to make the repair;
- [5] A leak check of each safety/relief valve within 24 hours after such valve has been vented to the atmosphere, by methods referenced in § 505-61 of this chapter; and
- [6] Initiation and maintenance of a log of all components subject to leak inspection and maintenance.
 - [a] The log shall contain, at a minimum, the following:
 - [i] The identification number of each component;
 - [ii] The date on which each component was checked;
 - [iii] The total number of components checked;
 - [iv] The identification and leak detection number of each component found leaking;
 - [v] The location of each leaking component;
 - [vi] The type of each leaking component (for example: valve, seal, etc.);
 - [vii] The date on which each leaking component was discovered to be leaking;
 - [viii] The date of each repair;
 - [ix] The total number of components found leaking;
 - [x] The leak detection instrument readings before and after each repair;
 - [xi] Each component that can not be repaired until a process shutdown that will not occur within 15 days of detection; and

[xii] A record of the calibration of the leak detection monitoring instrument.

[b] The monitoring log shall be retained for two years after the date on which any leak check was made. The log shall be made available to the Department for inspection and copying at anytime upon oral or written request.

- (4) Any person who operates, or allows to be operated, a source subject to this section may submit to the Department for approval an alternative plan for the control of leaks from components, including a plan with less frequent testing based on superior past performance. The Department shall approve any plan that is equivalent to or better than the requirements of this section in terms of leak control efficiency and enforceability. A plan approved by the Department under this subsection shall not be effective until it is either approved by the EPA as a revision to the County's portion of the applicable SIP or becomes a part of a federally enforceable permit or order, whichever is first.
- (5) Any person who operates, or allows to be operated, a source subject to this section may submit to the Department for approval a list of components the inspection of which would involve a significant element of danger. The Department shall exempt the components on the list from the requirements of this section if such person can demonstrate to the satisfaction of the Department that a significant element of danger exists which cannot be reasonably eliminated, and that the exemptions will not result in a significant reduction of the volatile organic compound emission control effectiveness.

§ 505-45. Slag, coke, and miscellaneous sulfur sources.

- A. Slag quenching. No person shall operate, or allow to be operated, any slag handling operation, unless such person takes all reasonable actions and applies BACT to prevent and minimize the emission of hydrogen sulfide and other air contaminants from slag quenching. The Department may, by order or permit condition, require the implementation of such actions as:
 - (1) For granulated slag facilities:
 - (a) The rapid quenching of molten slag with a jet stream of water so as to suppress the formation of hydrogen sulfide; and/or
 - (b) The frequent removal of slag from slag pits to avoid its accumulation above the water surface.
 - (2) For hard slag facilities:
 - (a) Pouring practices that achieve the thinnest uniform slag layers practicable;
 - (b) Pit filling schedules that maximize the air cooling time between subsequent slag pours over a given surface and the air cooling time prior to the quenching of slag with water;
 - (c) Systems for distributing quench water uniformly over the slag surface at rates sufficiently high to minimize or prevent the evolution of hydrogen sulfide;
 - (d) Excavation of slag pits in such a way as to achieve the maximum practicable volume and/or surface area; and/or
 - (e) Modifications to the size and/or geometry of slag pits or facilities.
 - (3) For hard slag ladle pits which began operation after September 7, 1977, at least BACT shall be

utilized and not more than 2,300 tons of molten slag per acre of the new hard slag ladle pit shall be poured per day; provided, however, that upon demonstration to the satisfaction of the Department that the use of an alternative control technique will result in the emission of air contaminants less than or equal to that emitted by the use of the maximum daily pouring rate, the Department may permit the utilization of such control technique in lieu of the maximum daily pouring rate.

B. Coke ovens and coke oven gas.

- (1) Charging. No person shall operate, or allow to be operated:
 - (a) Any battery of coke ovens installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, in such manner that the aggregate of visible charging emissions exceeds a total of 55 seconds during any five consecutive charges on such battery; or
 - (b) Any other battery of coke ovens in such manner that the aggregate of visible charging emissions exceeds a total of 75 seconds during any four consecutive charges on such battery.
- (2) Door areas. No person shall operate, or allow to be operated, any battery of coke ovens in such manner that:
 - (a) For any batteries installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, at any time, there are visible emissions from more than 5% of the door areas of the operating coke ovens in such battery, excluding the two door areas of the last oven charged and any door areas obstructed from view;
 - (b) For any other batteries, other than those subject to Subsection B(2)(c) of this section, at any time, there are visible emissions from more than 10% of the door areas of the operating coke ovens in such battery, excluding the two door areas of the last oven charged and any door areas obstructed from view;
 - (c) For any of the following batteries, at any time, there are visible emissions from more than 8% of the door areas of the operating coke ovens in such battery, excluding the two door areas of the last oven charged and any door areas obstructed from view:

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #1	USX Corp. Clairton, PA
Coke Battery #2	USX Corp. Clairton, PA
Coke Battery #3	USX Corp. Clairton, PA
Coke Battery #7	USX Corp. Clairton, PA
Coke Battery #8	USX Corp. Clairton, PA
Coke Battery #9	USX Corp. Clairton, PA
Coke Battery #19	USX Corp. Clairton, PA ; or

- (d) Emissions from the door areas of any coke oven exceed an opacity of 40% at any time 15 or more minutes after such oven has been charged.

- (e) Unless for any of the following batteries at the USX Clairton Coke Works, Clairton, Pennsylvania, there is installed big plug doors on the coke side of each oven by January 1, 2000. Any replacement doors on these batteries, replaced after January 1, 2000, will also be big plug doors. A big plug door is a door that, when installed, contains a plug with minimum dimensions as listed below: **[Amended 8-15-1997]**

Specific Coke Oven Batteries

Source Name	Minimum Width (inches)	Minimum Depth (inches)
Coke Battery #1	18 1/4	14 1/2
Coke Battery #2	18 1/4	14 1/2
Coke Battery #3	18 1/4	14 1/2
Coke Battery #7	17	16 3/16
Coke Battery #8	17	16 3/16
Coke Battery #9	17	16 3/16
Coke Battery #19	17	16 1/4
Coke Battery #20	17	16 1/4

- (3) Charging ports. No person shall operate, or allow to be operated:
- (a) Any battery of coke ovens installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, in such manner that, at any time, there are visible emissions from more than 1% of the charging ports or charging port seals on the operating coke ovens of such battery; or
 - (b) Any other battery of coke ovens in such manner that, at any time, there are visible emissions from more than 2% of the charging ports or charging port seals on the operating coke ovens of such battery.
- (4) Offtake piping. No person shall operate, or allow to be operated:
- (a) Any battery of coke ovens installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, in such manner that, at any time, there are visible emissions from more than 4% of the offtake piping on the operating coke ovens of such battery; or
 - (b) Any other battery of coke ovens in such manner that, at any time, there are visible emissions from more than 5% of the offtake piping on the operating coke ovens of such battery.
- (5) Pushing. No person shall operate, or allow to be operated, any battery of coke ovens unless there is installed on such battery a pushing emission control device which is designed to reduce fugitive emissions from pushing to the minimum attainable through the use of BACT, nor shall any person operate, or allow to be operated any battery of coke ovens in such manner that: **[Amended 8-15-1997]**
- (a) At any time, the particulate mass emission rate from the pushing emission control device, for any battery other than those subject to Subsection B(5)(b) or (c) of this section, exceeds

a rate determined by an outlet concentration of 0.020 grain per dry standard cubic foot, or the rate determined by the following formula, whichever is greater:

$$A = 0.76W^{0.42}$$

where

A = allowable mass emission rate in pounds per hour per battery, and

W = actual coke pushing rate in tons of coke per hour per battery

- (b) At any time, the particulate mass emission rate from the pushing emission control device, for any of the following batteries, exceeds a rate determined by an outlet concentration of 0.010 grain per dry standard cubic foot:

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #1	USX Corp. Clairton, PA
Coke Battery #2	USX Corp. Clairton, PA
Coke Battery #3	USX Corp. Clairton, PA
Coke Battery #7	USX Corp. Clairton, PA
Coke Battery #8	USX Corp. Clairton, PA
Coke Battery #9	USX Corp. Clairton, PA
Coke Battery # 19	USX Corp. Clairton, PA
Coke Battery #1	Shenango Inc. Neville PA

- (c) At any time, the particulate mass emission rate from the pushing emission control device, for any of the following batteries, exceeds a rate determined by an outlet concentration of 0.040 pound per ton of coke:

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #13	USX Corp. Clairton, PA
Coke Battery #14	USX Corp. Clairton, PA
Coke Battery #15	USX Corp. Clairton, PA
Coke Battery #20	USX Corp. Clairton, PA
Coke Battery B	USX Corp. Clairton, PA

- (d) Fugitive pushing emissions or emissions from the pushing emission control device outlet equal or exceed an opacity of 20% at any time, except if the Department determines in writing, upon written application from the person responsible for the coke ovens setting forth all information needed to make such determination, that such emissions are of only minor significance with respect to causing air pollution and do not prevent or interfere with the attainment or maintenance of any ambient air quality standard (any such

determination shall be submitted as a proposed revision to Allegheny County's portion of the SIP);

- (e) Visible emissions from the transport of hot coke in the open atmosphere exceed 10% opacity at any time; or
- (f) For any of the following batteries, at any time, the hot coke fails to be held under the hood of the pushing emission control (PEC) device for at least 67 seconds immediately after the pusher ram begins to move and the damper to the PEC device is opened or for at least 15 seconds immediately following the fall of the last of the coke into the hot car, whichever is longer; except that this subsection shall only be effective during the period from 30 days following the issuance of a written notice by the Department to the owner or operator of such battery that EPA has required the implementation of the contingency measures under the portion of the PM-10 SIP for the Liberty Borough/Clairton area, until issuance of a written notice by the Department that such measures are no longer required. **[Amended 5-4-2010 by Ord. No. 11-10; 11-5-2014 by Ord. No. 17-14]**

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #1	USX Corp. Clairton, PA
Coke Battery #2	USX Corp. Clairton, PA
Coke Battery #3	USX Corp. Clairton, PA
Coke Battery #7	USX Corp. Clairton, PA
Coke Battery #8	USX Corp. Clairton, PA
Coke Battery #9	USX Corp. Clairton, PA
Coke Battery #13	USX Corp. Clairton, PA
Coke Battery #14	USX Corp. Clairton, PA
Coke Battery #15	USX Corp. Clairton, PA
Coke Battery #19	USX Corp. Clairton, PA
Coke Battery #20	USX Corp. Clairton, PA

(6) Combustion stacks.

- (a) No person shall operate, or allow to be operated, any battery of coke ovens in such manner that, at any time, emissions from the combustion stack serving such battery:
 - [1] For any battery of coke ovens installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, exceed a particulate concentration of 0.015 grain per dry standard cubic foot;
 - [2] For any battery other than those subject to Paragraph f. 1 of this section, exceed a particulate concentration of 0.030 grain per dry standard cubic foot;
 - [3] Equal or exceed an opacity of 20% for a period or periods aggregating in excess of three minutes in any sixty-minute period; or
 - [4] Equal or exceed an opacity of 60% at any time.

- (b) Measurements of opacity shall be performed according to the methods for visible emissions established by § 505-68 of this article. **[Added 2-6-2007 by Ord. No. 4-07⁴]**
- (7) Quenching. No person shall quench, or allow the quenching of, coke unless the emissions from such quenching are vented through a baffled quench tower and the water used for such quenching is equivalent to, or better than, the water quality standards established for the nearest stream or river by regulations promulgated by the DEP under the Pennsylvania Clean Streams Law, Act of June 22, 1937, PL. 1987, as amended, 35 P.S. 691.1 et seq., except that water from the nearest stream or river may be used for the quenching of coke. The nearest stream or river to the USX Corporation facility in Clairton, PA, shall be the Monongahela River.
- (8) Coke oven gas. Except as provided for in this section, no person shall operate, or allow to be operated, any source in such manner that unburned coke oven gas is emitted into the open air. In addition, no person shall flare, mix, or combust coke oven gas, or allow such gas to be flared, mixed, or combusted, unless the concentration of sulfur compounds, measured as hydrogen sulfide, in such gas is less than or equal to the following concentrations. The concentration of sulfur compounds specified by this subsection shall include tailgas sulfur, measured as hydrogen sulfide, emitted from sulfur removal equipment. **[Amended 8-15-1997]**
- (a) Where the rated production capacity of the coke plant producing such gas is less than 70 million standard cubic feet of coke oven gas per day, a concentration of 70 grains per hundred dry standard cubic feet of coke oven gas or the concentration determined by the following formula, whichever is less:
- $$A = 156E^{-0.27} \quad \text{where } A = \text{allowable hydrogen sulfide content in grains per hundred dry standard cubic feet of coke oven gas, and}$$
- $$E = \text{maximum coke oven gas production rate in millions of cubic feet per day}$$
- (b) For all coke batteries installed, replaced, or reconstructed, or at which a major modification was made on or after January 1, 1978, where the rated production capacity of the coke plant producing such gas is equal to or more than 70 million standard cubic feet of coke oven gas per day, other than those subject to Subsection B(8)(c) of this section, a concentration of 10 grains per 100 dry cubic feet of coke oven gas;
- (c) For the following battery, on and before December 31, 1996, a concentration of 45 grains per 100 dry cubic feet of coke oven gas, and after December 31, 1996, a concentration of 34 grains per 100 dry cubic feet of coke oven gas:

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #1	Shenango Inc. Neville PA

- (d) The standard set forth in Subsection B(8)(b) of this section for the following coke oven batteries designated 13, 14, 15, 20, and B at the USX Corporation Clairton Works shall be deemed satisfied for such batteries if the coke oven gas from the following batteries and treated by the Clairton Works coke oven gas desulfurization system in existence as of June

4. Editor's Note: This amendment was initially adopted by the County Health Department 11-1-2006.

24,1993, has a sulfur compound concentration, measured as H₂S, of no greater than 40 grains per 100 dry standard cubic feet of coke oven gas produced by the Clairton Works, when all sulfur emissions from its Claus Sulfur Recovery Plant and the tail gas cleaning equipment thereon, expressed as equivalent H₂S, are added to the measured H₂S.

Specific Coke Oven Batteries

Source Name	Location
Coke Battery #1	USX Corp. Clairton, PA
Coke Battery #2	USX Corp. Clairton, PA
Coke Battery #3	USX Corp. Clairton, PA
Coke Battery #7	USX Corp. Clairton, PA
Coke Battery #8	USX Corp. Clairton, PA
Coke Battery #9	USX Corp. Clairton, PA
Coke Battery #13	USX Corp. Clairton, PA
Coke Battery #14	USX Corp. Clairton, PA
Coke Battery #15	USX Corp. Clairton, PA
Coke Battery #19	USX Corp. Clairton, PA
Coke Battery #20	USX Corp. Clairton, PA
Coke Battery B	USX Corp. Clairton, PA

- (e) For all other coke batteries, where the rated production capacity of the coke plant producing such gas is equal to or more than 70 million standard cubic feet of coke oven gas per day, other than those subject to Subsection B(8)(b) or (c) of this section, a concentration of 50 grains per 100 dry cubic feet of coke oven gas.
- (9) Soaking. At no time shall soaking emissions from a standpipe cap opening exceed twenty-percent opacity. An exclusion from this opacity limit shall be allowed for two minutes after a standpipe cap is opened. Compliance with this standard shall be determined through observing the standpipe from a position where the observer can note the time the oven is dampered off and, following the two-minute exclusion, read the soaking emissions from the open standpipe in accordance with Method 9. **[Added 8-27-2013 by Ord. No. 21-13]**
- C. Miscellaneous sulfur-emitting processes.
- (1) Silicon carbide manufacturing. No person shall operate, or allow to be operated, any silicon carbide manufacturing process unless there is in operation on such process air pollution control equipment which reduces uncontrolled emissions of sulfur oxides, expressed as sulfur dioxide, by at least:
- (a) Eighty-five percent, if such process uses coke with a sulfur content of 2% by weight; or
 - (b) A control efficiency which achieves equivalent emissions per ton of product to Subsection C(1)(a) above, if such process uses coke with a sulfur content other than 2% by weight
- (2) Measurements. To determine compliance with Subsection C(1) above, measurements of sulfur oxide emissions and measurements of the sulfur content of coke shall be performed according

to the applicable procedures established by § 505-61 of this chapter.

§ 505-46. Incineration and combustion sources.

A. Incinerators.

- (1) Prohibition of single-chamber incinerators. No person shall operate, or allow to be operated, any single-chamber incinerator, except a sewage sludge incinerator complying with the particulate matter and malodor emissions standards of §§ 505-31 and 505-33 of this chapter and with Subsection A(4) and (5) below.
- (2) Afterburning. All incinerators shall have an afterburning residence time of at least 0.50 second at a temperature of at least 1,400° F for putrescible and nonchemical refuse or a temperature of at least 250° F above the auto-ignition temperature of any chemical refuse. Incinerators on which construction commenced prior to February 28, 1977, and which do not comply with the requirements of the previous sentence may operate only if:
 - (a) An operating permit is issued for such incinerator;
 - (b) Only Type "O" waste is burned in such incinerator;
 - (c) The incinerator complies with the malodor emissions standards of § 505-33 of this chapter; and
 - (d) The incinerator complies with Subsection A(3), (4) and (6) below.
- (3) Domestic refuse-burning equipment. No person shall operate, or allow to be operated, any domestic refuse-burning equipment having a rated capacity of less than five tons per hour, except between the hours of 10:00 a.m. and 4:00 p.m.
- (4) Visible emissions. No person shall operate, or allow to be operated, any incinerator in such manner that the opacity of visible emissions from such incinerator, excluding uncombined water, equal or exceed an opacity of 20% at any time.
- (5) Particulate matter. No person shall operate, or allow to be operated, any incinerator in such manner that emissions of particulate matter from such incinerator exceed the following rates at any time. Linear interpolation shall be applied to determine the allowable emissions for charge rates other than those specified below.
 - (a) For incinerators with an actual charging rate less than four tons per hour, the rate of 0.1250 pound per 100 pounds per hour of actual charge rate; or
 - (b) For incinerators with an actual charging rate of four tons per hour or greater, the rate specified below:

Actual Charge Rate in Tons Per Hour	Allowable Emissions in Pounds Per Hour
4	10
8	15
12	20
18	27

Actual Charge Rate in Tons Per Hour	Allowable Emissions in Pounds Per Hour
24	33
32	40
40	48

(6) Federal requirements.

- (a) All solid waste combustion emissions and operating standards and operator training programs promulgated or developed by the Administrator under Sections 111 and 129 of the Clean Air Act are hereby incorporated by reference into this chapter. Additions, revisions, or deletions to the standards and programs adopted by the Administrator are incorporated into this chapter and are effective on the date established by the federal standards and programs, unless otherwise established by regulation under this chapter.
 - (b) No person shall operate, or allow to be operated, any incinerator in such manner as to violate any of the applicable provisions of Subsection A(6)(a) of this subsection.
- (7) Measurements. Measurements of afterburner temperatures, particulate emissions, and visible emissions shall be conducted according to the procedures set forth in Article VII of this chapter.

B. Waste-derived liquid fuel.

- (1) Fuel specifications. Specification fuel shall comply with the following fuel specifications, and all specifications in this Subsection that are defined in parts per million or percentage are by weight:

- (a) For all equipment subject to this section:

Arsenic	5 ppm maximum
Cadmium	2 ppm maximum
Chromium	10 ppm maximum
Lead	100 ppm maximum
PCB's	5 ppm maximum
Ash	0.3% maximum
Bottom Sediment and Water	2.0% maximum
Flash Point	100° F. minimum

except:

- [1] The minimum flash point specification does not apply to waste-derived liquid fuels that are both generated and burned at the same location; and
 - [2] The maximum allowed ash content is 1.2% for fuel-burning or combustion space heaters with a rated heat input of 500,000 BTU's per hour or less.
- (b) For equipment subject to Subsection B(2)(f)[1] of this section:

Total Halogens	1,000 ppm maximum
Heat of Combustion	18,000 BTU/lb. minimum

(c) For equipment subject to Subsection B(2)(f)[2] of this section:

Total Halogens	1,000 ppm maximum
Heat of Combustion	8,000 BTU/lb. minimum

(d) For equipment subject to Subsection B(2)(f)[3][b] of this section:

Total Halogens	4,000 ppm maximum
Heat of Combustion	8,000 BTU/lb. minimum

(2) General. Except as provided for in Subsection B(3) of this section, no person shall burn or allow to be burned waste-derived liquid fuel in any fuel-burning or combustion equipment, process equipment, or incinerator, regardless of size or rated capacity and irrespective of exceptions listed in Article II or III of this chapter, unless:

- (a) An installation permit is issued for such fuel-burning or combustion equipment, process equipment, or incinerator;
- (b) An operating permit expressly permits the burning of waste-derived liquid fuel pursuant to this section is issued for such fuel-burning or combustion equipment, process equipment, or incinerator;
- (c) Only specification fuel under Subsection B(1) of this section is burned or allowed to be burned in such equipment;
- (d) The exhaust stream from the equipment is vented to a stack with a height that is adequate to ensure that the emissions from the stack do not result in excessive ambient air concentrations of any air pollutant as a result of such things as, but not limited to, atmospheric downwash, wakes or eddy effects created by the source itself, nearby structures, or nearby terrain features;
- (e) A representative sample of the fuel being used, is taken and analyzed pursuant to § 505-69A of this chapter, and a written report of the results of the analysis is submitted to the Department as part of the application for any installation permit required by this section, as part of the operating permit application, and every 12 months after approval of the initial operating permit; and
- (f) Size of equipment.
 - [1] For small equipment: The equipment has a direct emission reduction of at least 99.0 percent to be determined in accordance with § 505-69B of this chapter.
 - [2] For large equipment: The equipment has a direct emission reduction of at least 99.9% to be determined in accordance with § 505-69B of this chapter.
 - [3] For industrial boilers, utility boilers, or industrial furnaces or processes with a rated heat input of 5,000,000 BTU's per hour or greater:

- [a] The equipment complies with Subsection B(2)(f)[2] of this subsection; or
- [b] In order to invoke Subsection B(1)(d) of this section:
 - [i] The equipment has a direct emission reduction of at least:
 - [A] 99.9% to be determined in accordance with § 505-69B(2)(a) or (b) of this chapter; or
 - [B] 99.5% to be determined in accordance with § 505-69B(1) of this chapter;
 - [ii] A diffusion modeling analysis of the ambient air quality impact of the emissions related to the burning of halogenated compounds under worst case conditions (both operating and meteorological) is conducted using a model acceptable to the Department, and a report of the analysis to the Department is submitted as a part of the application for any installation permit required by this section and as part of the initial operating permit application; and
 - [iii] The diffusion modeling analysis indicates, to the Department's satisfaction that the emissions from the waste-derived liquid fuel-burning source will not result in excessive concentrations of any air pollutant.
- (g) The analysis of the representative samples of waste-derived liquid fuel required by the section shall be conducted using the methods specified in § 505-69.
- (3) Exemption. Any waste-derived liquid fuel may be burned in any fuel-burning or combustion equipment, process equipment or incinerator with a rated heat input of 5,000,000,000 BTU's per hour or greater but only if:
 - (a) The owner or operator of the equipment has been issued current operating permits by the Department for that equipment;
 - (b) The rate at which waste-derived liquid fuel is being burned by the equipment at any time does not exceed 0.25 percent by weight of the rate at which the total amount of fuel is being burned by that equipment at that time;
 - (c) No waste-derived liquid fuel is burned during the start-up or shutdown of the equipment; and
 - (d) The owner or operator submits a report to the Department every 12 months that includes:
 - [1] The dates and times of the burning of all waste-derived liquid fuels in the last 12 months;
 - [2] A general description of all waste-derived liquid fuels burned at each date and time;
 - [3] The volumes of each type of waste-derived liquid fuel burned at each date and time; and
 - [4] The total volume of fuel burned at each date and time.
- (4) Installation permits. The applications for and issuance of installation permits for the burning of waste-derived liquid fuel in any fuel-burning or combustion equipment, process equipment, or

incinerator required by this section shall be governed by the applicable requirements and standards of Article II of this chapter except as otherwise specified by this section. In addition to the requirements of Article II of this chapter, an application for an installation permit required by this section shall include:

- (a) A report of the results of the analysis of a representative sample of the fuel to be used as required by Subsection B(2)(e) of this section; and
 - (b) For equipment in which an owner or operator is requesting to burn waste-derived liquid fuel pursuant to Subsection B(1)(d) of this section, a report of the results of a diffusion modeling analysis as required by Subsection B(2)(f)(3)[b][2] of this section.
- (5) Alternative standards and procedures.
- (a) The Department may, on a case-by-case basis, approve an alternative standard or procedure to be followed by the owner or operator of specific waste-derived liquid fuel-burning equipment in lieu of a requirement of this section, provided that:
 - [1] The request for the alternative standard or procedure is made in writing to the Department and includes all information necessary for the Department to rule on the request;
 - [2] The request for the alternative standard or procedure demonstrates to the Department's satisfaction that:
 - [a] The proposed alternative standard or procedure is equivalent to or better than the requirement of this section in terms of emission control efficiency, reliability, availability, enforceability, and overall effect on the public health; or
 - [b] Strict compliance with the requirements of this section is unreasonable or impossible in the particular circumstances involved, and the proposed alternative standard or procedure will minimize, to the maximum extent possible, the potential for the public's exposure to emissions from the waste-derived liquid fuel-burning activity.
 - (b) The burden of demonstrating the equivalency of such alternative standards or procedures to the Department's satisfaction and the burden of demonstrating the unreasonableness or impossibility of strict compliance with the requirements of this section and the compliance of the proposed alternative with the requirements of Subsection B(5)(a)[2] of this subsection to the Department's satisfaction and all expenses incident thereto shall be borne by the owner or operator of the source affected.
 - (c) Should the Department preliminarily approve a request under this subsection, the Department shall give public notice of the request for and preliminary approval of the alternative standard or procedure with:
 - [1] Such notice to include:
 - [a] The name and address of the owner or operator;
 - [b] A description of the equipment;
 - [c] The address of the location of the equipment;

- [d] A summary of the reason for the request and justification for the alternative standard or procedure;
 - [e] The address of the Department;
 - [f] The date, 30 days from the date of the publication of this notice, until which the Department will receive public comments concerning the preliminary approval of the alternative standard or procedure; and
- [2] Such notice to be published in a newspaper of general circulation in Allegheny County, Pennsylvania, for one day no later than 10 days after the preliminary approval is made by the Department.
- (d) After any public comment period required by Subsection B(5)(c) of this subsection, the Department may determine, at its sole discretion, that a public hearing is required before approving or denying a request under this subsection, and if such a hearing is determined to be required, the Department shall give public notice of such hearing in such manner as is deemed appropriate by the Department.
- (e) Approval to operate using an alternative standard or procedure in lieu of a requirement of this section must be received, in writing, from the Department prior to the use of such alternative standard or procedure.
- (f) The Department may, upon receiving a written request from the owner or operator setting forth all necessary information, approve in writing an analysis method other than those specified in § 505-69 if it finds that, under the circumstances:
 - [1] Such alternative analysis method is equivalent to or better than the method specified in § 505-69 in terms of reliability, availability, feasibility, and enforceability; and
 - [2] Such alternative analysis method is consistent with accepted testing practices for obtaining accurate results which are representative of the conditions evaluated.
- (6) Violations. Failure to comply with any requirement of this section shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter.

C. Hospital/Medical/Infectious waste incinerators.

- (1) Applicability. Except as provided for by Subsection C(5)(a) and (b), this section applies to all hospital/medical/infectious waste incinerators for which construction was commenced on or before June 20, 1996.
- (2) Definitions. All terms not defined in this chapter are hereby incorporated by reference from the Clean Air Act and 40 CFR Part 60 Subparts A, B, and Ec.
- (3) Incorporation by reference. All parts of 40 CFR Part 60 Subpart Ec are hereby incorporated by reference into this chapter, excluding the following subparts:
 - (a) § 60.52- Emission limits;
 - (b) § 60.54c-Siting Requirements;
 - (c) § 60.56c(b)(12)-EPA Reference Method 22 Fugitive Ash Visible Emission Observation;
 - (d) § 60.56c(c)(3)-Fugitive Flyash/Bottom Ash Handling and Storage Visible Emission Limit;

- (e) § 60.58c(b)(2)(ii) Results of Fugitive Visible Emission Observation; and
 - (f) § 60.58c(b)(7) Documentation of Siting Requirements.
- (4) Permits required. Beginning September 15, 2000, or on the effective date of this subsection, whichever date is later, designated facilities subject to this section shall operate under a Title V, Part 70 permit.
- (5) Exemptions.
- (a) The following combustors shall not be subject to this section:
 - [1] A combustor when only pathological waste, low-level radioactive, and/or chemotherapeutic waste is burned, provided that the owner or operator of the combustor:
 - [a] Notifies the Department of an exemption claim; and
 - [b] Keeps records on a calendar quarter basis of the periods of time when only pathological, low-level radioactive, and/or chemotherapeutic waste is burned.
 - [2] Any co-fired combustor if the owner or operator of the co-fired combustor:
 - [a] Notifies the Department of an exemption claim; and
 - [b] Provides an estimate of the relative weight of hospital, medical/infectious waste and other fuels and/or to be combusted; and
 - [c] Keeps records on a calendar quarter basis of the weight of hospital waste, medical/infectious waste and other fuels combusted at the co-fired combustor.
 - [3] Any combustor required to have a permit under Section 3005 of the Solid Waste Disposal Act is not subject to this section.
 - [4] Any combustor which meets the applicability requirements under 40 CFR Part 60, Subparts Cb, Ea and Eb.
 - [5] Any pyrolysis unit.
 - [6] Cement kilns firing hospital waste and/or medical/infectious waste.
 - (b) Physical or operational changes made to an existing HMIWI unit solely for the purpose of complying with emission standards under this section are not considered a modification and do not result in an existing HMIWI becoming subject to the provisions of this subsection.
- (6) Emission limitations.
- (a) On and after the date on which compliance is required under paragraph g of this section, no owner or operator of a HMIWI facility shall discharge, or allow to be discharged, to the atmosphere from that HMIWI facility any gases that contain stack emissions in excess of the limits presented in Table 1 of this subsection:

Table 1

Pollutant	Units (seven-percent oxygen, dry basis)	Emission limits		
		HMIWI size		
		Small	Medium	Large
Particulate matter	Milligrams per dry standard cubic meter (grains per dry standard cubic foot)	115 (0.05)	69 (0.03)	34 (0.015)
Carbon monoxide	Parts per million by volume	40	40	40
Dioxins/furans	Nanograms per dry standard cubic meter total dioxins/furans (grains per billion dry standard cubic feet) or nanograms per dry standard cubic meter TEQ (grains per billion dry standard cubic feet)	125 (55) or 2.3 (1.0)	125 (55) or 2.3 (1.0)	125 (55) or 2.3 (1.0)
Hydrogen chloride	Parts per million by volume or percent reduction	100 or 93%	100 or 93%	100 or 93%
Sulfur dioxide	Parts per million by volume	55	55	55
Nitrogen oxides	Parts per million by volume	250	250	250

- (b) On and after the date on which compliance is required under Subsection C(7) of this section no owner or operator of a HMIWI facility shall discharge, or allow to be discharged, to the atmosphere from that HMIWI facility any gases that exhibit greater than ten-percent opacity (six-minute block average) as defined by § 505-68 of this chapter.

(7) Compliance dates.

- (a) Except as provided for in Subsection C(7)(b), (c) and (d), one year after the effective date of this subsection, or September 15, 2002, whichever is earlier, the owner or operator of any HMIWI facility shall be in compliance with all provisions of this section.
- (b) The owner or operator of a HMIWI facility required to install air pollution equipment may request an extension beyond one year after the effective date of this subsection, and shall submit and comply with a compliance plan and schedule subject to the approval of the Department that meets the following milestones:

- [1] No later than one year after the effective date of this subsection a control plan with any site specific parameters shall be submitted in accordance with 40 CFR 60.56c(I);
- [2] No later than one year after the effective date of this subsection services of an

architectural and engineering firm regarding air pollution device(s) shall be obtained;

- [3] No later than 18 months after the effective date of this subsection design drawings of an air pollution device(s) shall be obtained;
 - [4] No later than 18 months after the effective date of this subsection air pollution device(s) shall be ordered;
 - [5] No later than two years after the effective date of this subsection site preparation for installation of the air pollution device(s) shall be initiated;
 - [6] No later than 33 months after the effective date of this subsection all on-site construction or installation of the air pollution device(s) shall be completed;
 - [7] No later than 33 months after the effective date of this subsection initial startup of the air pollution device(s) shall be conducted;
 - [8] No later than 33 months after the effective date of this subsection initial compliance test(s) of the air pollution device(s) shall be conducted; and
 - [9] No later than three years after the effective date of this subsection, or September 15, 2002, whichever is earlier, no owner or operator of an HMIWI shall allow or cause to be allowed an HMIWI to be operated except in compliance with all provisions of this section.
- (c) The owner or operator who submits in writing to the Department a request for the extension described in Subsection C(7)(b) of this subsection shall also submit to the Department no later than 12 months after the effective date of this subsection the following information:
- [1] An analysis to support the need for an extension, including an explanation of why one year after the effective date of this subsection is not sufficient time to comply with Subsection C(7)(a) of this subsection, and
 - [2] A demonstration of the feasibility to transport the waste off-site to a commercial medical waste treatment and disposal facility on a temporary or permanent basis.
- (d) The owner or operator will be notified in writing by the Department of its decision as to whether an extension shall be granted or denied.
- (e) The source shall be in compliance with the operator and training requirements of 40 CFR 60.53.c within one year of the effective date of this subsection.

D. Existing other solid waste incinerators (OSWI). [Added 5-1-2007 by Ord. No. 16-07]

- (1) Applicability. This Subsection D applies to incineration units that meet all of the following requirements:
- (a) The incineration unit is:
 - [1] An OSWI unit as defined in Subsection D(2), below; or
 - [2] An air curtain incinerator subject to this Subsection D as described below:
 - [a] Air curtain incinerators that burn less than 35 tons per day of municipal solid

waste or air curtain incinerators located at institutional facilities burning any amount of institutional waste generated at that facility are subject to all requirements of this Subsection D including the emission limitations of Subsection D(6), below.

- [b] Air curtain incinerators used in disaster recovery are subject to the requirements of 40 CFR 60.2969, which are hereby incorporated by reference.
 - [c] Air curtain incinerators that burn only wood waste, clean lumber, and yard waste are subject to the requirements described in Subsection D(15), below.
- (b) The incineration unit is an existing incineration unit. For purposes of this Subsection D, an existing incineration unit is an OSWI unit or air curtain incinerator subject to this Subsection D that commenced construction on or before December 9, 2004, except as provided in Subsection D(1)(b)[1], below:
- [1] If the owner or operator of an incineration unit makes changes that meet the definition of modification or reconstruction on or after June 16, 2006, the unit becomes subject to 40 CFR 60, Subpart EEEE, "Standards of Performance for Other Solid Waste Incineration Units for Which Construction is Commenced After December 9, 2004, or for Which Modification or Reconstruction is Commenced on or After June 16, 2006," and this Subsection D no longer applies to that unit.
 - [2] If the owner or operator of an existing incineration unit makes physical or operational changes to the unit primarily to comply with this Subsection D, then Subpart EEEE requirements do not apply to that unit. Such changes do not qualify as modifications or reconstructions under Subpart EEEE.
- (c) The incineration unit is not one of the types listed below that are excluded:
- [1] The following types of units described in 40 CFR 60.2887(a) through (q) are excluded from this Subsection D as long as the requirements stated there are met.
 - [a] Cement kilns.
 - [b] Co-fired combustors.
 - [c] Cogeneration facilities.
 - [d] Commercial and industrial solid waste incinerator units are excluded if they are regulated under 40 CFR 62, Subpart III, as well as the stated 40 CFR 60 Subpart CCCC or DDDD.
 - [e] Hazardous waste combustion units.
 - [f] Hospital/Medical/Infectious waste incinerators.
 - [g] Incinerators and air curtain incinerators in isolated areas of Alaska.
 - [h] Rural institutional waste incinerators in Allegheny County are not excludable. They do not meet the requirement to be located more than 50 miles from the boundary of the nearest Metropolitan Statistical Area.
 - [i] Institutional boilers and process heaters.

- [j] Laboratory analysis units.
 - [k] Material recovery units.
 - [l] Pathological waste incineration units.
 - [m] Small or large municipal waste combustion units.
 - [n] Small power production facilities.
 - [o] Temporary-use incinerators and air curtain incinerators used in disaster recovery.
 - [p] Units that combust contraband or prohibited goods.
 - [q] Incinerators used for national security.
- [2] Air curtain incinerators used solely for clearing land of vegetation prior to construction are exempt from the requirements of this Subsection D.

(2) Definitions.

- (a) For purposes of this Subsection D, the terms below are defined as follows:

ADMINISTRATOR — The Allegheny County Health Department (the Department), except with respect to those authorities listed in 40 CFR 60.2889(b)(1) through (6) as retained by EPA.

AIR CURTAIN INCINERATOR — An incineration unit operating by forcefully projecting a curtain of air across an open, integrated combustion chamber (fire box) or open pit or trench (trench burner) in which combustion occurs. For the purpose of this Subsection D only, air curtain incinerators include both firebox and trench burner units.

DEVIATION — Defined as in 40 CFR 60.2977, except read "§ 505-46D(1)" wherever § 60.2885 appears.

INSTITUTIONAL FACILITY — A land-based facility owned and/or operated by an organization having a governmental, educational, civic, or religious purpose, such as a school, hospital, prison, military installation, church, or other similar establishment or facility.

INSTITUTIONAL WASTE — Solid waste (as defined below) that is combusted at any institutional facility using controlled flame combustion in an enclosed, distinct operating unit; whose design does not provide for energy recovery; operated without energy recovery; or operated with only waste heat recovery. Institutional waste also means solid waste (as defined below) combusted on site in an air curtain incinerator that is a distinct operating unit of any institutional facility. Where "energy recovery" means the process of recovering thermal energy from combustion for useful purposes such as steam generation or process heating; and "waste heat recovery" means the process of recovering heat from the combustion flue gases outside of the combustion firebox by convective heat transfer only.

INSTITUTIONAL WASTE INCINERATION UNIT — Any combustion unit that combusts institutional waste and is a distinct operating unit of the institutional facility that generated the waste. Institutional waste incineration units include field-erected, modular, cyclonic burn barrel, and custom-built incineration units operating with starved or excess

air, and any air curtain incinerator that is a distinct operating unit of the institutional facility that generated the institutional waste {except those air curtain incinerators listed in Subsection D(15)(a)[2]}.

MUNICIPAL SOLID WASTE — Refuse (and refuse-derived fuel) collected from the general public and from residential, commercial, institutional, and industrial sources consisting of paper, wood, yard wastes, food wastes, plastics, leather, rubber, and other combustible materials and noncombustible materials such as metal, glass and rock, provided that:

- [1] The term does not include industrial process wastes or medical wastes that are segregated from such other wastes; and
- [2] An incineration unit shall not be considered to be combusting municipal solid waste for purposes of this subpart if it combusts a fuel feed stream, 30% or less of the weight of which is comprised, in aggregate, of municipal solid waste, as determined by 40 CFR 60.2887(b).

MUNICIPAL WASTE COMBUSTION UNIT — Any setting or equipment that combusts municipal solid waste (as defined in this Subsection D), including, but not limited to, field-erected, modular, cyclonic burn barrel, and custom-built incineration units (with or without energy recovery) operating with starved or excess air, boilers, furnaces, pyrolysis/combustion units, and air curtain incinerators {except those air curtain incinerators listed in Subsection D(15)(a)[2]}.

OTHER SOLID WASTE INCINERATION (OSWI) UNIT — Either a very small municipal waste combustion unit or an institutional waste incineration unit, as defined in this Subsection D. Unit types listed in Subsection D(1)(c) as being excluded from the Subsection D are not OSWI units subject to this Subsection D. While not all OSWI units will include all of the following components, an OSWI unit includes, but is not limited to, the municipal or institutional solid waste feed system, grate system, flue gas system, waste heat recovery equipment, if any, and bottom ash system. The OSWI unit does not include air pollution control equipment or the stack. The OSWI unit boundary starts at the municipal or institutional waste hopper (if applicable) and extends through two areas: (1) the combustion unit flue gas system, which ends immediately after the last combustion chamber or after the waste heat recovery equipment, if any; and (2) the combustion unit bottom ash system, which ends at the truck loading station or similar equipment that transfers the ash to final disposal. The OSWI unit includes all ash handling systems connected to the bottom ash handling system.

SOLID WASTE — Any garbage, refuse, sludge from a waste treatment plant, water supply treatment plant, or air pollution control facility and other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, mining, agricultural operations, and from community activities, but does not include solid or dissolved material in domestic sewage, or solid or dissolved materials in irrigation return flows or industrial discharges that are point sources subject to permits under Section 402 of the Federal Water Pollution Control Act, as amended (33 U.S.C. 1342), or source, special nuclear, or byproduct material as defined by the Atomic Energy Act of 1954, as amended (42 U.S.C. 2014).

VERY SMALL MUNICIPAL WASTE COMBUSTION UNIT — Any municipal waste combustion unit that has the capacity to combust less than 35 tons per day of municipal solid waste or refuse-derived fuel, as determined by the calculations in 40 CFR 60.2975.

- (b) All other definitions of 40 CFR Part 60, Subparts A and B, and 40 CFR 60.2977 are incorporated by reference into this Subsection D.
- (3) Compliance schedules.
 - (a) OSWI units, and air curtain incinerators subject to Subsection D(15), must achieve final compliance as expeditiously as practicable after the approval of this Subsection D, but not later than the earlier of the following two dates: A. December 16, 2010; B. three years after the effective date of this Subsection D. The complying unit must submit a notification to the Department stating whether final compliance has been achieved, postmarked within 10 business days after the final compliance date. Final compliance means that the owner or operator completes all process changes and retrofit of control devices so that, when the incineration unit is brought on line, all process changes and air pollution control devices necessary to meet the emission limitations operate as designed.
 - (b) Closing an OSWI unit and then restarting it.
 - [1] If the owner or operator closes its OSWI unit but will restart it prior to the final compliance date, it must meet the final compliance date of Subsection D(3)(a), above.
 - [2] If the owner or operator closes its OSWI unit but will restart it after the final compliance date, it must complete emission control retrofit and meet the emission limitations as specified in Subsection D(6), below, on the date its OSWI unit restarts operation. It must conduct the initial performance test as specified in Subsection D(7), below, within 30 days of restarting the OSWI unit.
 - (c) Permanently closing an OSWI unit and not restarting it. If the owner or operator plans to close its OSWI unit, it must close the unit before the final compliance date of Subsection D(3)(a), above.
- (4) Waste management plan. The owner or operator of an OSWI unit must submit a waste management plan as described in 40 CFR 60.2899 and 60.2901 no later than 60 days following the initial performance test. The initial performance test must be conducted no later than 180 days after the final compliance date specified in Subsection D(3)(a).
- (5) Operator training and qualification. The requirements of 40 CFR 60.2905 through 60.2911 are incorporated by reference into this Subsection D, with the following changes:
 - (a) 40 CFR 60.2906: The operator training course must be completed by the latest of the three dates specified below:
 - [1] The final compliance date specified in Subsection D(3)(a).
 - [2] Six months after OSWI unit startup.
 - [3] Six months after an employee assumes responsibility for operating the OSWI unit or assumes responsibility for supervising the operation of the OSWI unit.
 - (b) 40 CFR 60.2910:
 - [1] 40 CFR 60.2910(a)(8): The waste management plan is required under Subsection D(4).

- [2] 40 CFR 60.2910(b)(1): The initial review of the information listed in 40 CFR 60.2910(a) must be conducted by the latest of the three dates specified below:
- [a] The final compliance date specified in Subsection D(3)(a).
 - [b] Six months after the OSWI unit startup.
 - [c] Six months after an employee assumes responsibility for operating the OSWI unit or assumes responsibility for supervising the operation of the OSWI unit.
- (6) Emission limitations and operating limits. The requirements of 40 CFR 60.2915 through 60.2918 are incorporated by reference into this Subsection D, with the following changes:
- (a) 40 CFR 60.2915: The subject emission limitations must be met on the date the initial performance test is required or completed (whichever is earlier). The initial performance test must be conducted no later than 180 days after the final compliance date specified in Subsection D(3)(a).
 - (b) 40 CFR 60.2916(b): The operating limits established during the initial performance test must be met beginning on the date 180 days after the final compliance date specified in Subsection D(3)(a).
- (7) Performance testing. The requirements of 40 CFR 60.2922 and 60.2923 are incorporated by reference into this Subsection D.
- (8) Initial compliance requirements. The requirements of 40 CFR 60.2927 are incorporated by reference into this Subsection D with the exception that 40 CFR 60.2916(b) does not apply. The initial performance test must be conducted no later than 180 days after the final compliance date specified in Subsection D(3)(b)[1], or within 30 days of restarting a closed unit under the provisions of Subsection D(3)(b)[2].
- (9) Continuous compliance requirements. The requirements of 40 CFR 60.2932 through 60.2935 are incorporated by reference into this Subsection D.
- (10) Monitoring. The requirements of 40 CFR 60.2939 through 60.2945 are incorporated by reference into this Subsection D with the following change:
- (a) 40 CFR 60.2940(b): The initial evaluation of the continuous emission monitoring systems shall be completed within 180 days after the final compliance date specified in Subsection D(3)(a).
- (11) Recordkeeping and reporting. The requirements of 40 CFR 60.2949 through 60.2951 and 40 CFR 60.2954 through 60.2962 are incorporated by reference into this Subsection D, with the following changes:
- (a) 40 CFR 60.2949: Paragraph (j) does not apply; and reference Subsection D(5)(b) instead of the cited 40 CFR 60.2910(a) and (b).
 - (b) 40 CFR 60.2951: The reporting requirements of Table 4 must be met, with the following exceptions and addition:
 - [1] Report Items 1 and 2, "Pre-construction report" and "Startup notification," are not required.

- [2] Report Item 3, "Reference § 60.2954," refer to Subsection D(11)(c), below.
- [3] Report Item 4, "Reference § 60.2955 and 2956," refer to Subsection D(11)(d) and (e), below.
- [4] A waste management plan must be submitted in accordance with Subsection D(4).
- (c) 40 CFR 60.2954: The information specified in Subsection D(11)(c)[1] through [3], below must be submitted no later than 60 days following the initial performance test. All reports must be signed by the facilities manager.
 - [1] The complete test report for the initial performance test results obtained under Subsection D(8), as applicable.
 - [2] The values for the site-specific operating limits established in Subsection D(6).
 - [3] The waste management plan as specified in Subsection D(4).
- (d) 40 CFR 60.2955: The reference to § 60.2954 should be read as Subsection D(11)(c).
- (e) 40 CFR 60.2956(d): The annual report must include the values for the operating limits established pursuant to Subsection D(6).
- (12) Title V operating permits. The owner or operator of an OSWI unit subject to this Subsection D is required to apply for and obtain a Title V operating permit unless it meets the relevant requirements for an exemption specified in Subsection D(1)(c).
 - (a) If the existing unit is not subject to an earlier permit application deadline, a complete Title V permit application must be submitted on or before the earlier of the dates specified below:
 - [1] Twelve months after the effective date of this Subsection D.
 - [2] December 16, 2008.
 - (b) If the existing unit is subject to Title V as a result of some triggering requirement(s) other than those specified in Subsection D(12)(a)[1], above (for example, a unit may be a major source or part of a major source), then the owner or operator may be required to apply for a Title V permit prior to the deadlines specified in Subsection D(12)(a)[1]. If more than one requirement triggers a source's obligation to apply for a Title V permit, the twelve-month time frame for filing a Title V permit application is triggered by the requirement which first causes the source to be subject to Title V.
 - (c) A "complete" Title V permit application is one that has been determined or deemed complete by the Department under § 505-25B(4)(a). The owner or operator must submit a complete permit application by the relevant application deadline in order to operate after this date in compliance with this Subsection D.
- (13) Temporary-use incinerators used in disaster recovery. The requirements of 40 CFR 60.2969 are incorporated by reference.
- (14) Equations. The equations of 40 CFR 60.2975 are incorporated by reference into this Subsection D.
- (15) Existing air curtain incinerators that burn only wood waste, clean lumber, and yard waste.

(a) General.

- [1] An air curtain incinerator operates by forcefully projecting a curtain of air across an open, integrated combustion chamber (fire box) or open pit or trench (trench burner) in which combustion occurs. For the purpose of this Subsection D, air curtain incinerators include both firebox and trench burner units.
- [2] Existing air curtain incinerators that burn only less than 35 tons per day of the materials listed in Subsection D(15)(a)[2][a] through [d], below, collected from the general public and from residential, commercial, institutional, and industrial sources; and existing air curtain incinerators of any charge rate or capacity located at institutional facilities that burn only the materials listed in Subsection D(15)(a)[2][a] through [d], below generated at that facility, are required to meet only the requirements of this subsection and are exempt from all other requirements of this Subsection D:
 - [a] One-hundred-percent wood waste.
 - [b] One-hundred-percent clean lumber.
 - [c] One-hundred-percent yard waste.
 - [d] One-hundred-percent mixture of only wood waste, clean lumber, and/or yard waste.

(b) Compliance date: in accordance with Subsection D(3)(a).

(c) Restarting after closing.

- [1] If the air curtain incinerator is to be closed, but will be reopened prior to the final compliance date, the final compliance date specified in Subsection D(3)(a), must be met.
- [2] If the air curtain incinerator is to be closed, but will be restarted after the final compliance date, the emission limitations must be met on the date the incinerator restarts operation.

(d) Permanently closing. If the air curtain incinerator is to be permanently closed and not restarted, the owner or operator must close the unit before the final compliance date specified in Subsection D(3)(a).

(e) Emission limitations.

- [1] Within 180 days after the final compliance date in Subsection D(3)(a), the incineration unit must meet the two limitations specified in Subsection D(15)(e)[1][a] and [b], below.
 - [a] The opacity limitation is 10% (six-minute average, observed over three one-hour test runs: i.e., 30 six-minute averages), except as described in [b], below.
 - [b] The opacity limitation is 35% (six-minute average) during the startup period that is within the first 30 minutes of operation.
- [2] The limitations in Subsection D(15)(e)[1] apply at all times except during

malfunctions.

- (f) Monitoring opacity. The requirements of 40 CFR 60.2972 are incorporated by reference into this Subsection D with one addition: at 40 CFR 60.2972(b), the initial test for opacity is to be conducted as specified in 40 CFR 60.8 within 180 days after the final compliance date in Subsection D(3).
- (g) Recordkeeping and reporting requirements. The requirements of 40 CFR 60.2973(b) through (f) are incorporated by reference into this Subsection D.
- (h) Title V operating permit requirement. Unless the air curtain incineration unit is excluded under Subsection D(1)(c)[1][d], [o], [p] or [q], the owner or operator of an OSWI unit subject to this subsection is required to apply for and obtain a Title V operating permit as specified in Subsection D(12).

§ 505-47. Miscellaneous fugitive sources.

A. Permit source premises (see Subsection I regarding applicability).

- (1) General. No person shall operate, or allow to be operated, any source for which a permit is required by Article III of this chapter in such manner that emissions from any open land, roadway, haul road, yard, or other premises located upon the source or from any material being transported within such source or from any source-owned access road, haul road, or parking lot over five parking spaces:
 - (a) Are visible at or beyond the property line of such source;
 - (b) Have an opacity of 20% or more for a period or periods aggregating more than three minutes in any sixty-minute period; or
 - (c) Have an opacity of 60% or more at any time.
- (2) Deposition on other premises. Visible emissions from any solid or liquid material which has been deposited by any means from a source onto any other premises shall be considered emissions from such source within the meaning of Subsection A(1) above.

B. Non-permit premises (see Subsection I regarding applicability).

- (1) General. No person shall use or maintain, or allow to be used or maintained, any property, other than that property upon which there is a source for which a permit is required by Article III of this chapter, in such manner that emissions from any open land, roadway, haul road, yard, or other premises located upon such property, or from any material being transported on such property, or from any access road, haul road, or parking lot over five parking spaces for such property:
 - (a) Are visible at or beyond the property line of such property;
 - (b) Have an opacity of 20% or more for a period or periods aggregating more than three minutes in any sixty-minute period; or
 - (c) Have an opacity of 60% or more at any time.
- (2) Deposition on other premises. Visible emissions from any solid or liquid material which has been deposited by any means from property subject to Subsection B(1) above onto any other

premises shall be considered emissions from such property within the meaning of Subsection B(1) above.

C. Parking lots and roadways (see Subsection I regarding applicability).

- (1) General. No person shall maintain for use, or allow to be used, any parking lot over 50 parking spaces or used by more than 50 vehicles in any day or any roadway carrying more than 100 vehicles in any day or 15 vehicles in any hour in such manner that emissions from such parking lot or roadway:
 - (a) Are visible at or beyond the property line;
 - (b) Have an opacity of 20% or more for a period or periods aggregating more than three minutes in any sixty-minute period; or
 - (c) Have an opacity of 60% or more at any time.
- (2) Deposition on other premises. Visible emissions from any solid or liquid material which has been deposited by any means from a parking lot or roadway onto any other premises shall be considered emissions from such parking lot or roadway.
- (3) Repairs. Subsection C(1) above shall apply during any repairs or maintenance done to such parking lot or roadway.
- (4) Enforcement. Notwithstanding any other provision of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where such parking lots or roadways are located. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violations of this section.

D. Permit source transport (see Subsection I regarding applicability).

- (1) No person shall transport, or allow to be transported, any solid or liquid material outside the boundary line of any source for which a permit is required by Article III of this chapter in such manner that there is any visible emission, leak, spill, or other escape of such material during transport.
- (2) Notwithstanding any other provision of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where such visible emission, leak, spill, or other escape of material during transport occurs. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this section.

E. Non-permit source transport (see Subsection I regarding applicability).

- (1) No person shall transport, or allow to be transported, any solid or liquid material outside the boundary line of any source, other than those for which a permit is required by Article III of this chapter, in such manner that there is any visible emission, leak, spill, or other escape of such material during transport.
- (2) Notwithstanding any other provision of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where such visible emission, leak, spill, or other escape of material during transport occurs. Such

enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this section.

F. Construction and land clearing (see Subsection I regarding applicability).

- (1) No person shall conduct, or allow to be conducted, any construction or land clearing activities in such manner that the opacity of emissions from such activities:
 - (a) Equal or exceed 20% for a period or periods aggregating more than three minutes in any sixty-minute period; or
 - (b) Equal or exceed 60% at any time.
- (2) Notwithstanding any other provision of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where such construction or land clearing activities occur. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violations of this section.

G. Mining (see Subsection I regarding applicability). No person shall conduct, or allow to be conducted, any mining activities in such manner that emissions from such activities:

- (1) Are visible at or beyond the property line;
- (2) Have an opacity of 20% or more for a period or periods aggregating more than three minutes in any sixty-minute period; or
- (3) Have an opacity of 60% or more at any time.

H. Demolition (see Subsection I regarding applicability).

- (1) No person shall conduct, or allow to be conducted, any demolition activities in such manner that the opacity of the emissions from such activities equal or exceed 20% for a period or periods aggregating more than three minutes in any sixty-minute period.
- (2) Notwithstanding any other provisions of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where such demolition activities occur. Such enforcement shall be in accordance with the laws governing such municipal or local government unit. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violations of this section.

I. Areas subject to Subsections A through H.

- (1) Subsections A, C, D, F, G and H of this section shall apply only in such areas of the County which are within:
 - (a) A three-mile wide strip along the Ohio and Monongahela river valleys with a perpendicular distance of two miles either north or east of the center line of the rivers and one mile south or west of the center line of the rivers from the I-79 Bridge to the Mansfield Bridge, but excluding any portions of the Borough of Port Vue;
 - (b) A one-mile wide strip centered on Turtle Creek (0.5 mile perpendicular distance on each side of the center of the Creek) running from the area referred to in Subsection I(1)(a) of

this section to the Westmoreland County Line; and

- (c) A four-mile wide strip along the Monongahela river valley with a perpendicular distance of two and one-half miles either north or east of the center line of the river and one and one-half miles south or west of the center line of the river from the Mansfield Bridge to the Westmoreland County Line, and all portions of the Borough of Port Vue.
- (2) Subsections B and E of this section shall apply only in such areas of the County which are described under Subsection I(1)(c) of this section.

J. Fugitive emissions.

- (1) The person responsible for a source of fugitive emissions, in addition to complying with all other applicable provisions of this chapter shall take all reasonable actions to prevent fugitive air contaminants from becoming airborne. Such actions may include, but are not limited to:
- (a) The use of asphalt, oil, water, or suitable chemicals for dust control;
 - (b) The paving and maintenance of roadways, parking lots and the like;
 - (c) The prompt removal of earth or other material which has been deposited by leaks from transport, erosion or other means;
 - (d) The adoption of work or other practices to minimize emissions;
 - (e) Enclosure of the source; and
 - (f) The proper hooding, venting, and collection of fugitive emissions.
- (2) Specific sources. In addition to complying with all other applicable provisions under this chapter, no person shall operate, or allow to be operated, any source listed below unless in compliance with all applicable conditions as set forth in this subsection:

Specific Sources and Conditions

Source Name	Location	Permit Number
Dock #2 Barge Loading	Glassport Transp. Center, Inc, Glassport, PA	(to be assigned)

Conditions:

- A. Installation, operation, and maintenance of an emission control device; and
- B. Emissions of PM-10 of not more than 2.9 grains/ton of material loaded at all times.

- 2. Rail car unloading Glassport Transp. Center, Inc, (to be assigned)
Glassport, PA

Conditions:

- A. Installation, operation, and maintenance of an emission control device; and
- B. Emissions of PM-10 of not more than 4.4 grains/ton of material unloaded at all times.

Specific Sources and Conditions

Source Name	Location	Permit Number
3. Roads Yards & Mat'ls Hndlg.	Glassport Transp. Center, Inc, Glassport, PA	(to be assigned)

[other than those sources subject to Subsection J(2)(a) and (b) of this section]

Conditions:

- A. Implementation of operating practices and procedures and installation, operation, and maintenance of air pollution control equipment and methods, approved in advance by the Department and the EPA, sufficient to collect and control from all fugitive PM-10 sources subject to this Subsection J(2)(c) of this section at least 75% of all PM-10 emissions from such sources at all times; or
- B. Compliance with the following, constituting presumptive collection and control from all fugitive PM-10 sources subject to this Subsection J(2)(c) of this section of at least 75% of all PM-10 emissions from such sources at all times:
 - i. Installation, operation, and maintenance of a dust suppressant system of sprays of water, or other chemicals approved in advance by the Department, from sprinkler systems and/or water trucks, capable of delivering a minimum of 2.5 gal. H₂O (or equiv.)/sq. yd. per day to all yard areas used for materials storage on the premises, and of delivering a minimum of 0.15 gal. H₂O (or equiv.)/sq. yd. per four-hour period to all other areas of the premises except those areas that are developed or landscaped with vegetation;

ii. On each day during the months of May through October all yard areas used for materials storage on the premises, and in which any materials have been handled during the immediately preceding 10 days, shall be watered with at least 2.5 gal. H₂O (or equiv.)/sq. yd., and all other areas of the premises except those areas that are developed or landscaped with vegetation shall be watered with at least 0.15 gal. H₂O (or equiv.)/sq. yd. every four (4) hours during hours of operation, using a dust suppressant system approved by the Department under this subsection, except when there has been at least 0.01 inches of new or accumulated precipitation or the outside temperature has been below 40° F during the immediately preceding 24 hours according to the National Weather Service at Pittsburgh International Airport;

iii. On each day during the months of November through April all yard areas used for materials storage on the premises, and in which any materials have been handled during the immediately preceding 10 days, shall be watered with at least 1.5 gal. H₂O (or equiv.)/sq. yd., and all other areas of the premises except those areas that are developed or landscaped with vegetation shall be watered with at least 0.10 gal. H₂O (or equiv.)/sq. yd. every four hours during hours of operation, using a dust suppressant system approved by the Department under this Subsection, except when there has been at least 0.01 inches of new or accumulated precipitation or the outside temperature has been below 40° F during the immediately preceding 48 hours according to the National Weather Service at Pittsburgh International Airport; and

iv. A written report for each day shall be generated daily by the owner or operator which shall:

(a.) Include:

(1) The name(s) of the owner(s) and operator(s) of the source, and the date; and

(2) For each and every area of the premises subject to this section:

(A.) A description and the size (in sq. yds.) of the area;

(B.) The start and end time of any utilization of the dust suppressant system;

(C.) The type, dilution ratio (if applicable), total amount, and gal./sq. yd. of the dust suppressant used; and

(D.) The name, title, and signature of the individual verifying the completeness and accuracy of the report; and

(b.) Be retained by the owner or operator of the source for at least two years and be immediately submitted to, and available for inspection and copying by, the Department upon request.

§ 505-48. Open burning and abrasive blasting sources.

A. Open burning. [Amended 5-1-2007 by Ord. No. 16-07; 7-7-2009 by Ord. No. 30-09; 11-5-2014 by Ord. No. 19-14]

(1) General.

(a) No person shall conduct, or allow to be conducted, the open burning of any material, except where the Department has issued an open burning permit to such person in accordance with this section or where the open burning is conducted solely for the purpose

of preparation of food for human consumption, recreation, light, or ornament, and in a manner which contributes a negligible amount of air contaminants, and which is in accordance with Subsection A(1)(a)[1] through [3] below.

- [1] No material other than clean wood, propane, or natural gas may be burned except as provided for in this subsection.
 - [a] Charcoal may be used in an outdoor fireplace or grill for the purpose of cooking.
 - [b] Commercially available fire logs, paraffin logs, or wood pellets may be used in outdoor fireplaces.
 - [c] Paper or commercial smokeless fire starters may be used with clean wood to start an allowed fire.
- [2] Any volume of clean wood being burned shall be no larger than three feet wide by three feet long by two feet high and shall be at least 15 feet from the nearest neighbor's dwelling or inhabited area, any property line, roadway, sidewalk, or public accessway.
- [3] Open burning using chimineas, firepits, or outdoor fireplaces may only be conducted using materials meeting Subsection A(1)(a)[1] above.
- (b) Any open burning shall be tended by a responsible person at all times.
- (c) Wood burning activities shall not be conducted on Air Quality Action Days, with the exception of conducting such burning for the commercial preparation of food.
- (d) The Department may prohibit, or reduce, any open burning activity which it determines to be a nuisance. This determination will be based on, but not limited to, the following criteria:
 - [1] The severity of the amount of air pollutants, or malodorous material;
 - [2] The duration or frequency of open burning;
 - [3] The topography of the surroundings; and/or
 - [4] The meteorological conditions.
- (e) This section shall not allow or permit any open burning which would not otherwise be allowed or permitted under any applicable ordinance or fire code.
- (2) Discovery of fire. Immediately upon the discovery of any open burning that is not being conducted in accordance with this section, the person responsible for the property on which such burning occurs shall immediately extinguish, or cause the extinguishment of, such burning.
- (3) Presumption. Proof that the defendant in any enforcement action owns or controls the property on which open burning occurs shall be prima facie evidence that such defendant has conducted, or allowed to be conducted, such open burning.
- (4) Permits.
 - (a) The Department may issue a permit for open burning during a period specified by the

Department, but only where the open burning is solely for:

- [1] The abatement of a fire or public health hazard when the burning is conducted under the supervision of a public officer;
 - [2] The instruction of personnel in fire fighting, except that instruction using only propane does not require a permit;
 - [3] The fostering of agriculture;
 - [4] The conducting of a ceremony; or
 - [5] Clearing and grubbing wastes subject to, at a minimum, the following requirements:
 - [a] Air curtain incineration units shall be used at all times when burning clearing and grubbing wastes.
 - [b] The use of air curtain incineration units shall not be permitted unless approved by the Department, in writing, with respect to equipment arrangement, design, and existing environmental conditions prior to commencement of burning.
 - [c] Approval for use of an air curtain incineration unit at one site may be granted for a specified period not to exceed three months, but may be extended for additional limited periods upon further written approval by the Department.
 - [d] The application for said permit must be accompanied by a nonrefundable permit application fee, by check or money order payable to the "Allegheny County Air Pollution Control Fund," to cover the costs associated with processing, reviewing, and acting upon the application. The amount of the fee shall be set by the Board of Health.
 - [e] If operated at commercial, industrial, or institutional facilities, the air curtain incinerator may also be subject to the NSPS requirements of 40 CFR 60 Subpart CCCC or EEEE.
 - [6] Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by Allegheny County Council.
- (b) The permit application shall be submitted on forms prepared by the Department at least 15 days prior to the proposed burning date(s) and shall specify the types of materials to be burned, and only those types of materials which are approved by the Department in the permit shall be burned.
 - (c) The Department may issue a permit subject to any additional terms and conditions as are appropriate to further the purposes of this chapter and may deny a permit application or rescind any such permit when it determines that an actual or potential air pollution problem exists.
 - (d) An approved permit shall be in the possession of the applicant or an authorized representative at the site of the permitted open burning at all times during said open burning and shall be available for inspection upon request by any County personnel, law enforcement officer, or fire protection officer.
 - (e) Any open burning permit issued by the Department shall immediately be suspended upon

the declaration of an alert or localized incident pursuant to Article VI of this chapter and shall remain suspended for the duration of the alert or localized incident. If the open burning permit expires during such period of suspension, an extension of such permit shall be obtained from the Department prior to burning any materials.

- (f) Open burning activities requiring a permit shall not be conducted on Air Quality Action Days.
- (5) Coal refuse piles. In the case of a fire at any coal refuse pile or dump, the person responsible shall:
 - (a) Report such fire immediately to the Department upon discovery;
 - (b) Immediately extinguish such fire, or demonstrate to the Department's satisfaction that all necessary steps are being taken to extinguish such fires as expeditiously as possible; and
 - (c) Report the status of such fire to the Department at such intervals as required by the Department.
- (6) Enforcement. Notwithstanding any other provision of this chapter, the prohibitions of this section may be enforced by any municipal or local government unit having jurisdiction over the place where the burning occurs. Such enforcement shall be in accordance with the laws governing such municipal or local government unit and the Pennsylvania Air Pollution Control Act.⁵ In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this section.
- (7) Violations. The open burning of any material [except as provided in Subsection A(1)(a) above] without a permit under this section or in violation of any condition contained in such permit, or the failure by the person responsible to immediately report and take all reasonable steps to extinguish a coal refuse pile fire, shall be a violation of this chapter giving rise to the remedies provided in § 505-79 of this chapter.

B. Abrasive blasting.

- (1) General. No person shall conduct, or allow to be conducted, abrasive blasting or power tool cleaning, hereinafter all referred to as abrasive blasting, of any surface, structure, or part thereof, hereinafter all referred to as surface, which has a total area greater than 1,000 square feet unless:
 - (a) Such abrasive blasting complies with all applicable requirements of this section; and
 - (b) The owner of such surface, which has a total area greater than 10,000 square feet, has properly applied for and been issued, by the Department, either an abrasive blasting project permit or annual permit under this section; or greater than 1,000 square feet but not more than 10,000 square feet, has properly submitted a notice to the Department under this section, except where such blasting is part of a process requiring an operating permit under § 505-25 or 505-26 of this chapter.
- (2) Regulations cumulative. In addition to complying with all applicable provisions of this section, no person shall conduct, or allow to be conducted, abrasive blasting of any surface unless such abrasive blasting also complies with all other applicable requirements of this chapter unless such requirements are specifically addressed by this section.

5. Editor's Note: See 35 P.S. § 4001 et seq.

(3) Permit applications and notices.

- (a) Properly completed applications for permits and notices required under this section, along with the appropriate fees, shall be submitted to, and received by, the Department no later than 30 days prior to the proposed date, and in the case of notices the actual date, of commencement of the proposed abrasive blasting.
- (b) Permit applications and notices under this section shall be made on forms approved by the Department, signed by the owner of the site, and submitted in duplicate to: Abrasive Blasting Permit Applications, Allegheny County Health Dept., Bldg. 3, 3901 Penn Ave., Pittsburgh, PA 15224-1345.
- (c) Permit applications and notices under this section shall include all information necessary for the Department to determine full compliance with this chapter, including, but not limited to:
 - [1] Name, mailing and street address, telephone number, and contact person of the owner of the site;
 - [2] Names, mailing and street addresses, telephone numbers, and contact persons of the person (e.g., contractor) to perform the abrasive blasting and the general contractor, if any, for the site, if known; if not known at the time of application or notice, this information must be submitted to, and received by, the Department, prior to the commencement of any abrasive blasting;
 - [3] Exact location of the site, including the street and number, municipality, and postal ZIP code for the property and the specific location on the property, and a detailed description of the surrounding area, including the residential, commercial, industrial, or undeveloped nature of the area;
 - [4] Starting and completion dates and daily operating hours for the abrasive blasting;
 - [5] Detailed description of the nature and size of the surface to be blasted, including the square feet to be blasted;
 - [6] Specific work practices, procedures, equipment, and abrasives to be utilized at the site to comply with the requirements of this chapter;
 - [7] Detailed justification for the use of abrasive blasting rather than an alternative method of surface preparation; and
 - [8] Detailed description of the proposed manner of disposal of the spent abrasive and blast residue or any other waste material generated.
- (d) Testing of paint. For all projects involving the removal of paint, the required application or notice under this section shall include independent laboratory test results indicating the lead content, if any, of the paint to be removed. The sampling and analysis of paint required under this section shall be conducted in accordance with either Article VII of this chapter or any other methods approved in advance by the Department.

(4) Permit application fees.

- (a) For each permit application required under this section, other than for annual permits, the owner of the subject surface shall submit to the Department a project permit application

fee, payable to the Allegheny County Air Pollution Control Fund, for the proposed abrasive blasting. The amount of the fee shall be set by the Board of Health. **[Amended 7-7-2009 by Ord. No. 30-09]**

- (b) For each annual permit application required under this section, the owner of the subject surfaces shall submit to the Department an annual permit application fee in the amount of \$600, payable to the Allegheny County Air Pollution Control Fund, for the proposed abrasive blasting.
 - (c) Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by the Allegheny County Council. **[Added 7-7-2009 by Ord. No. 30-09]**
- (5) Standards for issuance. The Department shall not issue an abrasive blasting permit under this section unless a properly completed application, with the appropriate fee, has been submitted to, and received by the Department in accordance with this section, and such application demonstrates to the Department's satisfaction that the blasting will be conducted in full compliance with the requirements of this chapter.
 - (6) Project permits. Unless covered by an annual permit, separate project permits shall be required for each different structure to be blasted.
 - (7) Annual permits. In place of project permits, an annual permit may be issued for ongoing, in-house abrasive blasting operations involving continuous or intermittent abrasive blasting performed at a specified site.
 - (8) Permit term. Unless revoked by the Department under this chapter:
 - (a) A project permit issued under this section shall expire on either the project completion date identified in the application, any expiration date identified on the issued permit, or 365 days after the date of issuance, whichever is sooner; and
 - (b) An annual permit issued under this section shall expire on either any expiration date identified on the issued permit, or on December 31 of the year of issuance, whichever is later.
 - (9) Notices of set-up and preparation and of completion.
 - (a) Set-up and preparation notice. No person shall conduct, or allow to be conducted, any abrasive blasting activities requiring a permit under this section unless, following completion of the full set-up and preparation of the work area, including the commencement and continuing maintenance of any required negative air pressure in the work area, any other controls, and any required monitoring, but prior to the commencement of any actual abrasive blasting activity, the Department is notified of such completion of set-up and preparation. Such notice shall include the abrasive blasting permit number, the names of the owner and the abrasive blasting contractor, the street address and municipality of the project site, the name and phone number of the person submitting the notice, and the estimated date and time of the actual commencement of abrasive blasting.
 - (b) The owner or operator shall notify the Department of the date on which all abrasive blasting and clean-up activities have been finally completed at a site no later than 24 hours after such date.

- (10) Monitoring. If the Department determines, on the basis of any information available to it, that emissions or potential emissions from any proposed or existing abrasive blasting operation may reasonably be anticipated to have a potentially adverse impact upon the public health, safety, or welfare due to, among other concerns, the presence of lead paint, the Department may, by order or permit condition, require the owner or operator to implement ambient air quality monitoring programs during the abrasive blasting operation and to submit the monitoring results to the Department as expeditiously as possible. All ambient air quality sampling, analysis, and reporting required under this section shall be conducted in accordance with either Article VII of this chapter or any other federal or state guidance acceptable to the Department. All such ambient air quality sampling, analysis, and reporting shall be conducted by persons who have no financial interest in, or personal association with, the site owner or operator, the general contractor, or the abrasive blasting contractor or subcontractor, and in accordance with a plan approved in advance by the Department and in accordance with all applicable orders and permit conditions. Such plan shall include a statement of qualifications, QA/QC program, specifications for monitor type and placement, monitoring duration, and a reporting schedule.
- (11) Rejection, suspension, and revocation.
- (a) The Department may, at any time, reject a permit application under this section or suspend or revoke a permit issued under this section if it determines that:
- [1] Any statement made in the permit application or any other submittal by the applicant to the Department is not true, or that material information has not been disclosed in the application or any such submittal;
 - [2] The abrasive blasting operation is not being conducted or will not be conducted, or the proposed operation will not be conducted, in full compliance with all applicable provisions of this chapter and all applicable permits and orders;
 - [3] Potential or actual emissions from the operation or proposed operation are potentially endangering, or are likely to potentially endanger, public health, safety or welfare; or
 - [4] It has been denied lawful access to the site as authorized by Article IX of this chapter.
- (b) Rejected applications and revoked permits can not be reconsidered or reissued. Consideration and issuance of new applications and permits can only occur after submittal of a new application and fee in accordance with this section.
- (c) Reinstatement of a suspended permit can only occur after the owner has, to the Department's satisfaction, corrected all problems and demonstrated an ability and willingness to comply with all requirements, and documented such corrections and demonstration to the Department.
- (12) High-silica abrasives. No abrasive blasting using high-silica abrasives shall be conducted at any time.
- (13) Abrasive blasting involving lead paint. For all abrasive blasting involving lead paint:
- (a) Visible emissions shall comply with the requirements of § 505-30A of this chapter at the source at all times; and
 - (b) Best available control technology shall be used at the site at all times to minimize visible emissions beyond the property line, public exposure to particulate matter, and the

deposition of particulate matter upon public or private property.

- (14) Abrasive blasting not involving lead paint. For all abrasive blasting not involving lead paint, visible emissions shall comply with the requirements of § 505-30 of this chapter at all times when conducting abrasive blasting.
- (15) Clean-up, storage, and disposal procedures. A complete clean-up of all spent abrasive and blast and cleaning residue, shall be conducted upon termination of abrasive blasting activities each day and upon the final termination of the project. Clean-up procedures shall include, at a minimum, the following:
 - (a) The daily collection of all spent abrasive and blast and cleaning residue, if any, visible in the vicinity of the blasting site.
 - (b) All vacuuming of spent abrasive and blast and cleaning residue, for all abrasive blasting not involving lead paint, shall be performed using an industrial vacuum cleaner equipped with an exhaust filter.
 - (c) All vacuuming of spent abrasive and blast and cleaning residue, for all abrasive blasting involving lead paint, shall be performed using an industrial vacuum cleaner equipped with a HEPA filter.
 - (d) All stockpiles of new or recycled abrasive materials at the site shall be covered at all times, except and only to the extent necessary to remove or add materials to the piles.
 - (e) All spent abrasive and blast and cleaning residue at the site shall be stored for disposal in covered containers, and shall not be stored at the site in violation of any applicable federal, state, and local environmental regulations.
 - (f) All spent abrasive and blast and cleaning residue from the site, and all other solid waste and waste water generated at the site from the abrasive blasting activity, shall be properly disposed of in accordance with all applicable federal, state, and local environmental regulations.
- (16) Alternative standards or procedures.
 - (a) The Department may, on a case-by-case basis, approve an alternative standard or procedure to be followed on a specific abrasive blasting project in lieu of a requirement of this section, provided that the requested alternative standard or procedure is submitted, in writing, and demonstrates to the Department's satisfaction that:
 - [1] The proposed alternative standard or procedure is equivalent to a requirement of this section; or
 - [2] That strict compliance with the requirements of this section are unreasonable or impossible in the particular circumstances involved, and the proposed alternative standard or procedure will minimize, to the maximum extent possible, the potential for the public's exposure to emissions from the abrasive blasting project.
 - (b) Approval to institute an alternative standard or procedure must be received, in writing, from the Department prior to the use of such alternative standard or procedure.
 - (c) Abrasive blasting activity subject to this section involving specific activities such as, but not limited to, the use of vacuum shrouded power tools, must fully comply with all

requirements of this section, including, but not limited to, all containment requirements, unless specific alternative procedures have been approved under this section.

§ 505-49. Asbestos sources.

A. Asbestos abatement contractor licenses.

- (1) General. In addition to the accreditation and permit requirements under Subsections B and C, respectively, of this section, no person shall remove, encase, or encapsulate, or allow the removal, encasement, or encapsulation of, ACM in any facility subject to Subsection C of this section unless the person engaged in the removal, encasement, or encapsulation has been issued and currently holds a valid Annual Asbestos Abatement Contractor License, hereinafter referred to as "license," issued by the Department under this section.
- (2) License applications.
 - (a) Properly completed applications for Licenses under this section, along with the appropriate fees, shall be submitted to, and received by, the Department, on forms approved by the Department, no later than 45 days prior to the proposed date of commencement of any proposed asbestos abatement activities proposed to be conducted by the applicant.
 - (b) Properly completed applications for the annual renewal of Licenses under this section, along with the appropriate fees, shall be submitted to, and received by, the Department no later than 30 days prior to the date of expiration of the License proposed to be renewed.
 - (c) License applications under this section shall be made on forms approved by the Department, signed by the applicant, and submitted in duplicate to: Asbestos Contractor License Applications, Allegheny County Health Department, Bldg. 3, 3901 Penn Ave., Pittsburgh, PA 15224-1345.
 - (d) License applications under this section shall include all information necessary for the Department to determine full compliance with this chapter, including, but not limited to:
 - [1] Name, mailing and street address, telephone number, and contact person of the applicant;
 - [2] Verification that all employees of the applicant to be engaged in asbestos abatement have successfully complied with the accreditation requirements set forth in Subsection B of this section within the past 12 months;
 - [3] Written standard operating procedures and employee protection plans implemented by all employees engaged in asbestos abatement activity;
 - [4] Certification that employees engaged in asbestos abatement have been and will continue to be supplied with protective clothing and equipment, including but not limited to disposable whole body coveralls, hoods and boots, and respirators approved for asbestos protection; and
 - [5] Citations or notices of violation issued or levied against the applicant by any federal, state, or local government agency for violations during or related to asbestos abatement activity in any jurisdiction during the prior three years.
- (3) License application fees. For each initial and annual renewal license application required under

this section, the applicant shall submit to the Department a License application fee payable to the Allegheny County Air Pollution Control Fund. The amount of the fee shall be set by the Board of Health. Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by the Allegheny County Council. **[Amended 7-7-2009 by Ord. No. 30-09]**

- (4) Application amendments. During the Department review of an application under this section or the term of a license issued under this section, the applicant or license holder, as the case may be, shall notify the Department of any changes in the information provided to the Department in such application by no later than 30 days after such changes are effective.
- (5) Action on license applications.
 - (a) Within 30 days after receiving an initial license application under this section, the Department will acknowledge receipt of the application and notify the applicant of all deficiencies in the application. A failure by the Department to acknowledge receipt or provide notice of completeness within such 30 days shall not prevent the Department from finding such application incomplete or from rejecting the application as failing to meet the requirements of this chapter.
 - (b) Within 45 days after receiving a properly completed application under this section, including the appropriate fee, and all additional information subsequently required by the Department, the Department will take final action on such application. No license under this section shall be issued after a certain time because the Department has failed to take action on the application, nor shall any such license be issued by default.
 - (c) Standards for issuance. The Department shall not issue an initial license or renew a license under this section unless a properly completed application, with the appropriate fee, has been submitted to, and received by the Department in accordance with this section, and such application demonstrates to the Department's satisfaction that the applicant has fully complied with, and has the ability to fully comply with, all applicable requirements under this chapter.
- (6) License term. Unless revoked by the Department under this chapter, a license issued under this section shall expire on either any expiration date identified on the issued license, or on December 31 of the year of issuance, whichever is later.
- (7) Rejection, suspension, and revocation.
 - (a) The Department may, at any time, reject a license application under this section or suspend or revoke a License issued under this section if it determines that:
 - [1] Any statement made in the license application or any submittal by the applicant to the Department is not true, or that material information has not been disclosed in the application or any such submittal;
 - [2] The applicant or license holder has failed to comply with any requirements of this chapter, any requirements of any order issued under this chapter, or the terms and conditions of any permit under this chapter;
 - [3] Any permit under which the applicant or license holder is conducting asbestos abatement activity has been revoked under this chapter based in whole or in part on actions, or a failure to act, on the part of the applicant or license holder; or

[4] It has been denied lawful access to any premises upon which the applicant or license holder is engaged in asbestos abatement activity or to any records of the license holder to which it is authorized by § 505-78 of this chapter.

- (b) Rejected applications and revoked licenses can not be reconsidered or reissued. Consideration and issuance of new applications and licenses can only occur after submittal of a new application and fee in accordance with this section.
- (c) Reinstatement of a suspended license can only occur after the owner has, to the Department's satisfaction, corrected all problems and demonstrated an ability and willingness to comply with all requirements, and documented such corrections and demonstration to the Department.

B. Asbestos abatement accreditation requirements.

(1) Certification.

- (a) No person shall: inspect for ACM; prepare an asbestos management plan; design or conduct an asbestos response action; conduct or supervise the removal, encasement, or encapsulation of asbestos, unless such person is in full compliance with all applicable accreditation requirements set forth in: § 206 of the federal Toxic Substances Control Act (TSCA), 15 USC § 2646, and the federal regulations promulgated thereunder at 40 CFR Part 763 Subparts E, F, and G, § 763.80 et seq., and appendices; and §§ 2104 and 2105 of the Pennsylvania Asbestos Occupations Accreditation and Certification Act, 63 P.S. §§ 2104 - 2105, and the state regulations promulgated thereunder by the Pa. Dept. of Labor and Industry (DOLI), all of which are hereby incorporated into this chapter by reference. Additions, revisions, or deletions to such federal and state regulations are incorporated into this chapter and are effective on the date established by the respective regulations, unless otherwise established by regulation under this chapter.
- (2) Documentation. No person shall engage in the removal, encasement, or encapsulation of ACM, or in the supervision of workers engaged in the removal, encasement, or encapsulation of ACM, for which a permit is required under this chapter unless said person has in their possession or at the asbestos abatement site office, and available for inspection upon request by any Health Department representative or law enforcement officer, during any asbestos abatement activity:
 - (a) An original printed photocard issued by DOLI under Subsection B(1) of this section, or an original card or certificate issued by a course pursuant Subsection B(1) of this section which indicates the name and accreditation status of the training organization, the name of the certified worker or supervisor, the status and date of certification, and a certification number, all of which indicate compliance with Subsection B(1) above; and
 - (b) A photo identification card (e.g., PA driver's license) if the documentation required by Subsection B(2)(a) above is not a photo I.D.

C. Asbestos abatement applicability, federal requirements, notices, and permits.

(1) Applicability. This subsection and Subsection D apply to:

- (a) The removal, encasement, or encapsulation of ACM at a facility; and
- (b) The demolition of any facility.

- (2) Incorporation of federal regulations by reference. All federal asbestos abatement regulations adopted at Title 40, Code of Federal Regulations, Part 61, Subpart M, NESHAP's, 40 CFR 61.140 et seq. by the EPA are hereby incorporated into this chapter by reference. Additions, revisions, or deletions to such regulations adopted by the EPA are incorporated into this chapter and are effective on the date established by the federal regulations, unless otherwise established by regulation under this chapter. Notwithstanding the applicability provisions of the regulations incorporated under this subsection, the substantive requirements of this subsection apply to all activities that are subject to this section as set forth under Subsection C(1) above.
- (3) Asbestos bulk sampling and analysis. Bulk samples shall be analyzed to determine asbestos content:
- (a) By using, at a minimum, either polarized light microscopy (PLM) with point counting, supplemented, where necessary, by x-ray diffraction, as specified in Chapter 60 of the Allegheny County Source Testing Manual, entitled "Determination of Asbestos Content of Bulk Samples," or any other methods acceptable to the Department; and
 - (b) By independent laboratories participating in the EPA's bulk asbestos sample quality assurance program, as specified in Chapter 60 of the Allegheny County Source Testing Manual, entitled "Determination of Asbestos Content of Bulk Samples."
- (4) Calculation of square feet of ACM.
- (a) For purposes of determining the amount of ACM in a facility to be demolished or the amount of ACM to be removed, encased, or encapsulated at a facility, the square feet of ACM on cylindrical facility components such as pipes shall be calculated using the following formula:
$$A = 0.02 (D) (L)$$

where A = The area of ACM to be removed, encased, or encapsulated in square feet;

D The outside diameter of the cylindrical facility component, including any ACM to be removed, encased, or encapsulated, insulation, coating, or covering, in inches; and

L The length of the cylindrical facility component from which, or on which, the ACM is to be removed, encased, or encapsulated, in inches,
 - (b) and all calculations must be included in all required applications or notices.
- (5) Authority to determine and eliminate public health hazard.
- (a) In cases where the Department believes ACM is present in a facility in such a condition as to pose a potential public health hazard, the Department shall have the authority to issue an order requiring the facility owner or operator to have bulk samples of the suspected ACM collected and analyzed in accordance with Subsection C(3) of this section, and submit a copy of the laboratory results to the Department as expeditiously as possible.
 - (b) If the Department determines, on the basis of any information available to it, that the presence and condition of ACM in a facility poses a public health hazard, the Department may issue an order pursuant to § 505-80 or 505-82 of this chapter requiring the facility

owner or operator to immediately take such action as is necessary to eliminate such public health hazard.

- (6) Demolition notice. No person shall demolish, or allow the demolition, of any facility unless the owner of the facility proposed to be demolished has either:
- (a) Submitted to the Department, and the Department has received, by no later than 10 days prior to the beginning of the proposed demolition, if there is less than 260 linear feet of pipe with ACM and a total of less than 160 square feet of, or no, ACM present in the facility, a written notice which includes, at a minimum, the following information about the facility proposed to be demolished:
 - [1] Names, mailing and street addresses, telephone numbers, and contact persons of the owner, and operator if not the owner, of the facility;
 - [2] Name, mailing and street addresses, telephone number, and contact person of the person (e.g., contractor) to perform the demolition;
 - [3] Exact location (e.g. street name and number) of the facility;
 - [4] The age and prior and present usage of the facility;
 - [5] Name, mailing and street addresses, telephone number, and contact person of the inspector, certified under § 505-49A(1) of this chapter, who performed the ACM inspection at the facility proposed to be demolished;
 - [6] Copy of the documentation of the ACM Inspector's certification under § 505-49B(1) and Subsection C(6)(a)[5] of this subsection; and
 - [7] Copy of the documentation of the results of the ACM inspection showing that no asbestos removal project permit is required prior to demolition due to the absence, or the presence of less than 260 linear feet of pipe with ACM and a total of less than 160 square feet, of ACM in the facility; or
 - (b) Prior to the proposed demolition, if there are 260 linear feet or more of pipe with ACM or a total of 160 square feet or more of ACM present in the facility,
 - [1] Submitted to the Department, and the Department has received, a properly completed asbestos abatement project permit (asbestos permit) application, with the appropriate fee, for any such permit required under Subsection C(8) of this section;
 - [2] Been issued such permit; and
 - [3] Removed all ACM in the facility and fully complied with all applicable provisions of this chapter and such permit.
- (7) Undersized project notice. No person shall conduct, or allow to be conducted, the removal, encasement, or encapsulation of ACM on less than 260 linear feet of pipe and a total of less than 160 square feet of ACM at any facility, unless the owner of the facility has submitted to the Department a properly completed notice under this section, and such notice has been received by the Department either at least 10 days prior to the start of such proposed abatement project or, for a project involving less than seven square feet of ACM, no later than 10 days after the completion of the project, or for a facility with a current Operating & Maintenance (O&M) Plan approved by the Department under this section, as part of the appropriate O&M Plan quarterly

report, and includes, at a minimum, the following information about the facility and the proposed abatement project or the completed project:

- (a) Names, mailing and street addresses, telephone numbers, and contact persons of the owner, and operator if not the owner, of the facility;
 - (b) Names, mailing and street addresses, telephone numbers, and contact persons of all persons preparing any asbestos management plans or designing any asbestos response actions for the facility related to the proposed project, and copies of the documentation of such persons' certifications under Subsection B of this section;
 - (c) Exact location (e.g., street name and number) of the facility;
 - (d) The age and prior and present usage of the facility;
 - (e) Name, mailing and street addresses, telephone number, and contact person of the inspector, certified under Subsection B(1) of this section, who performed the ACM inspection at the facility, and a copy of the documentation of the ACM Inspector's certification under Subsection B(1);
 - (f) Copy of the documentation of the results of the ACM inspection showing that no asbestos removal project permit is required due to the presence of ACM on less than 260 linear feet of pipe and a total of less than 160 square feet of ACM in the proposed project area and, for a facility without a current O&M Plan, including the proposed project, how many square feet of ACM has been removed or encapsulated at the facility in the past one-year period;
 - (g) Detailed description of the types, amounts, and specific locations within the facility of all ACM to be removed, encased, or encapsulated, including maps, blueprints, and sketches where necessary;
 - (h) Starting and completion dates and times for the removal, encasement, or encapsulation;
 - (i) Specific work practices, procedures, and equipment to be utilized on this project to comply with the requirements of 40 CFR 61.145(c), the federal requirements for planned asbestos abatement renovation/maintenance operations as incorporated by reference under Subsection C(2) above;
 - (j) Name, mailing and street addresses, telephone number, and contact person of the waste disposal firm transporting the asbestos-containing waste material from the project area to the waste disposal site; and
 - (k) Name, mailing and street addresses, telephone number, and contact person of the waste disposal site where the asbestos-containing waste material will be disposed of.
- (8) Permits.
- (a) Generally. No person shall conduct, or allow to be conducted, the removal, encasement, or encapsulation of:
 - [1] Either:
 - [a] ACM on 260 linear feet or more of pipe or a total of 160 square feet or more of ACM at any facility; or

- [b] Any ACM at any facility without a current Operating & Maintenance (O&M) Plan approved by the Department under this section if the Department has determined that a permit is required as a result of recent multiple prior related projects, each involving the removal, encasement, or encapsulation of ACM on less than 260 linear feet of pipe and a total of less than 160 square feet of ACM at the same facility as the current project,
- [2] Unless:
 - [a] The owner of the facility has submitted to the Department a properly completed asbestos abatement project permit (asbestos permit) application, on forms approved by the Department, with the appropriate fee, under this section;
 - [b] Such permit has been issued; and
 - [c] Such abatement is conducted in compliance with this chapter and such permit.
- (b) Posting. The notice of issuance of the permit required by this Subsection shall be posted in a conspicuous location immediately adjacent to the work area at all times during the set-up and conducting of the asbestos abatement project until the Department has accepted the results of all required final clearance inspections under this Part.
- (c) Application.
 - [1] At least 10 working days prior to the proposed start of any asbestos abatement project requiring a permit under this subsection, the owner of the facility shall submit to the Department, and the Department shall receive, a properly completed Asbestos Permit application, on application forms provided by the Department, with the appropriate fee under Subsection C(8)(d) of this subsection, which includes all information necessary for the Department to determine that such proposed project will fully comply with all requirements of this chapter, including, but not limited to:
 - [a] All information required to be included in undersized project notices under Subsection C(7) of this section;
 - [b] A detailed description of decontamination enclosure systems to be utilized, including floor plans;
 - [c] The specific sampling and analysis procedures to be utilized for the final clearance air sampling; and
 - [d] The names, mailing and street addresses, telephone numbers, and contact persons of the firms conducting the final clearance air sampling and analysis.
 - [2] A separate asbestos abatement permit, with its own application and fee, is required for each separate structure, installation, and building in which abatement activity is to be conducted, and for each different asbestos abatement contractor to conduct asbestos abatement activities.
- (d) Application fees. For all permit and operating and maintenance (O&M) plan applications required under this section, by the deadline for the submittal of such applications, the owner of the facility requiring such application shall submit to the Department an asbestos permit application fee, payable to the Allegheny County Air Pollution Control Fund, in an

amount to be set by the Board of Health. Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by Allegheny County Council. **[Amended 7-7-2009 by Ord. No. 30-09]**

(e) Standards for issuance.

[1] The Department shall issue a permit or amended permit under this subsection only if:

[a] The application for such permit was timely filed with the Department, along with the appropriate fee, and in all other respects fully complies with all applicable requirements of this chapter; and

[b] On the basis of all information available to the Department, the Department determines that the applicant is able and intends to fully comply with all requirements of this chapter.

[2] The Department shall not issue a permit under this subsection for any project which does not require a permit under this section, and no person shall apply, or allow the application, for a permit under this subsection for a project which does not require a permit under this section.

[3] Permits shall only be issued to the owner of the site of the proposed project.

(f) Action on applications. The Department will take one of the following actions on each application under this subsection:

[1] Issuance of an asbestos permit or amended permit as applied for;

[2] Issuance of an asbestos permit or amended permit with different or additional specific conditions deemed necessary by the Department to ensure compliance with all requirements of this chapter; or

[3] Rejection of the application for failure to fully comply with the requirements of this chapter. Such denial of a request for a permit or amended permit shall include a written notice to the applicant of the specific deficiencies in the application.

(g) Term of permits; permit extensions.

[1] Unless revoked by the Department under this chapter, a permit issued under this section shall expire on either the project completion date identified in the application, any expiration date identified on the issued permit, or 365 days after the date of issuance, whichever is sooner.

[2] Any request for the extension of the term of a permit, i.e. the extension of a permit expiration date, shall be in the form of an application for a permit amendment. Such an application can only be submitted on or before the current permit expiration date and must include:

[a] A specific resumption date if work has ceased and will not recommence until after the current expiration date;

[b] A specific new expiration date; and

- [c] The reason for the need for the extension.
 - [3] No fee is required for a timely application submitted in compliance with Subparagraph B above, and the amended permit, if approved by the Department, shall be effective on the date of application.
 - [4] In no case shall an expiration date of a permit be extended beyond 365 days after the date of initial issuance of such permit.
 - [5] All applications for extensions received after the current expiration date and all applications requesting the extension of an expiration date beyond 365 days after the date of the initial issuance of a permit shall constitute applications for a new permit and shall be rejected unless accompanied by the appropriate fee and in full compliance with all requirements for such an application under this section. Such new permits, if approved, shall not be effective until issued.
 - [6] An application for a new permit to continue a project after the expiration of a permit 365 days after the initial issuance of such permit shall only be for the asbestos abatement activity remaining to be done.
- (h) Permit amendments, other than solely for permit extensions.
- [1] No person shall remove, encase, or encapsulate, or cause to be removed, encased, or encapsulated, any ACM during asbestos abatement activities conducted under a permit under this section other than the ACM identified, by type, amount, and specific location within the facility, in the application and permit, unless for such additional ACM:
 - [a] Where all of the additional ACM is located within the existing containment barriers under the current permit:
 - [i] The owner of the facility has submitted to the Department a properly completed asbestos permit amendment application, including:
 - [A] A detailed description of the types, amounts, and specific locations within the facility of all additional ACM to be removed, encased, or encapsulated, including maps, blueprints and sketches where necessary; and
 - [B] The appropriate fee, under this section, in the amount of either the difference between the amount of the fee for the total amount of the ACM to be abated under the current permit plus the additional ACM to be removed, encased, or encapsulated, less the amount of the fee previously paid for the current permit, or \$150, whichever is more;
 - [ii] Such permit amendment has been issued; and
 - [iii] Such abatement is conducted in compliance with this chapter and such amended permit; or
 - [b] Where the additional ACM is located within the same facility under the current permit, but any portion of the additional ACM is located outside the existing containment barriers under the current permit:

- [i] The owner of the facility has submitted to the Department a separate properly completed new asbestos permit application, including:
 - [A] All requirements for a permit application under this section except;
 - [B] The appropriate fee, under this section, in the amount of either the difference between the amount of the fee for the total amount of the ACM to be abated under the current permit plus the additional ACM to be removed, encased, or encapsulated, less the amount of the fee previously paid for the current permit, or \$150, whichever is more;
 - [ii] Such new permit has been issued; and
 - [iii] Such abatement is conducted in compliance with this chapter and such new permit.
- [2] In no case shall an amended permit act to extend the expiration date of a permit beyond 365 days after the date of initial issuance of such permit.
- [3] All applications for amendments received after the current expiration date and all applications for amendments including a new expiration date beyond 365 days after the date of the initial issuance of the current permit shall constitute applications for a new permit and shall be rejected unless accompanied by the appropriate fee and in full compliance with all requirements for such an application under this section. Such new permits, if approved, shall not be effective until issued.
- [4] Asbestos permit amendment applications may, in the sole discretion of the Department, be conditionally approved in the field or verbally over the phone, but such approval is automatically null and void unless:
- [a] By no later than 2:00 p.m. on the next Department business day, the owner of the facility has submitted to the Department a properly completed asbestos permit amendment application, including:
 - [i] A detailed description of the types, amounts, and specific locations within the facility of all additional ACM to be removed, encased, or encapsulated, including maps, blueprints and sketches where necessary;
 - [ii] The appropriate fee, under this section, in the amount of either the difference between the amount of the fee for the total amount of the ACM to be abated under the current permit plus the additional ACM to be removed, encased, or encapsulated, less the amount of the fee previously paid for the current permit, or \$150, whichever is more; and
 - [iii] A detailed description of all changes in work practices, procedures, and equipment at the facility, including maps, blueprints and sketches where necessary;
 - [b] Such abatement is conducted in compliance with this chapter and such amended permit application as issued by the Department; and
 - [c] Such permit amendment is subsequently issued by the Department.
- [5] Asbestos permit amendments under Subsection C(8)(h)[4] above not requiring any

fee may, in the sole discretion of the Department, be tentatively approved in the field or verbally over the phone and finally approved by the issuance of a memo amendment by the Department to the site owner. Such asbestos abatement activities may proceed in accordance with such amendment following tentative approval, but only if:

- [a] Such abatement is conducted in compliance with this chapter and such amended permit application as issued by the Department; and
- [b] Such permit amendment is subsequently issued by the Department.

(i) Rejection, suspension, and revocation.

- [1] The Department may, at any time, reject a permit or permit amendment application under this section or suspend or revoke a permit issued under this section if it determines that:
 - [a] Any statement made in the application or any other submittal by the applicant to the Department is not true, or that material information has not been disclosed in the application or any such submittal;
 - [b] The asbestos abatement project is not being conducted or will not be conducted, or the proposed project will not be conducted, in full compliance with all applicable provisions of this chapter and all applicable permits and orders;
 - [c] Potential or actual emissions from the project or proposed project are potentially endangering, or are likely to potentially endanger, public health, safety or welfare;
 - [d] It has been denied lawful access to the site as authorized by Article I of this chapter; or
 - [e] A request for an alternative procedure does not include sufficient written details of the requested alternative procedure necessary for the Department to evaluate such procedure.
- [2] Rejected applications and revoked permits can not be reconsidered or reissued. Consideration and issuance of new applications and permits can only occur after submittal of a new application and fee in accordance with this section.
- [3] Reinstatement of a suspended permit can only occur after the owner has, to the Department's satisfaction, corrected all problems and demonstrated an ability and willingness to comply with all requirements, and documented such corrections and demonstration to the Department.
- [4] In no case shall the rejection, suspension, or revocation of any application or permit entitle the applicant or permit holder to any refund of any fee or part thereof.
- [5] The Department, solely in its discretion, may, in lieu of rejecting, suspending, or revoking an application or permit, and if sufficient information has been provided to the Department, issue a permit or amended permit with whatever conditions are necessary to ensure compliance with this chapter.

(j) Permit conditions.

- [1] All information provided to the Department as part of the asbestos abatement permit or amendment application process constitutes conditions of the permit, if issued, unless:
 - [a] The Department amends such conditions either in the permit or an amendment; or
 - [b] Such conditions are not in compliance with any requirements of this chapter, unless:
 - [i] An alternative procedure has been specifically applied for by the applicant; and
 - [ii] Such alternative procedure has been specifically approved by the Department.
 - [2] No person shall remove, encase, or encapsulate, or cause to be removed, encased, or encapsulated, any ACM during asbestos abatement activities conducted under a permit under this section other than the ACM identified, by type, amount, and specific location within the facility, in the permit.
- (9) Requests for waivers from requirement for ten-day advanced applications and notices.
- (a) The requirement to submit all permit applications and initial undersized project notices under this section at least 10 working days prior to the proposed start of any asbestos abatement project requiring such permit or notice under this Subsection may be waived by the Department, in the sole discretion of the Department, only where the applicant communicates to the Department specific verifiable information regarding an alleged emergency situation and the Department determines, in its sole discretion, on the basis of any information available to it, that an emergency exists that necessitates immediate asbestos abatement action to protect the public health, safety, or welfare.
 - (b) No person shall apply for a waiver under this subsection, or allow the application for such a waiver, where no emergency exists that necessitates immediate asbestos abatement action to protect the public health, safety, or welfare.
- (10) Operating and maintenance plans.
- (a) Upon submittal of a properly completed application, with the appropriate fee, in accordance with Subsection C(8)(c) and (d) above, and demonstrating compliance with Subsection C(7) above, the Department may, subject to Subsection C(8)(e) through (j) above, approve an Operating & Maintenance (O&M) Plan for multiple undersized asbestos abatement projects subject to Subsection C(7) of this section for a period not to exceed 365 days at a facility or multiple facilities located on contiguous, or nearly contiguous, properties and under common control.
 - (b) Notwithstanding the requirements of Subsection C(8)(c)[4] of this section, an O&M plan can include asbestos abatement activity conducted by different asbestos abatement contractors.
 - (c) For each ninety-day period following the approval of an O&M Plan, the owner of the facilities under such plan shall submit a written quarterly report to the Department, by no later than 30 days following the end of each ninety-day period, which consists of the

applicable portions of the notices required under Subsection C(7) above for all projects started or completed during such ninety-day period.

- (11) Set-up and preparation notice. No person shall conduct, or allow to be conducted, the removal, encasement, or encapsulation of ACM at any facility, unless following completion of the full set-up and preparation of the work area, including the commencement and continuing maintenance of negative air pressure in the work area, but prior to the commencement of any actual removal, encasement, or encapsulation, the Department is notified of such completion of set-up and preparation. Such notice shall include the asbestos permit number, the names of the permit applicant and the licensed contractor, the street address and municipality of the project site, the name and phone number of the person submitting the notice, and the estimated date and time of the actual commencement of ACM removal, encasement, or encapsulation.

D. Asbestos abatement procedures.

- (1) Applicability. This section applies to all asbestos abatement projects required to have a permit under § 505-49C of this chapter.
- (2) Facility protection. No person shall conduct, or allow to be conducted, asbestos abatement activities at any facility unless:
 - (a) Clearly identifiable signs with, and only with, the following specific warning, word for word, are posted at the facility, at eye level in a conspicuous location easily read by passersby, at all potential approaches to the work area, a sufficient distance from the work area to permit a person to read the sign and take the necessary protective measures to avoid potential exposure, from the commencement of preparation for the project until acceptance by the Department of all final clearance inspections for the work area:

"- DANGER - ASBESTOS -
- CANCER AND LUNG DISEASE HAZARD -
- AUTHORIZED PERSONNEL ONLY -
- RESPIRATORS AND PROTECTIVE CLOTHING ARE REQUIRED
IN THIS AREA -"

- (b) Negative air pressure is maintained in the work area, the air outside the work area remains uncontaminated by asbestos fibers, and negative air pressure equipment is utilized to provide, at a minimum, one air change in the work area every 15 minutes, at all times, 24 hours per day, from the commencement of preparation for asbestos removal, encasement, or encapsulation until all requirements of this article have been met.
- (3) Decontamination outside the work area.
 - (a) Any area outside of the work area which becomes contaminated as a result of the asbestos abatement activity shall be immediately decontaminated in accordance with all requirements of this article, including but not limited to the requirements for permit applications, fees, and permits. Such decontamination activities may, in the sole discretion of the Department, be determined by the Department to constitute emergency asbestos abatement activities under this article.
 - (b) In addition to the requirements under Subsection D(3)(a) of this subsection, the contamination of any area outside of a work area as a result of asbestos abatement activity constitutes a breakdown at an air pollution source under this chapter requiring compliance

with § 505-74C of this chapter.

- (4) Work area preparation. No person shall commence or continue, or allow the commencement or continuation of, the actual removal, encasement, or encapsulation of ACM unless:
 - (a) All heating, ventilation, and air conditioning (HVAC) systems for the work area are completely shut down or isolated from the work area.
 - (b) All movable objects are removed from the work area.
 - (c) All remaining fixed objects in the work area are covered and enclosed with minimum six-mil plastic sheeting sealed with tape.
 - (d) All openings, including but not limited to windows, corridors, doorways, skylights, ducts, and grilles are sealed off with minimum six-mil plastic sheeting sealed with tape.
 - (e) All floor and wall surfaces are covered with minimum six-mil plastic sheeting sealed with tape, all floors with a minimum of two layers of six-mil plastic, so that plastic on floors overlaps the plastic on walls by a minimum of 12 inches.
- (5) Decontamination enclosure systems. No person shall commence or continue, or allow the commencement or continuation of, the actual removal, encasement, or encapsulation of ACM unless decontamination enclosure systems are provided, maintained, and properly utilized at all locations where persons or equipment enter or exit the work area.
 - (a) Worker decontamination enclosure systems shall consist of three rooms separated by three-foot minimum air locks, with the second room from the work area being a shower room and the third room from the work area being a clean room.
 - (b) Equipment decontamination enclosure systems shall consist of two rooms separated by a triple curtain, with the room adjacent to the work area being a wash room and the second room from the work area being a holding area directly connected or ramped to an enclosed truck or trailer for transportation.
 - (c) These systems may consist of existing rooms outside of, but adjacent to, the work area, that are enclosed in plastic sheeting and are accessible from the work area. When existing rooms are not available, these systems must be constructed out of metal, wood, or plastic support as appropriate.
 - (d) Entry to and exit from all airlocks and decontamination enclosure system chambers shall be through curtained doorways consisting of three sheets of overlapping polyethylene sheeting. One sheet shall be secured at the top and left side, the second sheet at the top and right side, and the third sheet at the top and left side. All sheets shall have weights attached to the bottom to ensure that the sheets hang straight and maintain a seal over the doorway when not in use. Any other design must be approved in advance by the Department as an alternative procedure.
- (6) Removal procedures. No person shall commence or continue, or allow the commencement or continuation of, the actual removal of ACM unless, at a minimum, except when the glovebag technique has been approved by the Department as an alternative procedure:
 - (a) All ACM to be removed, being removed, and having been removed, has been wetted and saturated to the substrate with an amended water solution, using low pressure equipment

capable of providing a fine spray mist, and is kept wet and saturated until it can be containerized for disposal, except where an alternative procedure has been approved by the Department in advance due to special circumstances (e.g., live electrical equipment, materials previously coated with an encapsulant) which prohibit the adequate use of such wetting methods.

- (b) All ACM to be removed, being removed, and having been removed, is handled in such a manner so as to prevent the release of any fibers from such ACM during such removal and disposal.
 - (c) All ACM is removed in manageable sections capable of containerization in six-mil polyethylene bags and drums, and is so containerized at least once per eight-hour work shift.
 - (d) All ACM is removed as intact sections or components and carefully lowered to the floor or containerized at elevated levels (e.g., on scaffolds) and carefully lowered to the ground, and no ACM removed from facility structures or components is dropped or thrown to the floor at any time.
 - (e) Except where equivalent alternative procedures have been approved by the Department in advance, all ACM removed and asbestos-containing waste material is double-bagged in two six-mil polyethylene bags which are securely sealed to prevent accidental opening and leakage, not overfilled, and placed in drums for transportation to an authorized landfill; all bags and drums are sealed prior to removal from the work area and labeled in accordance with the requirements of 40 CFR 61.150(a)(1)(iv) and (v).
 - (f) All oversize components containing or covered with ACM, which are removed intact but do not fit into drums, are wrapped in at least two layers of six-mil polyethylene sheeting and securely sealed for transport to the landfill.
 - (g) After completion of the removal of ACM, all surfaces from which the ACM has been removed are wet cleaned to remove all visible residue.
- (7) Encapsulation procedures. No person shall commence or continue, or allow the commencement or continuation of, the actual encapsulation of ACM unless:
- (a) All damaged areas of existing ACM have been repaired with non-asbestos-containing substitutes.
 - (b) All loose or hanging asbestos-containing materials have been removed in accordance with the requirements of this section.
 - (c) All encapsulants are applied using airless spray equipment.
 - (d) All penetrating-type encapsulants are applied to penetrate existing asbestos material uniformly to the substrate and to the depth specified by the manufacturer of the encapsulant.
 - (e) All bridging-type encapsulants are applied to provide the manufacturer's specified number of inches of minimum dry film thickness over sprayed asbestos-containing surfaces.
 - (f) Encapsulated asbestos-containing materials shall be clearly designated (e.g., labels, signs, floor plans, or color codes) in order to warn of the presence of asbestos.

- (g) Only non-clear and colored or tinted encapsulants are used.
- (8) Clean-up procedures. No person shall conduct, or allow to be conducted, any final clearance air sampling, or request, or allow to be requested, a final clearance inspection by the Department, until all ACM has been removed, encased, or encapsulated, in a work area, the following clean-up procedures and standards have been completed and achieved:
 - (a) All visible accumulations of asbestos-containing material and asbestos contaminated debris are removed and containerized for disposal as required by this section; and
 - (b) All objects and surfaces in the work area are wet cleaned, dried, vacuumed using HEPA vacuum equipment, and continue to be wet/dry cleaned until there is no visible residue of any kind in the work area, and all rags, mops, and sponges used in the clean-up have been disposed of as asbestos-containing waste material.
- (9) Lock-down procedures. No person shall apply, or allow the application of, any material to lock-down any object or surface in a work area prior to the results of a final clearance inspection for such area being accepted by the Department unless:
 - (a) Subsection h above has been fully complied with; and
 - (b) Only clear, colorless material is used.
- (10) Clearance air sampling. No person shall request, or allow to be requested, a final clearance inspection by the Department, until clearance air sampling has been conducted for the work area in accordance with this section, and no person shall conduct, or allow to be conducted, any final clearance air sampling unless:
 - (a) All ACM has been removed, encased, or encapsulated, in the work area, and the work area has been cleaned up, all in accordance with the requirements of this section.
 - (b) At least five samples of air per the first 5,000 square feet of work area plus one sample per each additional 5,000 square feet of work area, or one sample of air per room, whichever is greater, is collected and analyzed in accordance with the requirements of this subsection.
 - (c) Unless specifically directed by the Department, all clearance air sampling and analysis required under this section shall only be conducted in accordance with either:
 - [1] The National Institute for Occupational Safety and Health (NIOSH)/Center for Disease Control (CDC) Standard Analytical Method for Asbestos in Air P&CAM 239 or Method 7400 (PCM), as approved in advance by the Department;
 - [2] Transmission electron microscopy, as approved in advance by the Department; or
 - [3] Such other method approved by both the EPA and the Department in advance.
 - (d) Asbestos abatement project clearance air sampling and analysis shall be conducted by an independent consulting company or laboratory which is trained and experienced in the appropriate procedures for collecting and analyzing such air samples and which is proficient in the NIOSH Proficiency Analytical Testing (PAT) Program.
 - (e) Aggressive sampling is conducted, a minimum volume of 1,500 liters of air per sample is collected when utilizing Method 7400, and a minimum of 3,000 liters of air per sample is collected when utilizing P&CAM 239.

- (f) The airborne concentrations of asbestiform fibers detected in each sample is less than 0.01 fiber per cubic centimeter of air.
 - (g) In lieu of compliance with Subsection D(10)(b) through (f) of this subsection, clearance air sampling and analysis is conducted in accordance with the procedures set forth in the federal regulation regarding asbestos-containing materials in schools, at 40 CFR 763.80 et seq., and such sampling and analysis demonstrates a level of asbestos contamination of no more than a level which determines completion of a response action under such regulations.
 - (h) The clearance air sampling laboratory analysis is retained on-site at the asbestos abatement project work area for review and a copy is provided to the Department no later than the time of its scheduled final clearance inspection.
- (11) Final clearance inspection.
- (a) No person shall remove containment barriers, fail to continue to maintain negative air pressure at a project work area, or reopen the work area to the public, or allow any such removal, failure, or reopening, until such time as the Department has accepted the results of a final clearance inspection or reinspection for such work area.
 - (b) Final clearance inspections shall be requested by either the licensed asbestos abatement contractor or the air monitoring or sampling firm for the project and scheduled in advance with the Department in accordance with procedures set forth by the Department's Asbestos Abatement Section.
 - (c) The results of a final clearance inspection can not be accepted by the Department until such time that such inspection indicates that:
 - [1] All clean-up and clearance air sampling requirements of this article have been complied with; and
 - [2] There is no asbestos-containing waste material or visible residue remaining on any surface or object in the work area.
 - (d) If the results of a final clearance inspection are not acceptable to the Department:
 - [1] The Department will indicate the deficiencies which must be remedied; and
 - [2] A request for a final clearance reinspection shall be submitted to the Department in accordance with the Department's procedures for scheduling initial final clearance inspections. All requests to schedule a final clearance reinspection shall include the submittal to the Department of:
 - [a] A final clearance reinspection application, on a form approved by the Department; and
 - [b] A final clearance reinspection fee payable to the Allegheny County Air Pollution Control Fund. The amount of the fee shall be set by the Board of Health. Any fees approved by the Board of Health under the terms of this section shall not become effective until approved by the Allegheny County Council. **[Amended 7-7-2009 by Ord. No. 30-09]**
 - (e) No person, including but not limited to owners, general contractors, asbestos abatement

contractors, air monitoring or sampling firms, and their representatives, shall request or schedule a final clearance inspection or reinspection, or allow such an inspection or reinspection to be requested or scheduled, with the Department, until such time as:

- [1] All clean-up and clearance air sampling requirements of this article have been complied with; and
 - [2] There is no asbestos-containing waste material or visible residue remaining on any surface or object in the work area.
- (f) A failure to pass a final clearance inspection or reinspection constitutes a violation of Subsection D(11)(e) of this subsection.

(12) Disposal procedures.

- (a) All asbestos-containing materials, asbestos-containing waste materials, asbestos contaminated materials, including, but not limited to, sealing tape and plastic, disposable clothing, respirator filters, mop heads, sponges, and rags, shall, at least once per eight-hour work shift and prior to removal from the work area, be placed in leaktight containers and properly sealed and labeled, for transportation to and disposal at approved landfills.
- (b) All such leaktight containers shall be labeled in accordance with the requirements of 40 CFR 61.150(a)(1)(iv) and (v).
- (c) Alternative forms of containerization may only be approved under the alternative procedures provisions of this article and upon a satisfactory demonstration that they are equivalent in terms of asbestos containment.
- (d) Double-bagged material may be carefully removed from drums at the landfill site for disposal and the drums cleaned for re-use, provided the bags are intact.
- (e) Asbestos-containing waste materials with sharp-edged components (e.g., nails, screws, metal lath, tin sheeting) which may tear the double six-mil polyethylene bags and sheeting, shall be placed into drums for disposal together with the drum.
- (f) Asbestos-containing waste materials which cannot be placed in leaktight containers, shall be adequately wetted, wrapped in two layers of six-mil polyethylene, securely sealed, and transported from the work site to the disposal site in an enclosed truck.
- (g) Asbestos-containing waste materials shall be placed on the ground at the disposal site, not pushed or thrown out of trucks.
- (h) All asbestos-containing waste materials shall be transported directly to the approved landfill. Temporary storage at any location outside the project work area for more than eight hours is prohibited.
- (i) All disposal receipts, trip tickets, transportation manifests and/or other documentation of transportation and disposal of the asbestos-containing waste materials shall be maintained and shall be made available to the Department, upon request, for inspection and copying.
- (j) All asbestos waste transportation vehicles shall be licensed in accordance with Department Rules and Regulations, Article VIII, Solid Waste and Recycling Management, and shall comply with all applicable PA Dept. of Transportation regulations.

(13) Alternative procedures.

- (a) The Department may, on a case-by-case basis, approve an alternative procedure to be followed on a specific asbestos abatement project in lieu of a requirement of this section, only if the requested alternative procedure is submitted as part of a permit or permit amendment application to the Department in writing, and demonstrates to the Department's satisfaction that:
 - [1] The proposed alternative procedure is equivalent, in terms of asbestos control, to the requirements in this section; or
 - [2] Strict compliance with the requirements of this section are unreasonable or impossible in the particular circumstances involved, and the proposed alternative procedure will minimize, to the maximum extent possible, the potential for the public's exposure to asbestos fibers.
- (b) Failure to fully comply with the requirements of Subsection D(13)(a) above or to include sufficient written details of the requested alternative procedure necessary for the Department to evaluate such procedure will result in the rejection of the request for an alternative procedure.
- (c) Approval to institute an alternative procedure in lieu of a requirement of this section must be received, in writing, from the Department prior to the use of such alternative procedure.
- (d) Asbestos abatement activity subject to this section involving specific activities such as, but not limited to: the use of glove-bags; the removal, encasement, or encapsulation of floor tile; the removal, encasement, or encapsulation of ACM from the exterior of a structure; or the removal, encasement, or encapsulation of ACM which will not become friable or potentially at any time during the encapsulation, encasement, or removal and disposal activities, must fully comply with all requirements of this article unless specific alternative procedures have been approved under this article.
- (e) Asbestos abatement activity subject to this section involving specific activities such as, but not limited to, the use of:
 - [1] Any heating equipment or machines; or
 - [2] High-pressure air, liquid, or solids, for preparation, wetting, removal, control, or clean-up are prohibited unless specifically approved as alternative procedures under this article.
- (f) In no case shall compliance with this section or any alternative procedure approved by the Department under this chapter exempt any solid waste hauler from the requirements to comply with all other federal, state, county, and local solid waste transportation regulations.

§ 505-50. Miscellaneous VOC sources.**A. Petroleum refineries.****(1) Specific sources.**

- (a) Wastewater separators. No person shall cause or permit the use of any compartment of any

single or multiple compartment volatile organic compound wastewater separator which compartment receives effluent water containing 200 gallons a day or more of any VOC from equipment processing, refining, treating, storing, or handling VOC's unless such compartment is equipped with one of the following vapor loss control devices, properly installed, in good working order, and in operation, as follows:

- [1] A container having all openings sealed and totally enclosing the liquid contents. All gauging and sampling devices shall be gas-tight except when gauging or sampling is taking place; or
 - [2] A container equipped with a floating roof, consisting of a pontoon-type roof, double-deck-type roof, or internal floating cover, which will rest on the surface of the contents and be equipped with a closure seal or seals to close the space between the roof edge and container wall. All gauging and sampling devices shall be gas tight except when gauging or sampling is taking place.
- (b) Pumps and compressors. All pumps and compressors handling VOC's with a vapor pressure of greater than 1.5 psi at actual conditions shall have mechanical seals. For the purpose of determining vapor pressure, a temperature no greater than 100° F (37.8° C) shall be used.
- (c) Vacuum-producing systems. Vacuum producing systems shall conform with the following:
- [1] No person shall operate, or allow to be operated, a vacuum-producing system at a petroleum refinery in such manner that there are any emission of VOC's from the condensers, hot wells, or accumulators of the system; and
 - [2] The emission limit under Subsection A(1)(c)[1] of this subsection shall be achieved by one of the following:
 - [a] Piping the vapors to a firebox or a incinerator;
 - [b] Compressing the vapors and adding them to the refinery fuel gas; or
 - [c] iii. Any method approved by the Department which recovers no less than 90% by weight of uncontrolled VOC's that would otherwise be emitted to the atmosphere.
- (d) Process unit turnarounds. Purging of VOC's during depressurization of reactors, fractionating columns, pipes, or vessels during unit shutdown, repair, inspection, or start-up shall be performed in such a manner as to direct the VOC's to a fuel gas system, flare, or vapor recovery system until the internal pressure in such equipment reaches 19.7 psia.
- (2) Fugitive sources.
- (a) The owner or operator of a petroleum refinery shall:
- [1] Develop and conduct a monitoring program consistent with the provisions of Subsection A(2)(d), (e) and (f) of this subsection.
 - [2] Record leaking refinery components which have a VOC concentration exceeding 10,000 ppm when tested in accordance with the provisions of Article VII of this chapter, relating to emissions of VOC's, and place an identifying tag on each refinery

component consistent with the provisions of Subsection A(2)(f).

- [3] Repair and retest the leaking refinery components as soon as possible. Every reasonable effort shall be made to repair each leak within 15 days unless a refinery unit shutdown is required to make the necessary repair.
- [4] Identify leaking refinery components which cannot be repaired until the unit is shutdown for turnaround.
- (b) No person shall install or operate, or allow the installation or operation of, a valve at a petroleum refinery at the end of a pipe or line containing VOC's unless the pipe or line is sealed with a second valve, a blind flange, a plug, or a cap, except for safety pressure relief valves and fittings on valves one inch or smaller. The sealing device may be removed only when a sample is being taken or during maintenance operations.
- (c) Pipeline valves and pressure relief valves in gaseous VOC service shall be marked in some manner that will be readily obvious to both refinery personnel performing monitoring and the Department.
- (d) Any person operating, or allowing the operation of, a petroleum refinery shall conduct a monitoring program consistent with the following requirements:
 - [1] Check yearly, by methods referenced in Article VII of this chapter, pump seals and pipeline valves in liquid service.
 - [2] Check quarterly by methods referenced in Article VII of this chapter, compressor seals, pipeline valves in gaseous service, and pressure relief valves in gaseous service.
 - [3] Check monthly, by visual methods, all pump seals.
 - [4] Check within 24 hours, by methods referenced in Article VII of this chapter, pump seal from which VOC liquids are observed to be dripping.
 - [5] Check, by methods referenced in Article VII of this chapter, relief valve within 24 hours after it has vented to the atmosphere.
 - [6] Check within 24 hours after repair, by methods referenced in Article VII of this chapter, refinery component that was found leaking.
- (e) Pressure relief devices which are connected to an operating flare header, vapor recovery devices, inaccessible valves, storage tank valves, and valves that are not externally regulated are exempt from the monitoring requirements in Subsection A(2)(d).
- (f) Any person operating, or allowing the operation of, a petroleum refinery, upon the detection of a leaking refinery component, shall affix a weatherproof and readily visible tag, bearing an identification number and the date upon which the leak is located to the leaking refinery component. This tag shall remain in place until the leaking refinery component is repaired.
- (g) Any person operating, or allowing the operation of, a petroleum refinery shall maintain a leaking refinery components monitoring log which shall contain, at a minimum, the following data:

- [1] The name and process unit where the refinery component is located.
 - [2] The type of refinery component, for example, valve, seal.
 - [3] The tag number of refinery component.
 - [4] The dates on which the leaking refinery component was discovered and repaired.
 - [5] The date and instrument reading of the recheck procedure after a leaking refinery component was repaired.
 - [6] A record of the calibration of the monitoring instrument.
 - [7] Those leaks that cannot be repaired until turnaround.
 - [8] The total number of refinery components checked and the total number of refinery components found leaking.
- (h) Copies of the monitoring log shall be retained by the owner or operator for two years after the date on which the record was made or the report was prepared, whichever is later.
- (i) Copies of the monitoring log shall immediately be made available to the Department for inspection and copying, upon verbal or written request, at any reasonable time.
- (j) The person operating, or allowing the operation of, a petroleum refinery, within 30 days following the end of each calendar year, shall:
- [1] Submit a written report to the Department for such calendar year that lists all leaking refinery components that were located during such year but not repaired within 15 days, all leaking refinery components awaiting unit turnaround as of the end of the year, the total number of refinery components inspected, and the total number of refinery components found leaking.
 - [2] Submit a signed statement with the report attesting to the fact that, with the exception of those leaking refinery components listed in Subsection A(2)(j)[1], monitoring and repairs were performed as stipulated in the monitoring program.
- (k) The owner or operator of a petroleum refinery may submit an alternative plan for the control of leaks from petroleum refinery equipment to the Department. If the Department finds that the alternative plan will achieve an emission reduction which is equivalent to or greater than the reduction which can be achieved under this section and that the alternative plan is as enforceable as this section, then the Department will allow the implementation of this alternative plan.
- (l) The owner or operator of a petroleum refinery may submit to the Department a list of refinery components the inspection of which would involve a significant element of danger. The Department may exempt the refinery components on this list from the requirements of this section if it is demonstrated to the satisfaction of the Department that a significant element of danger exists which cannot be reasonably eliminated and that these exemptions will not result in a significant reduction in the effectiveness in the control of VOC emissions.

B. Pharmaceutical products.

- (1) Manufacture of synthesized pharmaceutical products. This subsection applies to synthesized pharmaceutical manufacturing sources.
 - (a) Any person who operates, or allows the operation of, a synthesized pharmaceutical manufacturing source subject to this subsection shall control the VOC emissions from reactors, distillation operations, crystallizers, centrifuges, and vacuum dryers that emit 15 pounds per day or more of VOC's. Surface condensers or equivalent controls shall be used and if:
 - [1] Surface condensers are used, the condenser outlet gas temperature shall not exceed:
 - [a] Minus 25° C. when condensing VOC's of vapor pressure greater than 5.8 psi when measured at 68° F.
 - [b] Minus 15° C. when condensing VOC's of vapor pressure greater than 2.9 psi when measured at 68° F.
 - [c] 0° C. when condensing VOC's of vapor pressure greater than 1.5 psi when measured at 68° F.
 - [d] 10° C. when condensing VOC's of vapor pressure greater than one psi when measured at 68° F.
 - [e] 25° C. when condensing VOC's of vapor pressure greater than 0.5 psi when measured at 68° F.
 - [2] Equivalent controls are used, the VOC emissions shall be reduced by an equivalent or greater amount than would be required in Subsection B(1)(a)[1] of this subsection.
 - (b) Any person who operates, or allows the operation of, a synthetic pharmaceutical manufacturing source subject to this section shall reduce the VOC emissions from air dryers and production equipment exhaust systems:
 - [1] By at least 90% if uncontrolled emissions are 220 pounds per day per day) or more of VOC's; or
 - [2] To 33 pounds per day or less if uncontrolled emissions are less than 220 pounds per day of VOC's.
 - (c) Any person who operates, or allows the operation of, a synthesized pharmaceutical manufacturing source subject to this section shall enclose centrifuges, rotary vacuum filters, and other filters having an exposed liquid surface, where the liquid contains VOC's and exerts a total VOC vapor pressure of 0.5 psi or more at 20° C.
 - (d) Any person who operates, or allows the operation of, a synthesized pharmaceutical source subject to this section shall install covers on in-process tanks containing a VOC at any time. These covers shall remain closed except during production, sampling, maintenance or inspection procedures that require operator access.
 - (e) Any person who operates, or allows the operation of, a synthesized pharmaceutical manufacturing source subject to this section shall repair leaks from which a liquid, containing VOC's, can be observed running or dripping. The repair shall be completed the first time the equipment is off-line for a period of time long enough to complete the repair.

- (2) Pharmaceutical tablet coating. This subsection applies to pharmaceutical tablet coating at pharmaceutical manufacturing sources that emit greater than 50 tons of VOC's per year.
- (a) Any person who operates, or allows the operation of, any pharmaceutical manufacturing source subject to this subsection shall control VOC emissions from pharmaceutical tablet coating equipment that has a potential to emit more than 33 pounds per day of VOC's. VOC emissions from such equipment shall be reduced:
- [1] By at least 90% overall on a daily basis, if uncontrolled VOC emissions are 330 pounds per day or more; or
 - [2] To 33 pounds per day, or less, if uncontrolled VOC emissions are less than 330 pounds per day.
- (b) Carbon adsorption or incineration shall be used to effect compliance with Subsection B(2)(a) of this subsection. Control equipment shall be installed, operated, and maintained consistent with the manufacturers specifications and recommendations.
- (c) Any person who operates, or allows the operation of, any affected pharmaceutical tablet coating source shall demonstrate compliance by:
- [1] Certifying in writing to the Department that the appropriate control equipment is in place and in use, including compliance with applicable installation permit and operating license requirements;
 - [2] Providing the Department, upon request, with certified written analyses of all tablet coatings in place and in use. The analyses shall include determinations of VOC content and solids content and any other determinations requested by the Department. Analyses shall be provided by the owner-operator of the source, the manufacturer of the coating solution, or an independent laboratory acceptable to the Department;
 - [3] Maintaining VOC purchasing, inventory, and daily consumption records such that the Department can determine compliance;
 - [4] Maintaining daily operating records for all equipment connected to the VOC control equipment;
 - [5] Maintaining the appropriate control equipment in a manner consistent with manufacturer's specifications and recommendations; and
 - [6] Maintaining daily operating, inspection, and maintenance records for VOC control equipment in a manner approved by the Department.
- (d) Any person who operates, or allows the operation of, any affected pharmaceutical tablet coating source shall maintain copies of all manufacturer's specifications and recommendations for VOC control equipment operated at the source, all records of operations, inspections, and maintenance required under Subsection B(2)(c) and (d) of this subsection, and all other records that are necessary for the Department to determine compliance. These records shall be retained at the source for a period of at least two years and shall be made available to the Department for inspection and copying upon request.
- (e) Any person who operates, or allows the operation of, any affected pharmaceutical tablet

coating source shall submit reports to the Department summarizing information on daily operations, inspections, and maintenance activities, and such other information as is required by the Department to determine compliance, on a schedule and in a form and manner as prescribed by the Department.

C. Manufacture of pneumatic rubber tires.

- (1) This section applies to pneumatic rubber tire manufacturing sources. For purposes of this section, pneumatic rubber tire manufacturing means the production of pneumatic rubber passenger-type tires on a mass production basis. Passenger-type tires are agricultural, airplane, industrial, mobile home, light- or medium-duty truck, or passenger vehicle tires with bead diameters up to 20 inches and cross-sectional dimensions up to 12.8 inches. With prior written approval from the Department, the production of specialty tires for antique or other vehicles when produced on an irregular basis or with short production runs and when produced on equipment separate from normal production lines for passenger-type tires are exempt from the requirements of this section.
- (2) Any person who operates, or allows the operation of, an undertread cementing, tread-end cementing, or bead dipping operation subject to this section shall:
 - (a) Install and operate a capture system designed to achieve maximum reasonable capture, of at least 85% by weight of VOC's emitted, from undertread cementing, tread-end cementing, and bead dipping operations. Maximum reasonable capture shall be consistent with the following documents:
 - [1] Industrial Ventilation, A Manual of Recommended Practices, 14th Edition, American Federation of Industrial Hygienists.
 - [2] Recommended Industrial Ventilation Guidelines, United States Department of Human Services National Institute of Occupational Safety and Health.
 - (b) Install and operate a control device that meets the requirements of one of the following:
 - [1] A carbon adsorption system designed and operated in a manner so that there is at least a ninety-five-percent removal of VOC's by weight from the gases ducted to the control device.
 - [2] An incineration system that reduces VOC's by at least 90%.
- (3) Any person who operates, or allows the operation of, a green-tire spraying operation subject to this section shall implement one of the following means of reducing VOC emissions:
 - (a) Substitute water-based sprays for the normal solvent-based mold release compound.
 - (b) Install a capture system designed and operated in a manner that will capture and transfer at least 90% of the VOC's emitted by the green-tire spraying operation to a control device that meets the requirements in Subsection C(2)(b) of this section.
- (4) Notwithstanding the other provisions of this section, the Department may allow a pneumatic rubber tire manufacturing source to implement permanent and enforceable measures including recordkeeping and reporting requirements, which are approved by the Department and the EPA as RACT.

D. Municipal solid waste landfills. **[Added 7-15-1997, effective 8-15-1997]**

- (1) Applicability. The provisions of this subsection apply to each municipal solid waste landfill that commenced construction, reconstruction or modification before May 30, 1991, and has accepted waste at any time since November 8, 1987, or has additional design capacity available for future waste deposition. Physical or operational changes made to an existing municipal solid waste landfill solely to comply with this subsection are not considered construction, reconstruction, or modification and would not subject an existing municipal solid waste landfill to the requirements of New Source Performance Standards for Municipal Solid Waste Landfills.
- (2) The provisions of this subsection are in addition to any applicable New Source Performance Standards for Municipal Solid Waste Landfills, or any other Pennsylvania Department of Environmental Protection or Allegheny County permit requirements.
- (3) Definitions of all terms used, but not defined in this subsection, have the meaning given them in 40 CFR Part 60, Subpart WWW, as amended. Terms not defined therein shall have the meaning given to them in the federal Clean Air Act, 40 CFR Part 60, Subparts A and B, or this chapter. For the purposes of these rules, "Administrator" shall mean the Director of the Allegheny County Health Department or his designated representative.
- (4) Each municipal solid waste landfill meeting the conditions of Subsection D(4)(a) of this subsection shall comply with all of the applicable standards, requirements and provisions of 40 CFR Part 60, Subpart WWW, as amended, which are herein incorporated by reference with the exceptions as follows:
 - (a) Standards for air emissions from municipal solid waste landfills. The provisions of 40 CFR 60.752 are applicable with the exception of the following:
 - [1] In lieu of 40 CFR 60.752(a)(2), the following provision applies; When an increase in the maximum design capacity of a landfill exempted from the provisions of 40 CFR 60.752(b) through 40 CFR 60.759 on the basis of the design capacity exemption in 40 CFR 60.752(a) results in a revised maximum design capacity equal to or greater than 2.5 million megagrams and 2.5 million cubic meters, the owner or operator shall comply with the provisions of 40 CFR 60.752(b) through 40 CFR 60.759
 - [2] In lieu of 40 CFR 60.752(b)(2)(i)(B), the following provision applies: The collection and control system design plan shall include any alternatives to the operational standards, test methods, procedures, compliance measures, monitoring, recordkeeping or reporting provisions of 40 CFR 60.753 through 40 CFR 60.758 proposed by the owner or operator. In addition, the collection and control design plan must specify:
 - [a] The date by which contracts for control system/process modifications shall be awarded, (which shall be no later than 20 months after the date the NMOC emissions rate is first calculated to meet or exceed 50 megagrams per year);
 - [b] The date by which on-site construction or installation of the air pollution control device(s) or process changes will begin (which shall be no later than 24 months after the date the NMOC emission rate is first calculated to meet or exceed 50 megagrams per year); and
 - [c] The date by which the construction or installation of the air pollution control devices or process changes will be complete.

[3] In lieu of 40 CFR 60.752(b)(2)(ii), the provisions of Subsection D(4)(a)[3][a] and [b] below shall apply:

[a] Install and operate a collection and control system capable of meeting the requirements of 40 CFR 60.752(b)(2) within 30 months after the date the NMOC emission rate is first calculated to meet or exceed 50 megagrams per year, unless Tier 2 or Tier 3 calculations demonstrate that the NMOC emission rate is less than 50 megagrams per year, as specified in 40 CFR 60.757(c)(1) or (2).

[b] The provisions of 40 CFR 60.752(b)(2)(ii)(A) and (B) apply as stated therein.

(b) Operational standards for collection and control systems. The provisions of 40 CFR 60.753 apply as stated therein.

(c) Test methods and procedures. The provisions of 40 CFR 60.754 apply as stated therein with the exception of 40 CFR 60.754(c), which does not apply.

(d) Compliance provisions. The provisions of 40 CFR 60.755 apply as stated therein.

(e) Monitoring of operations. The provisions of 40 CFR 60.756 apply as stated therein.

(f) Reporting requirements. The provisions of 40 CFR 60.757 apply as stated therein with the exception of the following:

[1] In lieu of 40 CFR 60.757(a)(1) the following provision applies: The initial design capacity report shall be submitted by the effective date of this subsection plus 90 days.

[2] In lieu of 40 CFR 60.757(b)(1)(i), the following provision applies: The initial NMOC emission rate report shall be submitted by the effective date of this subsection plus 90 days and may be combined with the initial design capacity report required in 40 CFR 60.757(a). Subsequent NMOC emission rate reports shall be submitted annually thereafter, except as provided for in 40 CFR 60.757(b)(1)(ii) and 40 CFR 60.757(b)(3).

(g) Recordkeeping requirements. The provisions of 40 CFR 60.758 apply as stated therein.

(h) Specifications for active collection systems. The provisions of 40 CFR 60.759 apply as stated therein.

E. Control of VOC emissions from large appliance and metal furniture surface coating processes. **[Added 5-4-2010 by Ord. No. 10-10]**

(1) Applicability. Beginning January 1, 2011, this subsection applies to the owner or operator of a large appliance or metal furniture surface coating process, where the total actual VOC emissions from all large appliance or metal furniture surface coating operations, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period. The limits from § 505-44A and Table 2105.10 no longer apply to the large appliance and metal furniture surface coating process as of January 1, 2011.

(2) Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from a large appliance or metal furniture surface coating process unless one of the

following limitations is met:

- (a) The VOC content of each as-applied coating is equal to or less than the standard specified in Table 2105.77.

- [1] The VOC content of the as-applied coating, expressed in units of weight of VOC per volume of coating solids, shall be calculated as follows:

$$\text{VOC} = (\text{Wo})(\text{Dc})/\text{Vn}$$

Where:

VOC = VOC content in lb VOC/gal of coating solids

Wo = Weight percent of VOC ($\text{Wv} - \text{Ww} - \text{Wex}$)

Wv = Weight percent of total volatiles (100% - weight percent solids)

Ww = Weight percent of water

Wex = Weight percent of exempt solvent(s)

Dc = Density of coating, lb/gal, at 25° C.

Vn = Volume percent of solids of the as-applied coating

- [2] The VOC content of a dip coating, expressed in units of weight of VOC per volume of coating solids, shall be calculated on a thirty-day rolling average basis using the following equation:

$$\text{VOCA} = \frac{\sum_i (\text{Woi} \times \text{Dci} \times \text{Qi}) + \sum_j (\text{WoJ} \times \text{DdJ} \times \text{QJ})}{\sum_i (\text{Vni} \times \text{Qi})}$$

Where:

VOCA = VOC content in lb VOC/gal of coating solids for a dip coating, calculated on a 30-day rolling average basis

Woi = Percent VOC by weight of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction (that is 55% = 0.55)

Dci = Density of each as-supplied coating (i) added to the dip coating process, in pounds per gallon

Qi = Quantity of each as-supplied coating (i) added to the dip coating process, in gallons

- Vni = Percent solids by volume of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction
- WoJ = Percent VOC by weight of each thinner (J) added to the dip coating process, expressed as a decimal fraction
- DdJ = Density of each thinner (J) added to the dip coating process, in pounds per gallon
- QJ = Quantity of each thinner (J) added to the dip coating process, in gallons

[3] The VOC content limits of Subsection E(2)(a)[1] and [2] may be met by averaging the VOC content of materials used on a single surface coating process line each day (i.e., daily within-coating unit averaging).

[4] Sampling and testing shall be done in accordance with the procedures and test methods specified in Part G (Methods).

- (b) The overall weight of VOCs emitted to the atmosphere is reduced through the use of vapor recovery or incineration or another method which is acceptable under § 505-44A (equivalent compliance techniques). The overall efficiency of a control system, as determined by the test methods and procedures specified in Part G, shall be no less than 90% as calculated by the following equation:

$$90\% = (1 - E/V) \times 100$$

Where:

- V = The VOC content of the as-applied coating, in lb VOC/gal of coating solids
- E = The Table 2105.77 limit for large appliances and metal furniture surface coatings in lbs VOC per gallon of coating solids

- (c) A combination of the methods listed in Subsection E(2)(a) and (b).

(3) Records.

- (a) A facility, regardless of the facility's annual emission rate, which contains large appliance or metal furniture surface coating processes, shall maintain records sufficient to demonstrate compliance with this subsection. At a minimum, a facility shall maintain daily records of:

[1] The following parameters for each coating, thinner and other component as supplied:

- [a] The coating, thinner or component name and identification number.
- [b] The volume used.
- [c] The mix ratio.
- [d] The density or specific gravity.

- [e] The weight percent of total volatiles, water, solids and exempt solvents.
- [f] The volume percent of solids, Table 2105.77 for large appliances or metal furniture, for each coating used in the surface coating process.
- [2] The VOC content of each coating, thinner and other component as supplied.
- [3] The VOC content of each as-applied coating.
- (b) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- (4) Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this subsection. No large appliance or metal furniture surface coating process which seeks to comply with this subsection through the use of an exempt solvent may be included in any alternative standard approved pursuant to this article.
- (5) Application techniques. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from the application of large appliance or metal furniture surface coatings unless the coatings are applied using one or more of the following coating application methods:
 - (a) Electrostatic spraying.
 - (b) Roller coating.
 - (c) Flow coating.
 - (d) Dip coating, including electrodeposition.
 - (e) High volume-low pressure (HVLP) spraying.
 - (f) Brush coating.
 - (g) Other coating application method that the person demonstrates and the Department determines achieves emission reductions equivalent to HVLP or electrostatic spray application methods.
- (6) Emission limitations. If more than one emission limitation in Table 2105.77 for large appliances or metal furniture applies to a specific coating, the least stringent emission limitation applies.
- (7) Exempt other. The VOC coating content standards in Table 2105.77 for large appliances or metal furniture do not apply to a coating used exclusively for stencil coatings, safety-indicating coatings, solid-film lubricants, electric-insulating coatings, thermal-conducting coatings, touch-up and repair coatings, coating applications using hand-held aerosol cans, coatings used exclusively for determining product quality and commercial acceptance, and other small-quantity coatings if the coating meets the following criteria:
 - (a) The quantity of coating used does not exceed 50 gallons per year for a single coating and a total of 200 gallons per year for all coatings combined for the facility.
 - (b) The owner or operator of the facility requests, in writing, and the Department approves, in writing, the exemption prior to use of the coating.
- (8) Housekeeping. The following work practices for coating-related activities and cleaning materials apply to the owner or operator of a large appliance or metal furniture surface coating

process:

- (a) Store all VOC-containing coatings, thinners, coating—related waste materials, cleaning materials and used shop towels in closed containers.
- (b) Ensure that mixing and storage containers used for VOC-containing coatings, thinners, coating-related waste materials and cleaning materials are kept closed at all times except when depositing or removing these materials.
- (c) Minimize spills of VOC-containing coatings, thinners, coating—related waste materials and cleaning materials, cleaning up spills immediately.
- (d) Convey VOC-containing coatings, thinners, coating—related waste materials and cleaning materials from one location to another in closed containers or pipes.
- (e) Minimize VOC emissions from cleaning of storage, mixing and conveying equipment.

Table 2105.77

Emission Limits of VOCs for Large Appliance and Metal Furniture Surface Coatings

Weight of VOC per Volume of Coating Solids

Surface Coating Process Category	Baked		Air Dried	
	kg/l	lb/gal	kg/l	lb/gal
1. Large appliance coating				
(a) General, one component	0.40	3.3	0.40	3.3
(b) General, multi-component	0.40	3.3	0.55	4.5
(c) Extreme high gloss	0.55	4.62	0.55	4.5
(d) Extreme performance	0.55	4.62	0.55	4.62
(e) Heat resistant	0.55	4.62	0.55	4.62
(f) Metallic	0.55	4.62	0.55	4.62
(g) Pretreatment coatings	0.55	4.62	0.55	4.62
(h) Solar absorbent	0.55	4.62	0.55	4.62
2. Metal furniture coating				
(a) General, one component	0.40	3.3	0.40	3.3

Table 2105.77**Emission Limits of VOCs for Large Appliance and Metal Furniture Surface Coatings****Weight of VOC per Volume of Coating Solids**

Surface Coating Process Category	Baked		Air Dried	
	kg/l	lb/gal	kg/l	lb/gal
(b) General, multi-component	0.40	3.3	0.55	4.5
(c) Extreme high gloss	0.61	5.06	0.55	4.5
(d) Extreme performance	0.61	5.06	0.61	5.06
(e) Heat resistant	0.61	5.06	0.61	5.06
(f) Metallic	0.61	5.06	0.61	5.06
(g) Pretreatment coatings	0.61	5.06	0.61	5.06
(h) Solar absorbent	0.61	5.06	0.61	5.06

F. Control of VOC emissions from flat wood paneling coating processes. **[Added 5-4-2010 by Ord. No. 10-10]**

- (1) Applicability. Beginning January 1, 2011, this subsection applies to the owner or operator of a flat wood paneling coating process, where the total actual VOC emissions from all flat wood panel surface coating operations, including related cleaning activities, at the facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period.
- (2) Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from a flat wood paneling coating process, unless one of the following limitations is met:
 - (a) The VOC content of each as-applied coating is equal to or less than 2.9 pounds VOC per gallon of coating solids (0.35 kg VOC per liter of coating solids).

[1] The VOC content of each as-applied coating, expressed in units of weight of VOC per volume of coating solids, shall be calculated as follows:

$$\text{VOC} = (\text{Wo})(\text{Dc})/\text{Vn}$$

Where:

VOC = VOC content in lb VOC/gal of coating solids

Wo = Weight percent of VOC ($\text{Wv} - \text{Ww} - \text{Wex}$)

- Wv = Weight percent of total volatiles (100% - weight percent solids)
- Ww = Weight percent of water
- Wex = Weight percent of exempt solvent(s)
- Dc = Density of coating, lb/gal, at 25° C.
- Vn = Volume percent of solids of the as-applied coating

- [2] The VOC content of a dip coating, expressed in units of weight of VOC per volume of coating solids, shall be calculated on a thirty-day rolling average basis using the following equation:

$$\text{VOCA} = \frac{\sum_i (\text{Woi} \times \text{Dci} \times \text{Qi}) + \sum_j (\text{WoJ} \times \text{DdJ} \times \text{QJ})}{\sum_i (\text{Vni} \times \text{Qi})}$$

Where:

- VOCA = VOC content in lb VOC/gal of coating solids for a dip coating, calculated on a 30-day rolling average basis
- Woi = Percent VOC by weight of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction (that is 55% = 0.55)
- Dci = Density of each as-supplied coating (i) added to the dip coating process, in pounds per gallon
- Qi = Quantity of each as-supplied coating (i) added to the dip coating process, in gallons
- Vni = Percent solids by volume of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction
- WoJ = Percent VOC by weight of each thinner (J) added to the dip coating process, expressed as a decimal fraction
- DdJ = Density of each thinner (J) added to the dip coating process, in pounds per gallon
- QJ = Quantity of each thinner (J) added to the dip coating process, in gallons

- [3] The VOC content limits of Subsection F(2)(a)[1] and [2] maybe met by averaging the VOC content of materials used on a single-surface coating process line each day (i.e., daily within-coating unit averaging).

[4] Sampling and testing shall be done in accordance with the procedures and test methods specified in Part G (Methods).

- (b) The overall weight of VOCs emitted to the atmosphere is reduced through the use of vapor recovery or incineration or another method which is acceptable under § 505-44A (equivalent compliance techniques). The overall efficiency of a control system, as determined by the test methods and procedures specified in Part G, shall be no less than 90% as calculated by the following equation:

$$90\% = (1 - E/V) \times 100$$

Where:

V = The VOC content of the as applied coating, in lb VOC/gal of coating solids

E = Limit of 2.9 lbs VOC per gallon of coating solids (0.35 kg VOC per liter of coating solids)

- (c) A combination of the methods listed in Subsection F(2)(a) and (b).

(3) Records.

- (a) A facility, regardless of the facility's annual emission rate, which contains flat wood paneling coating processes, shall maintain records sufficient to demonstrate compliance with this subsection. At a minimum, a facility shall maintain daily records of:

[1] The following parameters for each coating, thinner, and other component as supplied:

[a] The coating, thinner or component name and identification number.

[b] The volume used.

[c] The mix ratio.

[d] The density or specific gravity.

[e] The weight percent of total volatiles, water, solids and exempt solvents.

[f] The volume percent of solids for each coating used in the flat wood paneling coating process.

[2] The VOC content of each coating, thinner and other component as supplied.

[3] The VOC content of each as-applied coating.

- (b) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.

- (4) Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this subsection. No flat wood paneling coating process which seeks to comply with this subsection through the use of an exempt solvent may be included in any alternative standard approved pursuant to this article.

- (5) Application techniques. A person may not cause or permit the emission into the outdoor

atmosphere of VOCs from the flat wood paneling coatings unless the coatings are applied using one or more of the following coating application methods:

- (a) Electrostatic spraying.
 - (b) Airless coating.
 - (c) Curtain coating.
 - (d) Roller coating.
 - (e) Flow coating.
 - (f) Dip coating, including electrodeposition.
 - (g) High volume-low pressure (HVLP) spraying.
 - (h) Hand brush or roller coat.
 - (i) Other coating application method that the person demonstrates and the Department determines achieves emission reductions equivalent to HVLP or electrostatic spray application methods.
- (6) Exempt other. The VOC coating content standard of 2.9 pounds VOC per gallon of coating solids (0.35 kg VOC per liter of coating solids) do not apply to a coating used exclusively for stencil coatings, touch-up and repair coatings, coating applications using hand-held aerosol cans, air atomized sprays that apply cosmetic specialty coatings, if the volume of the cosmetic specialty coatings is less than 5% by volume of the total coating used at the source or to apply final repair coatings, coatings used exclusively for determining product quality and commercial acceptance and other small-quantity coatings if the coating meets the following criteria:
- (a) The quantity of coating used does not exceed 50 gallons per year for a single coating and a total of 200 gallons per year for all coatings combined for the facility.
 - (b) The owner or operator of the facility requests, in writing, and the Department approves, in writing, the exemption prior to use of the coating.
- (7) Housekeeping. The following work practices for coating-related activities and cleaning materials apply to the owner or operator of a flat wood paneling coating process:
- (a) Store all VOC-containing coatings, thinners, coating—related waste materials, cleaning materials and used shop towels in closed containers.
 - (b) Ensure that mixing and storage containers used for VOC-containing coatings, thinners, coating-related waste materials and cleaning materials are kept closed at all times except when depositing or removing these materials.
 - (c) Minimize spills of VOC-containing coatings, thinners and coating—related waste materials and cleaning materials, cleaning up spills immediately.
 - (d) Convey VOC-containing coatings, thinners, coating—related waste materials and cleaning materials from one location to another in closed containers or pipes.
 - (e) Minimize VOC emissions during cleaning of storage, mixing, and conveying equipment.

G. Control of VOC emissions from paper, film, and foil surface coating processes. **[Added 5-4-2010 by Ord. No. 10-10]**

- (1) Applicability. Beginning January 1, 2011, this subsection applies to the owner or operator of a paper, film, and foil surface coating process, where the total actual VOC emissions from all paper, film, and foil surface coating operations, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period. The limits from § 505-44A and Table 2105.10 no longer apply to the paper, film, and foil surface coating process as of January 1, 2011.
- (2) Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from a paper, film, and foil surface coating process unless one of the following limitations is met:
 - (a) The VOC content of each as-applied coating is equal to or less than the standard specified in Table 2105.79.

- [1] The VOC content of the as-applied coating, expressed in units of weight of VOC per weight of coating solids, shall be calculated as follows:

$$\text{VOCB} = (\text{Wo})/(\text{Wn})$$

Where:

VOCB = VOC content in lb VOC/lb of coating solids

Wo = Weight percent of VOC ($\text{Wv} - \text{Ww} - \text{Wex}$)

Wv = Weight percent of total volatiles (100% - weight percent solids)

Ww = Weight percent of water

Wex = Weight percent of exempt solvents

Wn = Weight percent of solids of the as-applied coating

- [2] The VOC content of a dip coating, expressed in units of weight of VOC per weight of coating solids, shall be calculated on a thirty-day rolling average basis using the following equation:

$$\text{VOCA} = \frac{\sum_i (\text{Woi} \times \text{Dci} \times \text{Qi}) + \sum_j (\text{WoJ} \times \text{DdJ} \times \text{QJ})}{\sum_i (\text{Wni} \times \text{Dci} \times \text{Qi})}$$

Where:

VOCA = VOC content in lb VOC/lb of coating solids for a dip coating, calculated on a 30-day rolling average basis

- Woi = Percent VOC by weight of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction (that is 55% = 0.55)
- Dci = Density of each as-supplied coating (i) added to the dip coating process, in pounds per gallon
- Qi = Quantity of each as-supplied coating (i) added to the dip coating process, in gallons
- Wni = Percent solids by weight of each as-supplied coating (i) added to the dip coating process, expressed as a decimal fraction
- WoJ = Percent VOC by weight of each thinner (J) added to the dip coating process, expressed as a decimal fraction
- DdJ = Density of each thinner (J) added to the dip coating process, in pounds per gallon
- QJ = Quantity of each thinner (J) added to the dip coating process, in gallons

[3] The VOC content limits of Subsection G(2)(a)[1] and [2] may be met by averaging the VOC content of materials used on a single surface coating process line each day (i.e., daily within-coating unit averaging).

[4] Sampling and testing shall be done in accordance with the procedures and test methods specified in Part G (Methods).

- (b) The overall weight of VOCs emitted to the atmosphere is reduced through the use of vapor recovery or incineration or another method which is acceptable under § 505-44A (equivalent compliance techniques). The overall efficiency of a control system, as determined by the test methods and procedures specified in Part G, shall be no less than 90% as calculated by the following equation:

$$90\% = (1 - E/V) \times 100$$

Where:

- V = The VOC content of the as-applied coating, in lb VOC/lb of coating solids
- E = The Table 2105.79 limit for paper, film, and foil surface coating in lbs VOC per lbs of coating solids

- (c) A combination of the methods listed in Subsection G(2)(a) and (b).

(3) Records.

- (a) A facility, regardless of the facility's annual emission rate, which contain paper, film, and foil surface coating processes, shall maintain records sufficient to demonstrate compliance with this subsection. At a minimum, a facility shall maintain daily records of:

- [1] The following parameters for each coating, thinner and other component as supplied:
 - [a] The coating, thinner or component name and identification number.
 - [b] The volume used.
 - [c] The mix ratio.
 - [d] The density or specific gravity.
 - [e] The weight percent of total volatiles, water, solids and exempt solvents.
 - [f] The volume percent of solids, Table 2105.79, for paper, film, and foil, for each coating used in the surface coating process.
- [2] The VOC content of each coating, thinner and other component as supplied.
- [3] The VOC content of each as-applied coating.
- (b) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- (4) Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this subsection. No paper, film, and foil surface coating process which seeks to comply with this subsection through the use of an exempt solvent may be included in any alternative standard approved pursuant to this article.
- (5) Application techniques. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from the application of paper, film, and foil surface coatings unless the coatings are applied using one or more of the following coating application methods:
 - (a) Rotogravure (web-fed gravure).
 - (b) Reverse roll coating.
 - (c) Slot die coating.
 - (d) Knife coating.
 - (e) Flexographic coating.
 - (f) Mayer rod or wire-wound rod coating.
 - (g) Dip and squeeze coating.
 - (h) Extrusion coating, including calendaring.
- (6) Emission limitations. If more than one emission limitation in Table 2105.79 for paper, film, and foil surface coating applies to a specific coating, the least stringent emission limitation applies.
- (7) Exempt other. The VOC coating content standards in Table 2105.79 for paper, film, and foil surface coatings do not apply to a coating used exclusively stencil coatings, touch-up and repair coatings, coating applications using hand-held aerosol cans, coatings used exclusively for determining product quality and commercial acceptance and other small-quantity coatings if the coating meets the following criteria:

- (a) The quantity of coating used does not exceed 50 gallons per year for a single coating and a total of 200 gallons per year for all coatings combined for the facility.
 - (b) The owner or operator of the facility requests, in writing, and the Department approves, in writing, the exemption prior to use of the coating.
- (8) Housekeeping. The following work practices for coating-related activities and cleaning materials apply to the owner or operator of a paper, film, and foil surface coating process:
- (a) Store all VOC-containing coatings, thinners, coating-related waste materials, cleaning materials and used shop towels in closed containers.
 - (b) Ensure that mixing and storage containers used for VOC-containing coatings, thinners, coating-related waste materials and cleaning materials are kept closed at all times except when depositing or removing these materials.
 - (c) Minimize spills of VOC-containing coatings, thinners, coating-related waste materials and cleaning materials, cleaning up spills immediately.
 - (d) Convey VOC-containing coatings, thinners, coating-related waste materials and cleaning materials from one location to another in closed containers or pipes.
 - (e) Minimize VOC emissions from cleaning of storage, mixing and conveying equipment.

Table 2105.79

Emission Limits of VOCs for Paper, Film, and Foil Surface Coatings

Weight of VOC per Weight of Solids or Coating Applied

Surface Coating Process Category	Solids Applied	Coating Applied
	kg VOC/kg solids	kg VOC/kg coatings
	(lb VOC/lb solids)	(lb VOC/lb coatings)
1. Pressure-sensitive tape and label	0.20	0.067
2. Paper, film, and foil (not including pressure-sensitive tape and label)	0.40	0.08

H. Consumer products. [Added 3-20-2012 by Ord. No. 6-12]

- (1) Incorporation by reference. Except as otherwise specifically provided under this subsection, this subsection shall be applied consistent with the provisions of the state regulation for consumer products promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 130.201 through 130.471, which are hereby incorporated by reference into this chapter. Additions, revisions, or deletions to such regulation by the commonwealth are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
- (a) For the purposes of 25 Pa. Code § 130.391, Required reporting of information to the

Department, "Department" shall mean Department as defined under this chapter.

- (b) For the purposes of 25 Pa. Code § 130.392, Confidentiality, "Section 13.2 of the Air Pollution Control Act (35 P.S. § 4013.2)" shall mean § 505-7D(4) of this chapter.
- (2) Variances. Variances of compliance pursued under 25 Pa. Code §§ 130.201 through 130.471 shall be submitted to and issued by the Pennsylvania Department of Environmental Protection.

§ 505-51. Transportation-related sources.

A. Gasoline volatility.

- (1) Applicability. This section applies to gasoline which is sold or transferred into or within Allegheny County during the period May 1 through September 15, 1998, and continuing during the same period every year thereafter.
- (2) Compliant fuel requirements.
 - (a) No refiner, importer, distributor, reseller, or carrier may:
 - [1] Sell, exchange or supply gasoline that is not a compliant fuel during the period described in Subsection A(1).
 - [2] Blend, mix, store or transport or allow blending, mixing, storing or transporting of compliant fuel with noncompliant fuel during the period described in Subsection A(1).
 - (b) No retailer or wholesale purchaser-consumer may sell, exchange, or supply gasoline that is not a compliant fuel during the period June 1 through September 15, 1998, and continuing during the same period every year thereafter.
- (3) Federal Law. If RFG is required by operation of federal law to be sold in Allegheny County, this section will no longer apply after the date that RFG is required to be sold.
- (4) Recordkeeping and reporting.
 - (a) Beginning with the terminal owner or operator who sells or transfers gasoline intended for use in Allegheny County during the period described in Subsection A(1), each time the physical custody of or title to a shipment of gasoline changes hands other than when gasoline is sold or transferred for use in motor vehicles at a retail outlet or wholesale purchaser-consumer's facility, the transferrer shall provide to the transferee a copy of the record described in this subsection. Said record shall legibly and conspicuously contain, at a minimum, the following information:
 - [1] The date of the sale or transfer.
 - [2] The name and address of the transferrer.
 - [3] The name and address of the transferee.
 - [4] The location of the gasoline at the time of transfer.
 - [5] The volume of gasoline which is being sold or transferred.
 - [6] A statement or grade code certifying that the gasoline has an RVP of 7.8 pounds per

square inch or less per gallon or is certified as RFG. If the gasoline is certified as RFG, each invoice, loading ticket, bill of lading, delivery ticket and other document that accompanies a shipment of RFG shall contain a statement from the refiner that certifying said information.

- (b) Any person who transports, stores, or sells compliant fuel that is intended for use in Allegheny County during the period described in Subsection A(1) shall segregate the compliant fuel from noncompliant fuel and shall have in their possession documentation described in Subsection A(4)(a) accompany the compliant fuel at all times.
 - (c) Each person in the gasoline distribution network shall maintain records containing the compliance information listed in Subsection A(4)(a). These records shall be retained for at least two years from the date of the sale or transfer of compliant fuel.
- (5) Labeling. During the period from June 1 to September 15 each year, and at all times when dispensing of dean fuels is required under this section, all retail gasoline dispensing facilities shall prominently display on each gasoline pump a label with the following statements and conditions:
- (a) "Cleaner Gas", and "JUNE 1 - SEPT 15."
 - (b) "RVP" if low RVP gasoline is being dispensed, "RFG" if RFG gasoline is being dispensed, or "RVP/RFG" if a mixture of these gasolines is being dispensed.
 - (c) The letters "RVP" and/or "RFG" shall be a minimum of 5/16 inch in height; all other letters and numbers shall be a minimum of 1/4 inch in height.
 - (d) The letters "RVP" shall be printed in green, the letters "RFG" shall be printed in blue, and all the other letters shall be printed in black. The label background shall be white.
- (6) Sampling and test methods. Sampling and testing for the volatility of gasoline shall be performed according to the applicable procedures established § 505-72.

B. School bus idling. [Added 8-31-2004 by Ord. No. 30-04]

- (1) Applicability. This subsection applies to the operation of every heavy-duty diesel-powered school bus.
- (2) General.
 - (a) No school bus driver shall cause or allow the engine of any school bus subject to this subsection to idle prior to, during layover between, at the destination of, or at the conclusion of any trip or route for more than five consecutive minutes, except under the conditions described in Subsection B(3) below.
 - (b) No school bus driver shall cause or allow the engine of a school bus subject to this subsection to be accelerated while idling, unless such action is taken in order to operate other equipment.
 - (c) A school bus driver shall not park or idle a bus within 100 feet from a known and active school air intake system, unless the school district has determined that alternative locations block traffic, impair student safety or are not cost-effective.
- (3) Exemptions. This subsection does not apply for the period or periods during which idling is

necessary under the following circumstances:

- (a) Traffic conditions:
 - [1] For traffic conditions over which the driver has no control;
 - [2] For an official traffic control device or signal; or
 - [3] At the direction of a uniformed police officer or one of those persons authorized to direct traffic by the Vehicle Code, 67 Pa. Code § 101.2.
 - (b) Queuing at a school: where the physical configuration of a school requires a queue of buses for the sequential discharge or pickup of students, and the queue of buses is actively engaged in the discharge or pickup of students.
 - (c) Turbo-charged diesel engine cool-down or warmup: when the manufacturer's specifications require more time than the five-minute limitation in Subsection B(3)(a) above, to cool down or warm up a turbo-charged diesel engine.
 - (d) Cold/Hot weather:
 - [1] If the outside temperature is less than 40° F., the idling is allowed for a period or periods aggregating not more than 20 minutes in any sixty-minute period; or
 - [2] If the outside temperature is greater than 75° F., and the bus is equipped with air conditioning, then idling is allowed for a period or periods aggregating not more than 20 minutes in any sixty-minute period.
 - (e) Safety and emergencies:
 - [1] To ascertain that the school bus is in safe operating condition and equipped as required by all provisions of law, and all equipment is in good working order, either as part of the driver's daily vehicle inspection, or as otherwise needed;
 - [2] To operate the flashing signal lamps and/or stop sign arm devices;
 - [3] To operate defrosters or other equipment to ensure the safe operation of the vehicle, or as otherwise required by federal or state motor carrier safety regulations, or other local requirements;
 - [4] To operate a heater or an air conditioner of a bus that has, or will have, one or more children aboard with temperature-sensitive disabilities;
 - [5] To operate a lift or other piece of equipment designed to ensure safe loading, unloading, or transport of persons with one or more disabilities; or
 - [6] Use of school bus as an emergency vehicle.
 - (f) Maintenance of operations:
 - [1] For testing, servicing, repairing, or diagnostic purposes; or
 - [2] To recharge a battery or other energy storage unit of a hybrid electric bus.
- (4) Signage. Each school bus distribution center shall erect and maintain in a conspicuous location a permanent sign(s) that is at least 12 inches by 18 inches in size indicating:

- (a) This school bus idling regulation in succinct language; and
 - (b) The amount of money a violator will be fined.
 - (5) Training. A motor carrier of a school bus shall ensure that the school bus driver, upon employment and at least once per year thereafter, is informed of the requirements of this subsection and of the consequences of not complying with those requirements.
 - (6) Penalties. Notwithstanding the provisions of Article I of this chapter, violators of this subsection are subject to:
 - (a) A warning for the first offense;
 - (b) A penalty of \$100 for the second offense; or
 - (c) A penalty of \$500 for the third offense, and any subsequent offenses.
 - (7) Enforcement. Notwithstanding any other provision of this chapter, the prohibitions of this subsection may be enforced by any municipal or local government unit having jurisdiction over the place where the idling occurs. Such enforcement shall be in accordance with the laws governing such municipal or local government unit and the Pennsylvania Air Pollution Control Act. In addition, the Department may pursue the remedies provided by § 505-80 of this chapter for any violation of this subsection.
 - (8) Relationship to other laws. Nothing in this subsection allows idling in excess of other applicable law, including, but not limited to, any local ordinance or requirement as stringent as, or more stringent than, this subsection.
- C. Diesel-powered motor vehicle idling. **[Added 6-7-2005 by Ord. No. 31-05]**
- (1) Applicability. This subsection applies to the operation of every heavy-duty diesel-powered motor vehicle, except school buses.
 - (2) General.
 - (a) No driver shall cause or allow the engine of any heavy-duty diesel-powered motor vehicle subject to this subsection to idle prior to, during layover between, at the destination of, or at the conclusion of any trip or route for more than five consecutive minutes, except under the conditions described in Subsection C(3) below.
 - (b) No driver shall cause or allow the engine of any heavy-duty diesel-powered motor vehicle subject to this subsection to be accelerated while idling, unless such action is taken in order to operate a vehicle-mounted accessory or service equipment.
 - (3) Exemptions. This subsection does not apply for the period or periods during which idling is necessary for:
 - (a) Traffic conditions:
 - [1] For traffic conditions over which the driver has no control;
 - [2] For an official traffic control device or signal; or
 - [3] At the direction of a uniformed police officer or one of those persons authorized to direct traffic by the Vehicle Code, 67 Pa. Code § 101.2.

- (b) Boarding and discharging passengers:
 - [1] When vehicles intended for commercial passenger transportation are boarding or discharging passengers; or
 - [2] When vehicles intended for transporting people with disabilities are boarding or discharging passengers.
- (c) Queuing: when a vehicle, situated in a queue of other vehicles, must intermittently move forward to perform work or a service, and when shutting the vehicle engine off would impede the progress of the queue and be impracticable.
- (d) Turbo-charged diesel engine cool-down or warmup: when the manufacturer's specifications require more time than the five-minute limitation in Subsection C(2)(a) above, to cool down or warm up a turbo-charged diesel engine.
- (e) Cold/Hot weather:
 - [1] If the outside temperature is less than 40° F., then idling is allowed for a period or periods aggregating not more than 20 minutes in any sixty-minute period; or
 - [2] If the outside temperature is greater than 75° F. and a vehicle is equipped with air conditioning, then idling is allowed for a period or periods aggregating not more than 20 minutes in any sixty-minute period.
 - [3] Notwithstanding Subsection C(3)(e)[1] and [2], in order to supply heat or air conditioning necessary for the comfort of passengers, a vehicle intended for commercial passenger transportation may idle for up to 10 minutes prior to passenger boarding and any time passengers are onboard.
 - [4] The Department may, upon request of an owner or manager of a bus terminal, approve alternate limits for warm-up of buses stored outdoors at the terminal when the temperature is below 40° F. Such plan shall include enforceable time limits that minimize bus idling.
- (f) Sleeping: when idling is necessary to power a heater, air conditioner, or any ancillary equipment during sleeping and resting in a truck cab or sleeper berth.
- (g) Safety and emergencies:
 - [1] To verify that the vehicle is in safe operating condition and equipped as required by all provisions of law, and all equipment is in good working order, either as part of the driver's daily vehicle inspection, or as otherwise needed;
 - [2] To operate defrosters, or other equipment to ensure the safe operation of the vehicle, or as otherwise required by federal or state motor carrier safety regulations, or other local requirements; or
 - [3] Use of vehicle as an emergency vehicle.
- (h) Operability and maintenance:
 - [1] To provide power for vehicle-mounted accessory or service equipment; or
 - [2] When being operated by a mechanic for testing, servicing, repairing, or diagnostic

purposes.

- (4) Penalties. Notwithstanding the provisions of Article I of this chapter, violators of this subsection are subject to:
 - (a) A warning for the first offense;
 - (b) A penalty of \$100 for the second offense;
 - (c) A penalty of \$500 for the third offense, and any subsequent offenses.
- (5) Enforcement. Notwithstanding any other provisions of this chapter, the prohibitions of this subsection may be enforced by any municipal or local government unit having jurisdiction over the place where the idling occurs. Such enforcement shall be in accordance with the laws governing such municipal or local government unit and the Pennsylvania Air Pollution Control Act. In addition, the Department may pursue the remedies provided by § 505-80 of this chapter for any violation of this subsection.
- (6) Relationship to other laws. Nothing in this subsection allows idling in excess of other applicable law, including, but not limited to, any local ordinance or requirement as stringent as, or more stringent than, this subsection.

D. In-use off-road diesel powered mobile equipment engine idling. **[Added 4-6-2010 by Ord. No. 5-10]**

- (1) Applicability.
 - (a) This subsection applies to any person or business that owns or operates any diesel-fueled off-road compression ignition vehicle engine with maximum power of 25 horsepower (hp) or greater that is used to provide motive power in any vehicle that:
 - [1] Is not designed to or cannot be registered and driven safely on-road; and
 - [2] Is not an implement of husbandry.
 - (b) Vehicles with engines subject to this subsection are used in construction, mining, rental, landscaping, recycling, landfilling, manufacturing, warehousing, composting, airport ground support equipment, industrial, and other operations. This subsection does not apply to locomotives, commercial marine vessels, marine engines, recreational vehicles, or military equipment. This subsection also does not apply to stationary or portable equipment, or equipment or vehicles used in agricultural operations, or equipment at ports or intermodal railyards. Off-road diesel vehicles owned and operated by an individual for personal, noncommercial purposes are exempt from the provisions of this subsection.
- (2) General.
 - (a) No vehicles or engines subject to this subsection may idle for more than five consecutive minutes, except as permitted under Subsection D(3);
 - (b) Idling of a vehicle that is owned by a rental company is the responsibility of the renter or lessee; and
 - (c) Equipment subject to this subsection must be located away from sensitive receptors, such as building fresh air intakes, to the extent possible.
- (3) Exemptions. The idling limit does not apply to:

- (a) Idling necessary to ensure the safe operation of the equipment, including idling to verify that the equipment is in safe operating condition and equipped as required by all provisions of law, and all equipment is in good working order, either as part of the daily equipment inspection, or as otherwise needed.
 - (b) Idling required to bring the machine system to operating temperature;
 - (c) Idling for testing, servicing, repairing, or diagnostic purposes;
 - (d) Engine operation necessary to accomplish work for which the equipment was designed (such as operating a crane);
 - (e) Idling necessary for the operator's physical well being while accomplishing such work;
 - (f) Idling when queuing, i.e., when an off-road vehicle, situated in a queue of other vehicles, must intermittently move forward to perform work or a service, and when shutting the vehicle engine off would impede the progress of the queue and be impractical. This does not include the time an operator may wait motionless in line in anticipation of the start of a workday or opening of a location where work or a service will be performed; and
 - (g) Idling by any vehicle being used in an emergency or public safety capacity.
- (4) Waiver. An equipment owner may apply to the Department for a waiver to allow additional idling beyond five minutes. The equipment owner must provide justification as to why such idling is necessary.
- (5) Signage. At job sites with posted workplace notices where 10 or more pieces of equipment subject to this subsection are used, or at any other location where 10 or more pieces of such equipment are stored or operated, the owner of such equipment must prominently display signage informing equipment operators of the requirements of this subsection and the penalties for noncompliance.
- (6) Penalties. Notwithstanding the provisions of Article IX, Enforcement, of this chapter, violations of this subsection are subject to:
- (a) A penalty of \$100 for the first offense.
 - (b) A penalty of \$500 for the second offense, and any subsequent offenses.
- (7) Enforcement.
- (a) Notwithstanding any other provisions of this chapter, the prohibitions of this subsection may be enforced by any municipal or local government unit having jurisdiction over the place where the idling occurs. Such enforcement shall be in accordance with the laws governing such municipal or local government unit and the Pennsylvania Air Pollution Control Act. In addition, the Department may pursue the remedies provided by § 505-79 of this chapter for any violation of this subsection.
 - (b) For the purpose of inspecting off-road equipment to determine compliance with these regulations, an inspector of the Department has the right to enter any facility where off-road equipment is located.
- (8) Relationship to other law. Nothing in this subsection allows idling in excess of other applicable law, including, but not limited to, any local ordinance or requirement as stringent as, or more

stringent than, this subsection.

§ 505-52. NOx sources. [Added 3-31-1998]

A. NOx allowance requirements.

- (1) Purpose. This section requires compliance with the PaDEP NOx budget and NOx allowance trading program for NOx affected sources located in Allegheny County and subject to 25 Pa Code Sections 123.101 through 123.120 and Appendix A, for the purpose of achieving the health based ozone ambient air quality standard.
- (2) Initial NOx allowance NOx allocations.
 - (a) The sources located in Allegheny County and listed in Pa Title 25, Appendix A are subject to the requirements of this section. These sources are allocated NOx allowances for the 1999-2002 NOx allowance control periods as listed in the Appendix. Except as provided in Pa Title 25, 123.120 (relating to audit), if no allocation is specified for the NOx allowance control periods beyond 2002, the current allocations continue indefinitely.
 - (b) Any source, even if not listed in Appendix A, but which are granted allowances by PaDEP pursuant to § 123, are subject to NOx allowance requirements of this section.
- (3) Source NOx allowance requirements. The owner or operator of each NOx affected source shall, no later than December 31 of each calendar year, hold a quantity of NOx allowances meeting the requirements of 25 Pa Code Section 123.110(A) in the source's current year NATS account that is equal to or greater than the total NOx emitted from that year's NOx allowance control period. The initial NOx allowance control period begins on May 1, 1999.
- (4) Source authorized account representative requirements.
 - (a) The owner or operator of an NOx affected source shall submit to the Department for each source account the name of the authorized account representative and one alternate as submitted to PaDEP. Initial designations shall be submitted to the department 30 days after ____.⁶An authorized account representative may be replaced or, for a new NOx affected source, designated with the submittal of a new Account Certificate of Representation.
 - (b) The Account Certificate of Representation shall be signed by the authorized account representative for the NOx affected source and contain, at a minimum, the following:
 - [1] Identification of the NOx affected source by plant name, state and fossil fired indirect heat transfer combustion unit number for which the certification of representation is submitted.
 - [2] The name, address, telephone and facsimile number of the authorized account representative and the alternate.
 - [3] A list of owners and operators of the NOx affected source.
 - [4] The verbatim statement, "I certify that I, (name) ____, was selected as the Authorized Account Representative by an agreement binding on the owners and operators of the NOx affected source legally designated as (name of facility)."

6. Editor's Note: The blank refers to the effective date 30 days after adoption of this proposal.

(5) Source compliance requirements

- (a) For each year, the authorized account representative for the NOx affected source shall submit an annual compliance certification to the Department.
- (b) The compliance certification shall be submitted no later December 31 of each year.
- (c) The compliance certification shall contain, at a minimum, the following:
 - [1] An identification of the NOx affected source, including the name, address, the name of the authorize account representative and the NATS account number.
 - [2] A statement indicating whether or not emissions data has been submitted in accordance with 25 Pa Code 123.108.
 - [3] A statement indicating whether or not the affected source held sufficient NOx allowances, as determined in 25 Pa Code 123.110 (a), in its compliance account for the NOx allowance control period.
 - [4] A statement indicating whether or not the monitoring plan which governs the NOx affected source was followed when monitoring the actual operation of the affected source.
 - [5] A statement indicating that all emissions from the NOx affected source were accounted for, either through the applicable monitoring or through the application of the appropriate missing data procedures.
 - [6] A statement indicating whether there were any changes in the method of operation of the NOx affected source or the method of monitoring of the NOx affected source during the current year.

(6) Reporting requirements.

- (a) In addition to meeting the requirements of 25 Pa Code 123.109, the authorized account representative for each NOx affected source shall submit to the Department, electronically in a format which meets the requirements of the EPA's electronic data reporting convention, emissions and operations information for each calendar quarter of each year.
 - (b) In addition to meeting the requirements of 25 Pa. Code § 123.109, upon permanent shutdown, NOx affected sources may be exempted from the requirements of this section after receiving written Department approval of a request filed by the authorized account representative for the NOx affected source which identifies the source and date of shutdown.
- (7) NOx allowance transfer procedures. Within 30 days of an approved transfer by the PaDEP, the NOx affected source will report the following information to Allegheny County:
- (a) The account number identifying both the originating account and the acquiring account.
 - (b) The name and address associated with the owners of the originating account and the acquiring account.
 - (c) The identification of the serial numbers for each NOx allowance being transferred.
 - (d) The designated amount of NOx allowances being transferred.

- (8) Failure to meet source compliance requirements.
- (a) Failure by the NOx affected source to hold in its compliance account, for any NOx allowance control period, as of the NOx allowance transfer deadline, sufficient NOx allowances equal to or exceeding actual emissions for the NOx allowance control period (May 1 through September 30) as specified under 25 Pa. Code § 123.102 (relating to source allowance requirements and NOx allowance control period) shall result in a NOx allowance deduction from the NOx affected source's compliance account at the rate of three NOx allowances for every one ton of excess emissions. If sufficient allowances meeting the requirements of 25 Pa. Code § 123.110(a) (relating to source compliance requirements) are not available, the source shall provide other sufficient allowances which shall be deducted prior to the beginning of the next NOx allowance control period, otherwise the source may not operate during subsequent control periods.
 - (b) In addition to the NOx allowance deduction required by subsection 25 Pa. Code § 123.111(a), the Department may enforce the provisions of this section and Section 2109, Enforcement and the Clean Air Act.⁷
 - [1] For purposes of determining the number of days of violation, any excess emissions for the NOx allowance control period shall presume that each day in the NOx allowance control period constitutes a day in violation (153 days) unless the NOx affected source can demonstrate, to the satisfaction of the Department, that a lesser number of days should be considered.
 - [2] Each ton of excess emissions is a separate violation.
- (9) New NOx affected source provisions. NOx allowances may not be created for new NOx affected sources. New NOx affected sources are sources which are not listed in 25 Pa Code Appendix A (relating to initial NOx allowance NOx allocations). The owner or operator of a new NOx affected source shall establish a compliance account with PaDEP prior to the commencement of operations and is responsible to acquire any required NOx allowances from those available in the NATS.
- (10) Control of NOx emissions from glass melting furnaces. **[Added 3-20-2012 by Ord. No. 6-12]**
- (a) Incorporation by reference. Except as otherwise specifically provided under this Subsection, this subsection shall be applied consistent with the provisions of the state regulation for Control of NOx Emissions From Glass Melting Furnaces promulgated under the Air Pollution Control Act at 25 Pa. Code §§ 129.301 through 129.310 and the related definitions at 25 Pa. Code § 121.1 which are hereby incorporated by reference into this chapter. Additions, revisions, or deletions to such regulation by the commonwealth are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.
 - (b) Definitions. Under the regulations incorporated by reference under this subsection:
 - [1] "Department" shall mean Department as defined under this chapter; and
 - [2] "Appropriate approved local air pollution control agency" shall mean Department as defined under this chapter.

7. Editor's Note: See Article IX, Enforcement.

- (c) Compliance determination. For purposes of this subsection, "Chapter 139, Subchapter C," shall mean Article VIII, § 505-76C, of this chapter.

**§ 505-52.1. Control of VOC emissions from offset lithographic printing and letterpress printing.
[Added 5-22-2013 by Ord. No. 14-13]**

- A. Applicability. Beginning January 1, 2012, this section applies to the owner or operator of an offset lithographic printing and/or letterpress printing operation, where the total actual VOC emissions from all offset lithographic printing and letterpress printing operations, with two exceptions, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period. These exceptions include heatset web offset lithographic printing operations and heatset web letterpress printing operations, for which this section only applies to those presses with potential to emit from the dryer, prior to controls, of at least 25 tons (22,680 kilograms) of VOC (petroleum ink oil) from heatset inks per twelve-month rolling period.
- B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from an offset lithographic printing and/or letterpress printing operation unless one of the following limitations is met:
- (1) The VOC content for heatset web offset lithographic printing contains 1.6% alcohol or less (by weight), on press (as applied) in the fountain or the following equivalents:
 - (a) Three percent alcohol or less (by weight) on press (as applied) in the fountain solution, provided the fountain solution is refrigerated to below 60° F. (15.5° C.); or
 - (b) Five percent alcohol substitute or less (by weight) on press (as applied) and no alcohol in the fountain solution.
 - (2) The VOC content for sheet-fed offset lithographic printing contains 5% alcohol or less (by weight) in the fountain or the following equivalents:
 - (a) Eight and one-half percent alcohol or less (by weight) on press (as applied) in the fountain solution, provided the fountain solution is refrigerated to below 60° F. (15.5° C.); or
 - (b) Five percent alcohol substitute or less (by weight) on press (as applied) and no alcohol in the fountain solution.
 - (3) The VOC content for cold web lithographic printing contains 5% alcohol substitute or less (by weight) on press (as applied) and no alcohol in the fountain solution.
 - (4) The overall weight of VOC emitted to the atmosphere is reduced through the use of a chiller condenser or an oxidizer for heatset web offset lithographic printing or heatset web letterpress printing as follows:
 - (a) The overall control efficiency for a chiller condenser shall be no less than 90%; or
 - (b) The overall control efficiency for an oxidizer shall be no less than 95%; or
 - (c) VOC outlet concentration is reduced to less than 20 ppmv on a dry basis.
 - (5) Use cleaning materials with a VOC composite vapor pressure less than 10mm Hg at 68° F. (20° C.) or cleaning materials containing less than 70 weight percent VOC. The cleaning materials apply to blanket washing, roller washing, plate cleaners, metering roller cleaners, impression

cylinder cleaners, rubber rejuvenators, and other cleaners used for cleaning a press, press parts, or to remove dried ink from the areas around a press. The cleaning materials provided do not apply to cleaners used on electric components of a press, pre-press cleaning operations, post-press operations, cleaning supplies used to clean the floor, other than dried ink, in the area around a press, or cleaning performed in parts washers or cold cleaners.

- (6) A combination of the methods listed in Subsection B(1) through (5).
- C. Records. A facility, regardless of the facility's annual emission rate, which contains offset lithographic printing and/or letterpress printing operations, shall maintain records sufficient to demonstrate compliance with this section.
- (1) At a minimum, a facility shall maintain daily records of the following parameters for each ink and other component as supplied:
- (a) The name and identification number of each ink or component;
 - (b) The volume used;
 - (c) The total volume of all the inks used in the offset lithographic printing and letterpress printing operation;
 - (d) The mix ratio;
 - (e) The density or specific gravity;
 - (f) If used, the temperature of the fountain solution.
- (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No offset lithographic printing operation or letterpress printing operation which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Exempt other. The following shall be exempt from the limitations set by Subsection B:
- (1) Sheet-feed presses with sheet size of 11 inches (27.9 centimeters) by 17 inches (43.2 centimeters) or smaller, or to any sheet-feed press with total fountain solution reservoir of less than one gallon (3.8 liters).
 - (2) Heatset presses used for book printing or heatset presses with maximum web width of 22 inches (55.9 centimeters) or less are excluded from the add-on control of either a chiller condenser or an oxidizer.
 - (3) One hundred ten gallons (416 liters) per year of cleaning materials, or less, which meet neither the low VOC composite vapor pressure limitation nor the lower VOC content limitation and work practices.
- F. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of an offset lithographic printing and letterpress printing operation:
- (1) Store all VOC-containing cleaning materials and used shop towels in closed containers.

- (2) Ensure that ink, fountain solution and cleaning material storage containers are kept closed at all times except when depositing or removing those materials.
 - (3) Minimize spills of VOC-containing inks, fountain solutions and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing inks, fountain solutions and cleaning materials from one location to another in closed containers or pipes.
 - (5) Minimize VOC emissions during cleaning of storage and conveying equipment.
- G. Measurements. Measurements of the volatile fraction of inks and fountain solution, and of volatile organic compound emissions shall be performed according to the applicable procedures established in § 505-61 of this chapter.

§ 505-52.2. Control of VOC emissions from flexible package printing. [Added 5-22-2013 by Ord. No. 14-13]

- A. Applicability. Beginning January 1, 2012, this section applies to the owner or operator of a flexible packaging printing press, including rotogravure printing and flexographic printing, where the total actual VOC emissions from all flexible package printing press operations, including related cleaning activities, at the facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period.
- (1) The limits from § 505-44B, Graphic arts systems, no longer apply to flexible package printing presses as of January 1, 2012.
- B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from a flexible package printing press unless one of the following limitations is met:
- (1) The overall control efficiency shall be no less than 80%.
 - (2) The VOC content of materials (inks, coatings and adhesives) used on a single press shall not be greater than 0.8 pound VOC per pound solids applied.
 - (3) The VOC content of materials (inks, coatings and adhesives) used on a single press shall not be greater than 0.16 pound VOC per pound materials applied.
- C. Records. A facility, regardless of the facility's annual emission rate, which contains a flexible package printing press shall maintain records sufficient to demonstrate compliance with this section.
- (1) At a minimum, a facility shall maintain daily records of the following parameters for each material, ink, coating, adhesive and other component as supplied:
 - (a) The name and identification number of each material, ink, coating and adhesive;
 - (b) The volume used;
 - (c) The mix ratio;
 - (d) The density or specific gravity;
 - (e) The weight percent of total volatiles, water, solids, and exempt solvents;
 - (f) The VOC content of the materials (inks, coatings and adhesives) used on a single press per

weight of solids or materials applied.

- (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No flexible package printing operation which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of a flexible printing press:
 - (1) Store all VOC-containing cleaning materials and used shop towels in closed containers.
 - (2) Ensure that ink, coating, adhesive and cleaning material storage containers are kept closed at all times except when depositing or removing those materials.
 - (3) Minimize spills of VOC-containing inks, coatings, adhesives and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing inks, coatings, adhesives and cleaning materials from one location to another in closed containers or pipes.
 - (5) Minimize VOC emissions during cleaning of storage and conveying equipment.
- F. Measurements. Measurements of the volatile fraction of inks, and of volatile organic compound emissions shall be performed according to the applicable procedures established in § 505-61 of this chapter.

§ 505-52.3. Control of VOC emissions from industrial solvent cleaning operations. [Added 5-22-2013 by Ord. No. 14-13]

- A. Applicability. Beginning January 1, 2012, this section applies to the owner or operator of a facility, where the total actual VOC emissions from all of the industrial solvent cleaning operations at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period. This regulation applies to any facility that employs solvent materials in industrial solvent cleaning operations during the production, repair, maintenance, or servicing of parts, products, tools, machinery, equipment, or general work areas, and stores and/or disposes of these solvent materials. The provisions of this rule shall not apply to cleaning operations in the following source categories listed for regulation under Section 183(e) of the Clean Air Act:
 - (1) Aerospace coatings;
 - (2) Wood furniture coatings;
 - (3) Shipbuilding and repair coatings;
 - (4) Flexible package printing materials;
 - (5) Lithographic printing materials;
 - (6) Letterpress printing materials;
 - (7) Flat wood paneling coatings;

- (8) Large appliance coatings;
 - (9) Metal furniture coatings;
 - (10) Paper, film, and foil coatings;
 - (11) Plastic parts coatings;
 - (12) Miscellaneous metal parts coatings;
 - (13) Fiberglass boat manufacturing materials;
 - (14) Miscellaneous industrial adhesives; or
 - (15) Auto and light-duty truck assembly coatings.
- B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from industrial solvent cleaning operations unless one of the following limitations is met:
- (1) The solvent complies with the applicable VOC content limitation in Table 2105.82;
 - (2) The owner or operator of a facility that is subject to this rule shall employ only the following cleaning devices and methods:
 - (a) Wipe cleaning;
 - (b) Closed containers or hand-held spray bottles from which solvents are applied without a propellant-induced force;
 - (c) Cleaning equipment which has a solvent container that can be and is closed during cleaning operations, except when depositing and removing objects to be cleaned, and is closed during non-operation, with the exception of maintenance and repair to the cleaning equipment itself;
 - (d) Remote reservoir cleaner, if the operator of the cleaner complies with all of the following:
 - [1] Prevents solvent vapors from escaping from the solvent container by using such devices as a cover or a valve when the remote reservoir is not being used, cleaned or repaired.
 - [2] Directs solvent flow in a manner that will prevent liquid solvent from splashing outside of the remote reservoir cleaner.
 - [3] Does not clean porous or absorbent materials, such as cloth, leather, wood or rope.
 - [4] Uses only solvent containers free of all liquid leaks. Auxiliary equipment, such as pumps, pipelines or flanges, shall not have any liquid leaks, visible tears or cracks. Any liquid leak, visible tear or crack detected shall be repaired within one calendar day, or the leaking section of the remote reservoir cold cleaner shall be drained of all solvent and shut down until it is replaced or repaired.
 - (e) Non-atomized solvent flow method where the cleaning solvent is collected in a container or a collection system which is closed except for solvent collection openings and, if necessary, openings to avoid excessive pressure build-up inside the container; or
 - (f) Solvent flushing method where the cleaning solvent is discharged into a container which

is closed except for solvent collection openings and, if necessary, openings to avoid excessive pressure build-up inside the container. The discharged solvent from the equipment must be collected into containers without atomizing into the open air. The solvent may be flushed through the system by air or hydraulic pressure or by pumping.

- (3) The owner or operator of a facility that is subject to this rule is prohibited from atomizing any solvent unless the emissions are vented to VOC emission control equipment that meets the requirements of Subsection B(5) of this rule.
 - (4) All VOC-containing solvents used in solvent cleaning operations shall be stored in non-absorbent, non-leaking containers which shall be kept closed at all times except when filling or emptying. Cloth and paper moistened with VOC-containing solvents shall be stored in closed, non-absorbent, non-leaking containers.
 - (5) In lieu of complying with the requirements of Subsection B(1) and (2) of this rule for an industrial solvent cleaning operation, the owner or operator of a facility that is subject to this rule may comply with this rule by installing and operating VOC emission control equipment for the industrial solvent cleaning operation. The VOC emission control equipment shall comply with all of the following requirements:
 - (a) A capture efficiency of at least 90% by weight, for the VOC emissions.
 - (b) Either a destruction/removal efficiency of at least 95%, by weight, for the VOC emissions, or an outlet concentration of less than 20 ppmv, on a dry basis, for the VOC emissions.
 - (6) In lieu of complying with the requirements in Subsection B(1) of this rule, the owner or operator of a facility may use solvents or solvent solutions for industrial cleaning operations which have a VOC composite partial vapor pressure of less than or equal to 8mm of Hg at 68° F. (20° C.).
- C. Records. A facility, regardless of the facility's annual emission rate, which is subject to any of the VOC content limitations specified in this rule, shall maintain records sufficient to demonstrate compliance with this section.
- (1) At a minimum, a facility shall maintain daily records of:
 - (a) The following parameters for each industrial solvent cleaner and other component as supplied:
 - [1] The name and identification number of each industrial solvent cleaning material and the associated industrial cleaning activity;
 - [2] The volume of each solvent used in the industrial solvent cleaning operation;
 - [3] The total volume of all the solvents used in the industrial solvent cleaning operation;
 - [4] The mix ratio;
 - [5] The density or specific gravity;
 - [6] The VOC content, based upon applicable procedures established in § 505-61 of this chapter, of each industrial solvent cleaning material, as employed or the VOC composite partial vapor pressures of the solvents or solvent solutions used in the industrial solvent cleaning operation.

- (b) The VOC content of each industrial solvent cleaner as supplied.
 - (c) The VOC content of each industrial solvent cleaner as applied.
- (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No industrial solvent cleaning operation which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Exempt other. The following industrial solvent cleaning operations shall be exempt from the limitations set by Subsection B:
 - (1) The following industrial solvent cleaning operations are exempt from all the requirements of this rule:
 - (a) Janitorial cleaning, including graffiti removal.
 - (b) Stripping of cured coatings, cured ink, or cured adhesives.
 - (c) Cleaning operations in printing pre-press or graphic arts pre-press areas, including the cleaning of film processors, color scanners, plate processors, film cleaning and plate cleaning.
 - (2) The following industrial solvent cleaning operations are exempt from the VOC content limitations specified in Subsection B(1) of this rule:
 - (a) Cleaning of solar cells, laser hardware, scientific instruments and high-precision optics.
 - (b) Cleaning conducted as part of the following: performance laboratory tests on coatings, adhesives or inks; research and development programs; and laboratory tests in quality assurance laboratories.
 - (c) Cleaning of paper-based gaskets and clutch assemblies where rubber is bonded to metal by means of an adhesive.
 - (d) Cleaning of cotton swabs to remove cottonseed oil before cleaning of high precision optics.
 - (e) Medical device and pharmaceutical facilities using up to 1.5 gallons (5.7 liters) per day of solvents.
 - (f) Cleaning of adhesive application equipment used for thin metal laminating.
 - (g) Cleaning of electronic or electronic cables.
 - (h) Touch-up cleaning performed on printed circuit boards where surface-mounted devices have already been attached.
 - (i) Cleaning of coating and adhesive application processes utilized to manufacture transdermal drug delivery product using less than three gallons per day of ethyl acetate.
 - (j) Cleaning of application equipment used to apply coatings on satellites and radiation effect

coatings.

- (k) Cleaning of application equipment used to apply solvent borne fluoropolymer coatings.
 - (l) Cleaning of ultraviolet or electron beam adhesive application.
 - (m) Cleaning of sterilization indicating ink application equipment if the facility employs less than 1.5 gallons (5.7 liters) per day of solvents for such cleaning.
 - (n) Cleaning of metering rollers, dampening rollers and printing plates.
 - (o) Cleaning of polyester resin application equipment for sources subject to 40 CFR Part 63, Subpart WWWW.
- (3) The following industrial solvent cleaning operations are exempt from the requirements of Subsection B(3) of this rule:
- (a) Cleaning of the nozzle tips of automated spray equipment systems, except for robotic systems.
 - (b) Cleaning with spray bottles or containers described in Subsection B(2)(b) of this rule.
 - (c) Printing operations where the roller shall be exempt from the requirements of Subsection B(1) and (3) of this rule if the facility employs 1.25 gallons [160 fluid ounces (4.7 liters)] or less of the aerosol products per day.
- F. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of an industrial solvent cleaning operation:
- (1) Store all VOC-containing cleaning materials and used shop towels in closed containers.
 - (2) Ensure that mixing and storage containers used for industrial solvent cleaning operations are kept closed at all times except when depositing or removing those materials.
 - (3) Minimize spills of VOC-containing industrial solvent cleaners, and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing industrial solvent cleaners and cleaning materials from one location to another in closed containers or pipes.
 - (5) Minimize VOC emissions during cleaning of storage and conveying equipment.
- G. Measurements. Measurements of the volatile fraction of industrial solvent cleaners, and of volatile organic compound emissions shall be performed according to the applicable procedures established in § 505-61 of this chapter.

Table 2105.82
Emission Limits of VOCs for Industrial Solvent Cleaning Operations

Industrial Solvent Cleaning Operation	VOC Content Limitation As Employed	
	(pounds VOC per gallon)	(kilograms VOC per liter)
1. Product cleaning during manufacturing process or surface preparation for coating, adhesive, or ink application		
(a) General	0.42	0.050
(b) Electrical apparatus components and electronic components	0.83	0.099
(c) Medical devices and pharmaceuticals	6.7	0.80
2. Repair and maintenance cleaning		
(a) General	0.42	0.050
(b) Electrical apparatus components and electronic components	0.83	0.099
(c) Medical devices and pharmaceuticals		
(i) Tools, equipment and machinery	6.7	0.80
(ii) General work surfaces	5.0	0.60
3. Cleaning of coating or adhesive	0.42	0.050
4. Cleaning of ink application equipment:		
(a) General	0.42	0.050
(b) Flexographic printing	0.42	0.050
(c) Gravure printing		
(i) Publication	0.83	0.099
(ii) Packaging	0.42	0.050
(d) Screen printing	4.2	0.50
(e) Ultraviolet ink and electron beam ink application equipment, except screen printing	4.2	0.50
(f) Specialty flexographic printing	0.83	0.099
5. Cleaning of polyester resin application Equipment not subject to 40 CRF Part 63 Subpart WWW	0.42	0.050

ARTICLE VI
Air Pollution Episodes

§ 505-53. Air pollution episode system.

- A. General. The purpose of this article is to provide the Department with the authority to decrease the severity and duration of air pollution episodes by requiring staged reductions in the emission of air contaminants and general reductions in activities which place demands upon air pollution sources or which result in generation of air contaminants either directly or indirectly, in conjunction with air quality measurements and meteorological forecasts. The goal of these reductions is the avoidance of conditions which may result in significant harm to human health or welfare.
- B. Other powers unaffected. Nothing contained in this article shall affect the power of the Department to issue an emergency order pursuant to § 505-82 of this chapter, whether or not such emergency occurs during an air pollution episode, or any other order pursuant to Article IX of this chapter.

§ 505-54. Air pollution source curtailment plans.

- A. Any person responsible for a source of air contaminants of the type set forth below shall, upon written request of the Department, submit a source curtailment plan, consistent with good industrial practice and safe operating procedures, designed to reduce emissions of air contaminants during air pollution episodes. Such plans shall meet the requirements of Subsection C below, and shall be consistent with any further guidance developed by the Department in the administration of this article.
- (1) Coal or oil-fired electric power generating sources.
 - (2) Coal or oil-fired steam generating sources.
 - (3) Manufacturing industries in the following classifications:
 - (a) Primary metals.
 - (b) Secondary metals.
 - (c) Metal fabricating.
 - (d) Coke making.
 - (e) Paper and allied products.
 - (f) Chemical and allied products.
 - (g) Petroleum refining and related industry.
 - (h) Stone, glass, clay, and concrete products.
 - (4) Asphalt plants.
 - (5) Incinerators.
 - (6) Slag handling operations.
 - (7) Other sources designated by Department.
- B. Source curtailment plans required by Subsection A above shall be in writing and shall show the

source of emissions, the approximate emissions rate and percentage of reductions to be achieved upon implementation, the time necessary after notification to implement the plan, and a brief description of the manner in which reductions will be achieved at the respective stages or levels of an air pollution episode.

- C. Source curtailment plans shall specify three phases of curtailment actions. These phases shall correspond to the respective alert stages or localized incident levels, unless otherwise provided for in an individual source curtailment plan upon the approval of the Department. The goal of the first phase of curtailment shall be to provide for the reduction of emissions to the level required by the applicable emission limitations of this chapter. Subject to the approval of the Department, plans may specify that the first phase emission reductions required of a noncomplying source may instead be brought about by the curtailment of another source (or sources) under common control at the same site. The goal of the second phase of curtailment shall be to provide substantial reduction of emissions of air contaminants by ceasing, curtailing, deferring or postponing production and allied operations. The goal of the third phase of curtailment shall be to eliminate emissions of air contaminants by ceasing curtailing, deferring, or postponing production and allied operations. Curtailment shall be obtained without causing injury to persons or substantial damage to equipment.
- D. Source curtailment plans for incinerators shall specify what preparations have been made to handle and store, or otherwise dispose of, refuse without incineration.
- E. Source curtailment plans required by this section shall be kept on the premises of the source affected and made available to any person authorized to enforce the provisions of this chapter.
- F. If a submitted plan, as required by Subsection A, is not acceptable to the Department, it shall issue an order directing the responsible person to modify and resubmit the plan within 30 days after receiving notice. The order shall specify the reason or reasons for disapproval and shall specify the changes or additions necessary to make the plan acceptable to the Department. In the event that the person responsible for a source fails to resubmit a plan or fails to resubmit a plan in accordance with the changes or additions recommended by the Department, the Department, in addition to any other remedies available to it under this chapter, shall have the authority to issue an order to that person detailing the procedures for that person to follow during the various stages of an air pollution episode and which shall be considered the source curtailment plan for that source.
- G. Any person responsible for operation of a source for which a source curtailment plan has been submitted shall advise the Department in writing of any changes affecting the technical content or the implementation of the plan within 30 days of their occurrence. Such submittals shall be processed according to the procedures described in Subsection F above.
- H. The Department may, upon its determination that particular sources are adversely contributing to an air pollution episode, order such sources to implement the procedures of their source curtailment plans. Upon notification by the Department of the existence of an episode and the need to implement the source curtailment plan, the person responsible for the source affected shall immediately implement such plan. If an air pollution episode or localized incident occurs during the period when a source curtailment plan is under review by the Department, such plan shall be implemented, provided, however, that if such plan is not acceptable to the Department, other curtailment action shall be taken as specified by the Department.

§ 505-55. Episode criteria.

- A. County-wide Air Pollution Watch declaration criteria and alert declaration criteria.

- (1) County-wide Air Pollution Watch: A County-wide Air Pollution Watch shall be declared by the Department when either of the following conditions has been met:
 - (a) The Department has received a meteorological forecast that for the next thirty-six-hour period or more a condition exists in which atmospheric dispersion parameters may lead to an air pollution episode throughout Allegheny County; or
 - (b) The Department has received a meteorological forecast that for the past 12 hours a condition has existed in which atmospheric dispersion parameters may lead to an air pollution episode throughout Allegheny County, and that this condition will continue for at least the next 24 hours.
- (2) First Stage Alert: The Department may declare a First Stage Alert to exist if, during a County-wide watch period, any of the following values have been equalled or exceeded at any official monitoring station judged by the Department to be in acceptable working condition, and the Department has obtained a forecast that for the next 24 hours or more atmospheric dispersion parameters conducive to the poor dispersion of air contaminants will exist. The First Stage Alert values are:
 - (a) Sulfur Dioxide (SO₂): 0.30 ppm, twenty-four-hour average.
 - (b) PM-10: 350 ug/m³, twenty-four-hour average.
 - (c) Carbon Monoxide (CO): 15 ppm, eight-hour average.
 - (d) Nitrogen Dioxide (NO₂): either 0.6 ppm, one-hour average, or 0.15 ppm, twenty-four-hour average.
 - (e) Ozone: 0.2 ppm, one-hour average.
- (3) Second Stage Alert: The Department shall declare a Second Stage Alert to exist if, during a County-wide watch period, any of the following values have been equalled or exceeded at any official monitoring station judged by the Department to be in acceptable working condition, and the Department has obtained a forecast that for the next twelve-hour period or more atmospheric dispersion parameters conducive to the poor dispersion of air contaminants will exist. The Second Stage Alert values are:
 - (a) Sulfur Dioxide (SO₂): 0.60 PPM, twenty-four-hour average.
 - (b) PM-10: 420 ug/m³, twenty-four-hour average.
 - (c) Carbon Monoxide (CO): 30 ppm, eight-hour average.
 - (d) Nitrogen Dioxide (NO₂): either 1.2 ppm, one-hour average or 0.30 ppm, twenty-four-hour average.
 - (e) Ozone: 0.40 ppm, one-hour average.
- (4) Third Stage Alert: The Department shall declare a Third Stage Alert to exist if, during a County-wide watch period, any of the following values have been equalled or exceeded at any official monitoring station judged by the Department to be in acceptable working condition, and the Department has obtained a forecast that for the next twelve-hour period or more atmospheric dispersion parameter conducive to the poor dispersion of air contaminants will exist. The Third

Stage Alert values are:

- (a) Sulfur Dioxide (SO₂): 0.80 ppm, twenty-four-hour average.
 - (b) PM-10: 500 ug/m³, twenty-four-hour average.
 - (c) Carbon Monoxide (CO): 40 ppm, eight-hour average.
 - (d) Nitrogen Dioxide (NO₂): either 1.60 ppm, one-hour average, or 0.40 ppm, twenty-four-hour average.
 - (e) Ozone: 0.60 ppm, one-hour average.
- (5) Third Stage Alert (ozone): The Department may declare a Third Stage Alert to exist if, during a first or second stage ozone alert, the Department has obtained a forecast that within the next thirty-six-hour period third stage ozone levels will be reached.

B. Localized Air Pollution Watch declaration criteria and localized incident declaration criteria.

- (1) Localized Air Pollution Watch. A localized Air Pollution Watch shall be declared by the Department when either of the following conditions have been met:
- (a) The Department has received a meteorological forecast that for the next twenty-four-hour period atmospheric dispersion parameters will exist which are conducive to an air pollution episode only in a limited portion of Allegheny County; or
 - (b) The Department has received a meteorological forecast that atmospheric dispersion parameters which are conducive to an air pollution episode only in a limited portion of Allegheny County have existed for 12 hours and will continue for at least the next 12 hours.
- (2) First Level Localized Incident: The Department may declare a First Level Localized Incident to exist if any of the following values have been equalled or exceeded at an official monitoring station where a localized watch is in effect, if the station is judged by the Department to be in acceptable working condition and is located in a specific portion of Allegheny County for which the Department has obtained a forecast that for the next 12 hours or more atmospheric dispersion parameters conducive to the poor dispersion of air contaminants will exist. The First Level Localized Incident values are:
- (a) Sulfur Dioxide (SO₂): 0.45 ppm, twenty-four-hour average.
 - (b) PM-10: 385 ug/m³, twenty-four-hour average.
- (3) Second Level Localized Incident. The Department may declare a Second Level Localized Incident to exist if any of the following values have been equalled or exceeded at an official monitoring station where a localized watch is in effect, if the station is judged by the Department to be in acceptable working condition and is located in a specific portion of Allegheny County for which the Department has obtained a forecast that for at least the next six hours atmospheric dispersion parameters conducive to the poor dispersion of air contaminants will exist. Second Level Localized Incident values are:
- (a) Sulfur Dioxide (SO₂): 0.70 ppm, twenty-four-hour average.
 - (b) PM-10: 460 ug/m³, twenty-four-hour average.

- (4) Third Level Localized Incident: The Department may declare a Third Level Localized Incident to exist if any of the following values have been equalled or exceeded at an official monitoring station where a localized watch is in effect, if the station is judged by the Department to be in acceptable working condition and is located in a specific portion of Allegheny County for which the Department has obtained a forecast that for at least the next six hours atmospheric dispersion parameters conducive to the poor dispersion of air contaminants will exist. Third Level Localized Incident values are:

- (a) Sulfur Dioxide (SO₂): 0.8 ppm, twenty-four-hour average.
- (b) PM-10: 500 ug/m³, twenty-four-hour average.

C. Termination criteria

- (1) The Department shall terminate any alert or localized incident when the respective declaration criteria no longer are exceeded or when a meteorological forecast is received that for the next twenty-four-hour period conditions conducive to the good dispersion of air contaminants will exist. The latter criterion only will be used to terminate a watch.
- (2) Upon the termination of any alert or localized incident, the Department shall make a public announcement to that effect and shall also notify those persons who were required to implement source curtailment plans.
- (3) Upon the termination of a second or Third Stage Alert, or a second or Third Level Localized Incident, the Department shall prepare and make available to the Board of Health, the Advisory Committee and to the public a report on the severity and duration of the preceding air pollution episode and the nature and effectiveness of measures taken to control the episode.

- D. With respect to the criteria for PM-10 in Subsection A(2), (3) and (4) and Subsection B(2), (3) and (4), the Department may substitute a value based upon the average of all of the quantitative site-specific COH-PM-10 relationships in the County that are deemed reliable by the Department where, in its judgment, a reliable site-specific value has not been determined pursuant to Subsection D above.

- E. The site-specific relationship established for each air quality monitoring station shall be reevaluated on a periodic basis.

- F. The site-specific relationships and the verifying data used to determine the criteria for PM-10 under Subsection D above shall be kept on file at the Department and shall be available for public inspection as provided in § 505-7 of this chapter.

§ 505-56. Episode actions.

A. Air Pollution Watch actions. Upon declaration of an Air Pollution Watch:

- (1) The Department shall review air quality information for the past twenty-four-hour period, determine the current operational status of the air pollution monitoring network, and continue to compute all relevant air quality indices.
- (2) The Department shall notify all sources of air pollution that require advance preparation time that a watch has been declared and that within a short period of time air pollution emissions reductions may have to be effected.
- (3) The Department shall notify all affected staff and affected local, state, and federal agencies that

a watch is in effect and that coordination of episode control actions may be required.

B. First Stage Alert actions. Upon declaration of a First Stage Alert:

- (1) The Department shall determine which source curtailment plans should be placed in effect and in which area and notify those sources to institute First Stage Alert curtailment actions.
- (2) The Department shall notify all affected local, state, and federal agencies that a First Stage Alert is in effect and that coordination of episode control actions may be required.
- (3) The Department shall inform the public via the mass media that a First Stage Alert is in effect. The public may be requested to curtail use of automobiles and electricity in the alert area and to otherwise take actions required by this chapter. Individuals sensitive to high levels of air pollution shall be advised to take precautionary measures.
- (4) All open burning of tree waste, vegetation, refuse, or debris of any form shall be prohibited in the alert area, notwithstanding any open burning permit which has been issued.
- (5) Incinerators used for the disposal of solid or liquid waste in the alert area shall be permitted to operate only between the hours of 12:00 noon and 4:00 p.m., unless otherwise provided for by individual source curtailment plans.

C. Second Stage Alert actions. Upon the declaration of a Second Stage Alert:

- (1) The Department shall determine which source curtailment plans should be placed in effect and in which areas and notify those sources to institute Second Stage Alert curtailment actions.
- (2) The Department shall notify each Allegheny County Commissioner, each Board of Health Member, and all affected local, state, and federal agencies that a Second Stage Alert is in effect and that coordination of episode control actions may be required.
- (3) The Department shall inform the public via the mass media that a Second Stage Alert is in effect. The public shall be requested to curtail use of automobiles and electricity in the alert area and to otherwise take actions required by these regulations. Commercial establishments involved in retail trade, amusement and recreation, office buildings, and all other businesses and institutions shall be requested by the Department to voluntarily reduce their consumption of electricity and to minimize heating, cooling and ventilating of their buildings and offices. The Department shall advise those individuals deemed to be particularly sensitive to high levels of air pollution to take precautionary measures.
- (4) All open burning of tree waste, vegetation, refuse or debris, of any form shall be prohibited in the alert area, notwithstanding any open burning permit which has been issued.
- (5) Incinerators used for the disposal of solid or liquid wastes in the alert area shall not be operated with the exception of those used for the incineration of pathogenic materials for which written permission to operate has been obtained from the Department, or unless otherwise provided for by individual source curtailment plans.

D. Third Stage Alert actions. Upon the declaration of a Third Stage Alert:

- (1) The Department shall notify each Allegheny County Commissioner, each Board of Health Member, and all affected Local, state, and federal agencies that a Third Stage Alert is in effect and that coordination of episode control action is required.

- (2) The Department shall inform the public via mass media that a Third Stage Alert is in effect and the extent of the area affected. Those individuals deemed to be particularly sensitive to high levels of air pollution shall be advised to take appropriate precautionary measures. Hospitals shall be informed that a Third Stage Alert has been declared and that increased demand upon their facilities may be imminent. Public buildings, apartment houses, commercial facilities, air pollution sources permitted to operate during a Third Stage Alert, office buildings, and other buildings, offices and factories listed in the episode master plan shall be required to minimize heating, air conditioning, and ventilation.
- (3) Second Stage Alert prohibitions of open burning and incineration shall remain in effect during the Third Stage Alert.
- (4) The Department shall determine which source curtailment plans should be placed in effect and in which areas and notify those sources to institute Third Stage Alert curtailment actions.
- (5) The Department shall determine the likely extent of the area containing sources responsible for the exceedance of Third Stage levels. For that area, the Department shall determine which activities described hereafter, in addition to those with source curtailment plans, shall immediately be curtailed to the extent possible without causing injury to persons or substantial damage to equipment, and shall make appropriate public announcements to this effect.
 - (a) Mining and quarrying.
 - (b) Construction work.
 - (c) Airplane flights into and out of the major airports within that area, with the exception of those required for public health or safety as approved by the Department.
 - (d) Other activities and places of business announced by the Chairman of the Board of County Commissioners.
 - (e) All places of employment described hereafter which are located in areas known to have significant concentrations of motor vehicle activity.
 - [1] Manufacturing establishments.
 - [2] Places of business and public offices and institutions, with the exception of the following:
 - [a] Retail food stores.
 - [b] Health-care facilities.
 - [c] Pharmacies.
 - [d] Government agencies, boards, authorities, courts, and other public or private offices whose services are needed to administer and enforce the Air Pollution Episode Program or have been determined by the Department to be vital to the public safety, health or welfare.
 - [e] News media.
 - [f] Others as approved by the Department.

E. Localized incident actions. Upon the declaration of a localized incident:

- (1) The Department shall review air quality information for the past twenty-four-hour period, determine the current operational status of the air pollution monitoring network, and continue to compute all relevant air quality indices.
- (2) The Department shall notify all affected staff and affected local, state, and federal agencies that a localized incident is in effect and that coordination of episode control actions may be required. The Department shall notify each Allegheny County Commissioner and each Board of Health member upon the declaration of a Second or Third Level Incident.
- (3) The Department shall determine which source curtailment plans should be placed in effect and in which area and notify those sources to institute curtailment actions for the appropriate declared localized incident level.
- (4) The Department shall inform the public via the mass media that a localized incident is in effect. Individuals sensitive to high levels of air pollution shall be advised to take precautionary measures.

§ 505-57. USX Clairton Works PM-10 self-audit emergency action plan. [Added 8-15-1997]

- A. In addition to the requirements of § 505-54, the USX Corporation shall submit a PM-10 self-audit emergency action plan (referred to in this section as the Plan) for the Clairton Works, consistent with good industrial practice and safe operating procedures, designed to reduce emissions of air contaminants during high concentrations of particulate matter. This plan shall meet the requirements of Subsection C below, and shall be consistent with any further guidance developed by the Department in the administration of this article.
- B. The plan required by Subsection A above shall be in writing and shall specify the system of monitoring particulate matter, the size or sizes of particulate matter that are being monitored, at least three levels of alert stages, and the actions that will be taken by the USX Clairton Coke Works at each alert stage.
- C. The plan shall specify at least three phases of actions. The plan will identify the levels that activate these phases. The goal of the first phase of action shall be to provide for the assurance of proper operation of all units. The goal of the second phase of action shall be to provide reduction of emissions of air contaminants by modifying, ceasing, curtailing, deferring or postponing production and allied operations. The goal of the third phase of action shall be to provide substantial reduction to emissions of air contaminants by modifying, ceasing, curtailing, deferring, or postponing production and allied operations. Curtailment shall be obtained without causing injury to persons or substantial damage to equipment.
- D. The plans required by this section shall be kept on the premises of the source affected and made available to any person authorized to enforce the provisions of this chapter.
- E. If the plan, as required by Subsection A, is not acceptable to the Department, the Department shall issue an order directing the responsible person to modify and resubmit the plan within 30 days after receiving notice. The order shall specify the reason or reasons for disapproval and shall specify the changes or additions necessary to make the plan acceptable to the Department. In the event that the person responsible for a source fails to resubmit a plan or fails to resubmit a plan in accordance with the changes or additions recommended by the Department, the Department, in addition to any other remedies available to it under this chapter, shall have the authority to issue an order to that person detailing the procedures for an early warning system and emergency plan.

- F. Any person responsible for operation of the source shall advise the Department in writing of any changes affecting the technical content or the implementation of the plan within 30 days of their occurrence. Such submittals shall be processed according to the procedures described in Subsection E above.
- G. USX Clairton Works shall implement the procedures of the plan.

ARTICLE VII

Methods**§ 505-58. General.**

- A. The methods specified in this article shall be used to determine compliance with the emission standards, source standards and ambient air quality standards established by this chapter. For purposes of determining compliance with NSPS's, NESHAP's, MACT's, and all other state and federal standards incorporated by reference into this chapter, the methods specified in the applicable standard shall be used, or where no such methods are specified, methods approved by the Department shall be used.
- B. All sampling and analytical procedures promulgated by the Administrator under the Clean Air Act and by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act as set forth, or referenced, in 25 Pa. Code Chapter 139, Subchapter A, are hereby incorporated, by reference, as part of the methods specified in this Part. Additions, revisions, and deletions to such procedures adopted by the EPA and the DEP are incorporated into this chapter and are effective on the date established by the federal regulations, unless otherwise established by regulation under this chapter.
- C. The Department may, upon written application setting forth all necessary information, approve in writing a method other than those specified by this article if it finds that, for the particular source or air pollution control equipment involved, such method is equivalent to the methods specified by this article and that such methods are consistent with accepted air pollution testing practices and with obtaining accurate results which are representative of the conditions evaluated.
- D. The methods specified in this article and approved under Subsection C of this section shall be compiled in the Source Testing Manual of the Allegheny County Bureau of Environmental Quality Division of Air Quality. Such Manual shall be open to public inspection during business hours at the headquarters of the Division of Air Quality and at the Allegheny County Health Department Library. In addition, any person shall, upon request and upon payment of the reasonable costs of furnishing such material, be furnished with copies of the manual or parts thereof.

§ 505-59. Particulate matter.

- A. Test methods.
 - (1) Except as provided below in this section, the following methods shall be used to determine particulate matter emissions from stationary sources, as specified in Chapters 1 through 5 inclusive of the Allegheny County Source Testing Manual:
 - (a) Method 1 through 5F inclusive, Determination of Particulate Emissions from Stationary Sources, United States Environmental Protection Agency, 40 CFR 60, Appendix A.
 - (2) Determination of compliance with the pushing emission standard for coke ovens set forth in § 505-45B of this chapter shall be performed as specified in Chapter 54 of the Allegheny County Source Testing Manual, entitled "Determination of Particulate Emissions for Coke Oven Pushing Sources."
 - (3) Determination of compliance with particulate matter standards for sources equipped with pressurized baghouses shall be performed as specified in Chapter 45 of the Allegheny County Source Testing Manual, entitled "Determination of Particulate Matter from Pressurized

Baghouses."

- (4) Determination of compliance with particulate matter standards for sources equipped with modular baghouses shall be performed as specified in Chapter 47 of the Allegheny County Source Testing Manual, entitled "Determination of Particulate Matter from Modular Baghouses."
 - (5) The following methods shall be used to determine PM-10 emissions from stationary sources, as specified in Chapter 201 of the Allegheny County Source Testing Manual:
 - (a) Method 201, Determination of PM-10 Emissions (Exhaust Gas Recycle Procedure), United States Environmental Protection Agency, 40 CFR 51, Appendix M; or
 - (b) Method 201A, Determination of PM-10 Emissions (Constant Sampling Rate Procedure), United States Environmental Protection Agency, 40 CFR 51, Appendix M.
 - (6) The following method shall be used to determine condensible particulate emissions from stationary sources, as specified in Chapter 202 of the Allegheny County Source Testing Manual:
 - (a) Method 202, Determination of Condensible Particulate Emissions from Stationary Sources, United States Environmental Protection Agency, 40 CFR 51, Appendix M.
 - (7) Determination of compliance with PM-10 standards for fugitive emissions from sources located within a structure shall be performed as specified in Chapter 53 of the Allegheny County Source Testing Manual, entitled "Determination of Inhalable Fugitive Particulate Emissions from Air Pollution Sources Within a Structure."
- B. Calibration. Calibration of test instruments shall be performed as specified in Chapter 50 of the Allegheny County Source Testing Manual relating to calibration and maintenance.

§ 505-60. Sulfur oxides.

The following methods shall be used to determine sulfur oxide emissions from stationary sources, as specified in Chapters 6 and 8 of the Allegheny County Source Testing Manual:

- A. Methods 6 through 6C, Determination of Sulfur Dioxide Emissions from Stationary Sources; and
- B. Method 8, Determination of Sulfuric Acid Mist and Sulfur Dioxide Emissions from Stationary Sources, United States Environmental Protection Agency, 40 CFR 60, Appendix A.

§ 505-61. Volatile organic compounds.

- A. General. The following method shall be used to determine volatile organic compound emissions from stationary sources, as specified in Chapter 25 of the Allegheny County Source Testing Manual:
 - (1) Method 25, Determination of Total Gaseous Non-Methane Organic Emissions as Carbon, "Standards for Performance for New Stationary Sources; Addition of Reference Methods 24 and 25 to Appendix A," Federal Register, Part VII, Volume 45, Number 194, Pages 65956 - 65973, October 3, 1980, Washington, D.C.
 - (2) Method 25A, Determination of Total Gaseous Organic Concentration Using a Flame Ionization Analyzer, U.S. EPA Appendix A - Reference Methods (as amended at Fed. Reg., V. 55, No. 220, Pg. 47471, Nov. 14, 1990, Washington, D.C.), 40 CFR Chapter I, Part 60, Appendix A, Method 25A, Washington, D.C., "Measurement of Volatile Organic Compounds - Guideline

- Series," U.S. EPA, Research Triangle Park, NC, Publ. No. EPA-450/2-78-041, June, 1978, pp. 46-54.
- (3) Method 25B, Determination of Total Gaseous Organic Concentration Using a Nondispersive Infrared Analyzer, U.S. EPA Appendix A - Reference Methods (as amended at Fed. Reg., V. 55, No. 220, Pg. 47471, Nov. 14, 1990, Washington, D.C.), 40 CFR Chapter I, Part 60, Appendix A, Method 25B, Washington, D.C., "Measurement of Volatile Organic Compounds - Guideline Series," U.S. EPA, Research Triangle Park, NC, Publ. No. EPA-450/2-78-041, June, 1978, pp. 46-54.
- B. Gasoline vapor recovery systems. The following methods shall be used to determine volatile organic compound emissions from vapor recovery systems for gasoline loading operations:
- (1) Emission test procedures for tank truck gasoline loading terminals (Appendix A), "Control of Hydrocarbons from Tank Truck Gasoline Loading Terminals", EPA - 450/2-77-026, United States Environmental Protection Agency, October, 1977, as specified in Chapter 55 of the Allegheny County Source Testing Manual, entitled "Determination of Volatile Organic Compound Emissions from Vapor Recovery Systems for Gasoline Loading Operations."
- (2) Sampling and Testing Procedure for Gasoline Facilities, Allegheny County Source Testing Manual, Chapters 25 and 27.
- C. Surface coatings. The following methods shall be used to determine the volatile organic compound content, water content, and density of surface coatings and inks, as specified in Chapter 24 of the Allegheny County Source Testing Manual: Method 24, Determination of Volatile Matter Content, Water Content, Density, Volume Solids, and Weight Solids of Surface Coatings, "Standards for Performance for New Stationary Sources; Addition of Reference Methods 24 and 25 to Appendix A," Federal Register, Part VII, Volume 45, Number 194, Pages 65956 - 65973, October 3, 1980, Washington, D.C.
- D. Effluent water. The following method shall be used to determine the volatile organic compound content of effluent water: Standard Methods for the Examination of Water and Wastewater, 14th Edition, "Organic Carbon (total), Combustion - Infrared Method", American Public Health Association, Washington, D.C., as specified in Chapter 46 of the Allegheny County Source Testing Manual, entitled "Determination of Volatile Organic Compound Content of Effluent H₂O."
- E. Control system effectiveness. The following methods shall be used to determine the effectiveness of vapor recovery systems and similar control equipment for volatile organic compound emissions: "Sampling and Testing Procedure for Gasoline Facilities", Allegheny County Source Testing Manual, Chapter 25.
- F. Tank trucks. The following method shall be used to determine the leak tightness of gasoline tank trucks and vapor recovery systems pursuant to § 505- 44D of this chapter: Pressure - Vacuum Test Procedures for Leak Tightness of Truck Tanks (Appendix A), "Control of Volatile Organic Compound Leaks from Gasoline Tank Trucks and Vapor Collection Systems", EPA - 450/2-78-051, U.S. Environmental Protection Agency, December, 1978, as specified in Chapter 56 of the Allegheny County Source Testing Manual, entitled "Determination of the Leak Tightness of Gasoline Tank Trucks and Vapor Recovery Systems."
- G. Tank trucks and vapor collection systems. The following method shall be used to determine the magnitude of leaks of volatile organic compounds from gasoline tank trucks and vapor collection systems and shall be used in the annual tests required of gasoline tank trucks: Gasoline vapor leak

detection procedure by combustible gas detector (Appendix B), "Control of Volatile Organic Compound Leaks from Gasoline Tank Trucks and Vapor Collection Systems", EPA - 450/2-78-051, U.S. Environmental Protection Agency, December, 1978, as specified in Chapter 57 of the Allegheny County Source Testing Manual, entitled "Determination of the Magnitude of Leaks of Volatile Organic Compounds from Gasoline Tank Trucks and Vapor Recovery Systems."

- H. Perchloroethylene dry-cleaning facilities. The following method shall be used to determine compliance with the requirements of § 505-44I of this chapter, relating to perchloroethylene dry-cleaning facilities: Appendix B, "Compliance Test Method and Leak Detection Equipment for Perchloroethylene Dry Cleaners", Measurement of Volatile Organic Compounds, U.S. Environmental Protection Agency, EPA - 450/2-78-041, Washington, D.C., as specified in Chapter 58 of the Allegheny County Source Testing Manual, entitled "Determination of Compliance of Perchloroethylene Dry Cleaning Facilities."
- I. Synthetic organic chemical and polymer manufacturing and petroleum refinery equipment. The following method shall be used to determine the magnitude of volatile organic compound leaks from synthetic organic chemical and polymer manufacturing and petroleum refinery equipment, as specified in Chapter 21 of the Allegheny County Source Testing Manual: Method 21 - Determination of Volatile Organic Compounds Leaks, 40 CFR Part 60, Appendix A, 48 FR 37600, August 18, 1983, Washington, D.C.
- J. Petroleum solvent dry-cleaning facilities.
 - (1) Any person who operates, or allows to be operated, any affected petroleum solvent dry cleaning dryer shall calculate the weight of VOC's vented from the dryer emission control device by using EPA Reference Test (40 CFR Part 60) Methods 1, 2, and 25A as specified in Chapters 1, 2, and 25 of the Allegheny County Source Testing Manual.
 - (2) Any person who operates, or allows to be operated, any affected petroleum solvent dry-cleaning facility demonstrating compliance, where employing a petroleum solvent filtration system but not employing cartridge filters, shall calculate, record, and report to the Department the weight of VOC's contained in each of at least five three-pound samples of filtration waste material taken at intervals of at least one week by employing ASTM Method D322-80 (Standard Test Method for Gasoline Diluent in used Gasoline Engine Oils by Distillation), as specified in Chapter 59 of the Allegheny County Source Testing Manual, entitled "Determination of Compliance of Petroleum Solvent Dry Cleaning Facilities Employing a Petroleum Solvent Filtration System But Not Employing Cartridge Filters."

§ 505-62. Nitrogen oxides.

The following method shall be used to determine nitrogen oxide emissions from stationary sources, as specified in Chapter 7 of the Allegheny County Source Testing Manual: Methods 7, 7A, 7C, 7D, and 7E - "Determination of Nitrogen Oxide Emissions from Stationary Sources", United States Environmental Protection Agency, 40 CFR 60, Appendix A.

§ 505-63. Incinerator temperatures.

Measurement of incinerator temperatures shall be performed as specified in Chapter 40 of the Allegheny County Source Testing Manual, entitled "Determination of Incineration Temperatures."

§ 505-64. Coke oven emissions.

Unless otherwise specified in the applicable regulation, measurements of emissions from coke ovens and coke oven batteries shall be performed as specified in Chapter 109 of the Allegheny County Source Testing Manual, entitled "Determination of Emissions from Coke Ovens." Measurements of water quality shall be performed according to procedures established or approved by the Commonwealth.

§ 505-65. Coke oven gas.

Measurements of the hydrogen sulfide concentration of coke oven gas shall be performed as specified in Chapter 44 of the Allegheny County Source Testing Manual, entitled "Determination of Hydrogen Sulfide from Coke Oven Gas."

§ 505-66. Hydrogen sulfide.

- A. Hydrogen sulfide. The following method shall be used to determine hydrogen sulfide emissions from stationary sources, as specified in Chapter 15 of the Allegheny County Source Testing Manual: Method 15 - "Determination of Hydrogen Sulfide, Carbonyl Sulfide, and Carbon Disulfide Emissions from Stationary Sources," United States Environmental Protection Agency, 40 CFR 60, Appendix A.

§ 505-67. Sulfur content of coke.

The following method shall be used to determine the sulfur content of coke, as specified in Chapter 49 of the Allegheny County Source Testing Manual: "Standard Test Method for Total Sulfur in the Analysis Sample of Coal and Coke," American Society for Testing Materials, D 3177, 1916 Race Street, Philadelphia, PA.

§ 505-68. Visible emissions. [Amended 2-6-2007 by Ord. No. 4-07⁸]

Measurements of visible emissions shall be performed in either of the following two ways:

- A. As specified in Chapter 9 of the Allegheny County Source Testing Manual, entitled "Visible Determination of the Opacity of Emissions from Stationary Sources"; or
- B. Using any continuous opacity monitoring system (COMS) required by regulation, permit, consent agreement, consent decree, or enforcement order.

§ 505-69. Waste-derived liquid fuel.

Sampling and analysis and equipment testing to determine compliance with the waste-derived liquid fuel burning regulations under this chapter shall be performed as specified in Chapter 52 of the Allegheny County Source Testing Manual.

§ 505-70. Odor emissions.

Measurements of odor emissions beyond source boundary lines shall be performed as specified in Chapter 48 of the Allegheny County Source Testing Manual, entitled "Measurement of Odor Emissions Beyond Source Boundary Lines".

8. Editor's Note: This amendment was initially adopted by the County Health Department 11-1-2006.

§ 505-71. Lead.

The following methods shall be used to determine the lead content of paint, as specified in the Allegheny County Source Testing Manual:

- A. Field Sampling of Coating Films for Laboratory Analysis of Toxic Metal Content (KTA/SET Method LD2), Steel Structures Painting Council Publ No. 94-18.
- B. ASTM E 1645, Practice for the Preparation of Dried Paint Samples for Subsequent Analysis by Atomic Spectrometry.
- C. ASTM D 3335, Standard Test Method for Low Concentrations of Lead, Cadmium, and Cobalt in Paint by Atomic Absorption Spectroscopy.
- D. EPA Method 6010, Inductively Coupled Plasma Atomic Emission Spectroscopy.
- E. ASTM E 1613, Standard Method for the Analysis of Digested Samples for Lead by Inductively Coupled Plasma Atomic Emission Spectroscopy (ICP-AES), Flame Atomic Absorption (FAAS), or Graphite Furnace.

§ 505-71.1. Control of VOC emissions from miscellaneous metal and/or plastic parts surface coating processes. [Added 5-22-2013 by Ord. No. 16-13]

- A. Applicability. Beginning January 1, 2014, this section applies to the owner or operator of a miscellaneous metal parts and/or plastic parts surface coating processes, where the total actual VOC emissions from all miscellaneous metal parts and/or plastic parts surface coating processes, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period, before controls. The provisions of this rule shall not apply to the following source categories listed for regulation under Section 183(e) of the Clean Air Act:
 - (1) Shipbuilding and repair coatings;
 - (2) Aerospace coatings;
 - (3) Wood furniture coatings;
 - (4) Metal furniture coatings;
 - (5) Large appliance coatings;
 - (6) Auto and light-duty truck assembly coatings;
 - (7) Flat wood paneling coatings;
 - (8) Miscellaneous industrial adhesives;
 - (9) Fiberglass boat manufacturing materials;
 - (10) Paper, film, and foil coatings; or
 - (11) Can coatings, coil coatings or magnet wire coatings which are not listed under Section 183(e) of the Act, but were addressed by § 505-44A.
- B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs

from a miscellaneous metal parts and/or plastic parts surface coating processes, unless one of the following limitations is met:

- (1) The VOC content of each applied coating is equal to or less than the standard specified in Table 2105.83.1.

- (a) The VOC content, minus exempt compounds, of the applied coating, expressed in units of weight of VOC per volume of total nonexempt material, shall be calculated as follows:

$$\text{VOC} = \frac{W_s - W_w - W_{ex}}{V_m - V_w - V_{ex}}$$

Where:

VOC = VOC content, minus exempt compounds, in pounds (g) VOC/gallons (l) of materials, minus exempt compounds

W_s = Weight of all volatile material in pounds (g), including VOC, water, non-precursor organic compounds and dissolved vapors

W_w = Weight of water in pounds (g)

W_{ex} = Weight of exempt solvent(s) in pounds (g)

V_m = Volume of total material, as applied in gallons (l)

V_w = Volume of water in gallons (l)

V_{ex} = Volume of exempt solvent(s) in gallons (l)

- (b) The VOC content limits of Subsection B(1)(a) may be met by averaging the VOC content of materials used on a single application unit for each day (i.e., daily within-application unit averaging).
- (c) Sampling and testing shall be done in accordance with the procedures and test methods specified in Part G (Methods).
- (2) The VOC content limitations based on low-VOC coatings as specified in Table 2105.83.2 of this section, the use of add-on pollution control equipment to meet the VOC content limitations, and the use of an application method specified in Subsection E of this section.
- (a) The VOC content, minus exempt compounds, of the applied coating, expressed in units of weight of VOC per volume of total material, shall be calculated as follows:

$$\text{VOC} = \frac{W_s - W_w - W_{ex}}{V_m}$$

Where:

VOC = VOC content, minus exempt compounds, in pounds (g) VOC/gallons (l) of materials

- Ws = Weight of all volatile material in pounds (g), including VOC, water, non-precursor organic compounds and dissolved vapors
- Ww = Weight of water in pounds (g)
- Wex = Weight of exempt solvent(s) in pounds (g)
- Vm = Volume of total material, as applied in gallons (l)

- (b) The VOC content limits of Subsection B(2)(a) may be met by averaging the VOC content of materials used on a single application unit for each day (i.e., daily within-application unit averaging).
- (c) Sampling and testing shall be done in accordance with the procedures and test methods specified in Part G (Methods).
- (3) The overall weight of VOC emitted to the atmosphere is reduced through the use of an oxidizer, adsorber, absorber, concentrator, or another add-on control which is acceptable under § 505-38 (Equivalent compliance techniques). The overall control system, as determined by the test methods and procedures specified in Part G, shall be no less than 90%.
- C. Records. A facility, regardless of the facility's annual emission rate, which contains miscellaneous metal parts and/or plastic parts surface coating processes, shall maintain records sufficient to demonstrate compliance with this section.
- (1) At a minimum, a facility shall maintain daily records of the following parameters for each coating and other component as supplied:
- (a) The coating, thinner or component name and identification number;
- (b) The volume used;
- (c) The mix ratio;
- (d) The density or specific gravity;
- (e) The weight percent of total volatiles, water, and exempt solvents;
- (f) The volume percent of total materials, water, and exempt solvents for either Table 2105.83.1 or Table 2105.83.2 for miscellaneous metal parts and/or plastic parts surface coating processes.
- (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No miscellaneous metal parts and/or plastic parts surface coating processes which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Application techniques. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from the application of miscellaneous metal parts and/or plastic parts surface coatings unless the coatings are applied using one or more of the following application methods:

- (1) Airless spraying;
- (2) Air-assisted airless spraying;
- (3) Electrostatic spraying;
- (4) High-volume low-pressure (HVLP) spraying;
- (5) Dip coating, including electrodeposition;
- (6) Flow coating;
- (7) Roll coating;
- (8) Autophoretic coating;
- (9) Zinc-arc spraying;
- (10) Other coating application method that the person demonstrates and the Department determines achieves emission reductions equivalent to HVLP spraying.

F. Exempt other.

- (1) The following shall be exempt from this regulation:
 - (a) Aerosol coatings;
 - (b) Architectural coatings;
 - (c) Automobile refinish coatings;
 - (d) The coating of bodies and/or body parts for new heavier vehicles where the owner or operator elects to comply with the requirements of § 505-71.2, Control of VOC emissions from automobile and light-duty truck assembly coatings.
- (2) The following metal parts coatings and coating operations shall be exempt from the limitations set by Subsection B, and Subsection E, Application techniques, but shall still comply with Subsection H, Housekeeping:
 - (a) Stencil coatings;
 - (b) Safety-indicating coatings;
 - (c) Solid-film lubricants;
 - (d) Electric-insulating and thermal-conducting coatings;
 - (e) Magnetic data storage disk coatings;
 - (f) Plastic extruded onto metal parts to form a coating.
- (3) The following plastic parts coatings and coating operations shall be exempt from the limitations set by Subsection B, but shall still comply with Subsection E, Application techniques and Subsection H, Housekeeping:
 - (a) Touch-up and repair coatings;

- (b) Stencil coatings applied on clear or transparent substrates;
 - (c) Clear or translucent coatings;
 - (d) Coatings applied at a paint manufacturing facility while conducting performance tests on the coating;
 - (e) Any individual coating category used in volumes less than 50 gallons in any one year, if substitute compliant coatings are not available, provided that the total usage of all such coatings does not exceed 200 gallons per year, per facility;
 - (f) Reflective coating applied to highway cones;
 - (g) Mask coatings that are less than 0.5 millimeter thick (dried) and the area coated is less than 25 square inches;
 - (h) Electromagnetic interference/radio frequency interference (EMI/RFI) shielding coatings;
 - (i) Heparin-benzalkonium chloride (HBAC)-containing coatings applied to medical devices, provided that the total usage of all such coatings does not exceed 100 gallons per year, per facility.
- (4) The following automotive/transportation and business machine plastic part coatings and coating operations shall be exempt from the limitations set by Subsection B, but shall still comply with Subsection E, Application techniques and Subsection H, Housekeeping:
- (a) Texture coatings;
 - (b) Vacuum metalizing coatings;
 - (c) Gloss reducers;
 - (d) Texture topcoats;
 - (e) Adhesive primers;
 - (f) Electrostatic preparation coatings;
 - (g) Resist coatings;
 - (h) Stencil coatings.
- (5) The application techniques in Subsection E of this section do not apply to the following:
- (a) For metal parts coatings; touch-up coatings, repair coatings, and textured finishes.
 - (b) For plastic parts coatings; airbrush operations using five gallons or less of coating per year.
 - (c) For pleasure craft surface coating operations; extreme high gloss coatings.
- G. Emission limitations. For those who elect to adopt the limitation from Subsection B(1), if more than one emission limitation in Table 2105.83.1 for miscellaneous metal parts and/or plastic parts applies to a specific coating, the least stringent emission limitation applies. For those who elect to adopt the limitation from Subsection B(2), if more than one emission limitation in Table 2105.83.2 for miscellaneous metal parts and/or plastic parts applies to a specific coating, the least stringent emission limitation applies.

- H. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of a miscellaneous metal parts and/or plastic parts surface coating processes:
- (1) Store all VOC-containing coatings, thinners, coating-related waste materials, cleaning materials and used shop towels in closed containers.
 - (2) Ensure that mixing and storage containers used for VOC-containing coatings, thinners, coating-related waste materials and cleaning materials are kept closed at all times except when depositing or removing these materials.
 - (3) Minimize spills of VOC-containing coatings, thinners, coating-related waste materials and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing coatings, thinners, coating-related waste materials and cleaning materials from one location to another in closed containers or pipes.
- I. Measurements. Measurements of the volatile fraction of coatings, other than reactive coatings, used at facilities operating miscellaneous metal parts and/or plastic parts surface coating processes shall be performed according to the applicable procedures established in § 505-61 of this chapter.

Table 2105.83.1
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings

Limits as Applied	Mass of VOC Per Volume of Coating (minus exempt compounds)			
	Air Dried		Baked	
Metal Parts and Products				
VOC Content Limits				
Coating Category	kg/l	lb/gal	kg/l	lb/gal
General one component	0.34	2.8	0.28	2.3
General multicomponent	0.34	2.8	0.28	2.3
Camouflage	0.42	3.5	0.42	3.5
Electric-insulating varnish	0.42	3.5	0.42	3.5
Etching filler	0.42	3.5	0.42	3.5
Extreme high gloss	0.42	3.5	0.36	3.0
Extreme performance	0.42	3.5	0.36	3.0
Heat resistant	0.42	3.5	0.36	3.0
High performance architectural	0.74	6.2	0.74	6.2
High temperature	0.42	3.5	0.42	3.5
Metallic	0.42	3.5	0.42	3.5
Military specification	0.34	2.8	0.28	2.3
Mold seal	0.42	3.5	0.42	3.5
Pan backing	0.42	3.5	0.42	3.5

Table 2105.83.1
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings

Limits as Applied	Mass of VOC Per Volume of Coating (minus exempt compounds)			
	Air Dried		Baked	
Metal Parts and Products				
VOC Content Limits				
Coating Category	kg/l	lb/gal	kg/l	lb/gal
Prefabricated architectural multicomponent	0.42	3.5	0.28	2.3
Prefabricated architectural one component	0.42	3.5	0.28	2.3
Pretreatment	0.42	3.5	0.42	3.5
Repair and touch-up	0.42	3.5	0.36	3.0
Silicone release	0.42	3.5	0.42	3.5
Solar absorbent	0.42	3.5	0.36	3.0
Vacuum metalizing	0.42	3.5	0.42	3.5
Drum coating, new, exterior	0.34	2.8	0.34	2.8
Drum coating, new, interior	0.42	3.5	0.42	3.5
Drum coating, reconditioned, exterior	0.42	3.5	0.42	3.5
Drum coating, reconditioned, interior	0.50	4.2	0.50	4.2
Plastic Parts and Products VOC Content Limits				
Coating Category	kg/l	lb/gal		
General one component	0.28	2.3		
General multicomponent	0.42	3.5		
Electric dissipating and shock free	0.80	6.7		
Extreme performance (two-pack coatings)	0.42	3.5		
Metallic	0.42	3.5		
Military specification (one-pack coatings)	0.34	2.8		
Military specification (two-pack coatings)	0.42	3.5		
Mold seal	0.76	6.3		
Multicolored coatings	0.68	5.7		
Optical coatings	0.80	6.7		

Table 2105.83.1
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings

Limits as Applied	Mass of VOC Per Volume of Coating (minus exempt compounds)			
	Air Dried		Baked	
Metal Parts and Products				
VOC Content Limits				
Coating Category	kg/l	lb/gal	kg/l	lb/gal
Vacuum metalizing	0.80	6.7		
Automotive Transportation and Business Machine Plastic Parts VOC Content Limits				
Coating Category	kg/l	lb/gal		
–Automotive Transportation Coatings ¹ –				
High bake - interior and exterior parts				
Flexible primer	0.54	4.5		
Nonflexible primer	0.42	3.5		
Basecoat	0.52	4.3		
Clearcoat	0.48	4.0		
Nonbasecoat/clearcoat	0.52	4.3		
Low bake/air dried - exterior parts				
Primer	0.58	4.8		
Basecoat	0.60	5.0		
Clearcoat	0.54	4.5		
Nonbasecoat/clearcoat	0.60	5.0		
Low bake/air dried - interior parts				
Touch-up and repair	0.62	5.2		
–Business Machine Coatings–				
Primers	0.35	2.9		
Topcoat	0.35	2.9		
Texture coat	0.35	2.9		
Fog coat	0.26	2.2		
Touch-up and repair	0.35	2.9		

Table 2105.83.1**Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings**

Limits as Applied	Mass of VOC Per Volume of Coating (minus exempt compounds)			
	Air Dried		Baked	
Metal Parts and Products				
VOC Content Limits				
Coating Category	kg/l	lb/gal	kg/l	lb/gal
Pleasure Craft Surface Coating VOC Content Limits				
Coating Category	kg/l	lb/gal		
Extreme high-gloss topcoat	0.49	4.1		
High-gloss topcoat	0.42	3.5		
Pretreatment wash primers	0.78	6.5		
Finish primer/surfacer	0.42	3.5		
High-build primer surfacer	0.34	2.8		
Aluminum substrate antifoulant	0.56	4.7		
Other substrate antifoulant	0.33	2.8		
All other pleasure craft surface coatings for metal or plastic	0.42	3.5		
Motor Vehicle Materials VOC Content Limits				
Coating Category	kg/l	lb/gal		
Motor vehicle cavity wax	0.65	5.4		
Motor vehicle sealer	0.65	5.4		
Motor vehicle deadener	0.65	5.4		
Motor vehicle gasket/gasket sealing material	0.20	1.7		
Motor vehicle underbody	0.65	5.4		
Motor vehicle truck interior	0.65	5.4		
Motor vehicle bedliner	0.20	1.7		
Motor vehicle lubricating wax/compound	0.70	5.8		

NOTES:

- ¹ For red, yellow, and black automotive coatings, except touch-up and repair coatings, the limit is determined by multiplying the appropriate limit in this section of the table by 1.15.

Table 2105.83.2
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings
with Applicable Add-on Controls

Limits as Applied		Mass of VOC Per Volume Solids		
Metal Parts and Products				
VOC Content Limits		Air Dried		Baked
Coating Category	kg/l	lb/gal	kg/l	lb/gal
General one component	0.54	4.52	0.40	3.35
General multicomponent	0.54	4.52	0.40	3.35
Camouflage	0.80	6.67	0.80	6.67
Electric-insulating varnish	0.80	6.67	0.80	6.67
Etching filler	0.80	6.67	0.80	6.67
Extreme high gloss	0.80	6.67	0.61	5.06
Extreme performance	0.80	6.67	0.61	5.06
Heat resistant	0.80	6.67	0.61	5.06
High performance architectural	4.56	38.0	4.56	38.0
High temperature	0.80	6.67	0.80	6.67
Metallic	0.80	6.67	0.80	6.67
Military specification	0.54	4.52	0.40	3.35
Mold seal	0.80	6.67	0.80	6.67
Pan backing	0.80	6.67	0.80	6.67
Prefabricated architectural multicomponent	0.80	6.67	0.40	3.35
Prefabricated architectural one component	0.80	6.67	0.40	3.35
Pretreatment	0.80	6.67	0.80	6.67
Silicone release	0.80	6.67	0.80	6.67
Solar absorbent	0.80	6.67	0.61	5.06
Vacuum metalizing	0.80	6.67	0.80	6.67
Drum Coating, new, exterior	0.54	4.52	0.54	4.52

Table 2105.83.2
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings
with Applicable Add-on Controls

Limits as Applied	Mass of VOC Per Volume Solids			
Metal Parts and Products				
VOC Content Limits	Air Dried		Baked	
Coating Category	kg/l	lb/gal	kg/l	lb/gal
Drum Coating, new, interior	0.80	6.67	0.80	6.67
Drum Coating, reconditioned, exterior	0.80	6.67	0.80	6.67
Drum Coating, reconditioned, interior	1.17	9.78	1.17	9.78
Plastic Parts and Products VOC Content Limits				
Coating Category	kg/l	lb/gal		
General one component	0.40	3.35		
General multicomponent	0.80	6.67		
Electric dissipating and shock free	8.96	74.7		
Extreme performance (two-pack coatings)	0.80	6.67		
Metallic	0.80	6.67		
Military specification (one-pack coatings)	0.54	4.52		
Military specification (two-pack coatings)	0.80	6.67		
Mold seal	5.24	43.7		
Multicolored coatings	3.04	25.3		
Optical coatings	8.96	74.7		
Vacuum metalizing	8.96	74.7		
Automotive Transportation and Business Machine Plastic Parts VOC Content Limits				
Coating Category	kg/l	lb/gal		
Automotive Transportation Coatings ¹				
High bake - interior and exterior parts				
Flexible primer	1.39	11.58		
Nonflexible primer	0.80	6.67		

Table 2105.83.2
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings
with Applicable Add-on Controls

Limits as Applied		Mass of VOC Per Volume Solids		
Metal Parts and Products				
VOC Content Limits		Air Dried		Baked
Coating Category		kg/l	lb/gal	kg/l lb/gal
Basecoat		1.24	10.34	
Clearcoat		1.05	8.76	
Nonbasecoat/ clearcoat		1.24	10.34	
Low bake/air dried - interior parts				
Primer		1.66	13.80	
Basecoat		1.87	15.59	
Clearcoat		1.39	11.58	
Nonbasecoat/ clearcoat		1.87	15.59	
Low bake/air dried - interior parts		1.87	15.59	
Touch-up and repair		2.13	17.72	
–Business Machine Coatings–				
Primers		0.57	4.80	
Topcoat		0.57	4.80	
Texture coat		0.57	4.80	
Fog coat		0.38	3.14	
Touch-up and repair		0.57	4.80	
Pleasure Craft Surface Coating VOC Content Limits				
Coating Category		kg/l	lb/gal	
Extreme high-gloss topcoat		1.10	9.2	
High-gloss topcoat		0.80	6.7	
Pretreatment wash primers		6.67	55.6	
Finish primer/surfacer		0.80	6.7	
High-build primer surfacer		0.55	4.6	
Aluminum substrate antifoulant		1.53	12.8	
Other substrate antifoulant		0.53	4.4	

Table 2105.83.2
Emission Limits of VOCs for Miscellaneous Metal and/or Plastic Surface Coatings
with Applicable Add-on Controls

Limits as Applied	Mass of VOC Per Volume Solids			
Metal Parts and Products				
VOC Content Limits	Air Dried		Baked	
Coating Category	kg/l	lb/gal	kg/l	lb/gal
All other pleasure craft surface coatings for metal or plastic	0.80	6.7		

NOTES:

- ¹ For red, yellow, and black automotive coatings, except touch-up and repair coatings, the limit is determined by multiplying the appropriate limit in this section of the table by 1.15

§ 505-71.2. Control of VOC emissions from automobile and light-duty truck assembly coatings.
[Added 5-22-2013 by Ord. No. 16-13]

- A. Applicability. Beginning January 1, 2014, this section applies to the owner or operator of an automobile and/or light-duty truck assembly coating operation, where the total actual VOC emissions from all automobile and/or light-duty truck assembly coating operations, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period, before controls.
- B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from an automobile and/or light-duty truck assembly coating operation, unless one of the following limitations is met:
- (1) The VOC content of each assembly coating process and applied material coating is equal to or less than the standard specified in Table 2105.84.
 - (a) The VOC content, minus exempt compounds, of the applied coating, expressed in units of weight of VOC per volume of total nonexempt material, shall be calculated as follows:

$$\text{VOC} = \frac{W_s - W_w - W_{es}}{V_m - W_w - W_{es}}$$

Where:

- VOC = VOC content, minus exempt compounds, in pounds (g)
 VOC/gallons (l) of materials, minus exempt compounds
- W_s = Weight of all volatile material in pounds (g), including
 VOC, water, non-precursor organic compounds and
 dissolved vapors
- W_w = Weight of water in pounds (g)

Wes = Weight of all non-precursor compounds in pounds (g)

Vm = Volume of total material, as applied in gallons(l)

Vw = Volume of water in gallons(l)

Ves = Volume of all non-precursor compounds in gallons (l)

- (2) The overall weight of VOC emitted to the atmosphere is reduced through the use of an oxidizer, adsorber, or another add-on control which is acceptable under § 505-38 (Equivalent compliance techniques). The overall control system, as determined by the test methods and procedures specified in Part G, shall be no less than 85%.
- C. Records. A facility, regardless of the facility's annual emission rate, which contains an automobile and/or light-duty truck assembly coating operation, shall maintain records sufficient to demonstrate compliance with this section.
- (1) At a minimum, a facility shall maintain daily records of the following parameters for each coating, thinner and other component as supplied:
 - (a) The coating, thinner or component name and identification number;
 - (b) The volume used;
 - (c) The mix ratio;
 - (d) The density or specific gravity;
 - (e) The weight percent of total volatiles, water, and exempt solvents;
 - (f) The volume percent of total solids, water, and exempt solvents for Table 2105.84 automobile and/or light-duty truck assembly coating operation.
 - (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No automobile and/or light-duty truck assembly coating operation which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of an automobile and/or light-duty truck assembly coating operation:
- (1) Store all VOC-containing coatings, thinners, coating-related waste materials, cleaning materials and used shop towels in closed containers.
 - (2) Ensure that mixing and storage containers used for VOC-containing coatings, thinners, coating-related waste materials, and cleaning materials are kept closed at all times except when depositing or removing those materials.
 - (3) Minimize spills of VOC-containing coatings, thinners, coating-related waste materials, and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing coatings, thinners, coating-related waste materials, and cleaning materials from one location to another in closed containers or pipes.

- (5) Minimize VOC emissions from cleaning of application, storage, mixing and conveying equipment by ensuring that equipment cleaning is performed without atomizing the cleaning solvent and all spent solvent is captured in closed containers.
 - (6) Develop and implement a work practice plan to minimize VOC emissions from cleaning and from purging of equipment associated with all coating operations for which emission limits are specified in this regulation. The plan shall specify practices and procedures to ensure that VOC emissions from the following operations are minimized:
 - (a) Vehicle body wiping;
 - (b) Coating line purging;
 - (c) Flushing of coating systems;
 - (d) Cleaning of spray booth grates;
 - (e) Cleaning of spray booth walls;
 - (f) Cleaning of spray booth equipment;
 - (g) Cleaning of external spray booth areas; and
 - (h) Other housekeeping measures.
- F. Measurements. Measurements of the volatile fraction of coatings, other than reactive coatings, used at automobile and/or light-duty truck assembly coating facilities shall be performed according to the applicable procedures established in § 505-61 of this chapter.

Table 2105.84

**VOC Emission Limits for Automobile and/or Light-Duty Truck Assembly Coatings
(pounds VOC per gallon or grams VOC per liter coating solids applied)**

Assembly Coating Process	VOC Emission Limit	
	lb/gal	g/l
Electrodeposition primer operation when solids turnover ratio (RT) ≥ 0.16 (including application area, spray/rinse stations, and curing oven)	0.7	84
Electrodeposition primer operation when $0.040 \leq (RT) < 0.16$ (including application area, spray/rinse stations, and curing oven)	$0.7 * 350^{0.160-RT}$	$84 * 350^{0.160-RT}$
Electrodeposition primer operation when $(RT) < 0.040$ (including application area, spray/rinse stations, and curing oven)	No VOC emission limit	
Primer-surfacer operations (including application area, flash-off area, and oven)	12.0	1,440

Table 2105.84**VOC Emission Limits for Automobile and/or Light-Duty Truck Assembly Coatings
(pounds VOC per gallon or grams VOC per liter coating solids applied)**

Assembly Coating Process	VOC Emission Limit	
	lb/gal	g/l
Topcoat operations (including application area, flash-off area, and oven)	12.0	1,440
Final repair operations	4.8	580
Combined primer-surfacer and topcoat operations	12.0	1,440

**VOC Emission Limits for Miscellaneous Materials Used at Automobile and/or Light-Duty Truck Assembly Coating Facilities
(pounds VOC per gallon or grams VOC per of liter coating excluding water and
exempt compounds, as applied)**

Material	VOC Emission Limit	
	lb/gal	g/l
Automobile and light-duty truck glass bonding primer	7.5	900
Automobile and light-duty truck adhesive	2.1	250
Automobile and light-duty truck cavity wax	5.4	650
Automobile and light-duty truck sealer	5.4	650
Automobile and light-duty truck deadener	5.4	650
Automobile and light-duty truck gasket/ gasket sealing material	1.7	200
Automobile and light-duty truck underbody coating	5.4	650
Automobile and light-duty truck trunk interior coating	5.4	650
Automobile and light-duty truck bedliner	1.7	200
Automobile and light-duty truck weatherstrip adhesive	6.3	750
Automobile and light-duty truck lubricating wax/compound	5.8	700

**§ 505-71.3. Control of VOC emissions from miscellaneous industrial adhesives. [Added 5-22-2013
by Ord. No. 16-13]**

- A. Applicability. Beginning January 1, 2014, this section applies to the owner or operator of a miscellaneous industrial adhesive application process, where the total actual VOC emissions from all

miscellaneous industrial adhesives, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period, before controls.

B. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from a miscellaneous industrial adhesive process, unless one of the following limitations is met:

(1) The VOC content of each applied adhesive is equal to or less than the standard specified in Table 2105.85.

(a) The VOC content, minus exempt compounds, of the applied adhesive, expressed in units of weight of VOC per volume of total nonexempt material, shall be calculated as follows:

$$\text{VOC} = \frac{W_s - W_w - W_{es}}{V_m - V_w - V_{es}}$$

Where:

VOC = VOC content, minus exempt compounds, in pounds (g) VOC/gallons (l) of materials, minus exempt compounds

W_s = Weight of all volatile material in pounds (g), including VOC, water, non-precursor organic compounds and dissolved vapors

W_w = Weight of water in pounds (g)

W_{es} = Weight of all non-precursor compounds in pounds (g)

V_m = Volume of total material, as applied in gallons (l)

V_w = Volume of water in gallons (l)

V_{es} = Volume of all non-precursor compounds in gallons (l)

(b) The VOC content limits of Subsection B(1)(a) may be met by averaging the VOC content of materials used on a single application unit for each day (i.e., daily within-application unit averaging).

(2) The overall weight of VOC emitted to the atmosphere is reduced through the use of an oxidizer, adsorber, absorber or another add-on control which is acceptable under § 505-38 (Equivalent compliance techniques). The overall control system, as determined by the test methods and procedures specified in Part G, shall be no less than 85%.

(3) A combination of the methods listed in Subsection B(1) and (2).

C. Records. A facility, regardless of the facility's annual emission rate, which contains miscellaneous industrial adhesive application processes, shall maintain records sufficient to demonstrate compliance with this section.

(1) At a minimum, a facility shall maintain daily records of the following parameters for each adhesive and other component as supplied:

(a) The name and identification number of each adhesive or component;

- (b) The volume used;
 - (c) The mix ratio;
 - (d) The density or specific gravity;
 - (e) The weight percent of total volatiles, water, and exempt solvents;
 - (f) The volume percent of total materials, water, and exempt solvents for Table 2105.85, miscellaneous industrial adhesives.
- (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.
- D. Exempt solvents. The solvents methyl chloroform (1,1,1-trichloroethane) and methylene chloride are exempt from control under this section. No miscellaneous industrial adhesive application process which seeks to comply with this section through the use of an exempt solvent may be included in any alternative standard approved pursuant to this chapter.
- E. Application techniques. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from the application of miscellaneous industrial adhesives unless the adhesives are applied using one or more of the following application methods:
 - (1) Electrostatic spraying;
 - (2) High-volume low-pressure (HVLP) spraying;
 - (3) Flow coating;
 - (4) Dip coating, including electrodeposition;
 - (5) Airless spraying;
 - (6) Air-assisted airless spraying;
 - (7) Roll coating or hand application, including non-spray application methods similar to hand or mechanically powered caulking gun, brush, or direct hand application;
 - (8) Other adhesive application method that the person demonstrates and the Department determines achieves emission reductions equivalent to HVLP spraying.
- F. Exempt other. The following shall be exempt from the limitations set by Subsection B, but shall still comply with the Subsection H, Housekeeping:
 - (1) Adhesives or adhesive primers being tested or evaluated in any research and development, quality assurance, or analytical laboratory.
 - (2) Adhesives or adhesive primers used in the assembly, repair, or manufacture of aerospace or undersea-based weapon systems.
 - (3) Adhesives or adhesive primers used in medical equipment manufacturing operations.
 - (4) Cyanoacrylate adhesive application processes.
 - (5) Aerosol adhesive and aerosol adhesive primer application processes.

- (6) Processes using polyester bonding putties to assemble fiberglass parts at fiberglass boat manufacturing facilities and at other reinforced plastic composite manufacturing facilities.
- (7) Processes using adhesives and adhesive primers that are supplied to the manufacturer in containers with a net volume of 16 ounces or less, or a net weight of one pound or less.
- G. Emission limitations. If an adhesive is used to bond dissimilar substrates together, then the applicable substrate category with the least stringent emission limitation applies.
- H. Housekeeping. The following work practices for cleaning materials apply to the owner or operator of a miscellaneous industrial adhesive application processes:
 - (1) Store all VOC-containing adhesives, adhesive primers, process-related waste materials, cleaning materials and used shop towels in closed containers.
 - (2) Ensure that mixing and storage containers used for VOC-containing adhesives, adhesive primers, process-related waste materials, and cleaning materials are kept closed at all times except when depositing or removing those materials.
 - (3) Minimize spills of VOC-containing adhesives, adhesive primers, process-related waste materials, and cleaning materials, cleaning up spills immediately.
 - (4) Convey VOC-containing adhesives, adhesive primers, process-related waste materials, and cleaning materials from one location to another in closed containers or pipes.
 - (5) Minimize VOC emissions from cleaning of application, storage, mixing and conveying equipment by ensuring that equipment cleaning is performed without atomizing the cleaning solvent and all spent solvent is captured in closed containers.
- I. Measurements. Measurements of the volatile fraction of adhesives, other than reactive adhesives, used at facilities operating miscellaneous industrial adhesive application processes shall be performed according to the applicable procedures established in § 505-61 of this chapter.

Table 2105.85
Emission Limits of VOCs for Miscellaneous Industrial Adhesives

Limits as Applied	VOC Content Minus Exempt Compounds	
General Adhesive Application Processes	lb/gal	g/l
Reinforced plastic composite	1.7	200
Flexible vinyl	2.1	250
Metal	0.3	30
Porous material (except wood)	1.0	120
Rubber	2.1	250
Wood	0.3	30
Other substrates	2.1	250
Specialty Adhesive Application Processes		
Ceramic tile installation	1.1	130

Table 2105.85
Emission Limits of VOCs for Miscellaneous Industrial Adhesives

Limits as Applied	VOC Content Minus Exempt Compounds	
Contact adhesive	2.1	250
Cove base installation	1.3	150
Floor covering installation (indoor)	1.3	150
Floor covering installation (outdoor)	2.1	250
Floor covering installation (perimeter bonded sheet vinyl)	5.5	660
Metal to urethane/rubber molding or casting	7.1	850
Motor vehicle adhesive	2.1	250
Motor vehicle weatherstrip adhesive	6.3	750
Multipurpose construction	1.7	200
Plastic solvent welding (ABS)	3.3	400
Plastic solvent welding (except ABS)	4.2	500
Sheet rubber lining installation	7.1	850
Single-ply roof membrane installation/repair (except EPDM)	2.1	250
Structural glazing	0.8	100
Thin metal laminating	6.5	780
Tire repair	0.8	100
Waterproof resorcinol glue	1.4	170
Adhesive Primer Application Processes		
Motor vehicle glass bonding primer	7.5	900
Plastic solvent welding adhesive primer	5.4	650
Single-ply roof membrane adhesive primer	2.1	250
Other adhesive primer	2.1	250

§ 505-71.4. Control of VOC emissions from fiberglass boat manufacturing materials. [Added 5-22-2013 by Ord. No. 16-13; amended 5-5-2015 by Ord. No. 14-15]

- A. Applicability. Beginning January 1, 2014, this section applies to the owner or operator of a fiberglass boat manufacturing facility, where the total actual VOC emissions from fiberglass boat manufacturing materials, including related cleaning activities, at that facility are equal to or greater than 15 pounds (6.8 kilograms) per day or 2.7 tons (2,455 kilograms) per twelve-month rolling period, before controls. This regulation applies to facilities that manufacture hulls or decks of boats from fiberglass, or build molds to make fiberglass boat hulls or decks. This regulation does not apply to

facilities that manufacture solely fiberglass parts of boats such as hatches, seats, lockers, or boat trailers.

- B. Exemptions. This regulation does not extend to surface coatings applied to fiberglass boats, and industrial adhesives used in the assembly of fiberglass boats. Surface coating for fiberglass and metal recreational boats, also called pleasure crafts, are addressed in § 505-71.1, Control of VOC emissions from miscellaneous metal and/or plastic parts surface coating processes. Industrial adhesives used in fiberglass boat assembly are addressed in § 505-71.3, Control of VOC emissions from miscellaneous industrial adhesives.
- C. Limitations. A person may not cause or permit the emission into the outdoor atmosphere of VOCs from fiberglass boat manufacturing materials unless one of the following limitations is met:
- (1) Fiberglass boat manufacturing facilities shall use resins and/or gel coats that are equal to or less than the applicable weighted average monomer VOC content limit specified in Table 2105.86 and the non-monomer VOC limit shall not exceed 5%, by weight, of resin and/or gel coat.
 - (a) The weighted average monomer VOC content shall be calculated as follows:

Table 2105.86

$$\text{Weighted Average Monomer VOC Content} = \frac{\sum(M_i * \text{VOC}_i)}{\sum(M_i)}$$

Where:

- M_i = Mass of open molding resin or gel coat i used in the past 12 months in an operation in pounds (kg).
- VOC_i = Monomer VOC content, by weight percent, of open molding resin or gel coat i used in the past 12 months in an operation.

- D. Records. A facility, regardless of the facility's annual emission rate, which uses fiberglass boat manufacturing materials, shall maintain records sufficient to demonstrate compliance with this section. At a minimum, a facility shall maintain daily records of:
- (1) The following parameters for each material either resin and/or gel as supplied:
 - (a) The name and identification number of each resin and/or gel;
 - (b) The volume used;
 - (c) The mass of materials used;
 - (d) The monomer VOC content, by weight percent, of resin or gel coat used;
 - (e) The non-monomer VOC content, by weight percent, of each resin or gel coat.
 - (2) The records shall be maintained for two years and shall be submitted to the Department on a schedule reasonably prescribed by the Department.

- E. Cleaning material standards. The VOC content of cleaning solvents employed for routine application equipment cleaning shall contain a maximum of 5% VOC, by weight, or have a composite partial vapor pressure of no more than 0.50 mm Hg at 68° F. Only non-VOC solvents shall be used to remove cured resin and gel coat from application equipment.
- F. Work practice standards. All resin and gel coat mixing containers with a capacity equal to or greater than 208 liters (55 gallons), including those used for on-site mixing of putties and polyputties, have a cover with no visible gaps in place at all times. This work practice standard does not apply when material is being manually added to or removed from a container, or when mixing or pumping equipment is being placed in or removed from a container.
- G. Measurements. Measurements of the volatile fraction of resin and gels, used at fiberglass boat manufacturing facilities shall be performed according to the applicable procedures established in § 505-61 of this chapter.

§ 505-72. Gasoline volatility and RFG.

- A. Volatility. Any sampling or testing of gasoline required by § 505-51A shall be performed according to the following methods as specified in Chapter 61 of the Allegheny County Source Testing Manual:
 - (1) Sampling of gasoline for the purpose of determining compliance with § 505-51A shall be conducted in accordance with 40 CFR Part 80, Appendix D (relating to sampling procedures for fuel volatility).
 - (2) Testing of gasoline for purposes of determining compliance with § 505-51A shall be conducted in accordance with 40 CFR Part 80, Appendix E (relating to test for determining the RVP of gasoline and gasoline-oxygenate blend).
- B. RFG. RFG shall be certified and tested in accordance with the requirements listed in 40 CFR Part 80, Subpart D (relating to reformulated gasoline) as specified in Chapter 61 of the Allegheny County Source Testing Manual.

§ 505-73. Ambient measurements.

The following methods shall be used to determine concentrations in the ambient air of the air contaminants listed below:

- A. Asbestos. The "aggressive sampling" procedures and the procedures for the measuring of fiber content of a known volume of air collected during a specific period of time in accordance with either, in the sole discretion of the Department:
 - (1) NIOSH Standard Analytical Method for Asbestos in Air - P&CAM 239;
 - (2) EPA Method 7400; or
 - (3) Transmission Electron Microscopy (TEM).
- B. Beryllium: "Air Pollution Measurements of the National Air Sampling Network: Analysis of Suspended Particulates in 1957 -1961," Public Health Service Pub. No. 978, Washington, D.C., 1962.
- C. Carbon monoxide: "Measurement Principle and Calibration Procedure for the Continuous Measurement of Carbon Monoxide in the Atmosphere (Non-Dispersive Infrared Spectrometry)," United States Environmental Protection Agency pursuant to "Ambient Air Monitoring Reference and

Equivalent Methods", 40 CFR 53.

- D. Fluorides: "Standard Method of Test for Inorganic Fluoride in the Atmosphere," ASTM Standards on Methods of Atmospheric Sampling and Analysis, Philadelphia, PA 1962, p.67.
- E. Hydrocarbons: "Reference Method for Determination of Hydrocarbons Corrected for Methane," United States Environmental Protection Agency, 40 CFR 50, Appendix E, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods", 40 CFR 53.
- F. Hydrogen sulfide: Jacobs, M.D., et al., "Ultramicrodetermination of Sulfides in the Air," Anal. Chem., 29:1349 (1957).
- G. Lead: "Reference Method for the Determination of Lead in Suspended Particulate Matter Collected from Ambient Air," United States Environmental Protection Agency, 40 CFR 50, Appendix G, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods", 40 CFR 53.
- H. Nitrogen oxides: "Measurement Principle and Calibration Procedure for the Measurement of Nitrogen Dioxide in the Atmosphere (Gas Phase Chemiluminescence)," United States Environmental Protection Agency, 40 CFR 50, Appendix F, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods", 40 CFR 53.
- I. Ozone: "Measurement Principle and Calibration Procedure for the Measurement of Ozone in the Atmosphere," United States Environmental Protection Agency, 40 CFR 50, Appendix D, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods", 40 CFR 53.
- J. PM-10: "Reference Method for the Determination of Particulate Matter as PM-10 in the Atmosphere," United States Environmental Protection Agency, 40 CFR 50, Appendix J, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods," 40 CFR 53.
- K. Settled particulates: "Recommended Standard Method for Continuing Dust Fall Survey (APM- 1 Revision 1)," TR-2 Air Pollution Measurements Committee, J. Air. Poll. Control Assoc., 16:372 (1966).
- L. Sulfates:
 - (1) Sampling method: "Air Pollution Measurements of the National Air Sampling Network: Analysis of Suspended Particulates 1957 - 1961," Public Health Service Pub. 978, Washington, D.C. 1962.
 - (2) Analytical method: Interbranch Chemical Advisory Committee, "Selected Methods for the Measurement of Air Pollutants," PHS Pub. No. 999-AP-11, Cincinnati, Ohio, 1965, p.I.I.
- M. Sulfur oxides: "Reference Method for the Determination of Suspended Particulates in the Atmosphere (Pararosaniline Method)," United States Environmental Protection Agency, 40 CFR 50, Appendix A, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Methods," 40 CFR 53.
- N. Suspended particulate matter: "Reference Method for the Determination of Suspended Particulates in the Atmosphere (High Volume Method)," United States Environmental Protection Agency, 40 CFR

50, Appendix B, or equivalent methods, if any, certified by the EPA pursuant to "Ambient Air Monitoring Reference and Equivalent Method," 40 CFR 53.

ARTICLE VIIA
Shale Drilling
[Added 12-17-2013 by Ord. No. 31-13]

§ 505-73.1. Notification system for unconventional wells.

- A. Applicability. This section applies to any natural gas drilling site characterized as an unconventional well, as defined in this chapter, which utilizes hydraulic fracturing.
- B. Unconventional well activity notification.
- (1) No person shall conduct, or allow to be conducted, the construction, installation, or operation of any unconventional well without first submitting to the Department written advance notice. Written notice, with the intended start date, shall be submitted prior to each of the following activities:
 - (a) Initial well site construction, including but not limited to the creation of roads, the construction of impoundment ponds, the building of structures, and the installation of drilling and production equipment.
 - (b) Drilling, where a well bore of any depth is drilled into, through, or below the surface of the earth.
 - (c) Hydraulic fracturing, as defined in this chapter.
 - (d) Flaring or venting during well completion, except in emergency situations where immediate flaring is necessary for the safety of the site.
 - (2) The Department shall be notified of the intended start date for any of the activities listed in Subsection B(1) no less than 24 hours prior. Should a change in date for any covered activity be necessary, the owner or operator shall notify ACHD of the revised date no less than 24 hours prior to the actual date.
- C. Reporting of breakdowns. In the event that any air pollution control equipment, process equipment, or other source of air contaminants breaks down in such manner as to have a substantial likelihood of causing the emission of air contaminants in violation of this chapter, or of causing the emission into the open air of potentially toxic or hazardous materials, the person responsible for such equipment or source shall immediately, but in no event later than two hours after the commencement of the breakdown, notify the Department of such breakdown. Oral reporting of such breakdown shall follow requirements in § 505-74C(2).
- D. Violations. Conducting any of the activities described in Subsection B(1) above without first submitting notification to the Department, as required, before the actual start date of the intended activity, or the failure to report breakdowns as required in Subsection C, shall be a violation of this chapter, giving rise to the remedies provided by § 505-79 of this chapter.

ARTICLE VIII
Reporting, Testing and Monitoring

§ 505-74. Reports required.

- A. Termination of operation. In the event that operation of any source of air contaminants is permanently terminated, the person responsible for such source shall so report, in writing, to the Department within 60 days of such termination.
- B. Shutdown of control equipment.
- (1) In the event any air pollution control equipment is shut down for reasons other than a breakdown, the person responsible for such equipment shall report, in writing, to the Department the intent to shut down such equipment at least 24 hours prior to the planned shutdown. Notwithstanding the submission of such report, the equipment shall not be shut down until the approval of the Department is obtained; provided, however, that no such report shall be required if the source(s) served by such air pollution control equipment is also shut down at all times that such equipment is shut down.
 - (2) The Department shall act on all requested shutdowns as promptly as possible. If the Department does not take action on such request within 10 calendar days of receipt of the notice required by this section, the request shall be deemed denied, and upon request, the owner or operator of the affected source shall have a right to appeal in accordance with the provisions of Article XI.
 - (3) The prior report required by this subsection shall include:
 - (a) Identification of the specific equipment to be shut down, its location and permit number (if permitted), together with an identification of the source(s) affected;
 - (b) The reasons for the shutdown;
 - (c) The expected length of time that the equipment will be out of service;
 - (d) Identification of the nature and quantity of emissions likely to occur during the shutdown;
 - (e) Measures, including extra labor and equipment, which will be taken to minimize the length of the shutdown, the amount of air contaminants emitted, or the ambient effects of the emissions;
 - (f) Measures which will be taken to shut down or curtail the affected source(s) or the reasons why it is impossible or impracticable to shut down or curtail the affected source(s) during the shutdown; and
 - (g) Such other information as may be required by the Department.
- C. Breakdowns.
- (1) In the event that any air pollution control equipment, process equipment, or other source of air contaminants breaks down in such manner as to have a substantial likelihood of causing the emission of air contaminants in violation of this chapter, or of causing the emission into the open air of potentially toxic or hazardous materials, the person responsible for such equipment or source shall immediately, but in no event later than 60 minutes after the commencement of the breakdown, notify the Department of such breakdown and shall, as expeditiously as possible but in no event later than seven days after the original notification, provide written notice to the

Department.

- (2) To the maximum extent possible, all oral and written notices required by this subsection shall include all pertinent facts, including:
 - (a) Identification of the specific equipment which has broken down, its location and permit number (if permitted), together with an identification of all related devices, equipment, and other sources which will be affected.
 - (b) The nature and probable cause of the breakdown.
 - (c) The expected length of time that the equipment will be inoperable or that the emissions will continue.
 - (d) Identification of the specific material(s) which are being, or are likely to be, emitted, together with a statement concerning its toxic qualities, including its qualities as an irritant, and its potential for causing illness, disability, or mortality.
 - (e) The estimated quantity of each material being, or likely to be, emitted.
 - (f) Measures, including extra labor and equipment, taken or to be taken to minimize the length of the breakdown, the amount of air contaminants emitted, or the ambient effects of the emissions, together with an implementation schedule.
 - (g) Measures being taken to shut down or curtail the affected source(s) or the reasons why it is impossible or impractical to shut down the source(s), or any part thereof, during the breakdown.
 - (3) Notices required by this subsection shall be updated, in writing, as needed to advise the Department of changes in the information contained therein. In addition, any changes concerning potentially toxic or hazardous emissions shall be reported immediately. All additional information requested by the Department shall be submitted as expeditiously as practicable.
 - (4) Unless otherwise directed by the Department, the Department shall be notified when the condition causing the breakdown is corrected or the equipment or other source is placed back in operation by no later than 9 a.m. on the next County business day. Within seven days thereafter, written notice shall be submitted pursuant to Subsection C(1) and (2) above.
 - (5) This subsection shall not apply to breakdowns of air pollution control equipment which occur during the initial startup of said equipment, provided that emissions resulting from the breakdown are of the same nature and quantity as the emissions occurring prior to startup of the air pollution control equipment.
 - (6) In no case shall the reporting of a breakdown prevent prosecution for any violation of this chapter.
- D. Cold start. In the event of a cold start on any fuel-burning or combustion equipment, except stationary internal combustion engines and combustion turbines used by utilities to meet peak load demands, the person responsible for such equipment shall report in writing to the Department the intent to perform such cold start at least 24 hours prior to the planned cold start. Such report shall identify the equipment and fuel(s) involved and shall include the expected time and duration of the startup. Upon written application from the person responsible for fuel-burning or combustion equipment which is

routinely used to meet peak load demands and which is shown by experience not to be excessively emissive during a cold start, the Department may waive the requirements of this Subsection and may instead require periodic reports listing all cold starts which occurred during the report period. The Department shall make such waiver in writing, specifying such terms and conditions as are appropriate to achieve the purposes of this chapter. Such waiver may be terminated by the Department at any time by written notice to the applicant.

E. Emissions inventory statements

- (1) The owner or operator of each source, or group of sources, on contiguous or adjacent property, in the County that: has the potential to emit a total of 10 or more tons of any hazardous air pollutant; has the potential to emit a total of 25 or more tons of the sum of all hazardous air pollutants; has the potential to emit a total of 25 or more tons of any other pollutant regulated under this article, except for greenhouse gases; has actual emissions of 10 tons or more per calendar year of any pollutant addressed in this Subsection E(1); or emits or has the potential to emit at or above 80% of the major source threshold, shall, unless exempted by Subsection E(2), submit to the Department an electronic emissions inventory statement, in accordance with Subsections E(3) and (4) of this section, showing the actual emissions of all air pollutants addressed in this Subsection E(1) from such source(s) during each calendar year and all supporting and identifying information deemed necessary by the Department. **[Amended 5-5-2015 by Ord. No. 15-15]**
- (2) The emissions statements required by Subsection E(1) of this subsection shall be in such form as the Department may prescribe and that is acceptable to the EPA. The emissions statement shall fully identify all emissions and include, at a minimum:
 - (a) A detailed description of how the annual emissions were measured, derived, or calculated;
 - (b) The nature and amounts of all emissions of regulated air pollutants emitted from each emissions unit and from all associated mobile sources, including all fugitive emissions in the same manner as stack emissions;
 - (c) A detailed identification and description of all points of emissions including the specific geographical location and elevation of each emissions point;
 - (d) Actual emissions rates in tons per year (tpy);
 - (e) Types and amounts of fuels used, types and amounts of raw materials used, production rates, and operating schedules to the extent it is needed to determine annual emissions and emissions on whatever basis (e.g., daily or hourly) is required to determine compliance;
 - (f) Other identifying information required by the Department, including information related to stack heights and all other emission characteristics, including all stack or emission point parameters such as size, exit velocity, flow rate, concentration, and temperature;
 - (g) Calculations on which the information in Subsection E(2)(a) through (f) of this subsection is based; and
 - (h) A certification by the owner or operator, or an authorized representative, that the information contained in the statement is accurate and complete. For any submittal on behalf of a corporate owner or operator, the authorized representative must be either the company president, a plant manager, or such other representative as is approved in advance by the Department.

- (3) The emission statements required by Subsection E(1) and (2) of this subsection shall be submitted to the Department by April 30, 1995, for calendar year 1994, and by March 15 of each subsequent year for the preceding calendar year. The Department may require more frequent submittals if the Department determines that more frequent submissions are required by the EPA or that analysis of the data on a more frequent basis is necessary to implement the requirements of this chapter or the Clean Air Act.
- F. Orders. In addition to meeting the requirements of Subsections A through E above, inclusive, the person responsible for any source shall, upon order by the Department, report to the Department such information as the Department may require in order to assess the actual and potential contribution of the source to air quality. The order shall specify a reasonable time in which to make such a report.
- G. Violations. The failure to submit any report or update thereof required by this section within the time specified, the knowing submission of false information, or the willful failure to submit a complete report shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter.

§ 505-75. Emissions testing.

- A. New and modified sources. No later than 60 days after achieving full production or 120 days after startup, whichever is earlier, the person responsible for any new, modified, reconstructed or reactivated source for which a permit is required by Article II of this chapter shall conduct, or cause to be conducted, such emissions tests as are specified by the Department to demonstrate compliance with all applicable requirements of this chapter and shall submit the results of such tests to the Department in writing. Upon written application setting forth all information necessary to evaluate the application, the Department may, for good cause shown, extend the time for conducting such tests beyond 120 days after startup, but shall not extend the time beyond 60 days after achieving full production. Additional tests shall be conducted at such intervals as are specified in any applicable permit condition, order, or as required by any other section of this chapter. Emissions testing conducted pursuant to this Subsection shall comply with all applicable requirements of Subsection E below.
- B. Existing sources. On or before December 31, 1981, and at two-year intervals thereafter, any person who operates, or allows to be operated, any piece of equipment or process which has an allowable emission rate, as defined in § 505-13 of this chapter, of 100 or more tons per year of particulate matter, sulfur oxides or volatile organic compounds shall conduct, or cause to be conducted, for such equipment or process such emissions tests as are necessary to demonstrate compliance with the applicable emission limitation(s) of this chapter and shall submit the results of such tests to the Department in writing. Emissions testing conducted pursuant to this subsection shall comply with all applicable requirements of Subsection E below.
- C. Orders. In addition to meeting the requirements of Subsections A and B above, the person responsible for any source shall, upon order by the Department, conduct, or cause to be conducted, such emissions tests as specified by the Department within such reasonable time as is specified by the Department. Test results shall be submitted in writing to the Department within 20 days after completion of the tests, unless a different period is specified in the Department's order. Emissions testing conducted pursuant to this subsection shall comply with all applicable requirements of Subsection E below.
- D. Tests by the Department. Notwithstanding any tests conducted pursuant to Subsection A through C above, inclusive, the Department or another entity designated by the Department may conduct emissions testing on any source or air pollution control equipment. At the request of the Department,

the person responsible for such source or equipment shall provide adequate sampling ports, safe sampling platforms and adequate utilities for the performance of such tests.

E. Testing requirements.

- (1) No later than 45 days prior to conducting any tests required by this section, the person responsible for the affected source shall submit for the Department's approval a written test protocol explaining the intended testing plan, including any deviations from standard testing procedures, the proposed operating conditions of the source during the test, calibration data for specific test equipment and a demonstration that the tests will be conducted under the direct supervision of persons qualified by training and experience satisfactory to the Department to conduct such tests. In addition, at least 30 days prior to conducting such tests, the person responsible shall notify the Department in writing of the time(s) and date(s) on which the tests will be conducted and shall allow Department personnel to observe such tests, record data, provide preweighed filters, analyze samples in a County laboratory and to take samples for independent analysis. Test results shall be comprehensively and accurately reported in the units of measurement specified by the applicable emission limitations of this chapter.
- (2) Test methods and procedures shall conform to the applicable reference method set forth in Article VII of this chapter, or where those methods are not applicable, to an alternative sampling and testing procedure approved by the Department consistent with the following:
 - (a) General. All tests shall be conducted while the source is operating at maximum routine operating conditions or under such other conditions as are specified by the Department. Test results shall include sufficient information to verify the conditions existing at the time of the test and the manner in which the test was conducted, including at a minimum:
 - [1] A thorough description of the source, any air pollution control equipment and the flue;
 - [2] Source operating conditions during the test, such as the charging rate of raw materials, production rate, combustion rate, boiler pressure, oven temperature, or any other conditions which may affect emissions;
 - [3] The location of the sampling ports;
 - [4] Emission characteristics, including velocity, temperature, moisture content, density, and gas composition (expressed as percent CO, CO₂, N₂ and the like) and static and barometric pressures at pertinent points in the system;
 - [5] Sample collection techniques used, including procedures, equipment descriptions, data to verify that isokinetic sampling techniques were used where applicable, and data to verify that test conditions are acceptable under this chapter;
 - [6] Laboratory procedures and results; and,
 - [7] Calculated results.
 - (b) Fugitive particulate matter. Test methods and procedures for fugitive particulate matter may include ambient test procedures approved by the Department which are in accordance with, or equivalent to, the test procedures set forth in Article VII of this chapter.
 - (c) Other air contaminants. Test methods and procedures for air contaminants other than those

for which a test method is specified in Article VII of this chapter shall be consistent with accepted air pollution testing practices and with obtaining accurate results which are representative of the conditions evaluated. Such methods and procedures shall be clearly described in the report of test results.

- F. Violations. The failure to perform tests as required by this section or an order of the Department issued pursuant to this section, the failure to submit test results within the time specified, the knowing submission of false information, the willful failure to submit complete results, or the refusal to allow the Department, upon presentation of a search warrant, to conduct tests, shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter.
- G. Except as specifically otherwise provided under this chapter, regulations promulgated by the Pa. Environmental Quality Board and Dept. of Environmental Protection (DEP) under the Pa. Air Pollution Control Act as set forth, or referenced, in 25 Pa. Code Chapter 139, Subchapters B and C, are hereby incorporated, by reference, as part of this chapter. Additions, revisions, and deletions to such regulations adopted by the DEP are incorporated into this chapter and are effective on the date established by the state regulations, unless otherwise established by regulation under this chapter.

§ 505-76. Continuous emissions monitoring.

- A. Fossil fuel-fired steam generators. The owner or operator of each fossil fuel-fired steam generator which has a rated capacity greater than 250 million BTU's per hour heat input and which has an annual average capacity factor of greater than 30% shall operate such continuous monitoring instruments as are required by 40 CFR Part 51, Appendix P, and shall comply with such maintenance, calibration, quality assurance and reporting requirements as are specified therein.
- B. Nitrogen compound emissions.
 - (1) This subsection applies to fuel-burning or combustion equipment with a rated heat input of 250 million BTU's per hour or greater and with an annual average capacity factor of greater than 30%.
 - (2) Sources subject to this subsection shall install, operate, and maintain continuous nitrogen oxides monitoring systems and other monitoring systems to convert data to required reporting units in compliance with 25 PA Code §§ 139.101 through 139.111 relating to requirements for continuous in-stack monitoring for stationary sources, as incorporated by reference under § 505-75 of this chapter.
 - (3) Sources subject to this subsection shall submit results on a regular schedule and in a format acceptable to the Department and in compliance with 25 PA Code §§ 139.101 through 139.111.
 - (4) Continuous nitrogen oxides monitoring systems installed under the requirements of this subsection shall meet the minimum data availability requirements in 25 Pa.Code Chapter 139, Subchapter C.
 - (5) The Department may exempt a source from the requirements of Subsection B(2) of this section if the Department determines that the installation of an alternative emission monitoring and reporting system, as proposed by the source and approved by the Department, will provide oxides emission data that is representative of actual emissions of the source, and such alternative system is properly installed and operating.
- C. Other sources. The Department may, by order or permit condition, require any source to install and

operate such continuous monitoring systems, including as appropriate continuous monitoring of process parameters, as it determines are appropriate to further the purposes of this chapter. Such order or permit condition shall specify a reasonable time for the installation of the required continuous emission monitoring systems.

- D. Reports. Unless otherwise provided under this section or § 505-75 above, the owner or operator of any source which is required to install and operate a continuous emission monitoring system by this section, or by an order or permit condition, shall retain the data collected by such system for a period of two years and shall, upon request, make such data available to the Department for inspection and copying. In addition, such person shall submit to the Department a written report of such data at three month intervals, or such other intervals as is specified by the Department in the applicable order or permit condition. Unless otherwise specified by the Department, such report shall include at a minimum:
- (1) An identification of each instance during the reporting period during which emissions exceeded the applicable emission limitations established by this chapter and an identification of the reasons, if known, for such exceedance. The averaging period, if any, used for making such identification shall correspond to the averaging period, if any, specified in the applicable emission limitation established by this chapter.
 - (2) For opacity measurements, the report shall list the magnitude in actual percent opacity as measured at fifteen-second intervals of all one-minute periods during which opacity equalled or exceeded 20% at any such fifteen-second interval. The report need not include information for periods during which opacity equals or exceeds 20% solely because of a cold start of fuel-burning or combustion equipment, if such cold start has been reported as required by § 505-74 of this chapter. In addition, the report shall list the magnitude in actual percent opacity of any measurement that equals or exceeds sixty-percent opacity.
 - (3) An identification of each period during which the continuous emission monitoring system was inoperative, except for zero and span drift checks, the reasons therefor, and the nature of repairs or adjustments performed or to be performed.
 - (4) An identification of calibrations, zero and span drift checks, and other quality assurance procedures.
- E. Approval by Department. No continuous emission monitoring system shall be considered to meet the requirements of this section and § 505-75 above unless such system has been approved by the Department in writing. At least 45 days prior to installing any such system, or at such other times as is specified in an applicable order or permit condition, the person responsible for the affected source shall make written application to the Department for the approval of such system, which application shall include a thorough description of the system, the location where such system will be installed, a program for periodic calibration, zero and span drift checks and other quality assurance procedures and all other information needed by the Department to evaluate such system. The Department shall make its evaluation in accordance with all relevant guidelines, including the performance specifications and other requirements of Appendix P of 40 CFR Part 51 and Appendix B of 40 CFR Part 60, including all modifications to such appendices as may hereafter be made by the EPA.
- F. Violations. The failure to install and operate any continuous emissions monitoring system required by this section or § 505-74 above, or by an order or permit condition, the failure to retain any data or submit any report so required, or the knowing retention or reporting of false data shall be a violation of this chapter giving rise to the remedies provided by § 505-74 of this chapter. **[Amended 2-6-2007]**

by Ord. No. 4-07⁹]

§ 505-77. Ambient monitoring.

- A. Whenever the Department determines, on the basis of any information available to it, that emissions from any source are significantly contributing to the degradation of air quality or to an exceedance of any ambient air quality standard established by § 505-8 of this chapter, or that such emissions may reasonably be anticipated to have an adverse impact upon the public health, safety or welfare, it may, by order or permit condition, require the owner or operator of such source to install and operate such ambient monitoring equipment as is needed to evaluate the impact of such source upon air quality. Such order or permit condition shall:
- (1) Specify the equipment to be installed;
 - (2) Specify the location at which such equipment is to be installed, or in the alternative, require the owner or operator to determine the locations pursuant to criteria specified in the order;
 - (3) Specify a reasonable time for such installation;
 - (4) Specify reporting and data retention requirements;
 - (5) Include such other requirements as appropriate.
- B. It shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter for any person to violate any requirement of an order or permit condition issued pursuant to this section or to knowingly retain or report false data.

9. Editor's Note: This amendment was initially adopted by the County Health Department 11-1-2006.

ARTICLE IX
Enforcement

§ 505-78. Inspections.

- A. General. The Department may enter any premise, except a building used exclusively as a private residence, for the purpose of inspecting any source of air contaminants and associated equipment, and all records, charts, instruments and the like associated therewith or for the purpose of determining compliance with any provision of this chapter. As expeditiously as is reasonable, the person responsible for such source shall, upon request, make all records, charts, and the like pertaining to such source available to the Department for inspection and copying.
- B. Manner of entry. Prior to entering any premise, the Department shall make all reasonable efforts to obtain the consent of the owner or operator or his authorized representative, and shall enter at such time and in such manner as is reasonable under the circumstances.
- C. Search warrant.
 - (1) In accordance with § 13.1 of the Air Pollution Control Act, whenever an agent or employee of the Department, charged with the enforcement of the provisions of this chapter, has been refused access to property, except a building used exclusively as a private residence, or has been refused the right to examine any air contaminant source or air pollution control equipment or device, or is refused access to or examination of books, papers, and records pertinent to any matter under investigation, or has cause to believe he will be refused such entry or access, such agent or employee may apply for a search warrant to any Commonwealth official authorized by the laws of the Commonwealth to issue the same to enable him to have access, examine, and seize such property, air contaminant source, air pollution control equipment or device, or books, papers, and records, as the case may be. It shall be sufficient probable cause to issue a search warrant that the inspection is necessary to properly enforce the provisions of this chapter.
 - (2) This Subsection shall not be construed as restricting or affecting any and all rights otherwise existing which the Department may have to obtain search warrants upon probable cause to believe that any source is being installed, operated, or maintained in violation of any provision of this chapter.
- D. The owner or operator of every coke plant within Allegheny County shall reimburse the Allegheny County Health Department for the cost of performing inspections pursuant to the coke oven NESHAP requirements of 40 CFR 63, Subpart L. The amount of reimbursement shall be determined annually by the Board of Health in accordance with 40 CFR 63.309, and include an appropriate administrative fee. Payment shall be made for each calendar quarter, within 30 days of invoice. Late payment of fees is subject to the provisions of § 505-84 of this chapter.

§ 505-79. Remedies.

- A. General. In addition to any remedy specifically authorized by any other provision of this chapter or the laws of the commonwealth or the United States, the Department may pursue any one or more of the following remedies for the violation of any requirement of this chapter:
 - (1) The issuance of an enforcement order as authorized by §§ 505-80, 505-81 and 505-82 of this chapter, including emergency orders to restrain or enjoin immediately and effectively any person from engaging in any activity in violation of a regulation or permit that is presenting an imminent and substantial endangerment to the public health or welfare, or the environment;

- (2) The revocation of any applicable license or installation or operating permit.
 - (3) The initiation of a summary criminal proceeding before a district justice, magistrate, or justice of the peace as authorized by §§ 9 and 12g of the Air Pollution Control Act, 35 P.S. §§ 4009 and 4012(g).
 - (4) The assessment of a civil penalty as authorized by § 505-83 of this chapter;
 - (5) A request, from the Department or the Board of Health, to the County Executive to initiate in a court of competent jurisdiction an action for an injunction or other equitable relief and may include a request for civil penalties in the amount set forth in § 505-83 of this chapter, including to restrain or enjoin immediately and effectively any person from engaging in any activity in violation of a permit that is presenting an imminent and substantial endangerment to the public health or welfare, or the environment; **[Amended 8-27-2013 by Ord. No. 20-13]**
 - (6) A petition, from the Department or the Board of Health, to the County Executive to request the District Attorney to initiate such other criminal action as may be appropriate, as authorized by §§ 9 and 12g of the Air Pollution Control Act, 35 P.S. §§ 4009 and 4012(g); and/or **[Amended 8-27-2013 by Ord. No. 20-13]**
 - (7) A petition, from the Department or the Board of Health, to the County Executive to request the EPA and U.S. Department of Justice, and/or the DEP and PA Attorney General, to initiate such other civil and/or criminal action as may be appropriate. **[Amended 8-27-2013 by Ord. No. 20-13]**
- B. Other rights and remedies preserved. Nothing in this chapter shall be construed as impairing any right or remedy now existing or hereafter created inequity, common law or statutory law with respect to air pollution, nor shall any court be deprived of such jurisdiction for the reason that such air pollution constitutes a violation of this chapter.
- C. Remedies concurrent. It is expressly declared that the remedies authorized by this chapter shall be concurrent and that the existence of pendency of any remedy shall not in any manner prevent the Department from seeking or exercising any other remedy, whether authorized by this chapter or otherwise existing at law or in equity.

§ 505-80. Enforcement orders.

- A. General. Whenever the Department finds, on the basis of any information available to it, that any source is being operated in violation of any provision of this chapter, including any provision of any permit or license issued pursuant to this chapter, it may order the person responsible for the source to comply with this chapter or it may order the immediate shutdown of the source or any part thereof. The issuance of an order to address any violations, including of permit conditions, need not be preceded by the revocation of a permit.
- (1) The Department may also issue any such other orders as are necessary to aid in the enforcement of the provisions of this chapter. These orders shall include, but shall not be limited to, orders modifying, suspending, terminating or revoking any permits, orders requiring persons to cease unlawful activities or cease operation of a facility or air contaminant source which, in the course of its operation, is in violation of any provision of this chapter, or any permit, orders to take corrective action or to abate a public nuisance or to allow access to a source by the Department or a third party to take such action, orders requiring the testing, sampling, or monitoring of any air contaminant source, and orders requiring production of information. Such an order may be

issued if the Department finds that any condition existing in or on the facility or source involved is causing, contributing to, or creating danger of air pollution, or if it finds that the permittee or any person is in violation of any provision of this chapter.

- (2) The Department may, in its order, require compliance with such conditions as are necessary to prevent or abate air pollution or effect the purposes of this chapter.
- (3) The Department shall have the authority to order any person causing a public nuisance under this chapter to abate the public nuisance. In addition, when the Department undertakes to abate a public nuisance, it may recover the expenses of abatement following the process for assessment and collection of a civil penalty contained in § 505-83 of this chapter. Whenever the nuisance is maintained or continued contrary to this chapter, or any order or permit, the nuisance may be abatable in the manner provided by this chapter. Any person who causes the public nuisance shall be liable for the cost of abatement.

B. Form. Any enforcement order issued pursuant to this section shall:

- (1) Be in written form and be signed by the Director, the Deputy Director of the Bureau of Environmental Quality, or the Manager of the Air Quality Program, or their respective designee.
[Amended 8-27-2013 by Ord. No. 20-13]
- (2) Set forth the basis for such order;
- (3) Require the performance of any acts specified by the order as expeditiously as practicable;
- (4) Notify the person responsible that he has the right to a hearing as provided by Subsection D below;
- (5) Notify the person responsible that the order is enforceable upon issuance and that appeal of an order shall not act as a stay unless the Director so orders.
- (6) Notify the person responsible that failure to comply with the order within the times specified therein is a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter; and
- (7) Include the assessment of a civil penalty in accordance with § 505-83 of this chapter, if deemed appropriate by the Department.

C. Service. Any enforcement order issued pursuant to this section shall be served upon the person responsible by:

- (1) Personally handing him a copy;
- (2) Serving him in the manner provided by Rule 1009(b)(2) of the Pennsylvania Rules of Civil Procedure or such other rules as may hereafter be established for the service of a complaint in a civil action; or
- (3) Mailing a copy to him at his last known address by registered or certified mail, return receipt requested.

D. Hearings. Any person who is aggrieved by an enforcement order issued pursuant to this section shall, upon request, be granted a hearing in accordance with the provisions of Article XI, Rules and Regulations of the Allegheny County Health Department, or in accordance with such other procedures as may hereafter be established by the Board of County Commissioners. In all cases

involving the provisions of this chapter, hearings granted pursuant to this subsection:

- (1) Shall not be held before employees of the Department who are assigned to the Bureau of Environmental Quality Division of Air Quality; and
 - (2) Shall be held before a hearing officer who represents the public interest and does not derive any significant portion of his income from persons subject to the Clean Air Act or this chapter, as defined in § 505-13 of this chapter; except that, if a panel of three or more persons is appointed to hear the case, a majority of the panel shall represent the public interest and shall not derive any significant portion of his income from persons subject to the Clean Air Act or this chapter. Prior to being appointed to act as a hearing officer; each proposed appointee shall file with the Chief Clerk of the County of Allegheny a disclosure statement as required by Subsection F of § 505-83 of this chapter. Said disclosure statement shall be subject to the public inspection provisions of this chapter.
- E. Violations. Failure to comply with any enforcement order within the times specified therein shall be a violation of this chapter and a public nuisance giving rise to the remedies and penalties provided by §§ 505-79 and 505-83 of this chapter. In addition to such remedies and penalties, the Department may immediately revoke such order and may pursue any other remedy as if such order has never existed.
- F. Other remedies unaffected. The issuance of an enforcement order shall in no manner preclude or affect the right of the Department to pursue other remedies as are provided by § 505-79 for violations of this chapter, whether occurring before or after the effective date of the order. The issuance of an enforcement order shall not be construed as a revision to the SIP for the Commonwealth of Pennsylvania and shall in no manner preclude or affect the right of the United States, the commonwealth, or any citizen to enforce that portion of the SIP applicable to Allegheny County pursuant to the provisions of the Clean Air Act and the Air Pollution Control Act.

§ 505-81. Orders establishing an additional or more restrictive standard.

- A. General. Whenever the Department finds, on the basis of any information available to it, that emissions from any source are causing or significantly contributing to the exceedance of any ambient air quality standard established by § 505-8 of this chapter at any location within the Commonwealth, that such emissions violate the requirements of § 505-10 of this chapter relating to interstate pollution, or that such emissions may otherwise reasonably be anticipated to endanger the public health, safety or welfare, it may order the person responsible for such source to comply with an additional or more stringent emission limitation than established by this chapter or it may order the immediate shutdown of the source or any part thereof.
- B. Form, service and hearings. Any order issued pursuant to this section shall be in the form, and shall be served, as provided by § 505-80 of this chapter. Upon request, any person who is aggrieved by an order issued pursuant to this section shall be granted a hearing as provided by § 505-80 of this chapter.
- C. Emergency power unaffected. The issuance of an order pursuant to this section shall in no manner preclude or affect the power of the Department to issue an emergency order under § 505-82 of this chapter.
- D. Violations. Failure to comply with any order issued pursuant to this section within the time specified therein shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter. In addition to such remedies, the Department may immediately revoke such order and may pursue any other remedy as if such order had never existed.

§ 505-82. Emergency orders.

- A. General. Whenever the Department determines, on the basis of any information available to it, that an emergency exists that necessitates immediate action to protect the public health, safety or welfare, it may, without prior notice, issue an emergency order requiring whatsoever action it deems advisable to meet the emergency. Notwithstanding any other provision of this chapter, an emergency order shall be effective at once and shall be complied with immediately.
- B. Form and service. Insofar as possible in light of the necessity for immediate action, an emergency order shall be in the form, and shall be served, as provided by § 505-80 of this chapter.
- C. Hearings. Upon request, any person who is aggrieved by an emergency order shall be granted a hearing as provided by § 505-80 of this chapter; provided, however, that an emergency order shall continue in full force and effect notwithstanding the pendency of any such appeal.
- D. Violations. Failure to immediately comply with an emergency order shall be a violation of this chapter giving rise to the remedies provided by § 505-79 of this chapter.

§ 505-83. Civil proceedings.

- A. General.
 - (1) In addition to proceeding under any other remedy available at law or in equity for a violation of a provision of this chapter, or any order or permit issued pursuant to this chapter, and in accordance with §§ 9.1 and 12g of the Air Pollution Control Act, the Department may assess a civil penalty for the violation. The penalty may be assessed whether or not the violation was wilful. The civil penalty so assessed shall not exceed \$15,000 per day for each violation which occurs on or after the effective date of this chapter but not later than July 9, 1996, and \$25,000 per day for each violation which occurs after July 9, 1996.
 - (2) In accordance with §§ 9.1 and 12g of the Air Pollution Control Act, when the Department proposes to assess a civil penalty, it shall inform the person of the proposed amount of the penalty. The person charged with the penalty shall then have 30 days to pay the proposed penalty in full, or if the person wishes to contest the amount of the penalty or the fact of the violation to the extent not already established, the person shall forward the proposed amount of the penalty to the Department within the thirty-day period for placement in an escrow account with the County treasurer or any Commonwealth bank or post an appeal bond to the Department within 30 days in the amount of the proposed penalty, provided that such bond is executed by a surety licensed to do business in the Commonwealth and is satisfactory to the Department.
 - (3) If, through administrative or final judicial review of the proposed penalty, it is determined that no violation occurred or that the amount of the penalty shall be reduced, the Department shall, within 30 days, in accordance with §§ 9.1 and 12g of the Air Pollution Control Act, remit the appropriate amount to the person with any interest accumulated by the escrow deposit. Failure to forward the money or the appeal bond at the time of the appeal shall result in a waiver of all legal rights to contest the violation or the amount of the civil penalty unless the appellant alleged financial inability to prepay the penalty or to post the appeal bond. If alleged, the Department shall conduct a hearing to consider the appellant's alleged inability to pay within 30 days of the date of the appeal. The Department may waive the requirement to prepay the civil penalty or to post an appeal bond if the appellant demonstrates and the Department finds that the appellant is financially unable to pay. The Department shall issue an order within 30 days of the date of the hearing to consider the appellant's alleged inability to pay.

- (4) The amount assessed after administrative hearing or after waiver of administrative hearing shall be payable to the County and shall be collectible in any manner provided by law for the collection of debts, including the collection of interest on the penalty amount computed in accordance with § 6621(a)(2) of the U.S. Internal Revenue Code of 1986 (P.L. 99-514, 26 USC § 1 et seq.), which shall run from the date of assessment of the penalty.
 - (a) If any person liable to pay any such penalty neglects or refuses to pay the same after demand, the amount, together with interest and any costs that may accrue, shall constitute a debt of such person, as maybe appropriate, to the County. The debt shall constitute a lien on all property owned by said person when a notice of lien incorporating a description of the property of the person subject to the action is duly filed with the Prothonotary of the Court of Common Pleas for the county where the property is located. In accordance with §§ 9.1 and 12g of the Air Pollution Control Act, the prothonotary shall promptly enter upon the civil judgment or order docket, at no cost to the Department, the name and address of the person, as may be appropriate, and the amount of the lien as set forth in the notice of lien.
 - (b) Upon entry by the prothonotary, the lien shall attach to the revenues and all real and personal property of the person, whether or not the person is solvent. The notice of lien, filed pursuant to this subsection, which affects the property of the person shall create a lien with priority over all subsequent claims or liens which are filed against the person, but it shall not affect any valid lien, right, or interest in the property filed in accordance with established procedures prior to the filing of a notice of lien under this subsection.
- (5) Hearings. Any person who is aggrieved by a civil penalty assessed pursuant to this section shall, upon request, be granted a hearing in accordance with the provisions of Article XI, Rules and Regulations of the Allegheny County Health Department, or in accordance with such other procedures as may hereafter be established by the Board of County Commissioners.

B. Penalty determination.

- (1) In determining the amount of the penalty, the Department shall consider: the wilfulness of the violation; the actual and potential harm to the public health, safety, and welfare; the damage to the air, soil, water, and other natural resources of the County and their uses; the economic benefit gained by such person by failing to comply with this chapter; the deterrence of future violations; the costs of the Department; the size of the source or facility; the compliance history of the source; the nature, frequency, severity, and duration of the violation; the degree of cooperation in resolving the violation; the speed with which compliance is ultimately achieved; whether or not the violation was voluntarily reported; other factors unique to the owners, operators, or other responsible parties of the source or facility; and other relevant factors.
- (2) In determining the economic benefit gained by such person, the Department may use the formulas contained in the current Civil Penalty Policy published by the EPA, and/or the regulations promulgated by EPA pursuant to Section 120 of the Clean Air Act, as appropriate.

C. Board costs. Whenever the Department upholds, under Article XI, a penalty assessed, or an order or permit issued, under this chapter, the Department shall also assess the owner, operator, and other responsible parties of the subject source the board costs for such hearing which shall be in the amount of \$50 plus the actual costs incurred by the County for the transcribing and copying of the record of the hearing.

§ 505-84. Penalties, fines and interest.

- A. Fees. A source that fails to pay any fee required under this chapter when due shall pay a civil penalty of 50% of the fee amount, plus interest on the fee amount computed in accordance with § 505-83A(4) of this chapter from the date the fee was required to be paid. In addition, the source may have its permit revoked.
- B. Disposition of monies collected.
 - (1) All interest received by the County under this chapter as a result of emissions fees under § 505-28B(1)(a) of this chapter shall be paid into the Allegheny County Air Quality Fund for the major operating permit program.
 - (2) All interest received by the County under this chapter as a result of fees, other than the emissions fees under § 505-28B(1)(a) of this chapter, shall be paid into the Allegheny County Air Pollution Control Fund.
 - (3) All penalties, fines, interest, and other funds received by the County under this chapter as a result of consent orders, noncompliance penalties, civil penalty actions, consent decrees, civil penalties, or summary proceedings, other than such funds provided for under Subsection B(1) above, shall be paid into the Allegheny County Clean Air Fund.

§ 505-85. Air Pollution Control Fund and Air Quality Fund.

- A. Purpose. The purpose of the "Allegheny County Air Pollution Control Fund", a restricted fund established by the Allegheny County Board of Commissioners for the Health Department on August 27, 1992, as of the effective date of this chapter, is to receive and disburse all air pollution control fees, related interest, and all other related funds, including but not limited to related administrative charges and reimbursements for costs, in accordance with the Air Pollution Control Act Amendments of 1992, but not funds payable to the Allegheny County Air Quality Fund established under Subsection E below.
- B. Disposition of monies collected. All funds received by the County under this chapter as a result of fees, related interest, and all other related funds, including but not limited to related administrative charges and reimbursements for costs, shall be paid into the special fund known as the Allegheny County Air Pollution Control Fund.
 - (1) The funds under this section shall be administered in accordance with the provisions of the Second Class County Code and other applicable laws. The County Treasurer shall invest monies deposited in the funds in such manner as not to impair the liquidity of the funds and shall credit all interest accruing on such monies to the respective funds.
 - (2) The Department shall report on the status of the funds to the Board of Health on an annual basis, or at such other intervals as the Board may require.
 - (3) Audits of the funds shall be performed as required by law.
- C. Disbursements. Disbursements of monies from the Allegheny County Air Pollution Control Fund shall be utilized solely to cover all reasonable (direct and indirect) costs incurred by the County and required to develop and administer the County's air pollution control program other than those portions of the program required by Title V of the Clean Air Act. No air pollution source, which is subject to the provisions of this chapter shall receive monies from the funds under this section, or services, equipment, or materials purchased with such monies, to fulfill its obligations under this

chapter, except for Department facilities supporting the air quality program. **[Amended 7-7-2009 by Ord. No. 30-09]**

- D. At no time for any purpose shall monies be disbursed or borrowed from the Allegheny County Air Pollution Control Fund, or otherwise distributed or encumbered, except as specifically allowed under this section.
- E. There is hereby established the "Allegheny County Air Quality Fund" for the major operating permit program which is specifically for the deposit of all emission fees, and related interest, and only such fees and interest, required to be collected by the County by Title V of the Clean Air Act, and the disbursement of such funds, and only such funds, solely to cover all of the costs of the County's air pollution control program required by Title V of the Clean Air Act. All funds received by the County under this chapter as a result of major source emissions fees, and related interest, and only such funds, shall be paid into the Allegheny County Air Quality Fund for the major operating permit program. Disbursements of monies from the Air Quality Fund for the major operating permit program shall be utilized solely to cover any and all reasonable (direct and indirect) costs required to develop and administer the County's air pollution control program required by Title V of the Clean Air Act, whether such costs are incurred by the County or other state or local agencies that do not issue permits directly but that support permit issuance or administration. At no time for any purpose shall monies be disbursed or borrowed from the Air Quality Fund for the major operating permit program, or otherwise distributed or encumbered, except as specifically allowed under this section.

§ 505-86. Clean Air Fund.

- A. Purpose. The purpose of the "Allegheny County Clean Air Fund" is to receive and disburse all penalties, fines, and interest received by the County under this chapter as a result of applications, permits, licenses, consent orders, noncompliance penalties, civil penalty actions, consent decrees, civil penalties, or summary proceedings, other than any fees, related interest, and other related funds. The Clean Air Fund is specifically for the disbursement of such funds solely to support activities related to the improvement of air quality within Allegheny County and to support activities which will increase or improve knowledge concerning air pollution, its causes, its effects, and the control thereof.
- B. Disposition of monies collected. All funds, other than fees, related interest, and other related funds received by the County under this chapter shall be paid into the special fund known as the Allegheny County Clean Air Fund.
 - (1) This fund shall be administered in accordance with the provisions of the Second Class County Code and other applicable laws. The County Treasurer shall invest monies deposited in the Fund in such manner as not to impair the liquidity of the fund and shall credit all interest accruing on such monies to the Fund.
 - (2) The Department shall report on the status of the fund to the Board of Health on an annual basis, or at such other intervals as the Board may require.
 - (3) Audits of the fund shall be performed as required by law.
- C. Disbursements. **[Amended 7-7-2009 by Ord. No. 30-09]**
 - (1) Disbursements of monies from the Allegheny County Clean Air Fund shall be utilized solely to support the purposes set forth under Subsection A above. Funds may therefore be disbursed for such purposes as, but not limited to:

- (a) The support of research and development of control technologies;
 - (b) Health effects studies and surveys concerning air pollution;
 - (c) Special purpose monitoring, as defined by the EPA;
 - (d) Public education concerning air pollution;
 - (e) The acquisition of consulting or other services from persons with special experience and/or expertise;
 - (f) The purchase of equipment, materials, or services to supplement the County's air pollution control program; or
 - (g) Any other project that is consistent with the purpose of this section and the mission of the Board of Health.
- (2) An amount, no greater than 5% of the balance of the Clean Air Fund on December 31 of the previous calendar year, may be used to fund the normal operating costs of the County's air quality program.
- (3) No air pollution source, except for Department facilities supporting the air quality program, which is subject to the provisions of this article shall receive monies from this Fund, or services, equipment, or materials purchased with such monies, to fulfill its obligations under this chapter.
- D. Procedures for disbursement of funds. Procedures for disbursement of monies paid into the Clean Air Fund shall be as follows: **[Amended 7-7-2009 by Ord. No. 30-09]**
- (1) The Department shall prepare requests for disbursements.
 - (2) The Department shall consult with the Air Pollution Control Advisory Committee regarding the disbursement requests.
 - (3) The Department shall present requests for disbursements to the Board of Health. The request shall include a summary of the consultation with the Air Pollution Control Advisory Committee.
 - (4) The Board of Health shall approve or disapprove requests for disbursement made by the Department. Approval of the Air Pollution Control Advisory Committee is not required.

§ 505-87. Appeals.

Appeals. In accordance with state Law and County regulations and ordinances, any person aggrieved by an order or other final action of the Department issued pursuant to this chapter or any unsuccessful petitioner to the Administrator under Article III, § 505-26, of this chapter shall have the right to appeal the action to the Director in accordance with the applicable County regulations and ordinances.

§ 505-88. Citizen suits.

- A. Any activity or condition declared by this chapter to be a nuisance or which is otherwise in violation of this chapter shall be abatable in the manner provided by law or equity for the abatement of public nuisance. In addition, and in accordance with the Air Pollution Control Act, in order to restrain or prevent any violation of this chapter, or any permit or orders issued by the Department, or to restrain the maintenance and threat of public nuisance, suits may be instituted in equity or at law in the name of the County upon relation of the Commonwealth Attorney General, the Commonwealth General

Counsel, the County District Attorney, or the solicitor of any municipality affected, after notice has first been served upon the County Solicitor of the intention to so proceed. In accordance with state law, such proceedings may be prosecuted in the Commonwealth Court or in the County Court of Common Pleas, and, to that end, jurisdiction is conferred in law and equity upon such courts. Except in cases of emergency where, in the opinion of the court, the exigencies of the case require immediate abatement of the nuisance, the court may, in its decree, fix a reasonable time during which the person responsible for the nuisance may make provision for the abatement of the same.

- B. In cases where the circumstances require it or the public health is endangered, a mandatory preliminary injunction, special injunction or temporary restraining order may be issued upon the terms prescribed by the court, notice of the application therefor having been given to the defendant in accordance with the rules of equity practice, and in any such case the Attorney General, the General Counsel, the District Attorney, the County Solicitor, or the solicitor of any municipality shall not be required to give bond. In any such proceeding the court shall, upon motion of the Commonwealth or the County, issue a prohibitory or mandatory preliminary injunction if it finds that the defendant is engaging in unlawful conduct as defined by the Air Pollution Control Act or this chapter or is engaged in conduct which is causing immediate and irreparable harm to the public. In addition to an injunction, the court in such equity proceedings may levy civil penalties in the same manner as the Department in accordance with § 505-83 of this chapter.
- C. Except as provided in Subsection D of this section, any person may commence a civil action to compel compliance with this chapter, or any order or permit issued pursuant to this chapter, by any owner, operator, or other responsible party alleged to be causing or contributing to a violation of any provision of this chapter, or any order or permit issued under this chapter. In addition to seeking to compel compliance, any person may request the court to award civil penalties. The court shall use the factors and amounts contained in § 505-83 of this chapter in awarding civil penalties under this subsection. Such penalties shall be paid into the County Clean Air Fund. Except where 42 Pa.C.S. (relating to judiciary and judicial procedure) requires otherwise, the courts of common pleas shall have jurisdiction of such actions. Such an action may not be commenced if the Department has commenced and is diligently prosecuting a civil action in a federal or state court or is in litigation involving the assessment of a civil penalty or the issuance of an order to require the alleged violator to comply with this chapter, or any order or permit issued pursuant to this chapter, but, in any such action in a federal or state court, any person having or representing an interest which is or may be adversely affected may intervene as a matter of right without posting bond.
- D. An action pursuant to Subsection C of this section may not be commenced prior to 60 days after the plaintiff has given notice, in writing, of the violation to the Department and any alleged violator.
- E. The sixty-day notice provisions of Subsection D of this section to the contrary notwithstanding, any action pursuant to Subsection C of this section may be initiated immediately upon written notification to the Department in the case where the violation or condition complained of constitutes an imminent threat to the health or safety of the plaintiff or would immediately affect a legal interest of the plaintiff.
- F. The court, in issuing any final order in any action brought pursuant to Subsection C of this section, may award costs of litigation, including attorney and expert witness fees, to any party whenever the court determines such an award is appropriate. Except as provided in Subsection B of this section, the court may, if a temporary restraining order or preliminary injunction is sought, require the filing of a bond or equivalent security in accordance with the Pennsylvania Rules of Civil Procedure.

§ 505-89. Limitations on action.

In accordance with state law, actions for civil or criminal penalties under this chapter may be commenced at any time within a period of seven years from the date the offense is discovered.

§ 505-90. General federal conformity.

- A. Applicability. This article of this chapter applies to any and all departments, agencies, or instrumentalities of the federal government and any and all activities engaged in, supported or financially assisted in any way, licensed, permitted, or approved by any such department, agency, or instrumentality.
- B. Incorporation by reference. The federal regulations for determining conformity of general federal actions to state or federal implementation plans promulgated by the EPA at 40 CFR Part 51, Subpart W and by the Commonwealth at 25 Pa. Code §§ 127.301 through 127.303 are hereby incorporated by reference into this chapter. Additions, revisions, or deletions to such regulations by the EPA or the Commonwealth are incorporated into this chapter and are effective on the date established by such federal or state regulations, unless otherwise established by regulation under this chapter.